

**The Life of
Isaac Ingalls Stevens**



by his son

**Hazard Stevens
In Two Volumes
Volume II**

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THE LIFE OF ISAAC INGALLS STEVENS

BY HIS SON

HAZARD STEVENS

WITH *MAPS* AND *ILLUSTRATIONS*

IN TWO VOLUMES

VOL. II



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The portraits of Indian chiefs were made by Gustavus Sohon, a private soldier of the 4th infantry, an intelligent and well-educated German, who had great skill in making expressive likenesses. He also made the views of the councils and expedition. These portraits, with many others taken by the same artist, were intended by General Stevens to be used to illustrate a complete account of his treaty operations. The views of camps and headquarters were sketched by E. Henry, E Company, 79th Highlanders.

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THE LIFE OF ISAAC INGALLS STEVENS



CHAPTER XXVI

THE CHEHALIS COUNCIL

While treating with the Sound Indians, the governor sent William H. Tappan, agent for the southwestern tribes, Henry D. Cock, and Sidney Ford to summon the Chinooks, Chehalis, and coast Indians to meet in council on the Chehalis River, just above Gray's Harbor, on February 25, and on returning to Olympia dispatched Simmons and Shaw on the same duty. On the 22d he left Olympia on horseback, rode to the Chehalis, thirty miles, and the following day descended that stream in a canoe to the treaty ground. Among other settlers who attended the council at the governor's invitation was James G. Swan, then residing on Shoalwater Bay, and since noted for his interesting writings on the Pacific Northwest, and for the valuable collections of Indian implements and curiosities, and monographs of their languages, customs, and history that he has made for the Smithsonian Institution. Judge Swan gives the following graphic and lively account of this council in his "Three Years' Residence in Washington Territory." He describes how he and Dr. J.G. Cooper, accompanied by twenty canoe-loads of Indians, paddled up the Chehalis one cold, damp morning, without waiting for breakfast, finding it difficult to keep warm:—

"But the Indians did not seem to mind it at all; for, excited with the desire to outvie each other in their attempts to be first to camp, they paddled, and screamed, and shouted, and laughed, and cut up all kinds of antics, which served to keep them in a glow. As we approached the camp we all stopped at a bend in the river, about three quarters of a mile distant, when all began to wash their faces, comb their hair, and put on their best clothes. The women got out their bright shawls and dresses, and painted their faces with vermilion, or red ochre and grease, and decked themselves out with their beads and trinkets, and in about ten minutes we were a gay-looking set; and certainly the appearance of the canoes filled with Indians dressed in their brightest

colors was very picturesque, but I should have enjoyed it better had the weather been a little warmer.

“The camp ground was situated on a bluff bank of the river, on its south side, about ten miles from Gray’s Harbor, on the claim of Mr. James Pilkington. A space of two or three acres had been cleared from logs and brushwood, which had been piled up so as to form an oblong square. One great tree, which formed the southern side to the camp, served also as an immense backlog, against which our great camp-fire and sundry smaller ones were kindled, both to cook by and to warm us. In the centre of the square, and next the river, was the governor’s tent; and between it and the south side of the ground were the commissary’s and other tents, all ranged in proper order. Rude tables, laid in open air, and a huge framework of poles, from which hung carcasses of beef, mutton, deer, elk, and salmon, with a cloud of wild geese, ducks, and smaller game, gave evidence that the austerities of Lent were not to form any part of our services.

“Around the sides of the square were ranged the tents and wigwams of the Indians, each tribe having a space allotted to it. The coast Indians were placed at the lower part of the camp; first the Chinooks, then the Chehalis, Quen-ai-ult, and Quaitso, Satsop, upper Chehalis, and Cowlitz. These different tribes had sent representatives to the council, and there were present about three hundred and fifty of them, and the best feeling prevailed among all.

“The white persons present consisted of only fourteen, viz., Governor Stevens, George Gibbs (who officiated as secretary to the commission), Judge Ford, with his two sons, who were assistant interpreters, Lieutenant-Colonel B.F. Shaw, the chief interpreter, Colonel Simmons and Mr. Tappan, Indian agents, Dr. Cooper, Mr. Pilkington, the owner of the claim, Colonel Cock, myself, and last, though by no means the least, Cushman, our commissary, orderly sergeant, provost marshal, chief story-teller, factotum, and life of the party,—‘Long may he wave.’ Nor must I omit Green McCafferty, the cook, whose name had become famous for his exploits in an expedition to Queen Charlotte’s Island to rescue some sailors from the

Indians. He was a good cook and kept us well supplied with hot biscuit and roasted potatoes.

“Our table was spread in the open air, and at breakfast and supper was pretty sure to be covered with frost, but the hot dishes soon cleared that off, and we found the clear, fresh breeze very conducive to a good appetite. After supper we all gathered round the fire to smoke our pipes, toast our feet, and tell stories.

“The next morning the council was commenced. The Indians were all drawn up in a large circle in front of the governor’s tent, and around a table on which were placed the articles of treaty and other papers. The governor, General Gibbs, and Colonel Shaw sat at the table, and the rest of the whites were honored with camp-stools, to sit around as a sort of guard, or as a small cloud of witnesses.

“Although we had no regimentals on, we were dressed pretty uniform. His Excellency the Governor was dressed in a red flannel shirt, dark frock coat and pants, and these last tucked in his boots, California fashion; a black felt hat, with, I think, a pipe stuck through the band; and a paper of fine-cut tobacco in his coat pocket. We also were dressed like the governor, not in ball-room or dress-parade uniform, but in good, warm, serviceable clothes.

“After Colonel Mike Simmons, the agent, and, as he has been termed, the Daniel Boone of the Territory, had marshaled the savages into order, an Indian interpreter was selected from each tribe to interpret the jargon of Shaw into such language as their tribes could understand. The governor then made a speech, which was translated by Colonel Shaw into jargon, and spoken to the Indians, in the same manner the good old elders of ancient times were accustomed to deacon out the hymns to the congregation. First the governor spoke a few words, then the colonel interpreted, then the Indians; so that this threefold repetition made it rather a lengthy operation. After this speech the Indians were dismissed till the following day, when the treaty was to be read. We were then requested by the governor to explain to those Indians we were acquainted with what he had said, and they seemed very well satisfied. The governor had purchased of Mr. Pilkington a

large pile of potatoes,--about a hundred bushels,—and he told the Indians to help themselves. They made the heap grow small in a short time, each taking what he required for food; but lest any one should get an undue share, Commissary Cushman and Colonel Simmons were detailed to stand guard on the potato pile, which they did with the utmost good feeling, keeping the savages in a roar of laughter by their humorous ways.

“At night we again gathered around the fire, and the governor requested that we should enliven the time by telling anecdotes, himself setting the example. Governor Stevens has a rich fund of interesting and amusing incidents that he has picked up in his camp life, and a very happy way of relating them. We were all called upon in turn. There were some tales told of a wild and romantic nature, and Judge Ford and Colonel Mike did their part. Old frontiersmen and early settlers, they had many a legend to relate of toil, privation, fun, and frolic; but the palm was conceded to Cushman, who certainly could vie with Baron Munchausen or Sindbad the Sailor in his wonderful romances. His imitative powers were great, and he would take off some speaker at a political gathering or a camp-meeting in so ludicrous a style that even the governor could not preserve his gravity, but would be obliged to join the rest in a general laughing chorus. Whenever Cushman began one of his harangues, he was sure to draw up a crowd of Indians, who seemed to enjoy the fun as much as we, although they could not understand a word he said. He usually wound up by stirring up the fire; and this, blazing up brightly and throwing off a shower of sparks, would light the old forest, making the night look blacker in the distance, and showing out in full relief the dusky, grinning faces of the Indians, with their blankets drawn around them, standing up just outside the circle where we were sitting. Cushman was a most capital man for a camp expedition, always ready, always prompt and good-natured.

“The second morning after our arrival the terms of the treaty were made known. This was read line by line by General Gibbs, and then interpreted by Colonel Shaw to the Indians. The provisions of the treaty were these: They were to be placed on a reservation between Gray’s Harbor and Cape Flattery, and were to be paid forty thousand

dollars in different installments. Four thousand dollars in addition was also to be paid them, to enable them to clear and fence in land and cultivate. No spirituous liquors were to be allowed on the reservation; and any Indian who should be guilty of drinking liquor would have his or her annuity withheld.

“Schools, carpenters’ and blacksmiths’ shops were to be furnished by the United States; also a sawmill, agricultural implements, teachers, and a doctor. All their slaves were to be free, and none afterwards to be bought or sold. The Indians, however, were not to be restricted to the reservation, but were to be allowed to procure their food as they had always done, and were at liberty at any time to leave the reservation to trade with or work for the whites.

“After this had all been interpreted to them, they were dismissed till the next day, in order that they might talk the matter over together, and have any part explained to them which they did not understand. The following morning the treaty was again read to them after a speech from the governor, but although they seemed satisfied, they did not perfectly comprehend. The difficulty was in having so many tribes to talk to at the same time, and being obliged to use the jargon, which at best is a poor medium of conveying intelligence. The governor requested any one of them that wished, to reply to him. Several of the chiefs spoke, some in jargon and some in their own tribal language, which would be interpreted into jargon by one of their people who was conversant with it; so that, what with this diversity of tongues, it was difficult to have the subject properly understood. But their speeches finally resulted in one and the same thing, which was that they felt proud to have the governor talk with them; they liked his proposition to buy their land, but they did not want to go to the reservation. The speech of Narkarty, one of the Chinook chiefs, will convey the idea they all had. ‘When you first began to speak,’ said he to the governor, ‘we did not understand you; it was all dark to us as the night; but now our hearts are enlightened, and what you say is clear to us as the sun. We are proud that our Great Father in Washington thinks of us. We are poor, and can see how much better off the white men are than we are. We are willing to sell our land, but we do not want to go away from our homes. Our fathers and mothers and ancestors are buried there, and

by them we wish to bury our dead and be buried ourselves. We wish, therefore, each to have a place on our own land where we can live, and you may have the rest; but we can't go to the north among the other tribes. We are not friends, and if we went together we should fight, and soon we would all be killed.' This same idea was expressed by all, and repeated every day. The Indians from the interior did not want to go on a reservation with the coast or canoe Indians. The whole together only numbered 843 all told, as may be seen by the following census, which was taken on the ground:—

Lower Chehalis	217
Upper Chehalis	216
Quenaiults	158
Chinooks	112
Cowlitz	<u>140</u>
	843

“But though few in numbers, there were among them men possessed of shrewdness, sense, and great influence. They felt that though they were few, they were as much entitled to a separate treaty as the more powerful tribes in the interior. We all reasoned with them to show the kind intentions of the governor, and how much better off they would be if they could content themselves to live in one community; and our appeals were not altogether in vain. Several of the tribes consented, and were ready to sign the treaty, and of these the Quenaiults were the most prompt, evidently, however, from the fact that the proposed reservation included their land, and they would consequently remain at home.

“I think the governor would have eventually succeeded in inducing them all to sign, had it not been for the son of Carcowan, the old Chehalis chief. This young savage, whose name is Tleyuk, and who was the recognized chief of his tribe, had obtained great influence among all the coast Indians. He was very willing at first to sign the treaty, provided the governor would select *his* land for the reservation, and make him the grand *Tyee*, or chief, over the whole five tribes; but when he found he could not effect his purpose, he changed his

behavior, and we soon found his bad influence among the other Indians, and the meeting broke up that day with marked symptoms of dissatisfaction. This ill-feeling was increased by old Carcowan, who smuggled some whiskey into the camp, and made his appearance before the governor quite intoxicated. He was handed over to Provost Marshal Cushman, with orders to keep him quiet till he got sober. The governor was very much incensed at this breach of his orders, for he had expressly forbidden either whites or Indians bringing one drop of liquor into the camp.

“The following day Tleyuk stated that he had no faith in anything the governor said, for he had been told that it was the intention of the United States government to put them all on board steamers and send them away out of the country, and that the Americans were not their friends. He gave the names of several white persons who had been industrious in circulating these reports to thwart the governor in his plans, and most all of them had been in the employ of the Hudson Bay Company. He was assured that there was no truth in the report, and pretended to be satisfied, but in reality was doing all in his power to break up the meeting. That evening the governor called the chiefs into his tent, but to no purpose, for Tleyuk made some insolent remarks, and peremptorily refused to sign the treaty, and with his people refused to have anything to do with it. That night in his camp they behaved in a very disorderly manner, firing off guns, shouting, and making a great uproar.

“The next morning, when the council was called, the governor gave Tleyuk a severe reprimand, and, taking from him his paper, which had been given to show that the government recognized him as chief, he tore it to pieces before the assemblage. Tleyuk felt this disgrace very keenly, but said nothing. The paper was to him of great importance, for they all look on a printed or written document as possessing some wonderful charm. The governor then informed them that as all would not sign the treaty it was of no effect, and the camp was then broken up.

“Throughout the whole of the conference Governor Stevens evinced a degree of forbearance, and a desire to do everything he could for the

benefit of the Indians. Nothing was done in a hurry. We remained in the camp a week, and ample time was given them each day to perfectly understand the views of the governor. The utmost good feeling prevailed, and every day they were induced to some games of sport to keep them good humored. Some would have races on the river in their canoes, others danced, and others gambled; all was friendly till the last day, when Tleyuk's bad conduct spoiled the whole."

That was an intrepid and resolute act of Governor Stevens, thus to tear up the turbulent chief's commission before his face, surrounded by three hundred and fifty Indians and supported by only fourteen whites; but it effectually cowed the insolent young savage, and preserved the respect of the Indians.

The council was by no means abortive, for in consequence of it the following fall Colonel Simmons obtained the assent and signature of the chiefs of the Quenaiult and Quillehute coast tribes to the treaty so carefully explained to them at the Chehalis council, and it was signed by Governor Stevens at Olympia, January 25, 1856, on his return from the Blackfoot council, and duly confirmed with the other treaties on March 8, 1859. These Indians were given \$25,000 in annuities, and \$2500 to improve the reservation, the selection of which was left to the President. A reservation of ten thousand acres was set off at the mouth of the Quenaiult River, including their principal village and salmon fishery, renowned as yielding the richest and finest salmon on the coast, a fish of medium size, deep, rich color, and exquisite flavor. The other provisions were the same as those secured to the Sound Indians.

Tah-ho-lah and How-yatl, head chiefs of the two tribes, and twenty-nine other chiefs signed the treaty, and it was witnessed by M.T. Simmons, general Indian agent; H.A. Goldsborough, surveyor; B.F. Shaw, interpreter; James Tilton, surveyor-general; F. Kennedy, J.Y. Miller, and H.D. Cock.

These two tribes numbered four hundred and ninety-three, a number greatly in excess of the census given in Swan's account. In their distrust the Indians invariably reported less than their actual numbers, and nearly every tribe was found to be larger than the first estimate. The numbers of the Chinook,

Chehalis, and Cowlitz Indians were reported by Governor Stevens in 1857 as one thousand one hundred and fifteen.

Including the Quenaiults and the Cowlitz, and other Indians not on reservations, they now number some seven hundred, and are in about the same condition as the Sound Indians.[\[1\]](#)



CHAPTER XXVII

PERSONAL AND POLITICAL.—SAN JUAN CONTROVERSY

Just before going to the Chehalis council, Governor Stevens and his family suffered a sad and severe affliction in the death of his young kinsman, George Watson Stevens, who was drowned on February 16 at the debouch of the Skookumchuck Creek into the Chehalis River, as he was returning from Portland, whither he had gone to cash some government drafts. He was accompanied on the journey by A.B. Stuart, the mail and express carrier, who, as they approached the stream, had occasion to stop at a settler's house, while George Stevens kept on, and, although cautioned by Stuart, lost his life in the attempt to cross by the usual ford. The Skookumchuck empties into the Chehalis at right angles, and although ordinarily a stream of moderate size, becomes, when swollen by rains, a mighty and furious flood, which, encountering the rapid current of the Chehalis, forms a dangerous whirlpool in the centre of that river. Not realizing the danger, and anxious to reach his journey's end that day, he forced his horse into the raging torrent, and was swept, man and steed, into the whirlpool below, where, although a fine swimmer and a strong, vigorous man, he met his death. Stuart reached the ford soon afterwards, and finding it impassable and his companion nowhere visible, rightly concluded that he was lost, and hastened to Olympia with the sad tidings.

Governor Stevens with a party hastened to the scene, and diligently searched for the missing one. The governor caused a band of horses to be driven into the stream to test its power, but all were instantly swept down into the larger river, several of them clear to the whirlpool, although the water had fallen considerably. The unfortunate youth's horse swam ashore, and was found with the saddle and saddle-bags soaked with water, and a few days later his remains were found in the river a mile below the whirlpool. This sad event cast a deep gloom upon the family, and indeed all

the community, for he was a young man of great promise, noble traits, and only twenty-two years of age. The governor said of him:—

“His whole character was an admirable blending of strength and gentleness. He was essentially a man of great resolution, daring, enterprise, and purpose, who adhered with great inflexibility to his determinations; yet he was so gentle, so kindly, so courteous, and so disinterested that his strength did not fully appear in ordinary intercourse. To his friends his death is a sad bereavement, which time only can obliterate. His memory will be precious, his life an example, his bright and pure spirit is now in the heavenly mansion.”

“He was a brother in the house,” wrote Mrs. Stevens to her mother; “evenings he always spent at home, and took an interest in everything about the house, played with the children, seemed to be happy just staying in our society. Here is my garden he made, and the flowers he set out, and marks of him all about us.”

It was a sad time when his remains were brought in, and the little toys and candy he had thoughtfully purchased for the children were found in his pockets and saddle-bags. He was buried on the beautiful green Bush Prairie, amid the scenes of mountain, prairie, and forest he loved so well. His intimate friends, Mason and Doty, were soon to be laid at rest by his side.

In a letter to a sister Mrs. Stevens relates another instance of the governor’s firmness and fearlessness in dealing with the Indians:—

“There are three different tribes of Indians in Olympia now, all different,—the Nisquallies, Chissouks, and northern Fort Simpson Indians. A curious sight it is to see them. They are all gambling, their mats spread on the ground; and you will see groups of fifty seated on the ground, and playing all day and night. The town is full of them. Mr. Stevens has them right under his thumb. They are as afraid as death of him, and do just what he tells them. He told the chiefs of the tribes he would not let them disturb the whites. That night they kept up an awful howling and singing, making night hideous like a pack of wolves. Mr. Stevens got up, took a big club, and went right in among them, and talked to them, and told them that the first man that opened his lips he would knock down. The chief said, ‘Close’ (All right), and not another

sound came from them that night. When he came back, he said the biggest lodge was full of men sitting in a circle around a big fire, smoking and singing.”

Returning from the Chehalis council, Governor Stevens remained the next two months in Olympia, hard at work with his multifarious duties, reviewing legislative acts, preparing reports of the councils and treaties, instructing the Indian agents, and attending to the unceasing cares and questions arising from the Indians, and preparing for the trip east of the mountains. In April he made the arduous horseback and river trip to Vancouver, and there met Superintendent Joel Palmer, of Oregon, by appointment, having previously invited him, in order to arrange with him in regard to the proposed council with the Indians of the upper country, some of whom were within General Palmer’s superintendency.

This spring began the San Juan Island controversy with Great Britain, which came near involving the two countries in war, and lasted with various phases for eighteen years, until it was finally decided in favor of the United States by Emperor William I., of Germany.

By the treaty of 1846 the main ship-channel which separates the continent from Vancouver Island was fixed as the boundary from the point where the 49th parallel intersects the Gulf of Georgia, in order to give the whole of that island to Great Britain, for the parallel intersects it. It happens, however, that there are two channels, with a valuable group of islands between them, answering this description. The Americans claimed the western-most, the Canal de Haro, which runs next to Vancouver Island, and is the shorter, broader, and deeper, in every respect the main ship-channel, while the English insisted that the eastern channel, Rosario Straits, was the proper boundary. The shrewd and aggressive officers of the Hudson Bay Company at Victoria, Sir James Douglass at their head, originated the British claim, which otherwise had never arisen, so little merit had it, and in order to gain a foothold on, and claim possession of, these valuable islands, placed a flock of sheep on San Juan, and stationed there a petty official of the company. The island was included in Whatcom County by act of the Washington legislature, the property thereon became subject to taxation, and the sheriff of the county levied upon and seized a number of the sheep in default of payment of taxes.

Sir James Douglass thereupon addressed Governor Stevens, complaining of the seizure, and demanding to know if the sheriff's proceedings were authorized or sanctioned in any manner by the executive officer of Washington Territory. The governor promptly replied, May 12, 1855, and firmly and uncompromisingly asserted the American right, and justified the sheriff. After reciting the acts of Oregon and Washington assuming jurisdiction over the islands, he continued:—

“The sheriff, in proceeding to collect taxes, acts under a law directing him to do so. Should he be resisted in such an attempt, it would become the duty of the governor to sustain him to the full force of the authority vested in him.

“The ownership remains now as it did at the execution of the treaty of June 11, 1846, and can in no wise be affected by the alleged ‘possession of British subjects.’”

The correspondence was communicated to the Secretary of State, who in reply deprecated any action by the territorial authorities pending a settlement of the question by the respective governments, and the dispute remained in abeyance until excited some years afterwards by another British act of aggression. Had our government firmly asserted its undoubted right at this time, the matter would have been settled. To the resolute and patriotic stand of Governor Stevens on this occasion, and his subsequent course in defense of this American territory, as will be seen hereafter, were due the ultimate defeat of the persistent and hard-fought British demands.

At this time the governor purchased of William Taylor for \$2000 his donation claim, a fine tract of half a section, 320 acres, six miles southwest of Olympia, and in the northwestern corner of Bush Prairie. It comprised a few acres of prairie, over a hundred acres of heavy meadow, and the remainder in heavy fir timber. A small house and a field fenced off the prairie were the only improvements. The governor always took great interest and pleasure in the soil, in gardening and farming. He soon put a man on the place, and laid out extensive plans of improving it.

In April the Democratic convention met in Olympia to nominate a candidate for delegate in Congress, to succeed Judge Lancaster. The delegates assembled in a large store building on the southwest corner of Main and

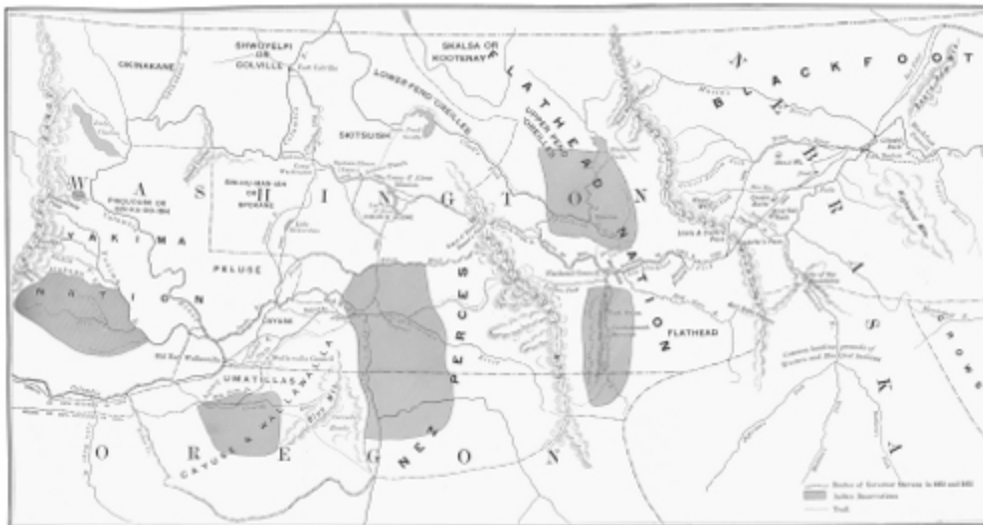
First streets, belonging to George A. Barnes. Governor Stevens was a candidate for the nomination. He was desirous, after completing his treaty operations and returning from the Blackfoot council, to represent the Territory in Congress, and there push forward his plans for the public service, further railroad surveys, wagon roads, mail routes, steamer service, Indian treaties and policy, and, above all, the Northern Pacific Railroad. Many of the first settlers were strong in his support, recognizing how much such a man in Congress could accomplish for the Territory. There were two other candidates, Judge Columbia Lancaster, very anxious to succeed himself, and J. Patton Anderson, United States marshal, who had traveled all over the Territory in taking the census the previous year, and, it was said, had diligently improved his opportunities as census-taker by paying court to all the women, kissing all the babies, and pledging all the men to support him for delegate. He was a man of good appearance, cordial, pleasant Southern manners, and well calculated to make friends. The convention divided between the three candidates, and balloted an entire day without result. In the evening the candidates were invited to address the convention. Colonel Shaw, who was one of the governor's supporters, although not a member of the convention, says that he advised the governor not to accept the invitation, lest the friends of the other candidates, hearing him speak, should become alarmed at his ability and power, and combine against him. Such advice was the very last that the governor, with his straightforward and positive character, would relish. He went before the convention, and in a forcible and patriotic speech, without reference to himself, set forth the needs of the Territory, and the public measures required for its advancement, so ably and clearly that his friends were delighted, and felt sure that he would be chosen on the next ballot. But it turned out as Shaw feared. Although he gained votes, his opponents combined on Anderson, and nominated him, some of them exclaiming, "It won't do to nominate the governor, for if he once gets into Congress, we can never get him out again."



CHAPTER XXVIII

INDIANS OF THE UPPER COLUMBIA

The Indians of the upper Columbia, with whom Governor Stevens was next to treat, presented a far more pressing and difficult problem than the reduced tribes of the Sound. They numbered fourteen thousand souls, comprised in ten powerful tribes, viz., Nez Perces, Cuyuses, Umatillas, Walla Wallas, Yakimas, Spokanes, Cœur d'Alenes, Flatheads, Pend Oreilles, and Kootenais.[2] They were a manly, athletic race, still uncontaminated by the vices and diseases which so often result from contact with the whites, and far superior in courage and enterprise, as well as in form and feature, to the canoe Indians of the Sound and coast. Each tribe possessed its own country, clearly defined by well-known natural boundaries, within whose limits their wanderings were restrained, save when they “went to buffalo,” or attended some grand council or horse-race with a neighboring tribe. The chase, the salmon fishery, the root ground, the numerous bands of horses and cattle, furnished easy and ample sustenance. It was estimated that the Nez Perces owned twenty thousand head of these animals, and the Cuyuses, Umatillas, and Walla Wallas not less than fifteen thousand. The Yakimas and Spokanes also possessed great numbers.



THE INTERIOR FROM CASCADE MOUNTAINS TO FORT BENTON

[Larger image](#)

Of all these tribes, the Nez Perces or Sahaptin were the most numerous and progressive. They numbered 3300, and occupied the country along the western base of the Bitter Root Mountains for over two hundred miles, and a hundred miles in width, including both banks of the Snake and its tributaries, the Kooskooskia or Clearwater, Salmon, Grande Ronde, Tucañon, etc. Yearly, in the spring or fall, their war chief would lead a strong party across the Rocky Mountains to hunt the buffalo on the plains of the Missouri, and many were the bloody encounters they had with the dreaded Blackfeet, the Arabs of the plains. They owned great numbers of horses, and the advent of the horse among them, about the middle of the eighteenth century, obtained from the Spaniards of New Mexico or California, of which they preserved the tradition, was the chief cause of their prosperous condition. From the days of Lewis and Clark, the first of the white race to meet their astonished gaze, they were famed as the firm friends of the white man. During all the fur-hunting and trading epoch the "mountain men," as the trappers and voyageurs delighted to call themselves, were welcome in the lodges of the Nez Perces. Together they wintered in safety on the banks of the Kooskooskia, and together they hunted the buffalo on the plains of the Missouri, and made common cause against the Blackfeet. Among the most noted of the numerous encounters in which they were allied against their common foe was the stubborn fight of Pierre's Hole in 1832, so graphically described by Washington Irving in his "Bonneville Adventures." It was in this fight that Lawyer, then a promising young brave, and afterwards for many years the powerful head chief of the Sahaptin, received a severe wound in the hip, which never entirely healed, and doubtless hastened his death.

In 1836 Rev. H.H. Spalding with his wife was sent out by the Presbyterians, and settled as a missionary on the Lapwai, a branch on the southern side of the Kooskooskia, twelve miles above its confluence with the Snake. Here he was preceded by William Craig, a Virginian, one of the best type of mountain men, who had married a Nez Perce maiden and made his home among her people. Aided by Craig's knowledge of the Nez Perce tongue and character, and of the Indians themselves, Mr. Spalding taught the whole tribe a simple Christian faith, made a dictionary of their language, and

translated and had printed in the native tongue a hymn-book, catechism, and New Testament, taught a number of the young men to read and write their own language, built a saw and grist mill, and labored to induce them, not without success, to till the soil. Yet, after all this achievement, he was in the end led to abandon his mission. In an unhappy hour he opened a store and went to trading with the Indians. In their experience a trader was the personification of greed and falsehood. To them the union of the trader, all selfishness and fraud, and the preacher of morality and truth was monstrous, nay, impossible. Mr. Spalding, too, was hard and exacting in his dealings, and offended in that way. With all his zeal and energy, he evidently lacked knowledge of Indian nature, perhaps of human nature. What wonder that some of the Nez Percés, seeing that the trading-post was a fact, concluded that his preaching was a fraud, and warned him out of their country! The massacre of the devoted missionary, Dr. Marcus Whitman, and his family, by the Cuyuses, in 1847, had just occurred, and Mr. Spalding, fearing a like fate if he remained after the warning, abandoned the mission where he had done so much. The majority of the Nez Percés, however, desired him to remain; and when he decided upon going, they formed a strong party of warriors, and escorted him with his family and effects unharmed through the hostile Indians to the frontier settlement. They magnanimously refused the large reward offered them, saying, "We will not sell Mr. Spalding; he left our country of his own free will, and we escorted him as his friends." In the war which ensued they remained the firm friends of the whites, and the officers of the Oregon volunteers engaged in it presented them with a fine, large American flag, in which they took great pride. It was their boast that "We are the friends of the white man. The white man is our brother. His blood has never stained our hands." Craig remained among them in perfect safety, and was treated with undiminished kindness. Although abandoned by Mr. Spalding, they by no means discarded the good he had taught them. They maintained, unaided, their simple religious worship, and held services regularly every Sabbath, with preaching, singing of hymns, and reading of the Bible, all in their own language, with the books translated and printed for them by the devoted missionary. They prided themselves upon their superior intelligence, upon having young men who could read and write, and upon their ancient and fast friendship with the whites. This friendship indeed was not merely a matter of sentiment. They were shrewd enough to turn it to good account. Large emigrations crossed the plains to Oregon

during the period from 1843 to 1855; and the Nez Perces used to go down to the emigrant road on the Grande Ronde or Umatilla, with bands of fat, sleek, handsome ponies, and exchange them with the emigrants for their worn-out horses, oxen, and sometimes a cow, clothing, groceries, ammunition, etc. The Pikes, as the Missourians who comprised the majority of the emigrants were called, "allowed that the Nez Perces could beat a Yankee on a trade." By these means they were beginning to obtain cattle as well as horses, were learning to wear blankets and shirts instead of skins, and individuals were even beginning to set out fruit trees, and plant corn and potatoes, and in a word the Nez Perces were making rapid strides toward civilization. There is no more interesting and instructive example of the amelioration of a savage tribe by the introduction of domestic animals, and its steady growth from abject barbarism, than that afforded by the Nez Perces. But little more than a century ago they were a tribe of naked savages, engaged in a perpetual struggle against starvation. Their country afforded but little game, and they subsisted almost exclusively on salmon, berries, and roots. The introduction of the horse enabled them to make long journeys to the buffalo plains east of the Rocky Mountains, where they could lay in great abundance of meat and furs; furnished them with a valuable animal for trading with other less favored tribes; soon raised them to comparative affluence, and developed in their hunting and trading expeditions a manly, enterprising, shrewd, and intelligent character. They had improved and profited still more from their intercourse with the whites, until there seemed every prospect that, with the introduction of cattle, they might lay aside their nomadic habits, and become a pastoral and then an agricultural people.

The Cuyuses were the most disaffected and intractable of all the tribes. But little is known of their early history. They are said to have come from the east many years ago. No tribe could resist their prowess, and when they settled on the Umatilla and Walla Walla rivers, having driven out the original inhabitants, none dared molest them; since which, wars and pestilence had reduced their numbers to but five hundred, and continual intermarriages with the neighboring tribes had caused their own language to fall into disuse. But they still maintained their separate independence, and were as haughty and arrogant as ever. The Jesuits established a mission on the Umatilla and made some progress in their conversion, and then Dr.

Whitman came among them, establishing his mission in the Walla Walla valley, and for several years possessed their confidence and accomplished much good. The rivalry between Jesuit and Protestant missionary was carried to a high pitch. Pictorial cards were issued by each party, representing its opponents descending into the fiery depths of the infernal regions, where Satan and his imps, with red-hot pitchforks, were impatiently waiting to receive their prey, while the converts to the true faith were ascending to heaven up a broad flight of stairs with winged angels on either side. This hostile and bigoted attitude of the missionaries towards each other must have weakened the respect and confidence of the Indians, and contributed not a little to the troubles that followed.

Dr. Whitman was accustomed to attend the Indians when sick, and these labors, undertaken in the purest benevolence, were ultimately the cause of his death; for, the measles having broken out among them, and great numbers, especially of the children, dying, their suspicions were directed towards this devoted and able missionary.

In the war which ensued the Cuyuses suffered severely, were deprived of great numbers of horses, compelled to relinquish their white captives, and to surrender to well-deserved death some of the most active in the massacre. Their head chief was known as the Young Chief, and next in rank and influence was the Five Crows.

The Walla Wallas and Umatillas numbered upwards of one thousand, and inhabited the banks of the rivers which bear their names, and those of the Columbia. Their head chief was Pu-pu-mox-mox or the Yellow Serpent, a man of great intelligence and force of character, but well stricken in years.

The Yakimas, including outlying bands,^[3] were over 3900 strong, and occupied the large region between the Columbia and the Cascades, with their principal abodes in the Yakima valley. One band, the Palouses, lived on the Palouse River, on the north side of the Snake and east of the Columbia, next the Nez Perce country. Large bands of the Yakimas had crossed the Cascades and were pressing on the feebler races on the west, by whom they were appropriately termed “Klik-i-tats” or robbers. The Jesuits had a mission on the Ah-ti-nam Creek, on the Yakima, but do not seem to have acquired much influence over them.

The Spokanes numbered 2200, including the Colvilles, 500, and Okinakanes, 600, and held the country north of Snake River to Pend Oreille Lake and the 49th parallel, and extending west from the Nez Perce country, and that occupied by the Cœur d'Alenes at the base of the Bitter Root Mountains, to the Columbia River. A Presbyterian mission was also established among them under Rev. E. Walker and G.C. Eells, and abandoned about the same time as that of Mr. Spalding.

Immediately east of the Spokanes, under the western slope of the Bitter Roots, lived the Cœur d'Alenes, a tribe of about five hundred. There was a Catholic mission among them presided over by Father Ravalli, and they had been converted to the ancient faith, and their material condition greatly improved by the good fathers.

The Flatheads, Pend Oreilles, and Koutenays lived in the mountain valleys between the main range of the Rockies and the Bitter Roots, upon the tributaries of Clark's Fork chiefly, and depended largely upon the buffalo for their subsistence. They, too, like the Nez Percés, were distinguished as the constant friends of the whites, and were exposed to the unceasing forays of the Blackfeet. They numbered 2250. They termed themselves the Salish, and the Spokanes and Cœur d'Alenes were of the same stock.

There were also some small independent bands along the Columbia, who subsisted chiefly on salmon. Five sixths of the Indians lived within the Washington superintendency,—all, indeed, except the Cuyuses, Umatillas, Walla Wallas, and a small number of the Nez Percés, who dwelt or roamed in both territories, and the small bands about the Dalles and on the Columbia, Des Chutes, and John Day's rivers, who lived wholly in Oregon.

The whole vast region occupied by these numerous, brave, and manly Indians was still free from the intrusion of white settlers, save a handful in the Walla Walla valley and about Colville. But year after year they saw the long trains of emigrants pass through their country and settle, like swarming bees, upon the fertile plains of the Wallamet. They saw the Indians there dispossessed of their hunting grounds, and rapidly dying off the face of the earth. The tale of every Indian wronged or aggrieved, or who thought himself wronged or aggrieved, was borne with startling rapidity to their ears. Thus far their intercourse with the whites had been of immense benefit

to them. The fur traders supplied them with superior weapons, blankets, and many articles of comfort, and had greatly improved their condition. Devoted missionaries had labored among them for years, and with marked success. By trade with the emigrants they were growing rich in cattle. But the actual occupation of the soil by the settlers filled them with alarm. Amid all these benefits, the fear was fast growing into conviction that the fate of the Chinooks and the Wallamets was the presage of their fate, and that the whites would sooner or later pour with increasing numbers into their country, and appropriate it for themselves. The Flatheads, Pend Oreilles, and Koutenays, remote from the settlements, retained their ancient friendship for the whites. But among the other tribes the desperate resolution was extending and deepening itself to rise and wipe out the dreaded invaders ere it was too late. For several years the bold and turbulent spirits among them had been enlisting the disaffected Indians far and wide in a great combination designed to crush the unsuspecting whites simultaneously at all points by one sudden and mighty blow. In 1853 the wild rumors of impending outbreaks, the forerunners of every Indian war, but which have been invariably unheeded by the over-confident whites, were flying about the land. Yet outwardly all was serene. The great tribes of the upper country, from whom alone danger was to be feared, were as yet unmolested by settlers, had reaped only benefits from the whites, and were as friendly as ever to all appearance. Both authorities and people were lulled into a sense of complete security, and disregarded with contempt the warnings of the few who foresaw the danger. In truth, a similar state of affairs has preceded nearly all our great Indian wars. They have not been caused by petty acts of aggression, stinging whole tribes to frenzied revenge. Indians who undergo such treatment are usually too degraded and helpless to resist. But powerful tribes, unbroken by too long contact with the whites, fired and led by their master spirits, have from time to time risen in arms, and vainly striven to arrest and drive back the white race ere it overwhelmed them, as it had overwhelmed their kindred. Many chiefs have shown profound sagacity in foreseeing the danger menacing their race, and the highest talents and bravery in their bloody struggles to avert it. The Nez Perces saw the danger, but they alone realized the hopelessness of averting it by war. The Nez Perces alone discerned that their only safety was to "follow the white man's road," and that his mode of life was better than their own. Under the wise guidance of Lawyer, they had become imbued

with these convictions, by which their traditional friendship to the whites was strengthened and confirmed, and the time was fast approaching when their fidelity was to save many a valuable life, and preserve the settlements from destruction.

In the spring of 1853 General Benjamin Alvord, then a major and commanding the military post at the Dalles, heralded among the Indians the approach of Governor Stevens with the exploring parties, and in reply was visited by a delegation of chiefs of the Yakimas, Cuyuses, and Walla Wallas, who said that “they always liked to have gentlemen, Hudson Bay Company men, or officers of the army, or engineers, pass through their country, to whom they would extend every token of hospitality. They did not object to persons merely hunting, or those wearing swords, but they dreaded the approach of the whites with ploughs, axes, and shovels in their hands.” Major Alvord had largely dealt with and studied these Indians, and moreover he had confidential sources of information from the Catholic priests of the Yakima Mission. He became so impressed with the danger of an outbreak that he reported the facts and rumors to his superior, General Hitchcock, commanding the Pacific Department, by whom they were discredited, and Major Alvord was soon afterwards relieved from the Dalles. Events were soon to prove that the magnitude and imminence of the danger were even greater than he apprehended. Says General Alvord:[\[4\]](#)—

“I informed Governor Stevens of these threatened Indian difficulties, and of the gigantic scale of their proposed insurrection. What should he do? Was he to remain idle and let the storm come? No, he set to work to provide for the inevitable. As the whites would come as five or six, or ten thousand would come every summer, he did his best to get the Indians to sell their Indian titles.”

It was on reaching the Dalles on his overland exploration that the governor first learned of this smouldering fire. Quick to grasp the situation, to see the breach into which, as Governor and Superintendent of Indian Affairs, it was his duty to throw himself, he lost no time, by his earnest and forcible reports, and by his visit in Washington, in obtaining the necessary authority for treating with these Indians.

Five years had elapsed since Congress, by the Donation Acts, had invited settlers to take possession of the lands of these brave and numerous Indians, utterly disregarding their rights, and now, when the volcano was ready to burst forth, the effort was to be made for the first time to treat with them, and the herculean task was devolved upon Governor Stevens of buying their country, allaying their well-founded fears, adjusting their jealousies and disputes with the whites and with each other, and inducing them to relinquish their savage and nomadic mode of life for agriculture and civilization. Many of the best informed settlers and army officers thought that any attempt to treat with these Indians for their lands was a useless and dangerous enterprise, and would surely lead to collision and bloodshed.

During the spring Mr. Doty and agents A.J. Bolen and R.H. Lansdale were visiting the powerful tribes of the upper country, and preparing them for treating. The Walla Walla valley was chosen for the council ground at the instance of Kam-i-ah-kan, the head chief of the Yakimas, who said, "There is the place where in ancient times we held our councils with the neighboring tribes, and we will hold it there now." A large quantity of goods was taken up the Columbia to Walla Walla in keel-boats. A party of twenty-five men was organized at the Dalles, outfitted with a complete pack-train, mules, riding animals, and provisions, and sent to the council ground to make ready for the reception of the Indians, and afterwards to accompany the governor to the Blackfoot council. The Walla Walla council, like the Blackfoot, was conceived and planned exclusively by Governor Stevens. He alone impressed the necessity of them upon the government, and obtained the requisite authority. The work of collecting the Indians was done chiefly by his agents, and it was not until he learned from Doty that the Indians had agreed to attend, and that the council was assured, that he invited Superintendent Palmer to take part in it as joint commissioner with himself for such tribes as lived partly in both Territories. This fact he caused to be entered on the joint record of the council.

Leaving the gubernatorial office in the hands of Mr. Mason, and the Indian service, now well organized, in charge of Colonel Simmons and other agents, Governor Stevens early in May left Olympia on his treaty-making expedition east of the mountains, calculating to be absent from five to six months. He was accompanied by Lieutenant Richard Arnold, en route to San Francisco; Captain A.J. Cain, Indian agent for the lower Columbia;

R.H. Crosby; his son Hazard, whom he decided to take as far as the Dalles and then send home; and some other gentlemen. The little cavalcade trotted rapidly across the prairies amidst severe and drenching showers, and after a brisk ride of thirty miles reached the hospitable log-house of Judge Ford for supper and shelter.

It rained heavily during the night, and on continuing the journey the next morning, and fording the Skookumchuck, where poor George Stevens was so recently lost, and which was then barely passable, a terribly swift, turbulent, and dangerous-looking torrent, the whole country seemed to be under water. The prairie upon which the town of Newarkum is built was flooded, and the horses laboriously waded across the plain in single file, belly-deep in water. The narrow track through the timber beyond the prairie was like a canal. Dick Arnold, who led the party, a tall, erect, athletic, soldierly figure, suddenly sunk down into the water with a plunge until only his head and his horse's ears were visible. He had ridden into a deep slough, which here crossed the road, indistinguishable in the general flood, but his steed swam and struggled across it and climbed out on the other side, the water dripping from man and horse, but the rider remaining firm in his seat through it all. After some delay the rest of the party effected a crossing on foot by a fallen tree, and drove the horses across by the road, swimming. Without further mishap, save the toils and discomforts of muddy roads and rains, they reached Cowlitz Landing that afternoon, descended the Cowlitz in canoes the next day, and proceeded by steamboat to Vancouver. After a day's stay here the governor continued his journey up the river by steamboat to the lower Cascades, where he spent the night, crossed the Cascades portage on horseback early the next morning, proceeded by steamboat to the Dalles, and found hospitable quarters with Major Granville O. Haller at the military post, where were stationed two companies of the 4th infantry, under Major G.J. Rains. Superintendent Palmer was found at the Dalles, awaiting the governor's arrival.

The outlook for effecting a treaty was deemed unfavorable by all. Governor Stevens was warned by Father Ricard, of the Yakima Mission, that the Indians were plotting to cut off the white chiefs who might attempt to hold a council.^[5] The Snake Indians had attacked and massacred parties of emigrants recently, and Major Rains was under orders to send a force on the emigrant road to protect them. General Palmer and his Indian agents were

reluctant to attempt to treat with the Indians at that time. The governor relates in his diary how he induced Major Rains to send from his small force a detachment of forty soldiers, under Lieutenant Archibald Gracie, to the council as a guard. Mr. Lawrence Kip, afterwards a colonel of the United States army, accompanied Mr. Gracie on the trip, and published an interesting account of the council:—

“After supper, went with Major Haller to see Major Rains. It was about midnight, but the major got up, and we talked for two hours on Indian matters. I dwelt particularly on the necessity of a small force on the treaty ground to maintain order. He saw the necessity, but had no suitable force at his disposal, etc. The bearing of the proposed council on the Snakes was then alluded to by me, and I remarked that the services of a small force in checking insolence would be as good as two hundred men subsequently. We deemed it necessary to maintain our dignity and that of our government at the council, and we would seize any person, whether white man or Indian, who behaved in an improper manner. There were unquestionably a great many malcontents in each tribe. A few determined spirits, if not controlled, might embolden all not well disposed, and defeat the negotiations. Should this spirit be shown, they must be seized; the well affected would then govern in the deliberations, and I anticipated little or no difficulty in negotiating. I then alluded to my determination to call out the militia of the Territory should I find, on reaching the council ground, that any plan of hostilities was being matured, or should a feeling of hostility be manifested, in case a small force was not sent from the garrison.

“So doubtful did General Palmer consider the whole matter of the council, that it was only the circumstance of a military force being dispatched which determined him to send to the treaty ground presents to the Indians. He stated to me that he had concluded to send up no goods; but, the escort having been ordered, he would send up his goods. At this time the Oregon officers expected little from the council, and evidently believed that the whole thing was premature and ill-advised.”

Stopping at the Dalles only long enough to obtain this detachment and outfit his own small party with riding animals, seven pack-mules, two packers, and a cook, the governor again took the saddle, and traveling rapidly overland two hundred miles to the Walla Walla valley in four days, camping the first night on the Des Chutes River, the second on John Day's River, the third on the Umatilla, reached the council ground on May 21 towards evening, the party thoroughly drenched by the soaking rain in which they had traveled all day.

An amusing incident occurred at the camp on John Day's River, which the governor was fond of relating as a good joke on himself. There was no wood to be found in that vicinity, except some drift sticks, which were claimed by an old Indian who had pitched his lodge on the river's bank. After many fruitless attempts to purchase some of his wood, the men took advantage of the temporary absence of the old fellow to purloin a small quantity of it. This was nearly all consumed, and a hot and savory supper was smoking before our travelers, when the old Indian returned and discovered his loss. Dismounting from his pony, he approached the governor, and, in a tone of indignation and scorn, exclaimed, "Do you call yourself a great chief and steal wood?" A liberal present mollified him considerably, and after partaking of the supper, he departed in great good humor.

The council ground was situated on the right bank of Mill Creek, a tributary of the Walla Walla River, and about six miles above the site of the unfortunate Whitman Mission, in the midst of a wide and fertile valley, bounded in the distance on either hand by high, bare, rolling hills, and extending, fan-shaped, far eastward to the Blue Mountains, whose lofty and wooded heights bounded and overlooked the plain. The valley was almost a perfect level, covered with the greatest profusion of waving bunch grass and flowers, amidst which grazed numerous bands of beautiful, sleek mustangs, and herds of long-horned Spanish cattle belonging to the Indians, and was intersected every half mile by a clear, rapid, sparkling stream, whose course could be easily traced in the distance by its fringe of willows and tall cottonwoods. Now every foot of this rich valley is under cultivation, a dozen gristmills run their wheels by these streams, and the very treaty ground is the centre of the thriving town of Walla Walla, with a population of six thousand souls.

Under the energetic hands of Doty and C.P. Higgins, the packmaster,—a position corresponding to the chief mate on shipboard, or the orderly sergeant of a company of troops,—the camp was found pitched, and everything in readiness for the council. A wall tent, with a large arbor of poles and boughs in front, stood on level, open ground a short distance from the creek, and facing the Blue Mountains, all ready for the governor. This was also to serve as the council chamber, and ample clear space was left for the Indians to assemble and seat themselves on the ground in front of the arbor. A little farther in front, and nearer the creek, were ranged the tents of the rest of the party, a stout log-house to safely hold the supplies and Indian goods, and a large arbor to serve as a banqueting-hall for distinguished chiefs, so that, as in civilized lands, gastronomy might aid diplomacy. A large herd of beef cattle and a pile of potatoes, purchased of Messrs. Lloyd Brooke, Bumford & Noble, traders and stock-raisers, who were occupying the site of the Whitman Mission, and ample stores of sugar, coffee, bacon, and flour furnished the materials for the feasts.

General Palmer arrived the same day with R.R. Thompson and R.B. Metcalfe, Indian agents for Oregon tribes, who had visited the Cuyuses and Umatillas and small bands living wholly in Oregon, and summoned them to attend the council. Fatigued and uncomfortable as they must have been after the day's journey and drenching, the commissioners had a long conference in the evening, listened to Doty's report of his visits to the tribes and the talk and dispositions of the chiefs, and discussed the location of reservations and other points. The following programme was agreed upon:

1. Governor Stevens to preside at the council.
2. Each superintendent to be sole commissioner for the Indians within his jurisdiction.
3. Both to act jointly for tribes common to both Territories, each to appoint an agent and commissary for them, and goods and provisions to be distributed to them in proportion to the number under the respective jurisdictions.
4. To keep separate records, to be carefully compared and certified jointly as far as related to tribes common to both Territories.

5. To keep a public table for the chiefs.

The following officers were appointed for the joint treaties, in each case the first named for Washington, the second for Oregon: Governor Isaac I. Stevens and Superintendent Joel Palmer, commissioners; James Doty and William C. McKay, secretaries; R.H. Crosby and N. Olney, commissaries; R. H. Lansdale and R.R. Thompson, agents; William Craig, N. Raymond, Matthew Danpher, and John Flette, interpreters.

The governor also appointed as interpreters A.D. Pambrun, John Whitford, James Coxie, and Patrick McKensie.

Lieutenant Gracie, with his little detachment, arrived on the 23d. A tent, furnished by the governor, was pitched for the officer and his guest, Mr. Kip, while the soldiers built huts of boughs, and spread over them canvas pack-covers. The two gentlemen dined with the governor under the arbor near his tent, "off a table constructed from split pine logs, smoothed off, but not very smooth," says Mr. Kip.

The scanty treating party of whites were now all assembled, and awaited the arrival of the Indians with interest, not unmixed with apprehension; for it seemed a bold and perilous step to meet so many brave and warlike Indians, many of whom were known to be disaffected and ready to provoke an outbreak, in the heart of the Indian country, two hundred miles from the nearest settlement or military post, with such a mere handful. They numbered barely a hundred men,—the governor's party of thirty-five, twelve with General Palmer, the military guard of forty-seven, two Catholic missionaries, and a few settlers.

The second day after reaching the valley Governor Stevens, learning that General Wool had just arrived at Vancouver, wrote him a letter urging the importance of occupying the Walla Walla valley with a strong military force, preferably of cavalry, pointing out the central location of the point, and its strategic advantages for protecting the emigrant road, the trails to the Missouri on the east, the Puget Sound on the west, and for controlling the disaffected Indians, particularly the Cuyuses and Snakes. This, like other sound and indeed necessary measures recommended by the governor, was ignored by the self-sufficient Wool and his officers, until they were obliged to adopt them from necessity.

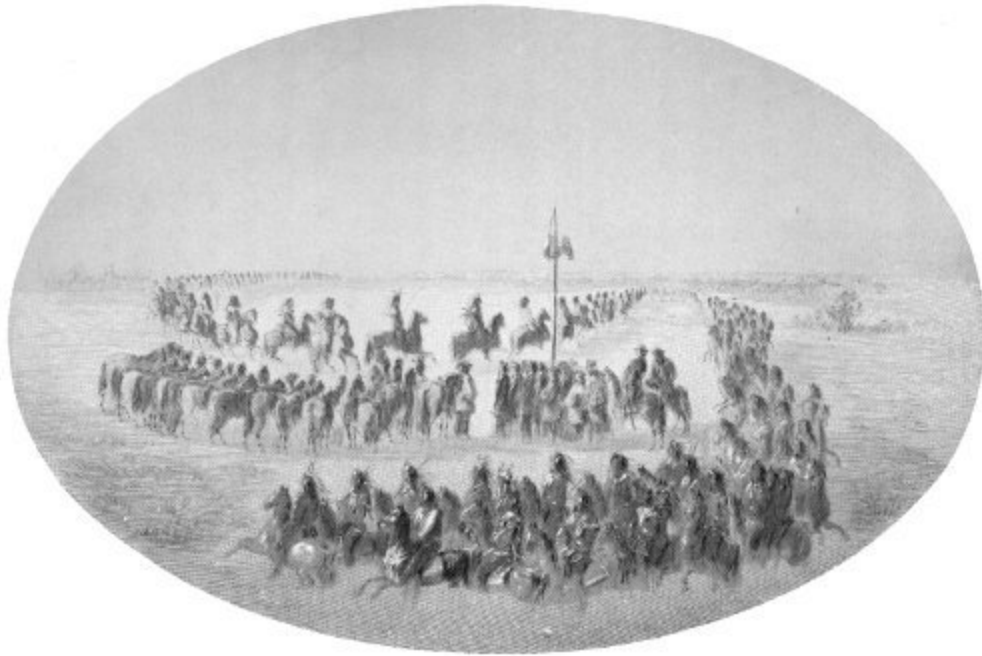


CHAPTER XXIX

THE WALLA WALLA COUNCIL

The Nez Perces, the first to arrive, came the next day, May 24, 2500 strong. Hearing of their approach, the commissioners drew up their little party on a knoll commanding a fine view of the unbroken level of the valley. The standard of the Nez Perces, the large American flag given them by the officers engaged in the Cuyuse war, was sent forward and planted on the knoll. Soon their cavalcade came in sight, a thousand warriors mounted on fine horses and riding at a gallop, two abreast, naked to the breech-clout, their faces covered with white, red, and yellow paint in fanciful designs, and decked with plumes and feathers and trinkets fluttering in the sunshine. The ponies were even more gaudily arrayed, many of them selected for their singular color and markings, and many painted in vivid colors contrasting with their natural skins,—crimson slashed in broad stripes across white, yellow or white against black or bay; and with their free and wild action, the thin buffalo line tied around the lower jaw,—the only bridle, almost invisible,—the naked riders, seated as though grown to their backs, presented the very picture of the fabled centaurs. Halting and forming a long line across the prairie, they again advanced at a gallop still nearer, then halted, while the head chief, Lawyer, and two other chiefs rode slowly forward to the knoll, dismounted and shook hands with the commissioners, and then took post in rear of them. The other chiefs, twenty-five in number, then rode forward, and went through the same ceremony. Then came charging on at full gallop in single file the cavalcade of braves, breaking successively from one flank of the line, firing their guns, brandishing their shields, beating their drums, and yelling their war-whoops, and dashed in a wide circle around the little party on the knoll, now charging up as though to overwhelm it, now wheeling back, redoubling their wild action and fierce yells in frenzied excitement. At length they also dismounted, and took their stations in rear of the chiefs. Then a number of young braves, forming a ring, while others beat their drums, entertained the commissioners with their dances, after which the Indians remounted and

filed off to the place designated for their camp. This was on a small stream, flowing parallel to Mill Creek, on the same side with and over half a mile from the council camp. The chiefs accompanied the governor to his tent and arbor, smoked the pipe of peace, and had an informal talk.



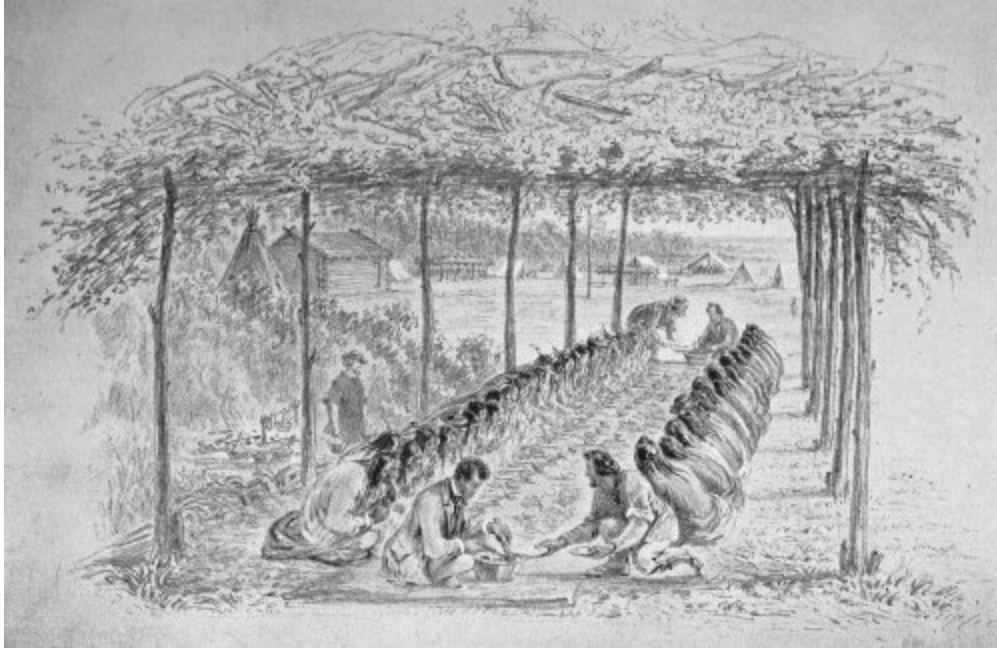
THE ARRIVAL OF THE NEZ PERCES

Hal-hal-tlos-sot or the Lawyer, the head chief of the Nez Percés, was an Indian Solon in his efforts to improve the condition of his people. Without any advantages of birth or wealth, he made himself the first in his tribe, while yet in middle life, by his unrivaled wisdom and force of character. His first acts were directed against gambling, which was indulged in to great excess, and against polygamy. Finding, however, that his influence as head chief was insufficient to carry out his plans for the improvement of his people, he reorganized the government of the tribe, appointed an additional number of chiefs from the young men, and, having thus increased and strengthened his influence, was enabled to accomplish his reforms. He early perceived that the growing power of the whites, which threatened to swallow up all before it, could not be resisted by force, and in consequence all his efforts were directed to inducing the Indians to adopt the customs and civilization of the whites, and to preserving the unbroken friendship between the two races. From the effects of the wound received at the battle

of Pierre's Hole he was still suffering, and his right arm had been twice broken in a fight with a grizzly bear. Wise, enlightened, and magnanimous, the head chief, yet one of the poorest of his tribe, he stood head and shoulders above the other chiefs, whether in intellect, nobility of soul, or influence.

Provisions were issued to the Nez Percés, and some petty tribes which had come in, at the rate of one and a half pounds of beef, two pounds of potatoes, and one half a pound of corn to each person.

The Cuyuses, Walla Wallas, and Umatillas next arrived, and went into camp without any parade or salutations on a stream on the other side of Mill Creek, and over a mile distant from the camp of the whites, from which the intervening fringes of trees completely hid them. The head chief of the Walla Wallas and Umatillas was Pu-pu-mox-mox or the Yellow Serpent, who held despotic sway over his own people, and great influence with neighboring tribes. He owned thousands of horses and cattle, and had amassed a large sum in specie, from trade with settlers and emigrants. Some years before one of his sons, a youth of promise, was murdered by a miner in California, and although he had always been on friendly terms with the whites, not even allowing his people to take part in the Cuyuse war, it was believed that the outrage rankled in his heart. He was well advanced in years, and somewhat childish and capricious in small things, but his form was as erect, his mind as firm, and his authority as unimpaired as ever.



FEASTING THE CHIEFS

The day after their arrival many of the Nez Perce chiefs came to see the commissioners, and after much friendly conversation were invited to dine. Governor Stevens and General Palmer presided at opposite ends of the long table, at which were seated some thirty chiefs, and, having heard of the enormous appetites of the Indians, piled the tin plates, as they were presented, to the brim. Again and again were the plates passed up for a fresh supply; the chiefs feasted and gorged like famished wolves; and the arms of the hosts became so wearied from carving and dispensing the food that they were glad to resign the posts of honor to a couple of stalwart packers. The table for the chiefs was kept up during the council, and every day was well attended, but it was not again graced by the presence of the commissioners.

During the morning an express was received from the Yellow Serpent. He sent word that the Cuyuses, Walla Wallas, and Yakimas would accept no provisions from the commissioners, but would bring their own, and proposed that the Young Chief, Lawyer, Kam-i-ah-kan, and himself, the head chiefs of the Cuyuses, Nez Perces, Yakimas, and Walla Wallas respectively, should do all the talking for the Indians at the council. The messenger would accept no tobacco for the chief, a very unfriendly sign, and muttered as he rode off, loud enough to be overheard by the interpreter, "You will find out by and by why we won't take provisions."

Every effort was made by the other Indians to induce the Nez Percés to refuse provisions, but without avail. The latter took great pride in their unwavering friendship to the whites, and were fond of contrasting their course with that of the Cuyuses. Considerable jealousy sprung up between them in consequence.

Two of the priests, Fathers Chirouse, of the Walla Walla, and Pandosy, of the Yakima Mission, arrived for the purpose of attending the council. They reported that these Indians were generally well disposed towards the whites, with the exception of Kam-i-ah-kan. The latter said, referring to the proposed council: "If the governor speaks hard, I will speak hard, too." Other Indians had said, "Kam-i-ah-kan will come with his young men with powder and ball." They were opposed to selling their lands; and when Secretary Doty visited and invited them to attend the council, Kam-i-ah-kan refused the presents offered him, saying that he "had never accepted anything from the whites, not even to the value of a grain of wheat, without paying for it, and that he did not wish to purchase the presents." He was a man of fine presence and bearing, over six feet in height, well built and athletic. Governor Stevens said of him: "He is a peculiar man, reminding me of the panther and the grizzly bear. His countenance has an extraordinary play, one moment in frowns, the next in smiles, flashing with light and black as Erebus the same instant. His pantomime is great, and his gesticulation much and characteristic. He talks mostly in his face, and with his hands and arms."

Reports were flying about that these tribes had combined to resist a treaty, and fears were expressed that an attempt to open the council would be the signal for an outbreak.

The following day a body of four hundred mounted Indians, supposed to be Cuyuses and Walla Wallas, were observed approaching, armed and in full gala dress, and uttering their war-whoops like so many demons, and, after riding three times around the Nez Perce camp, they departed. Soon after the Young Chief, accompanied by his principal chiefs, rode into camp, and, being invited to dismount, did so with evident reluctance, and shook hands in a very cold manner. They refused to smoke, and remained but a short time. "The haughty carriage of these chiefs," remarks Governor Stevens in

his journal, “and their manly character have, for the first time in my Indian experience, realized the descriptions of the writers of fiction.”



KAM-I-AH-KAN
Head Chief of the Yakimas

Garry, the head chief of the Spokanes, came, not to take part in the council, but as a spectator. When a boy he had been sent to the Red River settlements in Manitoba by Sir George Simpson, then governor of the Hudson Bay Company, where he acquired a common-school, English education. It being impracticable to assemble so distant and widely

scattered a tribe as the Spokanes in time for this council, Governor Stevens designed making a separate treaty with them later in the season on his return from the Missouri.

Father Menetrey, from the Catholic mission among the Pend Oreilles, also arrived to attend the council,—a cultivated man, who spoke English fluently.

A messenger sent to invite the Palouses returned accompanied by only one of the chiefs, who reported that his people were indifferent to the matter, and would not come. A number of scattered and insignificant bands, who lived at different points on the Columbia, also arrived.

The following is from Governor Stevens's journal:—

May 27, Sunday. There was service in the Nez Perce camp and in the Nez Perce language, Timothy being the preacher. The commissioners attended. The sermon was on the Ten Commandments. Timothy has a natural and graceful delivery, and his words were repeated by a prompter. The Nez Percés have evidently profited much from the labor of Mr. Spalding, who was with them ten years, and their whole deportment throughout the service was devout.

The next day agent Bolon, with an interpreter, was sent to meet the Yakimas, who were thought to be near at hand. He soon returned, having met Kam-i-ah-kan and also the Yellow Serpent. The latter said to Mr. Bolon that he was very sorry to hear that the chiefs and others in the commissioners' camp had said that he was unfriendly to the whites,—that his heart was with the Cuyuses, whose hearts were bad. He had always been friendly to the whites, and was so now, and he would go to-day to see the commissioners, and ask why such things had been said of him. Accordingly, soon after Bolon's return, Pu-pu-mox-mox, Kam-i-ah-kan, Ow-hi, and Skloom, the two latter being chiefs of the Yakimas, accompanied by a number of their braves, rode into camp. Dismounting, they shook hands in the most friendly manner, and seating themselves under the arbor indulged in a smoke, using their own tobacco exclusively, although other was offered them.

Governor Stevens addressed them, saying that he had important business to lay before them, and proposed to open the council the next day at noon. The Yellow Serpent replied that he wanted more than one interpreter at the council, that they might know they translated truly. Being assured on this point, and invited to designate an interpreter in whom he had confidence, he said, in a scornful manner, "I do not wish my boys running around the camp of the whites like these young men," alluding to some young Nez Perces present and feeling quite at home. He added that he had only ridden over today to see the commissioners, and soon withdrew with his party.



SPOTTED EAGLE
A Chief of the Nez Perces

In the morning the commissioners and Secretary Doty visited the Lawyer at his lodge, as, his wound having broken out afresh, he was unable to walk without great pain and difficulty. He exhibited and explained a map of his country, which he had drawn at Governor Stevens's request. During the conference several chiefs came in, and suddenly one of them, U-u-san-male-e-can or Spotted Eagle, said:—

“The Cuyuses want us to go to their camp and hold a council with them and Pu-pu-mox-mox. What are their hearts to us? Did we propose to hold a council with them, or ask them for advice? Our hearts are Nez Perce hearts, and we know them. We came here to hold a great council with the great chiefs of the Americans, and we know the straightforward path to pursue, and are alone responsible for our actions. Three Cuyuses came last night and spoke to me and two other chiefs, urging us to come to a council at the Cuyuse camp to meet Pu-pu-mox-mox and Kam-i-ah-kan. We did not wish to go. They insisted. Then I said to them, ‘You had best say no more. My mind is made up. Why do you come here and ask three chiefs to come to a council, while to the head chief and the rest you say nothing? Have we not told your messenger yesterday that our hearts are not Cuyuse hearts? Go home! Our chiefs will not go. We have our own people to take care of; they give us trouble enough, and we will not have the Cuyuse troubles on our hands.’”

The Lawyer then opened a book containing in their own language the advice left them by their former head chief, Ellis, and read as follows:—

“Whenever the great chief of the Americans shall come into your country to give you laws, accept them. A Walla Walla heart is a Walla Walla, a Cuyuse heart is a Cuyuse, so is a Yakima heart a Yakima, but a Nez Perce heart is a Nez Perce heart. While the Nez Perces are going straight, why should they turn aside to follow others? Ellis's advice is to accept the white law. I have read it to you to show my heart.”

The speech of U-u-san-male-e-can afforded new evidence that the Cuyuses were plotting underhand, although but little could be learned as to the

nature of their designs.

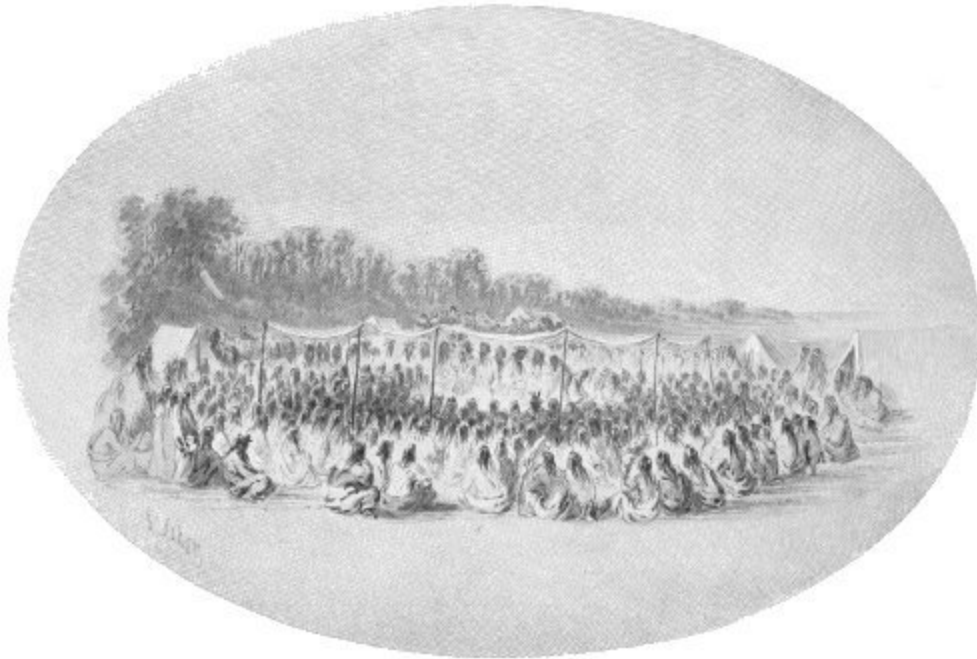
At two P.M., on May 29, 1855, the council was formally opened by Governor Stevens. Under the roomy arbor in front of the tent were seated the commissioners, secretaries who kept the records, interpreters, and Indian agents, while the Indians were seated on the ground in front in semicircular rows forty deep, one behind another. Timothy, the chief and preacher, concerning whom Governor Stevens said, "He and others are very devout, and seem to form a theocracy in the tribe, and, like the old New England fathers, to require every one to worship God in some visible way,"—this Timothy, assisted by several of the young men, who were very tolerable penmen, kept the records of the council for the Nez Percés. They were accommodated with a table under the arbor, where everything could be seen and heard. Some two thousand Indians were present, fully half of whom were Nez Percés. The pipe having been smoked with due solemnity, two interpreters were appointed and sworn for each tribe, some preliminary remarks were made, and the council was adjourned until ten o'clock the next morning. Before adjourning Governor Stevens renewed the offer of provisions to the reculant Indians, proposing that each tribe should take two oxen to its own camp and slaughter for themselves.

Young Chief: "We have plenty of cattle. They are close to our camp. We have already killed three, and have plenty of provisions."

General Palmer to the interpreter: "Say to the Yakimas, 'You have come a long way. You may not have provisions. If you want any, we have them, and you are welcome.'"

Young Chief: "Kam-i-ah-kan is supplied at our camp."

The Yellow Serpent and Kam-i-ah-kan dined with the commissioners, and remained in their tent for a long time, smoking in a friendly manner, but the Young Chief declined the invitation to dine.



WALLA WALLA COUNCIL

The two following days Governor Stevens explained the proposed treaties at length, item by item. There were to be two reservations,—one in the Nez Perce country of three million acres, on the north side of Snake River, embracing both the Kooskooskia and Salmon rivers, including a large extent of good arable land, with fine fisheries, root grounds, timber and mill-sites, and was for the accommodation of the Cuyuses, Walla Wallas, Umatillas, and Spokanes, as well as the Nez Perces. The other embraced a large and fertile tract on the upper waters of the Yakima, and was for the Yakimas, Klikitats, Palouses, and kindred bands. The reservations were to belong to the Indians, and no white man should come upon them without their consent. An agent, with school-teachers, mechanics, and farmers, would take charge of each reservation, and instruct them in agriculture, trades, etc.; grist and saw mills were to be built; the head chiefs were to receive an annuity of five hundred dollars each, in order that they might devote their whole time to their people; and annuities in clothing, tools, and useful articles were to be given for twenty years, after which they were to be self-supporting. At first the reservations were to be used in common, but provision was made for the survey and subdivision of the land, and its allotment to the Indians in severalty as soon as they should be prepared to receive and utilize it. As it was evidently impracticable to make so radical a

change in their habits suddenly, the Indians were to have the privilege of hunting, root-gathering, and pasturing stock on vacant land until appropriated by settlers, and the right of fishing. The advantages of the reservations were dwelt upon. They embraced some of the best land in the country, and were large enough to afford each family a farm to itself, besides grazing for all their stock; they contained good fisheries, abundance of roots and berries, and considerable game. They were near enough to the great roads for trade with the emigrants, yet far enough from them to be undisturbed by travelers. By having so many tribes on the same reservation, the agent could better look after them, and could accomplish more with the means at his disposal. The staple argument held out was the superior advantages of civilization, and the absolute necessity of their adopting the habits and mode of life of the white man in order to escape extinction. Governor Stevens also exhorted them to treat, for the sake of the example upon their inveterate enemies, the Blackfeet, that thereby they would prove themselves firm friends of the whites, and that he would then take delegations from each tribe with his party and proceed to the Blackfoot country, and make a lasting treaty of peace, so that they could ever after hunt the buffalo in safety, and trade horses with the Indians east of the Rocky Mountains. The Indians listened gravely and in silence, as these matters were slowly unfolded to them, sentence by sentence through the interpreters, for five or six hours each day, and upon the adjournment of the council, quietly dispersed to their lodges. The third day the Young Chief for the first time dined at Governor Stevens's table with the other head chiefs, and General Palmer and the gentlemen of the party; and in the evening he sent word that his young men were tired of such close confinement as they had undergone at the council, and desired to have a feast and holiday tomorrow, and he requested that no council be held until the day after (Saturday). The commissioners cheerfully acceded to his request, well pleased at these signs of mollifying the opposition of the haughty savage.

There were now assembled on the ground between five and six thousand Indians. Says Colonel Kip: "About five thousand Indians, including squaws and children. Their encampment and lodges are scattered over the valley for more than a mile, presenting a wild and fantastic appearance."

Every afternoon, after the council adjourned for the day, horse-races and foot-races were held at the Nez Perce camp, attended by the sporting bloods

of the other tribes, and witnessed by many of the whites. The usual course was a long one,—some two miles out and back, making four miles. Oftentimes thirty horses would start together in a grand sweepstakes; the riders and betters would throw into one common pile the articles put up as stakes,—blankets, leggings, horse equipments, and whatever was bet, and the winner would take the whole pile. The foot-races were equally long, and the runners would be escorted in their course by a crowd of mounted Indians, galloping behind and beside them so closely that the exhausted ones could hardly stop without being run down. The riders and runners were invariably stripped to the breech-cloth, and presented many fine, manly forms, perfect Apollos in bronze.

Everything was very quiet about the council ground the day begged for a holiday by the Young Chief, the Indians remaining at their own camps. But the next day, Saturday, June 2, they reassembled as usual; and after several hours had been spent in further explaining the provisions of the treaties, Governor Stevens called them to speak freely, saying, “We want you to open your hearts to us,” etc.

Hitherto the Indians had listened in grave silence, but now the opponents of the treaties took the lead in the discussion. The Yellow Serpent, in a speech marked by strength and sarcasm, uttered the prevailing reluctance to part with their lands, and their dread and distrust of the whites:—

“We have listened to all you have to say, and we desire you to listen when any Indian speaks. It appears that Craig knows the heart of his people; that the whole has been prearranged in the hearts of the Indians; that he wants an answer immediately, without giving them time to think; that the Indians have had nothing to say, so that it would appear that we have no chief. I know the value of your speech from having experienced the same in California, having seen treaties there. We have not seen in a true light the object of your speeches, as if there was a post set between us, as if my heart wept for what you have said. Look at yourselves: your flesh is white; mine is different, mine looks poor; our languages are different. If you would speak straight, then I would think that you spoke well.

“Should I speak to you of things that happened long ago, as you have done? The whites made me do what they pleased. They told me to do this, and I did it. They used to make our women to smoke. I supposed then they did what was right. When they told me to dance with all these nations that are here, then I danced. From that time, all the Indians became proud and called themselves chiefs.

“Now, how are we here as at a post? From what you have said, I think that you intend to win our country, or how is it to be? In one day the Americans become as numerous as the grass. This I learned in California. I know it is not right; you have spoken in a roundabout way. Speak straight. I have ears to hear you, and here is my heart. Suppose you show me goods, shall I run up and take them? That is the way with all us Indians as you know us. Goods and the earth are not equal. Goods are for using on the earth. I do not know where they have given lands for goods.

“We require time to think quietly, slowly. You have spoken in a manner partly tending to evil. Speak plain to us. I am a poor Indian. Show me charity. If there was a chief among the Nez Perces or Cuyuses, if they saw evil done they would put a stop to it, and all would be quiet. Such chiefs I hope Governor Stevens and General Palmer have. I should feel very much ashamed if the Americans did anything wrong. I had but a little to say, that is all. I do not wish a reply to-day. Think over what I have said.”

After a stinging rebuke administered by Camospelo, a Cuyuse chief, to some of his young men who had behaved in a surly manner, talking and walking about during the proceedings, the council was adjourned until Monday.



PU-PU-MOX-MOX: YELLOW SERPENT
Head Chief of the Walla Walla

This speech of the Yellow Serpent is marked in every sentence by his bitter distrust of the whites. He intimates, almost asserts, that the commissioners are trying to deceive and overreach the Indians, and with biting irony declares that he would feel very much ashamed if the Americans did anything wrong.

Late that evening the Lawyer came unattended to see Governor Stevens. He disclosed a conspiracy on the part of the Cuyuses to suddenly rise upon and massacre all the whites on the council ground,—that this measure, deliberated in nightly conferences for some time, had at length been determined upon in full council of the tribe the day before, which the Young Chief had requested for a holiday; they were now only awaiting the assent of the Yakimas and Walla Wallas to strike the blow; and that these latter had actually joined, or were on the point of joining, the Cuyuses in a war of extermination against the whites, for which the massacre of the governor and his party was to be the signal. They had conducted these plottings with the greatest secrecy, not trusting the Nez Perces; and the Lawyer, suspecting that all was not right, had discovered the plot by means of a spy with the greatest difficulty, and only just in time to avert the catastrophe.

The Lawyer concluded by saying: “I will come with my family and pitch my lodge in the midst of your camp, that those Cuyuses may see that you and your party are under the protection of the head chief of the Nez Perces.” He did so immediately, although it was now after midnight, and, without awakening the suspicions of any one, he caused it to be reported among the other Indians that the commissioners were under the protection of the Nez Perces.

Governor Stevens on his part imparted his knowledge of the conspiracy to Secretary Doty and Packmaster Higgins, and to them alone, for he feared that, should the party generally learn of it, a stampede would ensue. Having through these efficient officers quietly caused the men to put their arms in readiness, and posting night guards, he determined to continue the council as usual, hoping that the Cuyuses, foiled in their design, would finally conclude to treat.

On Monday the governor opened the council by inviting the Indians to speak their minds freely, and, no one responding, finally called on the Lawyer. He expressed himself in terms favorable to the treaty, and was followed by several of his chiefs in a similar strain. Kam-i-ah-kan, on the other hand, avowed his distrust of the whites, and alluded in a contemptuous manner to the speeches of the Lawyer and the others:—

“I have something different to say from what the others have said. They are young men who have spoken as they have spoken. I have been afraid of the white man. His doings are different from ours. Perhaps you have spoken straight that your children will do what is right. Let them do as they have promised.”

The Yellow Serpent said with bitter irony, “I do not wish to speak. I leave it to the old men.”

Steachus, the only chief of the Cuyuses reported to be well disposed, commended the speech of the Lawyer, and exhorted all present to speak their minds freely.

But the most impressive speech by far was that of Tip-pee-il-lan-oh-cow-pook, the Eagle-from-the-Light, a pathetic and touching speech:—

“You are now come to join together the white man and the red man. And why should I hide anything? I am going now to tell you a tale. I like the President’s talk. I am glad of it when I hear it here, and for that reason I am going to tell you a tale.

“The time the whites first passed through this country, although the people of this country were blind, it was their heart to be friendly to them. Although they did not know what the white people said to them, they answered Yes, as if they were blind. They traveled about with the white people as if they had been lost.

“I have been talked to by the French [Hudson Bay Company men] and by the Americans, and one says to me go this way, and the other says go another way, and that is the reason I am lost between them.

“A long time ago they hung my brother for no offense, and this I say to my brother here, that he may think of it. Afterwards came Spalding and Whitman. They advised us well, and taught us well,—very well. It was from the same source,—the light [the east]. They had pity on us, and we were pitied, and Spalding sent my father to the east,—the States,—and he went. His body has never returned. He was sent to learn good counsel, and friendship and many things. This is another thing to think of. At the time, in this place here, when there was blood spilled on the ground, we were friends to the whites and they to us. At

that time they found it out that we were friends to them. My chief, my own chief, said, 'I will try to settle all the bad matters with the whites,' and he started to look for counsel to straighten up matters, and there his body lies beyond here. He has never returned.

"At the time the Indians held a grand council at Fort Laramie, I was with the Flatheads, and I heard there would be a grand council this side next year. We were asked to go and find counsel, friendship, and good advice. Many of my people started, and died in the country,—died hunting what was right. There were a good many started; on Green River the smallpox killed all but one. They were going to find good counsel in the east, and here am I looking still for counsel, and to be taught what is best to be done.

"And now look at my people's bodies scattered everywhere, hunting for knowledge,—hunting for some one to teach them to go straight. And now I show it to you, and I want you to think of it. I am of a poor people. A preacher came to us, Mr. Spalding. He talked to us to learn, and from that he turned to be a trader, as though there were two in one, one a preacher and the other a trader. He made a farm and raised grain and bought our stock, as though there were two in one, one a preacher, the other a trader. And now one from the east has spoken, and I have heard it, and I do not wish another preacher to come, and be both trader and preacher in one. A piece of ground for a preacher big enough for his own use is all that is necessary for him.

"Look at that; it is the tale I had to tell you, and now I am going to hunt friendship and good advice. We will come straight here,—slowly perhaps, but we will come straight."

The next two days Governor Stevens continued, explaining the treaties still further. A large map was brought forth, and the boundaries of the reservations accurately marked out and shown. The Indians took great interest in this map, asking many questions about the mountains and streams they saw represented upon it, and in some instances adding streams which were not laid down.

Superintendent Palmer spoke for some time, going over the same ground as Governor Stevens. After he had concluded, Steachus, the friendly Cuyuse,

arose and said:—

“My friends, I wish to show you my heart. If your mother were in this country, gave you birth and suckled you, and, while you were suckling, some person came and took away your mother and left you alone and sold your mother, how would you feel then? This is our mother,—this country,—as if we drew our living from her. My friends, all of this you have taken. Had I two rivers, I would leave the one, and be content to live on the other. I name the place for myself, the Grande Ronde, the Touchet towards the mountains, and the Tucañon.”

Thus even Steachus, the most friendly of the Cuyuses, was the first to express his dissatisfaction with a treaty which left him none of his own country, and to request a reservation within its borders. The Indians were slow to speak; they required time to make up their minds, and the council was therefore adjourned.



WE-AH-TE-NA-TEE-MA-NY: YOUNG CHIEF
Head Chief of the Cuyuses

About midnight the governor and his little son were awakened by Lawyer, who shook the tent and said, in a low, soft voice, without a trace of hurry or excitement, "Water come now." On springing out of bed, they splashed knee-deep in water flooding the tent, and were forced to make a hasty flight to higher ground. The creek had risen suddenly without warning, probably from a waterspout or heavy rains in the mountains. The following day it subsided again as rapidly as it rose.

When the council met the next day, Lawyer spoke first, and expressed the assent of himself and his people to the treaty. A great part of his speech was addressed to the Indians. He traced the increase of the whites from the discovery of the New World by Columbus; alluded in a touching manner to the way in which the Indians had passed and were passing away; and urged his auditors, as their only refuge, to place themselves under the protection of the Great Father in Washington.

When Lawyer concluded, the Young Chief, the haughty Cuyuse, was the first to break the silence:—

“He would not sell his country. He heard what the earth said. The earth said, ‘God has placed me here to take care of the Indian, to produce roots for him, and grass for his horses and cattle.’ The water spoke the same way. God has forbidden the Indian to sell his country except for a fair price, and he did not understand the treaty.”

Five Crows, the Yellow Serpent, Ow-hi, and several other chiefs followed in similar strain. The Yellow Serpent proposed that another council should be held at some future time. He insisted that the whites should not be allowed to come into his country to settle. He complained that the Indians were treated like children, were not consulted in drawing up the terms of the treaties, etc.

Kam-i-ah-kan refused to speak, although several times urged to do so. His invariable reply was, “I have nothing to say.”

The commissioners replied, explaining those parts of the treaties which the Indians did not understand, and answering their objections. The discussion on the part of the Indians was captious, stormy, and unsatisfactory. Governor Stevens in pointed words, well calculated to touch their pride, urged the recusant and evasive chiefs to speak plainly:—

“My brother and myself have talked straight. Have all of you talked straight? Lawyer has, and his people here, and their business will be done to-morrow.

“The Young Chief says he is blind, and does not understand. What is it that he wants? Steachus says that his heart is in one of three places, the

Grande Ronde, the Touchet, and the Tucañon. Where is the heart of Young Chief?

“Pu-pu-mox-mox (the Yellow Serpent) cannot be wafted off like a feather. Does he prefer the Yakima reservation to that of the Nez Perces? We have asked him before. We ask him now. Where is his heart?

“And Kam-i-ah-kan, the great chief of the Yakimas, he has not spoken at all. His people have had no voice here to-day. He is not ashamed to speak. He is not afraid to speak. Then speak out!

“But Ow-hi is afraid lest God be angry at his selling his land. Ow-hi, my brother, I do not think that God will be angry if you do your best for yourself and your children. Ask yourself this question to-night: ‘Will not God be angry with me if I neglect this opportunity to do them good?’ Ow-hi says his people are not here. Why did he promise to come here, then, to hear our talk? I do not want to be ashamed of Ow-hi. We expect him to speak straight out. We expect to hear from Kam-i-ah-kan, from Skloom.”



SHE-CA-YAH: FIVE CROWS
Cuyuse Chief

At length Five Crows proposed an adjournment. "Listen to me, you chiefs. We have been as one people with the Nez Percés hitherto. This day we are divided. We, the Cuyuses, the Walla Wallas, and Kam-i-ah-kan's people and others will think over the matter to-night, and give you an answer to-morrow."

The feature of the treaties which met with the greatest opposition was the provision that the Cuyuses, Walla Wallas, and Umatillas should relinquish the whole of their own lands, and remove to a reservation in the Nez Perce

country. The commissioners therefore decided to establish a separate reservation for these three tribes on the headwaters of the Umatilla, at the base of the Blue Mountains. Conferences were had with the recusant chiefs separately, the proposition of a reservation in their own country was broached, and the whole ground of the treaties again gone over and fully discussed. Steachus expressed himself as highly pleased with the new arrangement, and, although the others gave less encouragement, the commissioners were hopeful that a successful result would soon be reached.

The change of reservations was brought forward in council the next day. The annuities of five hundred dollars for ten years to each of the head chiefs were extended to twenty years. The Yellow Serpent was given the privilege of establishing a trading-post for trade with the settlers and emigrants, and an annuity of one hundred dollars a year for twenty years was given his son. Young Chief and Yellow Serpent were the principal speakers, and in lengthy and rambling speeches gave their assent to the treaties. The latter, on declaring his acceptance, exclaimed, "Now you may send me provisions!" Kam-i-ah-kan was sullen, and refused his assent.

Some commotion was now observed among the Indians, and suddenly a small party of warriors were seen approaching, painted and armed, singing a war-song, and flourishing on the top of a pole a freshly taken scalp. It proved to be a party of Nez Perces, headed by Looking Glass, the war chief, just from the Blackfoot country, where they had been for three years hunting the buffalo. Looking Glass was old, irascible, and treacherous, yet second only to Lawyer in influence. While hunting the buffalo he had several fights with the Blackfeet. At one time seventy of his horses were stolen by them; but the vigorous old chief hotly pursued the depredators, killed two, put the rest to flight, and recovered his horses. He had reached the Bitter Root valley on his return home, when he heard that the Nez Perces were at a great council, and concluding a treaty without his presence. Leaving his party to follow more slowly, he pushed on with a few chosen braves, crossed the Bitter Root Mountains, where for some distance the snow was shoulder-deep on their horses, and, having ridden three hundred miles in seven days at the age of seventy, reached the council ground while Governor Stevens was urging Kam-i-ah-kan to give his assent to the treaty, for the governor, hearing the arrival of Looking Glass announced, seized the occasion to call upon the Yakima chief to sign the treaty in the name of

Looking Glass, there being great friendship between these two. Scarcely had he concluded when Looking Glass, surrounded by his knot of warriors with the scalps tossing above them, rode up, excited and agitated, received his friends coldly, and finally broke forth into a most angry philippic against his tribe and the treaty:—

“My people, what have you done? While I was gone, you have sold my country. I have come home, and there is not left me a place on which to pitch my lodge. Go home to your lodges. I will talk to you.”



LOOKING GLASS
War Chief of the Nez Perces

The council was immediately adjourned. Governor Stevens consulted Lawyer, who was of opinion that Looking Glass would calm down in a day or two and accept the treaty. He said, however, that the latter's return would make it impossible to reduce the Nez Perce reservation, which, originally intended for the Cuyuses, Walla Wallas, and Umatillas, in addition to the Nez Perces, was larger than they alone required, and it was determined to make it a general reservation for other tribes, not exceeding in numbers those for whom it was at first designed.

In the evening Governor Stevens assembled the Yakima chiefs in his tent, and discussed the treaties with them until one o'clock in the morning. Kam-i-ah-kan was not present, but Skloom acted as the principal spokesman. The governor remarks in his journal, "Skloom was desirous that his land should first be surveyed."

The council of the following day, however, soon made it evident that Looking Glass had not yet calmed down. He declared himself the head chief of the tribes present; that the boys had spoken yesterday, but that he would speak to-day. He made many inquiries, raised many objections, and finally marked another line for the reservation, including nearly the whole of the Nez Perce territory. The Cuyuses seized the occasion to retract their assent to their treaty, and the Young Chief strenuously supported Looking Glass in his objections, and omitted no opportunity to assert his supremacy as head chief of the Nez Perces. At length Lawyer abruptly left the council in the midst of one of Looking Glass's philippics, and retired to his lodge. Governor Stevens refused to submit to the demands of the angry and grasping old chief, and adjourned the council until the following Monday.

After the adjournment the Yellow Serpent and Kam-i-ah-kan, who had at length yielded to the advice of the other chiefs, with all the chiefs and prominent men of the two tribes, came forward and signed their respective treaties. The former had remarked in the morning that his word was pledged, and that he should sign the treaty no matter what Looking Glass and the Nez Perces did. It was thought that his example had great weight with Kam-i-ah-kan.

Late in the evening Governor Stevens had an interview with Lawyer, who said:—

“Governor Stevens, you are my chief. You come from the President. He has spoken kind words to us, a poor people. We have listened to them, and have agreed to a treaty. We are bound by the agreement. When Looking Glass asked you, ‘How long will the agent live with us?’ you might have replied by asking the question, ‘How long have you been head chief of the Nez Perces?’ When he said, ‘I, the head chief, have just got back; I will talk; the boys talked yesterday,’ you might have replied, ‘The Lawyer, and not you, is the head chief. The whole Nez Perce tribe have said in council Lawyer was the head chief. Your faith is pledged. You have agreed to the treaty. I call upon you to sign it.’ Had this course been taken, the treaty would have been signed.”

“In reply,” says the governor, “I told the Lawyer that we considered all the talk of Looking Glass as the outpourings of an angry and excited old man, whose heart would become all right if left to himself for a time; that the Lawyer had left the council whilst in session, and without speaking. It was his business to have interfered in this way, had it been necessary. We considered the Lawyer’s leaving as saying, ‘Nothing more can be done to-day; it must be finished to-morrow.’ Your authority will be sustained, and your people will be called upon to keep their word. You will be sustained. The Looking Glass will not be allowed to speak as head chief. You, and you alone, will be recognized. Should Looking Glass persist, the appeal will be made to your people. They must sign the treaty agreed to by them through you as head chief, or the council will be broken up and you will return home, your faith broken, your hopes of the future gone.”

The council being adjourned, the Cuyuses and Nez Perces retired to their respective camps to hold councils by themselves, which lasted all night. The position of Looking Glass was determined by the latter to be second to Lawyer, who was reaffirmed head chief. The council was stormy, but the chiefs at length all agreed on a paper sent in by Lawyer, and read in council, which declared the faith of the tribe pledged to Governor Stevens, and that the treaty must be signed. “Those who would advise breaking their word

were no better than the Cuyuses. Let them share the lot of the Cuyuses.” The morning after this council being Sunday, Timothy preached a sermon for the times, and held up to the indignation of the tribe, and the retribution of the Almighty, those who would coalesce with the Cuyuses, and break the faith of the Nez Perces.

The governor had a conversation with Kam-i-ah-kan, who said:—

“Looking Glass, if left alone, will sign the treaty. Don’t ask me to accept presents. I have never taken one from a white man. When the payments are made, I will take my share.”

Steachus, the friendly Cuyuse chief, expressed his earnest desire that his tribe should sign the treaty, and both Pu-pu-mox-mox and Kam-i-ah-kan used their influence to induce them to accept it.

Early Monday morning Governor Stevens saw Lawyer, and said to him: “We are now ready to go into council. I shall call upon your people to keep their word, and upon you as head chief to sign first. We want no speeches. This will be the last day of the council. Call your people together as soon as possible.” The Lawyer replied, “This is the right course,” and immediately summoned his tribe. The closing scene of the council is best given in Governor Stevens’s own words:—

“The Looking Glass took his seat in council in the very best humor. The Cuyuses and Nez Perces were all present. Kam-i-ah-kan sat down near the Young Chief. The council was opened by me in a brief speech: ‘We meet for the last time. Your words are pledged to sign the treaty. The tribes have spoken through their head chiefs, Joseph, Red Wolf, the Eagle, Ip-se-male-e-con, all declaring Lawyer was the head chief. I call upon Lawyer to sign first.’ Lawyer then signed the treaty. ‘I now call upon Joseph and the Looking Glass.’ Looking Glass signed, then Joseph. Then every chief and man of note, both Nez Perces and Cuyuses, signed their respective treaties.

“After the treaties were signed, I spoke briefly of the Blackfoot council, and asked each tribe to send delegations, the Nez Perces a hundred chiefs and braves, the whole under the head chief, or some chief of acknowledged authority, as Looking Glass. There was much

talk on the subject on the part of the Indians. Looking Glass said he would have a talk with me alone some other time.”



HAL-HAL-TLOS-SOT: THE LAWYER
Head Chief of the Nez Perces

The council being completed, presents were made to all the assembled tribes, who began packing up and moving off. Eagle-from-the-Light, the Nez Perce chief, who was at first opposed to the treaty and refused to accept provisions, now presented a magnificent grizzly bear's skin, with the teeth and claws intact, to Governor Stevens with the following speech: "This skin

is my medicine. It came with me every day to council. It tells me everything. It says what has been done is right. Had anything been done wrong, it would have spoken out. I have now no use for it. I give it to you that you may know my heart is right.” Every day Eagle-from-the-Light had brought this skin to the council, and, placing it with the teeth and claws turned towards the commissioners, had used it as a seat, declining the roll of blankets offered him.

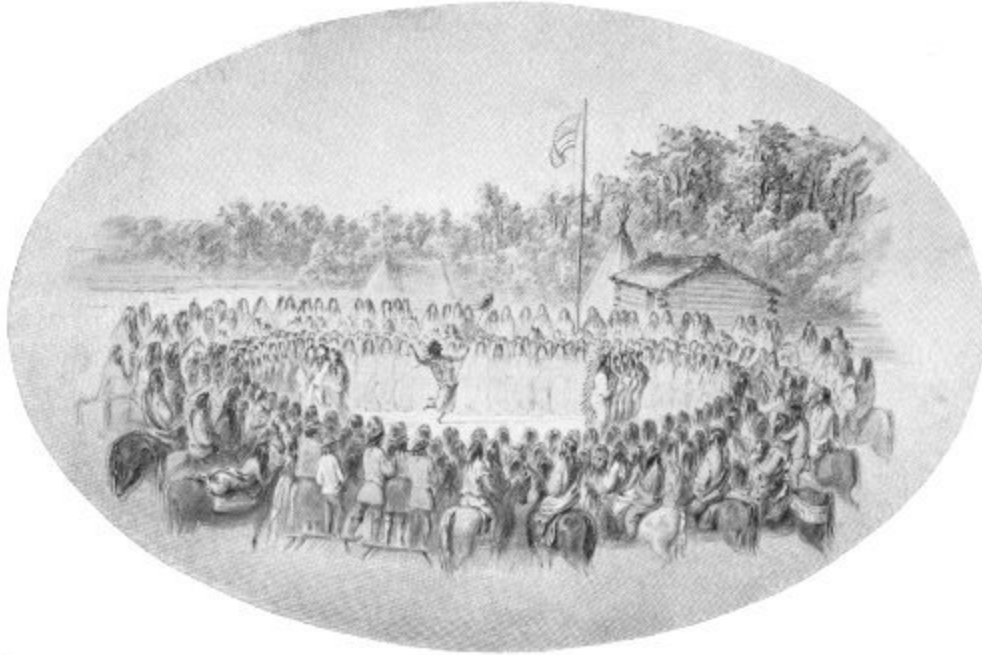
“Thus ended,” says the journal, “in the most satisfactory manner, this great council, prolonged through so many days,—a council which—in the number of Indians assembled and the different tribes, old difficulties and troubles between them and the whites, a deep-seated dislike to and determination against giving up their lands, and the great importance, nay, absolute necessity, of opening this land by treaty to occupation by the whites, that bloodshed and the enormous expense of Indian wars might be avoided, and in its general influence and difficulty—has never been equaled by any council held with the Indian tribes of the United States.

“It was so considered by all present, and a final relief from the intense anxiety and vexation of the last month was especially grateful to all concerned.”

The following day the Nez Perces celebrated the happy conclusion of the treaty, and the return of Looking Glass and his braves from the buffalo country, by a scalp-dance. The chiefs and braves, in full war-paint and adorned with all their savage finery, formed a large circle, standing several ranks deep. Within this arena a chosen body of warriors performed the war-dance, while the densely massed ranks of braves circled around them, keeping time in measured tread, and accompanying it with their wild and barbaric war-song. The ferocious and often hideous mien of these stalwart savages, their frenzied attitudes and shrill and startling yells, formed a subject worthy the pen of Dante and the pencil of Doré. The missionary still had work to do. Presently an old hag, the very picture of squalor and woe, burst into the circle, bearing aloft upon a pole one of the fresh scalps so recently taken by Looking Glass, and, dancing and jumping about with wild and extravagant action, heaped upon the poor relic of a fallen foe every mark of indignity and contempt. Shaking it aloft, she vociferously abused it;

she beat it, she spat upon it, she bestrode the pole and rushed around the ring, trailing it in the dust, again and again; while the warriors, with grim satisfaction, kept up their measured tread, chanted their war-songs, and uttered if possible yet more ear-piercing yells. A softer and more pleasing scene succeeded. The old hag retired with her bedraggled trophy, and a long line of Indian maidens stepped within the circle, and, forming an inner rank, moved slowly round and round, chanting a mild and plaintive air. A number of the stylish young braves, real Indian beaux in the height of paint and feathers, next took post within the circle, near the rank of moving maidens, and each one, as the object of his adoration passed him, placed a gayly decorated token upon her shoulder. If she allowed it to remain, his affection was returned and he was accepted, but if she shook it off, he knew that he was a rejected suitor. Coquetry evidently is not confined to the civilized fair, for, without exception, the maidens, as if indignant at such public wooing, threw off the token with disdain, while every new victim of delusive hopes was greeted with shouts of laughter from the spectators.

The turning-point in the council was undoubtedly the discovery of the Cuyuse conspiracy by Lawyer, and his act of moving his lodge into Governor Stevens's camp, thereby placing the whites under the protection of the Nez Percés. This was all that prevented the hostile chiefs and braves from striking the blow. They refrained because they knew that if Lawyer was killed in an attack on the camp, which was to be expected in the *mêlée*, the whole Nez Perce nation would avenge his slaughter in their blood. The real extent and imminence of the danger was known to but few, but the fact of the plot was soon generally bruited about.



THE SCALP DANCE

“Their design,” says Colonel Kip, “was first to massacre the escort, which *could have been easily* done. Fifty soldiers against three thousand Indian warriors, out on the open plains, made rather too great odds. We should have had time, like Lieutenant Grattan at Fort Laramie last season, to deliver one fire, and then the contest would have been over. Their next move was to surprise the post at the Dalles, as they could also have easily done, as most of the troops were withdrawn, and the Indians in the neighborhood had recently united with them. This would have been the beginning of their war of extermination against the settlers.”

Foiled in their plot, why did they then so quickly agree to the treaties, which up to that time they had so bitterly spurned? All the circumstances and evidence go to show that, with the exception of Steachus, the friendly Cuyuse, they all—Young Chief, Five Crows, Pu-pu-mox-mox, Kam-i-ah-kan, and their sub-chiefs—all signed the treaties as a deliberate act of treachery, in order to lull the whites into fancied security, give time for Governor Stevens to depart to the distant Blackfoot country, where he would probably be “wiped out” by those truculent savages, and for the Nez Perces to return home, and also for completing their preparations for a widespread and simultaneous onslaught on all the settlements. Scarcely had

they reached home from the council when they resumed such preparations, buying extra stores of ammunition, and sending emissaries to the Spokanes, Cœur d'Alenes, and even to some of the Nez Perces and to other tribes, to incite them to war, actually held a council of the disaffected at a point in the Palouse country the following month, and, within three months of accepting ostensibly the protection of the Great Father, precipitated the conflict. Agent Bolon and many white miners and settlers in the upper country were massacred, and settlements as widespread as Puget Sound and southern Oregon, six hundred miles apart, were attacked on the same day. In this conspiracy and contest Kam-i-ah-kan was the moving spirit, the organizer, the instigator, whose crafty wiles never slept, and whose stubborn resolution no disaster could break. But in the end, after protracted and stubborn resistance, they were defeated and compelled to move on their reservations, and live under the very treaties they so treacherously agreed to, and under which they still live and have greatly prospered.

Whether or not the Walla Walla council precipitated the outbreak, as has been claimed, it is certain that it confirmed the Nez Perces in their friendship, neutralized the Spokanes for two years, kept even some of the Cuyuses friendly all through the war, namely, Steachus and his band, extinguished the Indian title, and permanently settled the status of the Indian and his relation with the white man, without which peace was an impossibility. The outbreak itself could have been suppressed in a single season, had Governor Stevens's firm policy and sagacious views been sustained.

Over sixty thousand square miles were ceded by these treaties. The Nez Perce reservation contained five thousand square miles, including mountain and forest as well as good land, and provision was made for moving other tribes upon it. The payment for the Nez Perce lands comprised \$200,000 in the usual annuities, and \$60,000 for improving the reservation, saw and grist mills, schools, shops, teachers, farmers, mechanics, etc. Ardent spirits were excluded; the right to hunt, fish, gather roots and berries, and pasture stock on vacant land was secured, and provision was made for ultimately allotting the land in severalty. An annuity of \$500 for twenty years was given the head chief, and a house was to be built for him, and ten acres of land fenced and broken up the first year. At the special request of the Indians, the claim and homestead of William Craig was confirmed to him,

and was not to be considered part of the reservation, although within its boundaries.

Besides Lawyer and Looking Glass, fifty-six chiefs signed this treaty, and among them were Joseph (the father of the chief Joseph, who in 1877 fought the brilliant campaign against Generals Howard, Gibbon, and Miles, the only conflict that has ever occurred between the Nez Perces and the whites), James, Red Wolf, Timothy, Spotted Eagle, and Eagle-from-the-Light.

The Umatilla reservation contained eight hundred square miles. \$100,000 to be given for annuities in goods, etc., for twenty years; \$50,000 for improving the reservation; \$10,000 for moving the emigrant road, which passed through it, around its borders; a sawmill, a flour-mill; two schoolhouses; a blacksmith's shop, a wagon and plough making shop, a carpenter and joiner shop; tools and equipments; and teachers, farmers, and mechanics to instruct them for twenty years,—were the very liberal payments for their lands. Moreover, the head chief of each tribe was to have his annuity of \$500 for twenty years, a house built, and ten acres fenced and ploughed. Pu-pu-mox-mox, in addition, was to be allowed to maintain a trading-post at the mouth of the Yakima; his first year's salary was to be paid him on signing the treaty; he was also to receive three yoke of oxen, three yokes and four chains, a wagon, two ploughs, twelve axes, two shovels, twelve hoes, one saddle and bridle, a set of wagon harness and one of plough harness; and his son was to have an annuity of \$100 for twenty years, and have a house built, and five acres of land ploughed and fenced.

The wily old chief had certainly gotten all he could.

The other provisions were similar to those of the Nez Perce treaty. It was signed by the three head chiefs and thirty-two sub-chiefs.

The Yakima treaty contained the same general provisions. A large reservation on the Simcoe, a southern branch of the Yakima, and a smaller one on the Wenatchee, including the fishery there, were set apart for them. The payments include \$200,000 in annuities, \$60,000 for improving the reservations, the annuity, house and field for the chief, etc. In all the treaties provision is made for finally dividing the land among the Indians in severalty.

Kam-i-ah-kan, Ow-hi, Skloom, and eleven other chiefs signed the treaty. The first three were able and persistent inciters of, and leaders in, the Indian war. Ow-hi is mentioned in "The Canoe and Saddle," by Theodore Winthrop, and met a tragic end, being slain while a prisoner trying to escape from the troops under Colonel George Wright.

After their exemplary punishment the Yakimas settled down on their reservation, and for many years were prosperous and contented under the charge of the faithful agent Wilbur. They number 2556, showing little diminution; have taken their lands in severalty; most of them wear civilized dress in whole or part; have 17,000 acres under cultivation; raise 50,000 bushels of grain, 9600 of vegetables, and 25,000 tons of hay.

The Spokanes number 3000. While some of the bands are backward, others have made encouraging progress, "are thrifty and industrious, have splendid farms, and raise large crops of grain and hay, ... are self-supporting, and, but for the intemperance of some of them, are making rapid strides towards civilization." The agent says of one band: "They accept no issues from the government, and are independent and self-supporting. They are peaceable in their own social relations, and courteous to their white brethren. They have made material progress, having good farms, fine horses, and many of them small herds of cattle."



OW-HI
A Chief of the Yakimas

The Cœur d'Alenes, numbering 506, are further advanced in civilization, and in better condition financially than any other tribe. They are well supplied with all kinds of farming implements, from a plough to a threshing-machine, of which latter they now have thirteen in operation, purchased by themselves with their own money.

The Nez Percés, the most progressive and deserving of all, seem to have fared the worst. Their reservation was early overrun by thousands of miners, and they were outrageously swindled by dishonest agents. They

number only 1795, having diminished one half. But they have taken their lands in severalty; have 10,000 acres under cultivation, 100,000 acres under fence; raise 55,000 bushels of grain, 15,000 bushels of vegetables; own 30,000 horses, 15,000 cattle, 3000 swine, and 20,000 fowls. “Very enthusiastic revival meetings were conducted here last winter by the native elders, which resulted in quite a number of converts being made.”^[6]

CHAPTER XXX

CROSSING THE BITTER ROOTS

On the close of the council the Indians homeward-bound filled all the trails leading out of the valley with their wild and picturesque cavalcades,—the braves resplendent with scarlet blankets and leggings; the squaws and papposes decked with bright calico shirts and kerchiefs. Lieutenant Gracie marched away to join Major Haller in an expedition against the predatory Snakes. The secretaries and other treaty officers toiled early and late making up the records and reports for Washington, which, with letters and instructions for Olympia, were dispatched on the 14th by W.H. Pearson, the express rider.

It will be noted how carefully and fully the proceedings of all Governor Stevens's councils were recorded; not merely a statement of what was done, but a complete verbatim report of the deliberations, the speeches, every word uttered by both whites and Indians in council, and many of the talks out of council, was reduced to writing and made part of the official record,—a record which now affords the most convincing evidence of the wisdom, foresight, and benevolence of the treaties, as well as the difficulties and dangers attending them, and presents a most interesting and historically valuable picture of the characters, dispositions, and feelings of the Indians.

General Palmer had been appointed one of the commissioners to treat with the Blackfeet, Governor Stevens and Alfred Cumming, Superintendent of Indian Affairs for Nebraska, being the others, but he declined the arduous and dangerous duty, and, with the Oregon Indian officers, started for home.

A.J. Bolon, the Yakima Indian agent, with a small party, was sent to old Fort Walla Walla with a quantity of Indian goods intended for the Spokanes, there to be stored for safe-keeping. He was instructed to visit and inspect the Yakima reservation, thence proceed to the Dalles and bring the Nez Perce Indian goods to Walla Walla, deposit them, and, loading up with the Spokane goods, take them to Antoine Plante's ranch on the Spokane River,

in readiness for the council on the governor's return from the Blackfoot country. Mr. Henry R. Crosby was dispatched to Colville to notify the Indians, the Hudson Bay Company officers, and the missionaries of the proposed council. Agent W.H. Tappan was sent with Craig to Lapwai to organize a delegation of the Nez Perces to go to the Blackfoot council, and was to accompany them himself. All the officers were charged to examine the regions traversed by them, and report on the topographical and agricultural features, etc. The governor had procured from New York a supply of barometers and other instruments, and was determined to continue and complete his railroad explorations, so summarily arrested by Jefferson Davis, as far as possible on this expedition, although it was one primarily on the Indian service. In his final railroad report he gives a daily journal of this trip, and a graphic description of the country passed over, together with an immense amount of new information, the fruits of his own indefatigable personal exertions and those of his subordinates, amplifying and triumphantly vindicating his first report.

It was a beautiful, sunny June morning, the 16th, when the little train drew out from the deserted council ground, and took its way in single file across the level valley prairie, covered with luxuriant bunch grass and vivid-hued flowers. A large, fine-looking Cœur d'Alene Indian, named Joseph, led the way as guide; then rode the governor with his son, Secretary Doty, Agent Lansdale, and Gustave Sohon the artist, barometer-carrier, and observer; then came Packmaster Higgins, followed by the train of eleven packers and two cooks, and forty-one sleek, long-eared pack-mules, each bearing a burden of two hundred pounds, the men interspersed with the mules to keep them moving on the trail; while seventeen loose animals, in a disorderly bunch, driven by a couple of herders, brought up the rear. It was a picked force, both men and animals, and made up in efficiency for scanty numbers. The artist, Gustave Sohon, a soldier of the 4th infantry, detailed for the trip, was an intelligent German, a clever sketcher, and competent to take instrumental observations. Higgins, ex-orderly sergeant of dragoons, a tall, broad-shouldered, spare, sinewy man, a fine swordsman and drill-master, a scientific boxer, was a man of unusual firmness, intelligence, and good judgment, and quiet, gentlemanly manners, and held the implicit respect, obedience, and goodwill of his subordinates. He afterwards became the founder, banker, and first citizen of the flourishing town of Missoula, at

Hell Gate, in the Bitter Root valley. A.H. Robie worked up from the ranks, married a daughter of Craig, and settled at Boise City, Idaho, where he achieved a highly prosperous and respected career. Sidney Ford, a son of Judge Ford, already mentioned, was a handsome, stalwart young Saxon in appearance, broad-shouldered, sensible, capable, and kindly. The others were all men of experience on the plains and mountains, brave and true; several had been members of the exploring expedition; others had served the fur companies, or voyageured and trapped on their own account. By all odds the most skillful and picturesque of these mountain men, and having the most varied and romantic history, was Delaware Jim, whose father was a Delaware chief and his mother a white woman, and who had spent a lifetime—for he was now past middle age—in hunting and traveling over all parts of the country, from the Mississippi to the Pacific, meeting with many thrilling adventures and hair-breadth escapes. He had a tall, slender form, a keen eye, an intelligent face, and reserved manners. He was reticent in speech, although he spoke English well; but when he was induced to relate his varied experiences and adventures, his simple and modest narrative impressed every auditor with its truth. Many of the men were clad in buckskin moccasins, breeches, and fringed hunting-shirts; others in rough, serviceable woolen garb, stout boots, and wide slouch hats. All carried navy revolvers and keen bowie-knives, and many in addition bore the long, heavy, small-bored Kentucky rifle, which they fired with great deliberation and unerring skill.

One of the most remarkable men connected with the expedition was the express rider, W.H. Pearson. A native of Philadelphia, of small but well-knit frame, with muscles of steel, and spirit and endurance that no exertion apparently could break down, waving, chestnut hair, a fair, high forehead, a refined, intelligent, and pleasant face, the manners and bearing of a gentleman,—such was Pearson. He was destined that year to render services invaluable in character and incredible in extent. Of him the governor remarks in his final report, p. 210:

“Hardy, bold, intelligent, and resolute, having a great diversity of experience, which had made him acquainted with all the relations between Indians and white men from the borders of Texas to the 49th parallel, and which enabled him to know best how to move, whether under the Southern tropics or the winter snows of the North, I suppose

there has scarcely ever been any man in the service of the government who excelled Pearson as an expressman.”

He was still young, about thirty-five, but, as a Texan ranger, a scout, Indian fighter, and express rider, knew the frontiers from the Rio Grande to the Columbia and Missouri like an open book.

The party thus starting on the protracted and perilous expedition was composed of only twenty-two persons, as follows: Governor Isaac I. Stevens; James Doty, secretary; R.H. Lansdale, Indian agent; Gustave Sohon, artist; Hazard Stevens; C.P. Higgins, packmaster; Sidney S. Ford, Jr., A.H. Robie, Joseph Lemere, Frank Genette, H. Palmer, William Simpson, John Canning, Frank Hale, Louis Oson, Louis Fourcier, C. Hughes, John Johnson, William S. De Parris, William Prudhomme, packers, the last two cooks; Joseph, the Cœur d’Alene guide; and Delaware Jim, who deserves a place by himself.

The party followed the Nez Perce trail, and, after a short march of eight miles, made camp on Dry Creek. Two messes were formed,—the gentlemen of the party, with the guide Joseph, Delaware Jim, Ford, Genette, and De Parris as cook, comprising the governor’s mess, and the remainder of the party Higgins’s mess.

Continuing on the Nez Perce trail, the party in the next three days and fifty-four miles traversed a beautiful rolling prairie country of fertile soil, luxuriant bunch grass, and wild flowers, crossing the Touchet and Tuchañon rivers, and ascending the Pa-ta-ha branch of the latter, and, descending the Al-pa-wha Creek, reached its confluence with Snake River at Red Wolf’s ground. Here was found a village of thirteen lodges of Nez Perces, under the chiefs Red Wolf and Timothy, with a fenced field of thirty acres, well watered by irrigation from the Al-pa-wha, and containing a fine crop of corn and a promising orchard. “I observed with great pleasure that men as well as women and children were at work in this field, ploughing and taking care of their crops,” observes the governor. After some bargaining, for the chiefs were keen traders and exacted a stiff toll for the service, the party, with packs and baggage, were ferried across the Snake, a notably swift and dangerous river, by the Indians in their canoes, and went into camp, while the animals crossed by swimming.

By appointment Lawyer met the governor here, and with the other two chiefs took supper with him, the three devouring the lion's share of a fine salmon, which Timothy had just sold at an exorbitant price,—clearly the Nez Perces were fast learning the ways of civilization,—and completed the arrangements for sending their delegation to the Blackfoot council. Lawyer also gave much information about his people and country.

Climbing out of the deep cañon of the river next morning by an easy grade up a lateral creek, the party took a general N.N.E. course across the high, rolling plains stretching away to the mountains, for five days traversing a fine fertile and diversified country, clothed with waving grass and bright flowers, well wooded with groves of pine, and abundantly watered. They passed on the second day 600 Nez Perces gathering the kamas root, and having with them 2000 horses, and crossed the Palouse River, with its broad valley extending far eastward into the heart of the mountains. Says the governor: "We have been astonished at the luxuriance of the grass and the fertility of the soil. The whole view presents to the eye a vast bed of flowers in all their varied beauty." The governor continually remarks the fertility and agricultural capabilities of the country traversed. It now forms the most productive part of the wheat belt of eastern Washington, and is all settled up by a prosperous farming community. The third day's camp was made at the kamas prairie of the Cœur d'Alenes, where were found 29 lodges and 250 Indians of that tribe, gathering and drying kamas. This esculent is about the size and shape of a large tulip bulb, and when dried and smoked for use has a dark color and sweet taste, and was highly esteemed by the Indians and mountain men. The governor had a talk with Stellam, the head chief, and a number of other chiefs, and requested them to meet him at the mission in order to learn about the treaty the Great Father desired to make with them. They promised to attend. In the evening came the Palouse chief, Slah-yot-see, with 30 braves, and complained that no goods were given him at the recent council. The governor replied:—

"Slah-yot-see, you went away before the council was ended. Koh-lat-toose remained and signed the treaty. He was recognized as the head chief of the Palouses, and to him the goods were given to be distributed among his tribe as he and the principal men should determine. I have brought no goods to give you. Go to Koh-lat-toose. He is the chief, and it is from him you must obtain your share of the

presents. Had you remained until the council terminated, you would have had a voice in the distribution of the goods. Kam-i-ah-kan, your head chief, signed the treaty, and said that he should bring the Palouses into the Yakima country, where they properly belonged.”

The chief said but little in reply except acknowledging Kam-i-ah-kan as his head chief. The Palouses had a bad name, and were regarded as sullen, insolent, and disaffected.

The last day, putting the party in camp on the Cœur d’Alene River, the governor with Doty and Sohon rode on nine miles farther to the mission, where he was received with the utmost hospitality by good Father Ravalli, and where he found Crosby, just arrived from Colville. The mission was situated on a slightly eminence in the midst of a little prairie on the right bank of the river. On this beautiful and commanding site stood a well-proportioned church, solidly built of squared timbers as smoothly hewn and closely fitted as though done by skillful white artisans, yet all the work of the Indians, under the direction of the priests. A long wooden building, plain but comfortable, afforded quarters for the fathers and two or three lay brothers and the transient guests. At the foot of the knoll, near the river, were the lodges of the Indians, constituting their principal village.

At the camp of the party this evening an incident occurred of quite unusual character,—a wrestling match between Indian and white. A large number of the Cœur d’Alenes had come down with their canoes, and assisted the party in crossing the rivers, and had taken the packs by water a long distance, thus relieving the animals over a stretch of muddy trail, and at night camped near the whites. After supper they came over to camp, and, with much talk in Chinook and many signs, at length conveyed the idea of a challenge at wrestling between an immense, powerfully formed Indian, whom they brought forward as their champion, and any “skookum man” of the whites. The latter were rather taken back. None liked the looks of the big and muscular savage, but all agreed that it would never do to decline the challenge, and back down before a parcel of Indians. At last Sidney Ford stepped forward, declaring that he would try a fall with him, if he broke his back in the effort. In the struggle which ensued, it was soon apparent that the Indian was the superior in weight and strength, and Ford had to put forth all his skill and agility to prevent being forced to the ground. At last, while

all the spectators, both red and white, were breathlessly watching the straining, panting wrestlers, the whites especially with great anxiety and apprehension, Ford gave a sudden and mighty heave, the huge Indian's bare legs and moccasined feet whirled in the air, and the next instant he struck the ground with a heavy and sickening thud, and lay senseless as the dead. Ford had thrown him completely over his shoulder by some skillful wrestling stroke. The Indian soon recovered, and departed with his companions, well satisfied that the white man was "hi-u skookum" (mighty strong). This rencounter led to much discussion around the camp-fire that evening as to the relative prowess of Indian and white. All agreed that the latter was far superior, not only in courage and physical strength, but even in endurance and woodland and savage arts and skill.

The next day the party moved and encamped near the village, and on the following morning the principal chiefs to the number of thirty assembled in front of the governor's tent, and listened attentively as he explained to them the benefits they would gain by learning to "follow the white man's road," and referred to the treaties made with the other tribes at the recent council, at which some of them were present, and asked them to meet him in council with the Spokanes on his return. Finally he invited them to send with him a delegation to the Blackfoot council, and make peace with those fierce and feared marauders. The chiefs received the talk favorably, but declined to send the delegation, saying that only a few of their people went to buffalo, and besides they were afraid to go to the council. The Blackfeet would kill them.

At noon, after this conference, the train set out in charge of Higgins, while the governor, with Doty and Crosby, remained a few hours longer. The oath of allegiance to the United States was administered by Crosby to the fathers and lay brothers, who subscribed the naturalization papers, and seemed much pleased with the idea of becoming American citizens. Towards evening they bade the hospitable missionaries farewell, and, riding rapidly eleven miles, found the train snugly encamped in a large prairie with fine grass, where the governor encamped, October 12, 1853. The next two days the party were kept in camp by a pelting summer rain.

Friday, June 29, on a cool and delightful morning after the storm, the march was continued up the Cœur d'Alene River, retracing the governor's route of

1853 across the Bitter Root Mountains; the summit was passed on July 1, and, descending the St. Regis de Borgia, crossing and recrossing the stream no less than thirty-five times, the Bitter Root River was reached on the 3d, eighty-six miles distant from the mission. The Father Superior of the Catholic missions, with two companions returning from an inspection of the Pend Oreille Mission, was met the first day, and on the summit a Cœur d'Alene Indian, whom the governor had previously sent to the Bitter Root valley[7] with dispatches to Mr. Adams, special agent for the Flatheads, in regard to holding a council with them, brought the gratifying intelligence that the Indians were all ready to assemble, all full of the Blackfoot council, and that everything was quiet in the Indian country. The governor took great pains in examining the route and the topography of the country, and in determining the altitude by the barometer.

The Fourth of July was spent in crossing the Bitter Root, which was at this point one hundred and fifty yards wide, with a swift, strong current, and fordable only at the lowest stage of water in fall and winter. It was now swollen from recent rains and melting snows in the mountains. All hands set to work felling trees and building rafts, with which to effect a crossing. While thus laboriously engaged, a large band of Flathead Indians, who were encamped here, took down their lodges, and ferried themselves over the swift and broad river, with all their women, children, horses, dogs, lodges, and effects, in less than an hour's time, and in a simple and ingenious manner, which put the whites quite to the blush. The buffalo-skin lodge was spread out on a smooth, flat place at the water's edge, all the blankets, robes, clothing, bundles of provisions, saddles, packs, everything in short in the way of goods and chattels were piled in a broad, circular pile upon it, and the ends and edges of the skin were stretched up and tied together on top, as one would tie up a bundle of clothes in a handkerchief. This being completed, a brave rode his horse into the river until almost swimming, holding by his teeth the end of a line; the bundle was then pushed and lifted into the river; the squaws climbed on top of it with the children and babies around them, one of them took and held the other end of the line, and the brave started his pony swimming across the stream, holding by the mane or tail with one hand, and swimming with the other, and soon reached the opposite bank in safety. It was a curious and exciting spectacle to see ten or twelve of these bundles, the size of large haystacks, surmounted by groups

of squaws and papposes, rapidly floating down the stream, while being slowly towed across, nothing visible of the ponies and braves except their heads, while the loud, labored breathing of the swimming horses and the shouts and splashings of the Indians echoed across the water.

The Flatheads were accustomed to train and exercise their horses in swimming, and were very skillful in crossing streams in this manner. The buffalo-skin lodges were impervious to water for only a short time, and would become leaky and useless by a prolonged soaking.

The party built three large rafts, loaded all the goods upon them, and poled them across the river with long poles. The animals were compelled to swim. The last, bearing the governor, was the largest and least manageable, and came near escaping down the river on a voyage of its own choosing. It was carried farther down than the others, and on nearing the other bank got into a swifter current, where the poles were quite useless, and was swept along at break-neck speed, flying past the rocks and trees of the bank only forty feet away. At this juncture Higgins seized the end of a pack rope and plunged headfirst into the raging current, gained the shore in a few powerful strokes, raced along it at top speed to keep the rope from being jerked out of his hands by the flying raft until he came to a tree, threw a turn of the rope around it, and checked the raft, which then swung inshore under the pressure of the current. In these few minutes the unwieldy craft was carried down two miles. But everything was gotten together and a comfortable camp pitched before night. The tired men smoked their pipes around the camp-fire after supper and recounted the adventures of the day, with great satisfaction that the river was behind them.

After a late start the next morning the party moved eighteen miles up the right bank of the beautiful river, traversing tracts of open woods and prairies, alternating in pleasing variety with the dark, rugged range just surmounted, frowning on the right. Large schools of salmon or trout were seen in the clear, pellucid water, motionless over the spawning-beds, fairly covering and hiding the river's bed, in such numbers were they. The next day's march was thirty-seven miles. On the 7th, soon after leaving camp, they were met and received by three hundred chiefs and braves of the Flathead, Pend Oreille, and Koo-te-nay tribes, in the most cordial manner, with a salute of musketry, and escorted to their camp near Hell Gate River.

After spending some hours with them, learning their condition, and establishing pleasant relations between them and his own party, the governor moved to the main river, a mile distant, and established his camp and council ground.

In the afternoon the three head chiefs, Victor of the Flatheads, Alexander of the Pend Oreilles, and Michelle of the Koo-te-nays, accompanied by a number of other chiefs, visited Governor Stevens, and after the pipe had passed around,—the indispensable introduction to every Indian conference,—the latter spoke to them in his usual vein, proposing a treaty, referring to the great council just held with so many Indians in the Walla Walla valley, and appointing the next Monday for opening the council with them. He also spoke of his efforts to make peace with the Blackfeet, and urged them to send a delegation to the proposed council with these, their inveterate and bloody foes. This was a sore subject with the Flatheads, for the Blackfeet had but faithlessly kept their promises of amity and good conduct towards their neighbors. Many of their young braves, despite the efforts of the chiefs and elders to restrain them, had continued their predatory raids, saying, “Let us steal all the horses we can before the great white chief returns and makes peace with all the tribes, and stops horse-stealing forever,” and had inflicted severe losses upon the Flatheads since the governor passed through their country nearly two years before, notwithstanding, and that was what made it all the harder to bear; the Flatheads had scrupulously heeded the governor’s admonitions, and refrained from retaliation. On one occasion, when some young Pend Oreilles ran off a number of Blackfoot horses, the chiefs sent them back, at the risk of the lives of the party returning them. When the governor finished, Victor said:—

“The Blackfeet have troubled us very much. I am going to tell what has happened since you were here. Twelve men have been killed when out hunting, not on war-parties. I fear the whites and keep quiet. I cannot tell how many horses have been stolen since. Now I listen, and hear what you wish me to do. Were it not for you, I would have had my revenge ere this. They have stolen horses seven times this spring.”

The chiefs then returned to their camp, promising to attend the council the following Monday.

The Flatheads or Salish, including the Pend Oreilles and Koo-te-nays, were among those who had been driven westward by the Blackfeet, and now occupied the pleasant valleys of the mountains. They were noted for their intelligence, honesty, and bravery, and although of medium stature and inferior in physique to the brawny Blackfeet, never hesitated to attack them if the odds were not greater than five to one. Having been supplied by the early fur traders with firearms, which enabled them to make a stand against their outnumbering foe, they had always been the firm friends of the whites, and, like the Nez Percés, often hunted with the mountain men, and entertained them in their lodges. A number of Iroquois hunters and half-breeds had joined and intermarried with them. The Bitter Root valley was the seat of the Flatheads proper. The Pend Oreilles lived lower down the river, or northward, in two bands, the upper Pend Oreilles on the Horse Plains and Jocko prairies, and the lower Pend Oreilles on Clark's Fork, below the lake of their name, and were canoe Indians, owning few horses. The Koo-te-nays lived about the Flathead River and Lake. All these, except the lower Pend Oreilles, went to buffalo, and their hunting-trips were spiced with the constant peril and excitement of frequent skirmishes with their hereditary enemies. The Jesuits, in 1843, established a mission among the lower Pend Oreilles, but in 1854 moved to the Flathead River, near the mouth of the Jocko. They also started a mission among the Flatheads in the Bitter Root valley, forty miles above Hell Gate, where they founded the beautiful village of St. Mary, amid charming scenery; but the incessant raids of the Blackfeet were slowly but surely "wiping out" these brave and interesting Indians, and the mission was abandoned in 1850 as too much exposed. The Owen brothers then started a trading-post at this point, which they named Fort Owen; and fourteen miles above it Lieutenant Mullan built his winter camp in 1853, known as Cantonment Stevens, which has been succeeded by the town of Stevensville. The term "Flathead" was a misnomer, as none of them practiced the custom of flattening the head.

CHAPTER XXXI

THE FLATHEAD COUNCIL

After a quiet and restful Sunday in both camps the Indians assembled at the appointed time, and the council was opened on Monday, July 9, at half past one P.M., by the governor, in a long speech, explaining, as at the other councils, the terms and advantages proffered by the government. Although the Indians were extremely friendly, and very desirous of “following the white man’s road” and coming under the protection of the Great Father, their only apparent refuge from the fierce Blackfeet, whose incessant raids threatened them with speedy extinction, the council proved unexpectedly difficult and protracted, lasting eight days, and the treaty was only saved by Governor Stevens’s persistence and astuteness in accepting an alternative proposition offered by Victor at the last moment. The chronic objection of every tribe to leaving its own country and going on a reservation in the territory of another was the stumbling-block.

The governor required the three tribes, as they were really one people, being all Salish, speaking a common language, and closely intermarried and allied, and also reduced in numbers, to unite upon one reservation. He offered to set apart a tract for them either in the upper Bitter Root valley in Victor’s country, or the Horse Plains and Jocko River in the Pend Oreille territory, as they might prefer, and urged them to decide and agree among themselves upon one of these locations; but neither tribe was willing to abandon its wonted region, where they were accustomed to pitch their lodges, and where their dead were buried. The following brief extracts from the proceedings give an idea of the course of the difficult and at times stormy and vexatious negotiations.

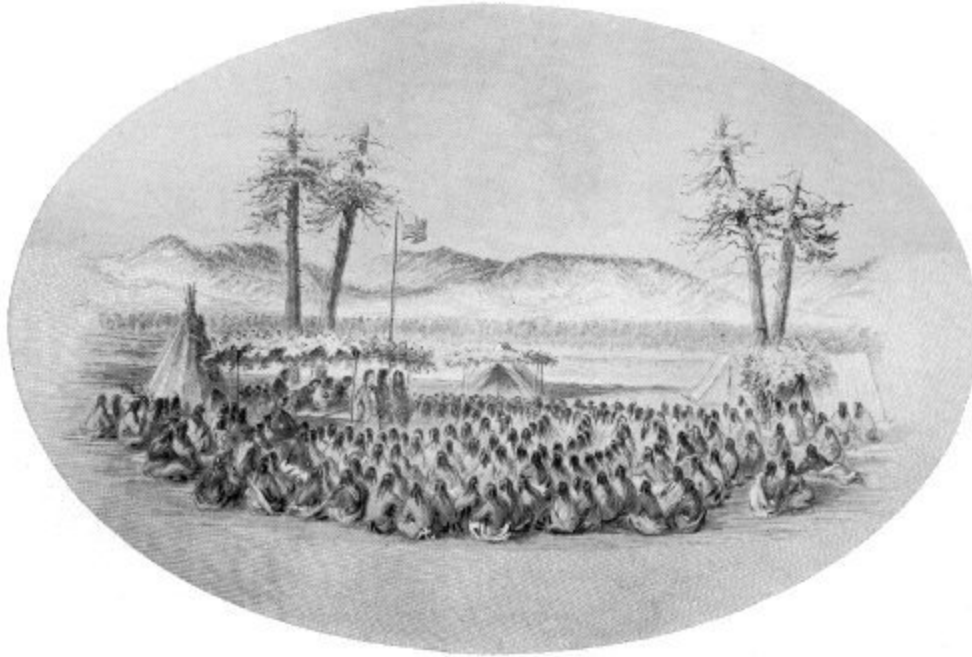
When the governor finished Victor said:—

“I am very tired now, and my people. You [the governor] are the only man who has offered to help us.... I have two places, here is mine [pointing out Bitter Root valley on the map], and this is mine [pointing

out Flathead River and Clark's Fork]. I will think of it, and tell you which is best. I believe you wish to assist me to help my children here so that they may have plenty to eat, and so that they may save their souls."

Alexander: "You are talking to me now, my Big Father. You have told me you have to make your own laws to punish your children. I love my children. I think I could not head them off to make them go straight. I think it is with you to do so. If I take your own way, your law, my people then will be frightened. These growing people [young people] are all the same. Perhaps those who come after them may see it well before them. I do not know your laws. Perhaps, if we see a rope, if we see how it punishes, we will be frightened. When the priest talked to them, tried to teach them, they all left him. My children, maybe when the whites teach you, you may see it before you. Now this is my ground. We are poor, we Indians. The priest is settled over there [pointing across the mountains towards the north, the direction of his country]. There, where he is, I am very well satisfied. I will talk hereafter about the ground. I am done for to-day."

In this speech Alexander expresses the difficulty he has to manage his unruly young people, and his fear that the white rule might prove too strict for them.



THE FLATHEAD COUNCIL

Red Wing, a Flathead chief: "We gathered up yesterday the three peoples you see here. They think they are three nations. I thought these nations were going to talk each about its own land. Now I hear the governor: my land is all cut up in pieces. I thought we had two places. This ground is the Flatheads', that across the mountains is the Pend Oreilles'; perhaps not, perhaps we are all one. We made up another mind yesterday, to-day it is different. We will go back and have another council."

The governor adjourned the council to the next day, urging them to talk and agree among themselves as to the reservation.

The following day the governor called on the chiefs to speak their minds freely.

Big Canoe, a Pend Oreille chief, made a long and sententious speech, in which he deprecated making any treaty, or parting with any of his country, and thought the whites and Indians could live together in the same land:—

"Talk about treaty, when did I kill you? When did you kill me? What is the reason we are talking about treaties? We are friends. We never spilt the blood of one of you. I never saw your blood. I want my country. I

thought no one would ever want to talk about my country. Now you talk, you white men. Now I have heard, I wish the whites to stop coming. Perhaps you will put me in a trap if I do not listen to you, white chiefs. It is our land, both of us. If you make a farm, I would not go there and pull up your crops. I would not drive you away from it. If I were to go to your country and say, 'Give me a little piece,' I wonder would you say, 'Here, take it.' I expect that is the same way you want me to do here. This country you want to settle here, me with you.... You tell us, 'Give us your land.' I am very poor. This is all the small piece I have got. I am not going to let it go. I did not come to make trouble; therefore I would say, I am very poor....

"It is two winters since you passed here. Every year since, my horses have gone to the Blackfeet. Here this spring the Blackfeet put my daughter on foot. She packed her goods on her back. It made me feel bad. I was going on a war-party as your express passed along. Then I think of what I heard from you, my father, and take my heart back and keep quiet. If I had not listened to your express, I should have gone on war-parties over yonder. We drove one band of horses from the Blackfeet. I talked about it to my Indians. I said, 'Give the horses back, my children.' My chief took them back. You talked about it strong, my father. My chief took them back. That is the way we act. When I found my children were going on war-parties, I would tell them to stop, be quiet; tell them I expect now we will see the chief; I expect he will talk to the Blackfeet again."

Governor Stevens: "I will ask you, my children, if you fully understand all that was said yesterday? I ask you now, can you all agree to live on one reservation? I ask Victor, are you willing to go on the same reservation with the Pend Oreilles and Koo-te-nays? I ask Alexander, are you willing to go on the same reservation with the Flatheads and Koo-te-nays? I ask Michelle, are you willing to go on the same reservation with the Flatheads and Pend Oreilles? What do you, Victor, Alexander, and Michelle, think? You are the head chiefs. I want you to speak."

Victor: "I am willing to go on one reservation, but I do not want to go over yonder" [Pend Oreille country].

Alexander: "It is good for us all to stop in one place."

Michelle: "I am with Alexander."

Governor Stevens: "The Pend Oreilles and Koo-te-nays think it well to have all these tribes together. Perhaps Victor might think so by and by, if the place suits. Alexander and Michelle wish to live together, their people on one place,—they have a thousand people, the land ought to be good. Each man wants his field. The climate ought to be mild....

"I ask Victor, Alexander, and Michelle to think it over. Will they go to the valley with Victor, or to the mission with Alexander and Michelle? I do not care which. You will have your priests with you, whether you go to the mission or Fort Owen. Those who want the priest can have him. The Great Father means that every one shall do as he pleases in regard to receiving the instructions of the priests."

But the council next day showed no change in the situation. Victor was unwilling to move to the mission, and Alexander to the valley. Neither would object to the other coming to his place. It being evident, after protracted discussion, that no progress would be made by continuing the council that day, and it appearing that an influence was being exerted by the priests of the mission which might be adverse to the views of the government, a messenger was dispatched directing the presence of Father Hoecken for the purpose of investigating it, the council was adjourned over to Friday, and the Indians were recommended to have a feast and a council among themselves on the morrow. Accordingly they had a grand feast on the 12th, the means for which—two beeves, coffee, sugar, flour, etc.—were furnished them, after which the day was spent in discussing the question of the reservation among themselves.

But in council next day they appeared no nearer an agreement, and, after much and fruitless talk, Ambrose, a Flathead chief, said:—

"Yesterday Victor spoke to Alexander. He said: 'I am not headstrong. The whites picked out a place for us, the best place, and that is the reason I do not want to go. Two years since they passed us. Now the white man has his foot on your ground. The white man will stay with you.' Yesterday, when we had the feast, then Alexander spoke; he said,

‘Now I will go over to your side. I will let them take my place, and come to your place.’ But Victor did not speak, and the council broke up.”

Governor Stevens: “Alexander, did you agree yesterday to give up your country and join Victor?”

Alexander: “Yes, yesterday I did give up. I listened and he did not give me an answer; then I said, ‘I will not give up my land.’”

Governor Stevens: “I speak now to the Pend Oreilles and Koo-te-nays. Do you agree to this treaty?—the treaty placing the Pend Oreilles and Koo-te-nays on this reservation? [at the mission]. I ask Victor if he declines to treat?”

Victor: “Talk! I have nothing to say now.”

Governor Stevens: “Does Victor want to treat? Why did he not say to Alexander yesterday, ‘Come to my place’? or is not Victor a chief? Is he, as one of his people has called him, an old woman? Dumb as a dog? If Victor is a chief, let him speak now.”

Victor: “I thought, my people, perhaps you would listen. I said, ‘This [at the mission] is my country, and all over here is my country. Some of my people want to be above me. I sit quiet, and before me you give my land away. If I thought so, I would tell the whites to take the land there [the mission]. It is my country. I am listening, and my people say, “Take my country.”’”

Governor Stevens: “Alexander said yesterday that he would come up here. Why did you not answer and say ‘Come’?”

Victor: “Yesterday I did talk.”

Governor Stevens: “Alexander said yesterday he offered to give up his land and go to you. Alexander says you made no answer. Why did you not say, ‘Yes, come to my place’?”

Victor: “I did not understand it so.”

Governor Stevens: “Ambrose says he understood Alexander to say so. Alexander says he said so. You did not speak and say, ‘Come to my place,’ but you were dumb. Does Victor mean to say that he will neither let Alexander come to his place nor go to Alexander’s?”

Ambrose, Til-coos-tay, Red Wolf, and Bear Tracks, Flathead chiefs, took up the discussion, pouring oil on the troubled waters, and excusing Victor for not speaking in answer to Alexander at their own council.

At length the governor said:—

“My children, I find that things are nearer to an agreement than when we began talking this morning. Ambrose says the people are not quite prepared, but will be ready by and by. Ambrose says, ‘Be patient and listen.’ I am patient, and have been patient and listened to them. Others of you have said they they were hiding their minds and did not speak; hence I reproved you and said, ‘speak out, let us have your hearts.’ It seems many of the Flatheads are ready to go to the mission. If their chief says so, they will go. Victor says, ‘I am ready to go, but my people will not;’ but the people say they are ready to go. We want all parties to speak straight, to let us have their hearts, then we can agree. If Victor’s people will go, we want Victor as a chief to say, ‘I will go.’”

Victor here arose and left the council. After a pause of some minutes Governor Stevens said:—

“I will ask Ambrose where is Victor?”

Ambrose: “He is gone home.”

Governor Stevens: “Ambrose, speaking of Victor, said he wanted time. Victor is now thinking and studying over this matter. We don’t wish to drive or hurry you in this business. Think over this matter to-night, and meet here to-morrow. I ask Ambrose to speak to Victor and tell him what I say. Ambrose loves his chief, let him take my words to him.”

He then adjourned the council to meet in the morning.

But the following day word was sent by Victor to the governor that he had not yet made up his mind, and the council was postponed to Monday

morning.

When the council opened at eleven Monday morning, Victor said:—

“I am now going to talk. I was not content. You gave me a very small place. Then I thought, here they are giving away my land. That is my country over there at the mission, this also. Plenty of you say Victor is the chief of the Flatheads. The place you pointed out above is too small. From Lo Lo Fork above should belong to me. My stock will have room, and if the Blackfeet will let my horses alone, they will increase. I believe that you wish to help me, and that my people will do well there. We will send this word to the Great Father. Come and look at our country. When you look at Alexander’s place, and say the land is good, and say, Come, Victor, I will go. If you think this above is good land, then Victor will say, Come here, Alexander. Then our children will be well content. That is the way we will make the treaty, my father.”

Governor Stevens: “Victor has spoken. Do Alexander and Michelle speak in the same way? I will ask Alexander if he agrees.”

Alexander: “Maybe we cannot all come together. Here is Michelle, I know his mind. He told me, you go this way, I won’t go. Here are the lower Pend Oreilles. Maybe they are the same way. They have no horses; they have only canoes. I am very heavy, as though they tied me there.”

Michelle: “I am just following Alexander’s mind. If he goes this way, I will not go. I have come a long way to see you; when you leave I go back.”

The governor again asked them if they would agree to Victor’s proposition, and go to the reservation which was found best adapted to their needs after survey and examination, but both chiefs positively refused.

The governor then cut the knot by accepting Victor’s proposition as far as it concerned him, and giving the others the reservation at the mission:—

“My children, Victor has made his proposition. Alexander and Michelle have made theirs. We will make a treaty for them. Both tracts

shall be surveyed. If the mission is the best land, Victor shall live there. If the valley is the best land, Victor shall stay here. Alexander and Michelle may stay at the mission....

“I ask Victor to come up and sign the treaty. [He came up and signed.] Now I ask Alexander and Michelle.” [They also then signed.]

Moses, a Flathead chief, on being called on to sign, refused. He stepped forward, and said:—

“My brother is buried here. I did not think you would take the only piece of ground I had. Here are three fellows [the head chiefs]; they say, ‘Get on your horses and go.’ ... Last year, when you were talking about the Blackfeet, you were joking.”

Governor Stevens: “How can Moses say I am not going to the Blackfoot country? I have gone all the way to the Great Father to arrange about the Blackfoot council. What more can I do? A man is coming from the Great Father to meet me. Does he not know that Mr. Burr and another man went to Fort Benton the other day?”

Moses: “You have pulled all my wings off, and then let me down.”

Governor Stevens: “All that we have done is for your benefit. I have said that the Flatheads were brave and honest, and should be protected. Be patient. Everything will come right.”

Moses: “I do not know how it will be straight. A few days ago the Blackfeet stole horses at Salmon River.”

Governor Stevens: “Ask him if he sees the Nez Perce chief, Eagle-from-the-Light; he is going to the Blackfoot council with me.”

Moses: “Yes, I see him. They will get his hair. The Blackfeet are not like these people. They are all drunk.”

All the principal men came forward and signed the treaty. Governor Stevens then said:—

“Here are three papers which you have signed, copies of the same treaty. One goes to the President, one I place in the hands of the head

chief, and one I keep myself. Everything that has been said here goes to the President. I have now a few presents for you. They are simply a gift, no part of the payments. The payments cannot be made until we hear from the President next year.”

The presents were then distributed. The chiefs were then requested to assemble on the morrow with regard to the Blackfoot council.

Thus successfully and happily terminated this protracted council, “every man pleased and every man satisfied,” says the governor. Twelve hundred Indians were present on the treaty ground.

The jealousy and pride of the chiefs, Victor and Alexander, greatly increased the difficulty of coming to an agreement. The former repeatedly asserted his chieftainship over both tribes by claiming that the countries of both were his, a claim that Alexander offered to recognize if Victor would move to the Horse Plains (mission) reservation. Alexander claimed to be chief of the lower Pend Oreilles, a claim the governor summarily rejected. The influence and advice of the former Hudson Bay Company employees and half-breeds, to this and to the other treaties, was prejudicial, instigating the Indians to make unreasonable demands, and often opposing and misrepresenting the treaties themselves.

Father Hoecken arrived before the end of the council, in response to the governor’s summons. It did not appear that he was exerting any adverse influence. On the contrary, he highly approved the treaty, and signed it as one of the witnesses. It seems, however, as the governor reported, that the dislike of the Flatheads to the mission establishment was one cause of their unwillingness to move to the reservation in the Pend Oreille country. It is probable that the missionaries at St. Mary’s had been too strict and exacting for their independent natures. Moreover, it was the fact, as the governor had cause to realize later, that the missionaries feared and dreaded the approach of the settlers, and sympathized wholly with the Indians as between the two.

This treaty, like all made by Governor Stevens, was remarkably liberal in its terms to the Indians. The reservation on the Flathead River comprises a million and a quarter acres. \$84,000 in annuity goods; \$36,000 to improve the reservation; salaries of \$500 a year for twenty years, with a house and ten acres fenced and ploughed, to the three head chiefs; schools, mills,

hospitals, shops; teachers and mechanics for twenty years; the right to fish, hunt, gather roots and berries, and pasture stock on vacant land; and the provision for ultimately dividing the reservation among them in severalty,—were all embraced. It was agreed that the three tribes were to constitute one nation under Victor as head chief, to be known as the Flathead nation, in which, and on the same reservation, were to be included other friendly tribes, as the lower Pend Oreilles and Cœur d’Alenes. Besides Father Hoecken, R.H. Lansdale, W.H. Tappan, R.H. Crosby, Gustavus Sohon, and William Craig witnessed the treaty. Some 25,000 square miles were ceded.

All three tribes now occupy the reservation on the Jocko (mission), together with the lower Pend Oreilles and a few Spokanes. They number 2000, showing little diminution since the treaty, and have made fair progress. Nearly all have houses with some land inclosed. Many raise small crops of wheat and have good gardens. They have 20,000 acres under fence, over ten miles of irrigation ditches, and raised last year 25,000 bushels of grain, 10,000 bushels of vegetables, and 7000 tons of hay. Their lands have not yet been allotted in severalty. The agent complains that worthless employees are frequently foisted upon the agency, “many incompetent men hold positions who take no interest in their work,”^[8] etc.,—a state of things equally unfair to the Indians and disgraceful to the government.

CHAPTER XXXII

MARCH TO FORT BENTON.—MARSHALING THE TRIBES

Before the close of the council, agents Tappan and Craig arrived with the proposed delegation of Nez Perces under Looking Glass, Spotted Eagle, Eagle-from-the-Light, and other chiefs. It was agreed that they and the Flatheads and Pend Oreilles, under their chiefs Victor and Alexander, and accompanied by agent Thomas Adams and interpreter Ben Kiser, should cross the mountains to the buffalo country, and hunt on the plains south of the Missouri, until the time came for holding the great peace council at Fort Benton, of which they would be notified. Their agents were instructed to keep the governor informed of their whereabouts by frequent expresses, and to guard against collisions with the Blackfoot war-parties, and also to communicate with the Crow Indians and induce them to attend the council. Dr. Lansdale, agent for the Flathead nation, remained, and during the summer made extensive examinations of the reservation on the Flathead River and the surrounding country.

These arrangements completed, on Wednesday, July 18, the second day after the close of the council, the governor dispatched Pearson, who had just returned to the party after his rapid trip to Olympia from the Walla Walla council, with full reports of the council just held, and letters to the Indian and territorial officers in Olympia, and resumed the march to Fort Benton, crossing for six miles the broad level valley here known as the Hell Gate Ronde, and passing the deep, dark portal of that name,^[9] and, six miles beyond it, encamped on the Hell Gate River. During the next five days and one hundred miles the party traversed the broad plateau of the great mountain chain over a beautiful rolling country of wide grassy valleys and gently rolling prairies, interspersed with low wooded hills and spurs, and well watered by clear, cold, rapid mountain streams. It was hard to realize that this beautiful and diversified prairie country was the top of the Rocky Mountains, the backbone of the continent. At the second day's camp the

Indian hunter and guide, a Pend Oreille furnished by Alexander, brought in a fine string of mountain trout, and, not content with this, started out again, and soon returned with an elk, and after this the messes were rarely out of game,—elk, deer, antelope, and mountain trout. The trail followed up the Hell Gate and its chief tributary, the Big Blackfoot, the route of 1853, and crossed the divide by Lewis and Clark's Pass. From the summit the governor obtained a magnificent and beautiful view of the country about an hour before sunset, the main chain stretching far to the north, and the broad plains, broken by many streams and coulees, extending eastward as far as the eye could reach, like an illimitable sea.

He spent the whole day, with Doty and Sohon, examining the approaches to the summit pass, and those to Cadotte's Pass, ten miles farther south, and determining altitudes and grades, and reached camp long after dark, well fatigued with the day's work. Throughout the expedition the governor was constantly examining the topographical features of the country. He would frequently ride ahead of the train, and, sitting on a log or on the ground, would write up his notes or journal until it came up. He was accustomed to start the train rather late in the morning, about eight o'clock, move at a steady, brisk walk, without stopping for noon rest or meal, and make camp early in the afternoon, and by this management plenty of time was afforded the animals to feed mornings and evenings. Twenty miles was the average day's journey, but thirty or forty miles were made with ease whenever expedient, as often happened. No better equipped or manned train ever traversed the plains and mountains.

It always moved in fine order, without delays, confusion, or friction. A worn-down or sore-backed mule or horse was a rarity. At the first symptom of need of rest, a fresh animal from the loose herd relieved the distressed one. The packers worked in couples, each two packing and caring for ten pack-mules. The riding animals were picked Indian horses. The mules were of large American stock, mostly those of the exploration of 1853. Thorough discipline and the best feeling prevailed among the party. There was scarcely a quarrel during the whole nine months the expedition lasted. This judicious care of the animals was characteristic of the governor, and it is noticeable that on his arduous expeditions, though hard-worked and only grass-fed, they actually improved in condition,—a unique experience on the plains.

Leaving behind the prairies, groves, and sparkling, rippling streams of the mountain plateau, the party entered upon the vast rolling plains, gray and arid, and, traveling over them one hundred and thirty miles, camping one night on the Dearborn River, one on the Sun, and three on the Teton, reached the vicinity of Fort Benton on the fifth day, and went into camp on the last-named river four miles from the fort. The governor, riding ahead, reached it a day sooner, on the 26th, and was disappointed in not finding or hearing from his co-commissioner, Superintendent Alfred Cumming. During this march the party were rarely out of sight of game. Large herds of graceful, fleet antelopes would come scouring across the plains, and circle around the slowly moving train, now abruptly halting to gaze with erect heads and distended eyes at the strange procession, and now dashing on again in full career, and presently, their curiosity satisfied, turning away and scampering out of sight. Deer and elk were constantly seen by the river banks and under the cottonwood groves. Buffalo trails crossed the country in every direction, and their skulls and bones were frequent. Thus far the party followed well-marked trails, but on entering the plains the guide directed his course by some distant butte or landmark, or by the sun, for there was no trail leading in a given course, and the buffalo trails lacing the plains in every direction were very misleading. The plains were covered with the short, fine, curly buffalo grass, very different from the luxuriant, waving bunch grass of the Columbia, but equally nutritious.

Learning of Mr. Cumming's approach, the governor, accompanied by Doty and Sohon and a small party, made a three days' trip to Milk River, August 11-13, a distance of eighty miles, where the commissioners met and formally organized the commission, appointing Mr. Doty secretary, and Mr. H. Kennedy, who came with Mr. Cumming, assistant secretary, and returned together to Fort Benton. The governor was seriously concerned to learn that the treaty goods and supplies were greatly delayed. Commissioner Cumming had been specially charged with the duty of transporting them to Fort Benton; but under his dilatory management the steamboat, which carried them with himself up the Missouri, did not reach Fort Union until late in the season, and, instead of continuing up the river as far as possible, discharged her cargo and returned to St. Louis. The goods were then loaded into boats, which were now slowly proceeding up the river by cordeling, or towing by a force of men walking along the bank and pulling on a long tow-

rope. This unexpected and inexcusable delay seriously imperiled the holding of the council. Governor Stevens had brought with him only sufficient supplies to carry his small party to Fort Benton, expecting to find there ample stores sent up by the government under charge of Cumming. The western Indians, who at his invitation had come so far to attend the council, could not find subsistence for a long wait; and it was necessary for them, as well as for the governor and party, to start home before winter set in and blocked the return journey. The great numbers of the Blackfeet made it difficult to keep them in hand and assemble them late in the season, for they were accustomed, and indeed were obliged, to spread over a wide territory in order to hunt buffalo, and lay in their winter robes, lodge-skins, and food.

While in Washington the preceding summer Governor Stevens had urged upon the Indian Department the importance of the early arrival of the goods at Fort Benton, and on reaching Olympia in December, repeated his recommendations in writing. Moreover, he wrote a personal letter to the President urging the necessity of having a steamer start with them at the earliest moment in the spring, and push up the Missouri above Fort Union as far as possible, and especially recommended that a boat be chartered expressly for the trip. He added a prophetic caution, or warning, against relying upon the American Fur Company to transport the goods, as they could not be depended upon to make the necessary early start and vigorous push up the river, which would entail some extra expense and risk, but would surely pursue their usual methods, and in the end sacrifice the public interests to their own. Notwithstanding these wise and urgent recommendations, the whole matter was left to Cumming, who late in the spring wrote the commissioner, proposing that the council be postponed to another year. Being thereupon informed that Governor Stevens was probably already on his way with the western Indians too far to be recalled, and instructed to proceed, he contracted with the fur company to transport the goods, with the predicted result. In this and other ways he manifested a perfect willingness to play into the hands of the fur company, a willingness which, whatever the motive, affords the only rational explanation of this transaction, of his entire indifference to the success of the council, and of his opposition to making adequate provision in the way of farms and annuities for civilizing the Indians. Of course, the American Fur Company,

like the Hudson Bay Company, was averse to having its trade impaired and eventually destroyed by the government's giving goods to, and civilizing, the Indians.

At the governor's instance, messengers were immediately dispatched to the boats to ascertain how long before they would probably arrive, and to the different bands of Indians to advise them that they must wait longer than was expected, and to ascertain and regulate their movements, so that they might readily reach the council ground when notified, and meantime find sufficient buffalo and other game to support them.

Provisions for his own party, now nearly out, were sought at the fort, but the traders were also destitute, not having yet received their annual supply from below, and could furnish nothing but a few hundred pounds of old jerked buffalo meat, exactly like worn-out boot-leather in appearance,—so black, dry, tough, and dirty was it. It seems that all the jerked meat, when first obtained, was piled up loose in one of the store-rooms, and free access to it given the cooks and Indian wives of the employees. They naturally picked out the best first, so that, after the winter's use, only the dryest and toughest pieces and scraps remained. However, two parfleches of pemmican of one hundred pounds each were found among the goods left by the exploring party two years before. This pemmican was put up by the Red River half-breeds, and consisted of jerked buffalo meat pounded fine and mixed with buffalo fat and dried berries, and then packed in large bags of rawhide called parfleches. It had become so hardened by age that it had to be chopped out of the parfleches with an axe, but it was perfectly sweet and good, and afforded a very palatable and nourishing hash.

The governor now fitted out a hunting party under Hugh Robie, with a pack-train, and sent them with a party of Gros Ventre Indians to the Judith River, some eighty miles south of the fort, after buffalo. These noble game animals were found there in great numbers and very fat. The hunters, white and red, killed hundreds of them, stripping off the hides and flesh, which they brought into camp, where the squaws jerked the meat by cutting it into thin slices and strips and drying it on scaffolds in the sun, and dressed the skins for lodges. In three weeks Robie and his party returned with his pack-mules and riding animals loaded down with fat, juicy buffalo meat,—a two months' supply for the whole party. Metsic, an Indian hunter, was kept busy

hunting in the vicinity of the fort, and brought in many deer and antelope, and small parties were from time to time sent to the Citadel Rock, a noted landmark twenty miles down the river, after bighorn, which were so abundant there that the hunters would load their animals in a day's hunt. The governor was desirous that his son should see and experience all the aspects of the trip, and believed in throwing a boy on his own resources, without too close supervision, as the proper way of developing his judgment and capacity; so Hazard, who was now well hardened to riding and the fatigues of the field, and sufficiently adventurous, accompanied the buffalo and big-horn hunting parties. There was no danger of starving, but the governor remarks:—

“As we had very little bread, sugar, or coffee, the bighorn of Citadel Rock were exceedingly delightful as an article of food, and are generally preferred by the mountain men to any other game except buffalo; so between buffalo, bighorn, and the smaller game we fared very well. The parties who extended our information of the country in conveying messages to the Indians, etc., invariably lived either on the dried meat they took with them, or on the game which they killed from day to day. They had no flour, no sugar, no coffee, and yet there was not a word of complaint from one of them; but we made it the subject of a good deal of merriment when we were able to reach the boats and have a sufficiency of those articles which in civilized life are deemed indispensable to comfort.”

Meanwhile the Indians were all well in hand, ready and anxious for the council, which nothing delayed but the unfortunate backwardness of the boats. The Blackfeet were mostly north of the Missouri, the western Indians south of it, and the governor by his expresses kept himself informed of and guided their movements. The reports from the agents with the latter were especially encouraging. The Nez Percés, 108 lodges; Flatheads and Pend Oreilles, 68 lodges; and 40 lodges of the Snakes, numbering all told 216 lodges, or over 2000 souls,—were in one camp on the Muscle Shell River, awaiting the call to the council. The whole camp of the Gros Ventres, and Low Horn's band of the Piegiens of 54 lodges, were in the vicinity. The hereditary enemies were visiting and hunting together on most friendly terms, their minds all attuned to peace and friendship, and all anxious for the council.

An incident now occurred well calculated to test the good faith of the Blackfeet. When making arrangements in the Bitter Root valley for the western Indians to attend the council, and they had objected that the Blackfeet would steal their horses, Governor Stevens assured them of his belief that the Blackfeet would receive them with kindness and hospitality, using this expression: "I guarantee that when you pull in your lariat in the morning, you will find a horse at the end of it." Relying on his assurance, four young Pend Oreille braves visited the governor at Fort Benton, and on his invitation turned their horses into his band, which grazed two miles above the fort. Next morning they were gone. Two young warriors of the northern Blackfeet had picked them out from over a hundred animals, and made off with them. The governor immediately put Little Dog, a prominent chief of the Bloods, to search for the trail of the raiders, and at the same time dispatched Doty with one attendant and a guide to the northern camps, judging that the thieves would seek refuge in that quarter. Little Dog returned unsuccessful, not finding a hoof-print of the missing horses in one hundred miles and thirty hours' hard riding, and was sent north to follow Doty. The latter pushed on fifty miles a day for two hundred and thirty miles to Bow River in British territory, a tributary of the Saskatchewan, where he struck a large Blackfoot camp only two hours after the arrival there of the stolen horses. He immediately called together the chiefs, and demanded the surrender of the animals. The head chief, Lamé Bull, returned three of them, but stated that one of the scamps had gotten off with the fourth. He expressed great regret at the theft, and offered two of his own horses in place of the one not recovered. Doty placed the rescued animals in charge of Little Dog, who had overtaken him, and resuming the pursuit of the remaining one, rode seventy miles to Elk River, another branch of the Saskatchewan, where he found another large camp of Blackfeet, and where the chief, Bull's Head, delivered to him the last horse with expressions of regret at the misconduct of his young men, and the offer of another horse by way of amends. On the sixteenth day after the horses were taken they were returned to the Pend Oreille braves at the fort. This was the first and last instance of horse-stealing by the Blackfeet pending the council, and afforded most gratifying proof of their good faith. Thus a depredation which might have led to disastrous results was made the means of demonstrating the sincerity and strengthening the friendship of the Indians.

All these Indians professed great willingness to make friends with the western tribes and the Crows, and agreed to meet them at the council and conclude a treaty. They arranged with Mr. Doty to so direct their movements as to bring them within reach of Fort Benton at the proper time. He also secured James Bird as interpreter, an intelligent half-breed, said to be the best interpreter in the country, who was then visiting Low Horn's band.

On August 27 Pearson arrived with letters from Olympia, and reported that everything was quiet and favorable west of the mountains, and that many miners and settlers were going into the upper country, gold having recently been discovered on the Columbia, near Colville.

“Pearson rode seventeen hundred and fifty miles by the route he took from the Bitter Root valley to Olympia, and back to Benton, in twenty-eight days, during some of which he did not travel. He was less than three days going from Fort Owen to Fort Benton, a distance, by the route he pursued, of some two hundred and sixty miles, which he traveled without a change of animals, having no food but the berries of the country, except a little fish, which he killed on Travelers' Rest Creek of Lewis and Clark on the morning of starting from Fort Owen, which served him for a single meal,” as the governor says in his final report.

On his trips Pearson usually drove two extra horses ahead of him, and, when the one he was riding became tired, changed his saddle to a fresh one. He could “ride anything that wore hair,” and was equally expert with the lariat which he carried at the horn of his saddle. He always contrived, too, to procure fresh horses at certain points on his long trips, as at Walla Walla, Lapwai, and the Bitter Root valley, sometimes having previously left them, and sometimes by trading with the Indians. Imagine this little man of steel, insensible to cold, hunger, and fatigue, galloping like a centaur, day after day, across the vast, lonely plains, driving before him his two loose horses!

The messenger dispatched to the boats returned with the report that they would probably reach the mouth of the Judith in twenty days, and Fort Benton in thirty or thirty-five, or on the 5th to the 10th of October. The governor proposed that one of the boats be loaded with the most necessary

goods and forced up faster by an extra crew, in order to hasten the opening of the council, leaving the others to follow; but Commissioner Cumming refused to consent to this expedient. He was a large, portly man, pompous, and full of his own importance, and having been named first as commissioner, and charged with bringing up the goods and the disbursements for the council, now attempted to arrogate to himself practically sole and exclusive authority. He even attempted to dismiss Doty as secretary, and claimed the right to appoint all the officers for the council; and this was the more unreasonable because he had not brought with him a single efficient man, and the whole work of holding and collecting the Indians, furnishing interpreters, and in short carrying the council through successfully, had to be done, and was done, by Governor Stevens and the trained force he had provided for the purpose. But the governor firmly insisted that nothing could be done except by the act of the commission; sternly informed his colleague that he would not permit him to repudiate his own action in organizing it, appointing the secretary, etc.; submitted a series of rules regulating its proceedings, and required all official communications between them to be in writing and made a matter of record. Under this firm and decided treatment Cumming was forced to abate his pretensions and subside into his proper place; but he opposed most of the governor's suggestions, disagreed with him on all points, and exhibited a degree of arrogance, ignorance, and childish petulance hard to be believed, were they not so plainly shown by the official record.

In framing the treaty the governor proposed that farms be opened for the Blackfeet on the upper waters of the Sun River, and that \$50,000 a year be allowed the Indians for twenty years, the greater part to be expended in carrying on the farms, instructing the Indians, etc. This amount was authorized by their instructions, and did not seem very extravagant for teaching twelve thousand Indians the ways of civilization, and leading them to abandon their life-long hostilities and predatory raids, being only about four dollars per capita. But Cumming flatly refused to agree to more than \$35,000, and objected to the farms as "affording opportunities for speculating under the guise of philanthropy." As the Blackfeet were within his superintendency, this was really a reflection upon himself and his agents not intended by the self-sufficient official. The commissioners were instructed to report generally on the Indians and the country. Cumming

stigmatized the Blackfeet as utter savages, bloodthirsty and depraved, and declared that they would use goods that might be furnished them as the means of buying rum at the British trading-posts, and, therefore, that annuities of goods, etc., would only aid in demoralizing them. As to the country, he adopted, *con amore*, the Jefferson Davis theory, asserting that “it is a vast and sterile region, which could not sustain the animals required for even a limited emigration, and altogether unfitted for cultivation. Every part of this barren region must forever be closed against all modern improvements in the way of transportation, with the exception of the Missouri River.” He was as unable to appreciate the philanthropic views of Governor Stevens, and his earnest desire to improve the Indians, as he was ignorant of them and of the country.

The governor’s views are given at length, and have been remarkably sustained by the subsequent settlement of the country. The following extracts will be found interesting, particularly his calculation that a million and a half buffalo grazed over the region:—

“It is in the main an exceedingly fine grazing country, of great salubrity of climate, much arable land of good quality, with abundant cottonwood on the streams, and many localities abound in pine of the finest quality. A portion of the country is scantily watered, but not seriously to affect its capabilities as a grazing country, or to interfere with emigration. At the base of the mountains, throughout nearly the whole length of the Blackfoot country, the soil is good, in many places exceedingly rich, and the grasses abundant and of the finest quality. At the heads of Milk and Marias rivers, and at the heads of all the southern tributaries of the south branch of the Saskatchewan, between latitudes 48° 30′ and 49°, there are abundant forests of pine, large tracts of arable land, and lakes well stocked with fish. On the Highwood alone, there are at least fifteen thousand acres of arable land.

“So far from this country not being able to supply the wants of even a limited emigration, an emigration could not possibly take place which would exhaust its capabilities.

“The quantities of buffalo which these plains subsist, not to take into account the vast herds of elk, deer, bighorn, antelope, and other game, will alone carry conviction that the territory inhabited by the Blackfeet is a good grazing country.

“The Blackfeet live almost exclusively on the buffalo. They number above ten thousand souls. They make twenty thousand robes a year. They require nearly twenty thousand skins for their renewal of lodges annually and other purposes. All these are the skins of cows. For several months they live entirely on bulls, and many bulls are killed at all seasons of the year. Making the proper allowance for animals that die of disease, are killed by wolves, or other causes, and for the known improvidence of Indians, it is believed that one hundred and fifty thousand buffalo of three years old and upward are required each year to subsist, clothe, and house these Indians. This number must be added each year to the herds of grown animals to prevent a decrease. Estimating that three quarters of the cows bear young, and that one half of these come to maturity, eight hundred thousand buffalo of and above three years, and one million and a half buffalo of all ages must be roaming on these plains to enable the Indians to live. Yet, on a large portion of this region the grass is hardly touched from one year’s end to another.

“The whole of the Gros Ventres and nearly three fourths of the Piegans, Bloods, and Blackfeet winter on the Milk, Marias, and Teton, finding subsistence for their animals in the bottoms, and food from the buffalo which frequent the groves of cottonwood.

“THE CHARACTER OF THE BLACKFEET.

“They are called savages, yet their four tribes have lived together many years on terms of amity, making war only on the neighboring tribes. The chiefs, who promised the undersigned two years’ since to use their influence to prevent their people from warring on the neighboring tribes, have been true to their word, and have in some cases incurred the displeasure of their wild young men for their persistency. These chiefs, and all the Blackfoot chiefs, have sent word

to their hereditary enemies, the Flatheads, the Nez Perces, and the Crows: 'Come to the council without fear. Your persons and your horses shall be under our protection, and if a horse be taken by some of our wild young men, his place shall at once be made good.' The undersigned looks forward to no disturbance at the council, for he believes the Blackfeet will keep their word.

"The Blackfeet have expressed a strong desire for farms, schools, mills, and shops. They are quick to learn, have a great curiosity to handle tools and implements, and are excellent herders of animals. The women are proverbially industrious, many of them expert in the use of the needle, and persons of both sexes seem to fall readily into the ways of the whites."



CHAPTER XXXIII

THE BLACKFOOT COUNCIL

By his careful preparation for two years, and masterly handling of them, Governor Stevens brought and kept these various tribes of Indians within easy distance of Fort Benton, all ready and anxious for the council, and in the most friendly and favorable state of feeling, during the whole month of August and half of September, fully six weeks. Had the goods arrived at any time during this waiting period, not less than 12,000 Indians would have attended the council, comprising 10,000 Blackfeet, 1100 Nez Perces, 700 Flatheads and Pend Oreilles, and 400 Snakes, the western Indians numbering 2200. But it now became impossible for the latter to remain longer on the Muscle Shell and Judith, for lack of game. The buffalo had disappeared. The grass was drying up. No day could yet be fixed for the council in the uncertainty of the arrival of the boats. On September 8 the Nez Perce camp of one hundred and three lodges, in charge of agent Tappan, was obliged to start southward for the Yellowstone, hoping to find buffalo. Tappan wrote that, unless the council was held within three weeks, not twelve Nez Perces would be able to attend it. Eagle-from-the-Light and other chiefs, with several lodges, joined the Flathead camp in order not to miss the council. But on September 10 agent Adams reported that the Flatheads might in twelve or fourteen days be obliged, also, to go to the Yellowstone for food. The Snake camp also moved to the same region for the same cause. In compliance with his instructions, Adams made a trip to the Yellowstone in search of the Crows, and descended it to a point below the Big Horn River, where he met Tappan with some Nez Perces on the same quest. But these Indians could not be found. It was reported that, in consequence of the measles having broken out among them and many having died, they had scattered, a part going down the river and part taking to the mountains.

To prevent, if possible, the failure of the whole council undertaking, now imminent, the governor dispatched Packmaster Higgins with a few picked

men to visit both camps, and notify them that October 3, or a few days later, was fixed for holding the council, and directing them to move to the vicinity of Fort Benton, and to find camps on the Shantier and Highwood creeks. Mr. Tappan was also instructed to secure, if possible, the attendance of the principal Crow chiefs.

On the fourth day out Higgins met Adams and Tappan returning to Fort Benton, despairing of the council, but the former hastened back to the Flatheads with the new orders, while Tappan joined Higgins, and, with Craig, Delaware Jim, and the voyageur Legare, pushed across the country and struck the Nez Perce camp high up on the Yellowstone. Although none of the party had ever passed over this part of the country before, Delaware Jim was so thoroughly conversant with the Yellowstone country and the upper Missouri, and certain mountain heights flanking the route, that he actually guided them on an air-line, and struck the looked-for camp without making a detour of a mile on the course, and that, too, traveling fifty miles a day.

As the result of this prompt and decided action, Adams reached Fort Benton October 3, and reported that Victor's whole camp would soon be on the Judith, and that Victor himself, leaving his camp there, would come with his chiefs and principal men to Fort Benton to attend the council. On the 5th Higgins and Tappan arrived, and at noon next day a large delegation of Nez Perce chiefs, under charge of Craig, also came in, but did not bring the large numbers in their camp, for fear they could not find sufficient game to feed them. Tappan was unable to learn anything of the Crows except the report already mentioned. The Snakes, too, had gone beyond reach, and could not be summoned. In the mean time the northern bands of the Blackfeet, in accordance with the programme arranged by Mr. Doty, had been moving down, and were now all on the Teton and Marias rivers. The Gros Ventres were on Milk River. Low Horn's and Little Gray Head's bands of the Piegiens were on the Honkee. Alexander, the Pend Oreille chief's camp, was established on the Highwood. The buffalo were in great numbers between the Marias and Milk, and herds of them were coming within twenty miles of Fort Benton. "The arrival of the Nez Percés," says the governor, "brought all the Indians within the direct purview of the commission, and the most remote camps, those of the Flatheads and Gros Ventres, could be reached in a single day." These two camps were some seventy-five miles distant each,

in different directions, and the area within which the Indians were now brought was little less than the State of Massachusetts, not counting the large Nez Perce camp on the Yellowstone.

Even yet the boats had not reached the Judith, could not reach it probably before the 8th, thirty-seven days from the Muscle Shell, instead of twenty as promised. It would require twenty-five days longer to drag them up the river another hundred miles to Fort Benton. The Blackfeet and the western Indians had now been freely mingling together for several days, and it was important that their present favorable disposition should be availed of. Accordingly Governor Stevens proposed to hold the council on the mouth of the Judith, and upon his urgency and arguments it was so decided on the evening of the 5th, the day the Nez Perce chiefs arrived, and the 13th was fixed as the time. The necessary measures to assemble the Indians at that point were devolved upon the governor as usual, and also to notify the boats to stop and unload there. By the 7th all the camps were notified, the Flatheads being already on the appointed ground, and most of the chiefs conferred with the governor in person, who, during these days, held a constant levee in his camp at the fort. The northern camps, however, were unwilling to move seventy miles farther than they expected, with their large supplies of meat recently taken, and it was decided that the chiefs, with a portion of their people, should attend, leaving the main camps undisturbed.

The governor relates the following incident:—

“My son Hazard, thirteen years of age, had accompanied me from Olympia to the waters of the Missouri. Like all youths of that age, he was always ready for the saddle, and had spent some days with one of my hunting parties on the Judith, where he had become well acquainted with the Gros Ventres. When we determined to change the council from Fort Benton to the mouth of the Judith, I undertook the duty of seeing the necessary messages sent to the various bands and tribes, and to bring them all to the mouth of the Judith at the proper moment. These Indians were scattered from Milk River, near Hammell’s Houses, along the Marias, along the Teton, to a considerable distance south of the Missouri, the Flatheads being on the Judith, and the Pend Oreilles on Smith’s Fork of the Missouri, with two bands of the Blackfeet lying somewhat intermediate, but in the

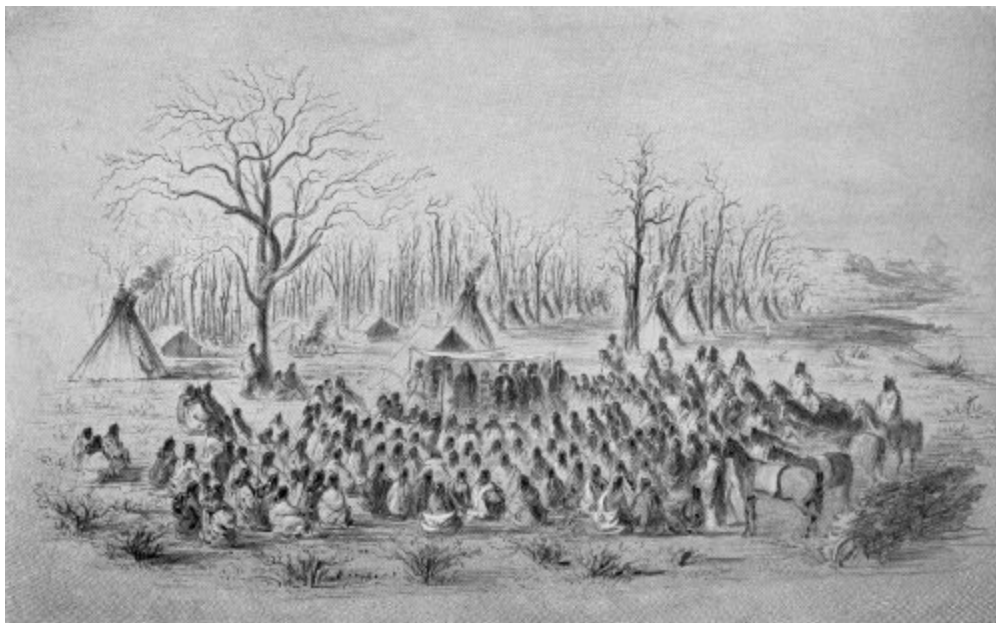
vicinity of the Girdle Mountain. I succeeded in securing the services of a fit and reliable man for each one of these bands and tribes, except the Gros Ventres, camped on Milk River. There were several men, who had considerable experience among Indians and in voyageuring, who desired to go, but I had not confidence in them, and accordingly, at ten o'clock on Sunday morning, I started my little son as a messenger to the Gros Ventres. Accompanied by the interpreter, Legare, he made that Gros Ventre camp before dark, a distance of seventy-five miles, and gave his message the same evening to the chiefs, and without changing horses they were in the saddle early in the morning, and reached my camp at half past three o'clock. Thus a youth of thirteen traveled one hundred and fifty measured miles from ten o'clock of one day to half past three o'clock in the afternoon of the next. The Gros Ventres made their marches exactly as I had desired, and reached the new council ground at the mouth of the Judith the very morning which had been appointed.

“I doubt whether such an express service as we were obliged to employ at Fort Benton to keep the Indians in hand was ever employed in this country with the same means. Many of our animals, which had done service all the way from the Dalles, traveled at express rates more than a thousand miles before we started on our return from Fort Benton. Many of our mules traveled from seven to eight hundred miles with packs in going to the boats for provisions and to the hunting grounds for meat; and yet, after our treaty was concluded and we were ready to move home, we were able to make very good rates with these same animals, although the season was so late as November.”

To realize the remarkable extent and efficiency of this express service, bear in mind Doty's trip to Bow River, three hundred miles north of Fort Benton; Tappan's and Adams's and Higgins's to the Yellowstone, two hundred miles southeast; and the expresses down the river to the boats, one hundred and fifty miles; not to speak of Pearson's trip to Olympia, one thousand miles. It was as though one in New York, without telegraphs, railroads, or mails, had to regulate by pony express the movements of bands of Indians at Boston, Portland, Montreal, Buffalo, and Washington.

After spending four days in conferences with the chiefs, explaining the reasons for changing the council ground, etc., the governor broke camp on the 10th, and on the next day, Thursday, reached the point where the boats were unloading, a mile below the mouth of the Judith, selected and prepared the council ground, and received and assigned to their camps the Indians as they arrived. His colleague descended the river in a skiff, and did not arrive until the following Saturday. By Monday all the Indians had assembled, and numbered thirty-five hundred.

On Tuesday Governor Stevens formally opened the council. The Indians, as usual on such occasions, “reposed on the bosom of their mother,” that is, sat on the ground in semicircular rows, twenty-six principal chiefs in the first row, lesser chiefs in succeeding rows, and the rank and file in the rear. The governor administered the oath to the interpreters to translate truly, having first inquired of the Indians if they were satisfied with them and received an affirmative reply.



THE BLACKFOOT COUNCIL

Governor Stevens said:—

“My children, my heart is glad to-day. I see Indians east of the mountains and Indians west of the mountains sitting here as friends, Bloods, Blackfeet, Piegans, Gros Ventres, and Nez Perces, Koo-te-

nays, Pend Oreilles, Flatheads; and we have the Cree chief sitting down here from the north and east, and Snakes farther from the west. There is peace now between you all here present. We want peace also with absent tribes, with the Crees and Assiniboinés, with the Snakes, and, yes, even with the Crows. You have all sent your message to the Crows, telling them you would meet them in friendship here. The Crows were far, and could not be present, but we expect you to promise to be friends with the Crows.

“It was Low Horn who, two years since, said to me, ‘Peace with the Flatheads and Nez Percés.’ The Little Dog, Little Gray Head, and all the Blackfoot chiefs said, ‘Peace with them; come and meet us in council,’ and here they are. Here you see them face to face. I met them the same year. I told them your words. They said, ‘Peace also with the Blackfeet.’ And the Great Father has said, ‘Peace with the Crees and Assiniboinés, the Crows, and all neighboring tribes.’

“I shall say nothing about peace with the white man. No white man enters a Blackfoot or a western Indian’s lodge without being treated to the very best. Peace already prevails. We trust such will continue to be the case forever. We have been traveling over your whole country, both to the east and west of the mountains, in small parties, ranging away north to Bow River, and south to the Yellowstone. We have kept no guard. We have not tied up our horses. All has been safe. Therefore I say peace has been, is now, and will continue, between these Indians and the white man.”

The treaty was then read to them, after which the governor went over its provisions, explaining them, etc.

The council lasted three days. The best feeling prevailed, all the chiefs making earnest and sincere speeches in favor of peace, contrasting the advantages of hunting in safety and trading between the tribes with the continual losses of their young braves and the steady decline in numbers from perpetual war, although some of them expressed doubts as to restraining the ambitious young warriors. Only one passing shadow was cast over the assemblage, and that but for a moment. The treaty made all the country south of the Missouri a common hunting ground for all the tribes,

while the country north of the river was to be reserved to the Blackfeet for hunting purposes, although open to the western Indians for trading and visiting. To this restriction Alexander, the Pend Oreille chief, demurred. Said he:—

“A long time ago this country belonged to our ancestors, and the Blackfeet lived far north. We Indians were all well pleased when we came together here in friendship. Now you point us out a little piece of land to hunt our game in. When we were enemies I always crossed over there, and why should I not now when we are friends? Now I have two hearts about it. What is the reason? Which of these chiefs [pointing to the Blackfeet] says we are not to go there? Which is the one?”

The Little Dog, a Piegan chief: “It is I, and not because we have anything against you. We are friendly, but the north Blackfeet might make a quarrel if you hunted near them. Do not put yourself in their way.”

On Alexander’s insisting, the Little Dog said:—

“Since he speaks so much of it, we will give him liberty to come out in the north.”

Alexander’s contention will be better understood by considering the fact that his country, on the Flathead River and Clark’s Fork, lies directly opposite the region of the upper Marias, and that by going directly east across the mountains through the Marias Pass he could reach buffalo in a short trip, while the journey to the plains south of the Missouri was a much longer one.

On the last day the commissioners and the chiefs and headmen of all the tribes present signed the treaty amid the greatest satisfaction and good feeling. During the next three days, October 18–20, the presents were distributed, and coats and medals were presented to the chiefs, with speeches by the commissioners, exhorting them to keep their promises to their Great Father, and control their young braves. The several tribes fraternized most amicably throughout all these proceedings, particularly the Flatheads and Gros Ventres,—who had hunted together and exchanged

friendly visits for many weeks on the Muscle Shell,—the Nez Perces and Piegans, and the Bloods and Pend Oreilles. Though the Crows were not present, the Indians pledged themselves not to war upon them, nor upon any of the neighboring tribes. The officers of this council were: Isaac I. Stevens and Alfred Cumming, commissioners; James Doty, secretary; Thomas Adams and A.J. Vaughan, reporters. The interpreters were: James Bird, A. Culbertson, and M. Roche, for the Blackfeet; Benjamin Kiser, G. Sohon, for the Flatheads; William Craig, Delaware Jim, for the Nez Perces.



STAR ROBE
THE RIDER HEAVY SHIELD

**LAME BULL
BLACKFOOT CHIEFS]**

The treaty was much more than a treaty of peace as far as the Blackfeet were concerned, for it gave them schools, farms, agricultural implements, etc., and an agent, and annuities of \$35,000 for ten years, of which \$15,000 was devoted to educating them in agriculture and to teaching the children. At the last moment the governor induced Cumming to agree to a clause empowering the President and Senate to increase the annuities \$15,000 more, if the amount fixed in the treaty was deemed insufficient. It contained the usual provision prohibiting intoxicating liquor. The extensive region between the Missouri and Yellowstone was made the common hunting ground of all the tribes. All agreed to maintain peace with each other, including those tribes that were unable to be present, the Crows, Crees, Assiniboinés, and Snakes. The treaty was made obligatory on the Indians from their signing it, and on the United States from its ratification, which occurred the next spring, and it was duly proclaimed by the President on April 25, 1856.

The tribes actually parties to this treaty numbered, by the commissioners' calculation, Blackfeet, 11,500; Nez Percés, 2500; Flathead nation, 2000; total 16,000. Nearly all of their chiefs and principal men attended the council and signed the treaty.

The peace made at this council was observed with gratifying fidelity in the main. The Blackfeet ceased their incessant and bloody raids, and met their former enemies on friendly terms upon the common hunting grounds. Within a few years, in 1862–63, large white settlements sprang up on the headwaters of the Missouri, but they were spared the horrors and sufferings of Indian warfare with so powerful a tribe largely in consequence of this treaty. The council, which Governor Stevens planned and carried out with such foresight, sagacity, and indefatigable exertions during two years, bore fruit at last in the perpetual peace he hoped for and predicted. Few treaties with Indians have been so well observed by them as this by the “bloodthirsty” Blackfeet. They took no part in the great Sioux wars, nor in the outbreak of Joseph. They were afterwards gathered together on a large reservation, including the country about the Sun River, where the governor proposed to establish their farms.

The council ground was a wide, level plain covered with a noble grove of huge cottonwoods. It was on the left bank of the Missouri, nearly opposite but below the mouth of the Judith. This stream was also bordered by broad bottoms, which were covered with large sage-brush, and fairly swarming with deer. The governor's camp was pitched under the lofty cottonwoods, and lower down was the camp of the crew of men who had dragged the boats up the river. They were a hundred strong, mostly Germans, having many fine voices among them, and were fond of spending the evenings in singing. The effect of their grand choruses, pealing forth over the river and resounding among the lofty trees, was magnificent. In the governor's camp an unusually large Indian lodge—a great cone of poles covered with dressed and smoke-stained buffalo skins—was erected and used as an office tent, where the records were copied and smaller conferences held. Every night between eleven and twelve, when the work of the day was concluded, the governor would call in the gentlemen of the party, a few chiefs, and some of the interpreters, and have a real Homeric feast of buffalo ribs, flapjacks with melted sugar, and hot coffee. Whole sides of ribs would be brought in, smoking-hot from the fire, and passed around, and each guest would cut off a rib for himself with his hunting knife, and sit there holding the huge dainty, three feet long, and tearing off the juicy and delicious meat with teeth and knife, principally the former. No description can convey an idea of the hearty zest and relish and enjoyment, or the keen appetites, with which they met at these hospitable repasts, and recounted the varied adventures and experiences of their recent trips, or listened as Craig, Delaware Jim, or Ben Kiser related some thrilling tale of trapper days, or desperate fight with Indian or grizzly bear.



TAT-TU-YE, THE FOX
Chief of the Blood Indians



MEK-YA-PY, RED DYE
Piegan Warrior

The other commissioner did not grace these reunions with his presence. Chafing at the constraint put upon him, and the secondary part which he could not help taking, despite all his pretensions, he kept his quarters on one of the boats, and relieved his mind by refusing to recommend the allowance of the governor's accounts for the extra expenses necessarily incurred by the two months' delay, the result of his own inefficiency; refused to allow Mr. Doty more than five dollars a day for his services as secretary, which pitiful stipend he took pains to call "wages;" and among other grievances complained that Governor Stevens had insinuated that he, Cumming, had shown a disposition to repudiate his own acts done in commission,—all this gravely set forth in official communications addressed to the Secretary, and made part of the record. This was too much for the governor's patience, and he replied:—

"The undersigned has made no such intimation. On the contrary, in his communications to the commission he has demonstrated that Commissioner Cumming had repudiated his own act, and used every exertion to usurp the rights and powers of the commission, and reduce the undersigned to the position of a subordinate. Fortunately for the dignity of the commission and the success of the treaty, this attempt

was most successfully resisted, and Commissioner Cumming was compelled to surrender his claims. Commissioner Stevens has no grievance for which he asks redress from the Department of the Interior. He has protected his own rights here.”

In the joint report forwarding the treaty, prepared like all the official papers by Governor Stevens, he states the disagreements between the commissioners on nearly every point, and adds:—

“So utterly at variance have been their views that it has only been with great difficulty that a concert of action has been effected at all.”

The governor’s last official communication to the secretary of the commission fitly expressed his indignation at the action of the department in naming Cumming first on the commission:—

“The undersigned solemnly protests against the instructions of the Commissioner of Indian Affairs placing the name of Commissioner Cumming first on the commission, and he appeals from said instructions to the President of the United States.

“The undersigned was, in his opinion, entitled to be placed first, and for the following reasons:—

“1. He originated the Blackfoot council, prepared the Indians on both sides of the mountains for it, and, for all practical purposes, has been the superintendent of all these tribes since he explored the country in 1853. He has appointed special agents for the Blackfeet, distributed goods and provisions among them, and in other ways has by authority of the Interior Department had the administrative charge of these tribes.

“2. He was the senior officer by date of priority of commission.

“3. He was better fitted, by experience and adaptation to the duties, to take a prominent part in the negotiations, and he fearlessly refers to the official record to show that the success of the treaty is mainly due to his previous labors, his forecast in bringing the necessary force to the theatre of the principal operations, and to the vigilance, energy, and force of character which he has exhibited throughout, and that thus

was redressed the wrong which otherwise would have been done to the public service, and injury to the reputation and services of the undersigned, by placing his name second on the commission."



**JAMES BIRD DELAWARE JIM
COLONEL ALFRED CUMMING
WILLIAM CRAIG ALEXANDER CULBERTSON
COMMISSIONER CUMMING AND INTERPRETERS**

With this parting shot the governor bade a heartfelt farewell to the pretentious incapable, who had so nearly wrecked the council, and added so

much to his labors and perplexities. Cumming started down the river on one of the boats on the 23d.



CHAPTER XXXIV

CROSSING THE MOUNTAINS IN MIDWINTER.—SURPRISE OF THE CŒUR D'ALENES AND SPOKANES

Having made a good riddance of his troublesome colleague, and seen the Indians depart their several ways with much hand-shaking and many expressions of goodwill and satisfaction, the governor and his little party packed up and started on the 24th, and reached Fort Benton the following day. Two days were spent here preparing for the long return journey across the mountains; for the animals were well worn by the hard express service of the summer, and it was necessary to lighten loads as much as possible. On October 28 the homeward start was made; the party moved over to and up the Teton, continued up that stream the 29th, and went into camp thirty-five miles from the fort.

Supper was just over, and the men were gathering around the camp-fires, for the evening was frosty, when a lone horseman was discerned in the twilight slowly making his way over the plains towards the camp, and soon Pearson rode in, or rather staggered in, for his horse was utterly exhausted, and tottered as it walked. The eager men crowded around, and helped the wiry expressman from the saddle and supported him to a seat, for he was unable to stand, and his emaciated, wild, and haggard appearance bore witness to the hardships he had undergone. He delivered his dispatches, and, after being revived with food and warmth, was able to make his report, and surely one more fraught with astonishment and consternation for that little party on the lonely plains, a thousand miles from home, could not be imagined.

The great tribes of the upper Columbia country, the Cuyuses, Yakimas, Walla Wallas, Umatillas, Palouses, and all the Oregon bands down to the Dalles, the very ones who had signed the treaties at the Walla Walla council and professed such friendship, had all broken out in open war. They had

swept the upper country clean of whites, killing all the settlers and miners found there, and murdered agent Bolon under circumstances of peculiar atrocity. Major Haller, sent into the Yakima country with a hundred regulars and a howitzer, had been defeated and forced to retreat by Kam-i-ah-kan's warriors, with the loss of a third of his force and his cannon. The Indians west of the Cascades had also risen simultaneously, and laid waste the settlements on Puget Sound and in Oregon, showing that a widespread conspiracy prevailed. The Spokanes and Cœur d'Alenes were hostile, or soon would become hostile under the spur and taunts of the young Cuyuse and Yakima warriors sent among them to stir them up, and even some of the Nez Perces were disaffected. A thousand well-armed and brave hostile warriors under Kam-i-ah-kan, Pu-pu-mox-mox, Young Chief, and Five Crows were gathered in the Walla Walla valley, waiting to "wipe out" the party on its return; squads of young braves were visiting the Nez Perces, Spokanes, and Cœur d'Alenes, vaunting their victories, displaying fresh gory scalps, and using every effort to cajole or force them into hostility to the whites.

The daring expressman's story of how he ran the gauntlet of the hostile tribes with the dispatches and information upon which depended the lives of the party heightened the impression made by his wretched appearance and doleful tidings. He left the Dalles on his return trip, fresh and well mounted, and, riding all day and night, reached Billy McKay's ranch on the Umatilla River at daylight, and stopped to get breakfast. The place was deserted. After eating he lassoed a fine powerful horse among a large band grazing near by, and after a hard struggle managed to saddle, bridle, and mount it. The steed was wild, and started off jumping stiff-legged. As Pearson rode from under the trees surrounding the house into the road, he saw a party of Indians racing down the hill into the valley, evidently on his trail, and heard their yells as they caught sight of him,—“Whup si-ah si-ah-poo! Whup si-ah!” “Kill the white man! Kill the white!”—and redoubled their speed in pursuit. His new mount proved of speed and bottom, and under whip and spur gave over his jumping for swift running. As he climbed the hill leading out of the valley on to the high plains and looked back, he again saw the red devils and heard their yells; and for mile after mile, from the top of every ridge and roll of the plains crossed by the trail, he would look back and see his pursuers, or the dust rising under the hoofs of their horses. But they

could not lessen the distance between them; gradually they fell behind farther and farther, and at length were lost to sight. Pearson pushed his horse on all day as rapidly as it could stand without breaking down, and, when night fell, turned off the trail at right angles for several miles, then struck a course parallel to it, traveled all night, crossed the Walla Walla River and valley above the usual ford and crossings, and, having found a secluded depression in the plains beyond, stopped to rest and let his horse feed a couple of hours. Pushing on without further adventure, and exchanging his worn-out steed for a fresh one at Red Wolf's ground, he reached Lapwai the next day. Here he obtained a day's rest.

Thus refreshed, and securing fresh horses and a young Nez Perce brave as guide, he started across the Bitter Root Mountains by the direct Nez Perce trail, the shortest but also the most rugged and elevated route, and at dark made camp high up in the mountains. That night a furious snowstorm set in. A tree fell and crushed his Indian companion. Pearson dragged his insensible body from beneath the tree, and said to himself, "Now the Nez Percés, too, will break out. They never will believe this buck's death was accidental. They will deem me his murderer, and always hunt my scalp after this." But to his great joy the young Indian came to his senses, and proved not to be seriously hurt. The storm raged three days; several feet of snow fell, too deep for horses to travel. When it ceased, Pearson sent the Indian back with the horses, and, packing his dispatches, blankets, and some dried meat on his back, continued across on snowshoes, which he had made during the storm, cutting the bows with his knife, and unraveling his lariat for the webs. The trail was hidden under the snow, but he guided his course largely by the marks of packs against the trees made by Indians who had crossed in winter. Struggling on in this manner for four days, he emerged upon the Bitter Root valley near Fort Owen, almost dead with fatigue and privation. Stopping only a few hours for rest, and procuring a good horse and equipments from the ever friendly Flatheads, he again took the saddle, and on the third day staggered into the governor's camp on the Teton.

The dispatches fully corroborated Pearson's information. Among them were letters from Acting-Governor Mason, Colonel Simmons, Major Tilton, and others, warning the governor on no account to attempt to return home by the direct route across the mountains, and urging him to descend the Missouri and return by way of the Isthmus. He was assured that there were

scarcely any troops in the country, that it was impossible to succor him, and equally impossible for him to get through so many hostile Indians, and that his only way of safety lay down the Missouri River.

Governor Stevens's decision was instant and unwavering. It was to force his way back to his Territory by the direct route through all opposition and obstacles. He fully appreciated the perils and difficulties of the attempt, but his determination was unalterably fixed sternly to confront them all, and by a bold, decided course and rapid movements to force a passage through the hostile country and hostile savages.

Doty was sent back to the fort the next morning for additional arms and ammunition. At noon the following day, October 31, leaving orders for Doty to follow with the train on his return from the fort, the governor, with Delaware Jim and Hugh Robie, his only companions, started for the Bitter Root valley, and reached Fort Owen in four and a half days, a distance of two hundred and thirty miles. Says the governor of this trip:—

“The first night we camped on Sun River, having made a distance of some twenty-nine miles from about noon to sundown. On the 1st of November we were in the saddle at early dawn, pushed towards Cadotte’s Pass, between the Crown Butte and Rattlers, passed by the Bird Tail Rock, crossed the Dearborn, and went into camp four miles before reaching the divide, at a point which was the camp of Lieutenant Grover and Mr. Robie in their winter trip of 1854. This evening a snow came on about an hour before sundown, or we should have crossed the divide that night. The weather in the morning was clear and beautiful, but as we had no tent, we built up a large fire in order to dry ourselves, and got breakfast before leaving camp, and at half past eight we were on the road. There were some six or seven inches of snow on the ground, but the weather was extremely mild, and the snow was rapidly passing away. I went up the divide on the ravine north of the usual trail, and was able to find a very good route for our animals. There was little or no snow on the western slope of the divide; continuing down the Blackfoot valley five and one half miles, the snow was only an inch or two deep, and entirely passed away before we reached Lander’s Fork. We halted on Lander’s Fork for a few minutes to rest our animals; then, moving very rapidly through the Belly prairie and cañon, we came out on the large prairie of the Blackfoot at a little after dark, camping where I had camped with Lieutenant Donelson in 1853. The next day we were in the saddle early, and, moving over this prairie at a very rapid rate, ate breakfast at a point some eighteen miles from our morning’s camp, and made our evening camp within about ten miles of the Hell Gate crossing to Fort Owen. The next day we reached Fort Owen, meeting at the crossing some Indians, by whom I was able to communicate with Dr. Lansdale. On our way to Fort Owen we met a Nez Perce delegation on their way home, and made arrangements to meet them at the crossing of Hell Gate, in order to confer about difficulties ahead. After waiting a day at Fort Owen, I moved down to and established my camp at Hell Gate, to await the arrival of Mr. Doty. Just before reaching the Dearborn River, Delaware Jim shot a deer, but on going up to it they were surprised to find a well-grown fawn lying dead beside it, killed by the same bullet as it stood beside and concealed by its mother.”

Many of the Flatheads came with Dr. Lansdale in response to the governor's summons to confer with him at this camp, and the conference with them and also with the Nez Perce chiefs was most satisfactory. In response to the governor's request to the latter that some of their number would accompany him, the whole delegation, fourteen in number, offered to do so, and declared their willingness to share any danger that might be encountered, and accordingly joined the party. Says the governor:—

“I was here able to gain no additional information of the condition of the Indian tribes between the Cascade Mountains and the Bitter Root, but the reports were that all were in arms except the Nez Percés, a large portion of whom were said to be disaffected, and some of them even hostile. I now purchased every good mule and horse I could get in this valley, for it was my determination to have my whole command in a position so that they could move rapidly and act promptly. The question was, What should be our route home? It was important, it seemed to me, to our success that we should be able to cross the mountains and throw ourselves into the nearest tribes without their having the slightest notice of our coming. I felt a strong assurance that, if I could bring this about, I could handle enough tribes, and conciliate the friendship of enough Indians, to be sufficiently strong to defy the rest. There would certainly be no difficulty from the snow down Clark's Fork; but it was known that the upper and lower Pend Oreille Indians were along the road, and no party could travel over it without its approach being communicated to the Indians; whereas Indian report had it that the Cœur d'Alene Pass was blocked up with snow at this season of the year, and I felt satisfied that they would not expect us on this route, and therefore I determined to move over it. It was the shorter route of the two; it was a route where I wished to make additional examinations; it was a route which enabled me to creep up, as it were, to the first Indian tribe, and then, moving rapidly, to jump upon them without their having time for preparation. I knew that Kam-i-ah-kan and Pu-pu-mox-mox had sent a body of warriors to cut off my party, and that we had to guard against falling into an ambush; but an Indian has not patience to wait many days for such a purpose, and I thought, looking to all these things, that the line of safety was to move over the Cœur d'Alene Pass.”

Mr. Doty arrived with the train on the 11th. At the camp on the Teton occurred the only death that befell the party during the expedition, that of H. Palmer, who died of a lingering and incurable malady, and was laid at rest on the lonely prairie by his warm-hearted and sorrowing companions. Three days more were spent after the arrival of the train in making necessary arrangements with Dr. Lansdale, who was placed in charge of the Flatheads as their agent, with Mr. Owen and the missionaries.



CROSSING THE BITTER ROOTS IN MIDWINTER

Keeping his decision as to the route to himself, the governor allowed the report to become current that he would pursue the way by Pend Oreille Lake, and this was universally believed, because both Indians and mountain men pronounced the Cœur d'Alene impassable from snow so late in the season. Still further to throw any hostile spies or runners, who might be lurking about, off the scent, and prevent their carrying word ahead of him, the governor, on the first day's march, November 14, on reaching the forks, where the trails divided, took that by the Lake route, moved down it two miles, and went into camp.

At earliest daylight the next morning the train was on the march, retraced its steps to the forks, and struck rapidly down the Cœur d'Alene trail a long distance, camping at the governor's camp ground of October 7, 8, two years before. Pushing on by forced marches, the Bitter Root River was crossed on the ice November 17, and the summit of the mountains on the 20th, where, for lack of grass, the half-famished animals had to be tied to trees all night. The snow was from three to six feet deep for a long distance, and would have proved a serious obstacle, had not a large party of Cœur d'Alene Indians crossed a fortnight before and beaten down a passable trail; but ten dead horses lying stiff and stark within a distance of eight miles showed how severely their animals had suffered in the passage.

On this trip the governor adopted the plan of starting at daylight, moving rapidly for the day's march, and encamping early in the afternoon, thinking thus to give the animals the best opportunities for finding grass, now dry and scanty, but their only feed. The precision and rapidity with which the train packed up, started, and moved was astonishing. An hour before daylight the cooks were up and preparing breakfast; half an hour later the mules were driven up and the pack-saddles placed upon them, and the riding animals were also saddled; then breakfast, taking about twenty minutes; then the governor, watch in hand, would give the command to load, and in five minutes from the word every mule would be packed and the train moving out. The governor took great pride in this feat every morning, and the men entered into the spirit of it, strove to outdo themselves at every camp, and made the gain of half a minute in packing and starting the subject of talk and congratulation. The mules, by their perverse and vexatious conduct, arising from their invincible repugnance to water and cold, gave rise to many comical and diverting incidents. Dreading the icy water, they would hold back from plunging into the fords, and would seek a dryer way by going out on the skirt or points of ice which fringed the streams, only to have it give way and drop them into deeper water. They were continually getting off the narrow, beaten path in the snow, and floundering helpless in the fleecy material, and then half a dozen sturdy packers would unsling the packs, seize the unlucky mule by tail and ears, neck-rope and saddle, and haul him back on the trail by main strength.



CŒUR D'ALENE MISSION

The party reached good grass the day after crossing the divide, and rested another day to allow the exhausted animals to fill up and recuperate. On the 23d a long march was made, and the party encamped twenty-six miles from the Cœur d'Alene Mission. From the appearance of everything around, the governor was satisfied that no Indian spies had yet observed his march. He deemed it impracticable to move the train to the mission in one day without breaking down the animals, yet he counted on taking the Indians there by surprise, thus giving them no opportunity to waylay his party if they were hostile, and relying upon his sudden and unexpected appearance to retrieve their wavering friendship, if they were not too far committed to hostility. At daylight the next morning, with Craig, Pearson, and the four Nez Perce chiefs, Looking Glass, Spotted Eagle, Three Feathers, and Captain John, the governor pushed on, leaving directions for the train to follow and come in next day. The evening sun was just sinking behind the mountains when the seven well-armed horsemen dashed up in front of the Cœur d'Alene village, rifles in hand and presented ready to fire, and in peremptory tones demanded of the astonished Indians, as they poured out of their lodges, "Are you friends or enemies? Do you want peace or war?" The governor's orders, impressed upon his followers, were, that at the first hostile act or word they were to fire upon the Indians, disabling as many of them as possible, and then to fall back upon and occupy the solidly built church on

the knoll overlooking the village, and hold this stronghold against all attacks until the main party should arrive the next day.

The Cœur d'Alenes, thus taken by surprise, in response to this formidable summons declared that they were friends and preferred peace, and gathered around with apparently friendly greetings. In fact, however, as became more apparent at the council next day, "they were much excited, on a balance for peace or war, and a chance word might turn them either way," as says the official journal. Some of their young men had joined the hostiles; and the rumor was current that the son of the chief, Stellam, had recently been slain by the whites. The chiefs and elders were inclined to be friendly, and wished to avoid war. On the way to the village the governor charged the four Nez Perce chiefs:—

"When you reach the Cœur d'Alenes, talk to them Blackfoot; tell them about our great council and treaty at Fort Benton; tell them that they can hunt buffalo without being disturbed by their hereditary enemies, the Blackfeet; tell them the lion and the lamb have laid down together; get their minds off their troubles here, and turn them to other subjects in which they take an interest."

The train arrived the next day. A council was held with the Indians, and they were exhorted to continue their friendly attitude, and keep their young men from war. The emissaries of the Yakimas had left the mission only five days before the arrival of the party, having despaired of its crossing the mountains. All sorts of rumors were rife, but nothing certain except that the tribes below were in arms, blocking up the road, and that they had threatened to cut off the party, Pu-pu-mox-mox especially having made his boast that he would take Governor Stevens's scalp. It was learned, however, that four men, who had brought up the goods for the proposed Spokane council, with the unfortunate agent Bolon, were at Antoine Plante's, and that fifteen miners were also at that point, fearing to go below on account of the hostiles, and virtually blockaded by the Spokanes.

Governor Stevens at once determined to proceed to the Spokane to rescue these men, and if possible to restrain the Spokanes from hostilities. He dispatched Craig with all but three of the Nez Perce chiefs to Lapwai, there to confer with Lawyer, assemble the nation, and prepare them for the

governor's arrival. He was also instructed to send an express to the Spokane with information of his success, and the disposition of the Nez Perces. The chiefs retained with the party were Looking Glass, Spotted Eagle, and Three Feathers.

As at Hell Gate, the governor's determination rested in his own breast, and it was currently reported and believed that the party would move directly south along the base of the mountains to the Nez Perce country, the shortest and safest route to the refuge of that friendly tribe. To move away from it and adventure sixty miles farther among the supposedly hostile, and certainly disaffected, Spokanes seemed little short of madness. In the evening some of the men, in discussing the matter, declared that if the governor started for the Spokane, they would not follow him, but would take the Nez Perce trail; but Higgins swore that no man should desert the governor if he started for Hell, and the incipient mutiny went no farther. The next day, November 27, the party marched down the Cœur d'Alene River to Wolf's Lodge, nineteen miles, and, starting at daylight the following morning and making a rapid, forced march of forty miles, reached the Spokane village, just below Antoine Plante's, before sunset.

The last four miles across the prairie was made at a round trot, and within thirty minutes after first sighting the rapidly approaching column, the astonished Indians beheld thirty well-armed men gallop boldly up, range themselves in front of their lodges ready to open fire, and heard the peremptory summons to decide instantly for peace or war. Needless to say that they, too, were friendly and for peace. They were taken completely by surprise, and had no alternative but to choose the olive branch. Only three hours before they had heard that Governor Stevens had gone down the Missouri.

The Indian employees and goods and the miners were safe. They had built a blockhouse, and were on terms of armed truce with the Indians rather than actual hostility. Before midnight Indian messengers were dispatched to Colville and the various camps, summoning the head chief Garry and the other chiefs, the Hudson Bay Company's factor, McDonald, and the Jesuit missionaries to meet the governor in council at Plante's. It is noteworthy that during all these troubles the Hudson Bay Company people and the Catholic missionaries were not molested by the hostile Indians.

The governor now gave his party, augmented by the four rescued employees, a military organization and the name of Stevens Guards, the name being the choice of the men, and appointed as officers C.P. Higgins, captain; W.H. Pearson, first lieutenant; A.H. Robie, second lieutenant; and S.S. Ford, third lieutenant. He also appointed Doty lieutenant-colonel, aide-de-camp, and adjutant, and Tappan captain and quartermaster. The miners were also formed into a military company, and adopted the name of Spokane Invincibles, with Judge B.F. Yantis as captain. The governor ordered guards regularly mounted at night.

A half-breed, who had been captured by Pu-pu-mox-mox and set free by him on condition that he would take a message to the governor to the effect that he, Pu-pu-mox-mox, intended to take the governor's scalp, came and delivered his message.



CHAPTER XXXV

STORMY COUNCIL WITH THE SPOKANES

During the next few days the Indians were gathering for the council. Garry and a party of Cœur d'Alenes came on the 29th, and McDonald with the Colville chiefs, the missionaries, and four white miners on December 2. The council lasted three days, December 3, 4, 5, and was marked by disaffected and at times openly hostile views and expressions and uncertain purposes, on the part of the Indians, and steadfast determination to hold their friendship and restrain them from war, on the part of the governor. The Spokanes openly sympathized with the hostiles. Many of their young braves had joined them. They insisted that no white troops should enter their country, and urged the governor to make peace with the Yakimas, for the rumor was current that the troops had driven them across the Columbia and into the region claimed by the Spokanes. They objected to the whites taking up their land before they had made treaties and sold it, and were much stirred up because a number of Hudson Bay Company ex-employees at Colville had staked out claims, and filed with Judge Yantis the declaratory statements claiming them under the Donation Act. Kam-i-ah-kan's emissaries had imbued them with all kinds of falsehoods concerning the war and its causes, and the purposes of the whites, particularly of Governor Stevens, and what he did and said at the Walla Walla council. They were to be driven by soldiers from their own country, and forced to go on the Nez Perce reservation without any treaty or compensation. They were to be deported west of the Cascades, and shipped across seas to an unknown and dreadful doom. Highly colored but imaginary stories of wrong and outrage inflicted by whites upon Indians were industriously circulated, and equally mythical tales of Indian victories and exploits.

Governor Stevens met their excited and hostile talk with a firm and unruffled front. He appealed to the well-known facts,—to the policy he had uniformly and consistently urged upon them and upon all the tribes since first coming to the country, the policy of peace and friendship with the

whites, and of adopting the civilization of the whites, and which had been proclaimed as from the housetops, and established by treaty at the Walla Walla council, in the presence and hearing of their own head chief, Garry, and others of their number. He showed them how this policy was for their own benefit and protection, and referred to the Blackfoot council, and the peace he had there established, of which the Nez Perce chiefs present could give them full particulars. He declared he was ready to make a treaty with them on the spot, if they desired one, but in the troubled state of affairs would not himself urge it. By this firm and conciliatory treatment he at length brought them to a more reasonable state of mind, and induced them to lay aside all thoughts of war and preserve their friendship with the whites. The results of this remarkable conference are graphically stated in his own words:—

“We remained on the Spokane nine days, and I had there one of the most stormy councils for three days that ever occurred in my whole Indian experience; yet, having gone there with the most earnest desire to prevent their entering into the war, but with a firm determination to tell them plainly and candidly the truth, I succeeded both in convincing them of the facts and in gaining their entire confidence. At this council were all the chiefs and people of the Cœur d’Alenes and of the Spokanes,—the very tribes who defeated Steptoe the past season, the very tribes who have met our troops since in two pitched battles; and I feel that I can without impropriety refer to the success of my labors among these Indians, backed up simply with a little party of twenty-four men. When the council was adjourned, the Indians gave the best test of their friendship by each coming to lay before me his little wrongs, and ask redress. They came in a body, and offered me a force to help me through the hostilities of Walla Walla valley and on the banks of the Columbia, which I declined, saying that I came not among the Spokanes for their aid, but to protect them as their father.”

The Spokanes preserved the friendship thus gained and confirmed, and abstained from all acts of hostility for two years after this council, and until Colonel E.J. Steptoe, against their warning and protest, entered their country with a force of two hundred dragoons. Then they flew to arms, attacked, defeated, and drove him in precipitate retreat eighty miles to the bank of Snake River, where his men were only saved from massacre by the

friendly Nez Perces, who ferried them across the river in their canoes, and boldly interposed between them and the victorious Spokanes.

Soon after reaching the Spokane the governor was led to distrust Looking Glass from his changed demeanor and countenance, and set a faithful half-breed interpreter to keep watch of him. The spy saw him enter Garry's lodge late at night, and, stealing up to and lying prone beside it, overheard the talk between the chiefs, in which Looking Glass disclosed a plot on his part to entrap the governor and his party when they went among the Nez Perces, and compel him to enlarge their reservation to the bounds first proposed by Looking Glass at the Walla Walla council, and to exact such other payments and advantages as amounted to a swingeing ransom. Looking Glass strongly advised Garry to adopt a similar course, and both chiefs seemed bent upon using their advantages to the utmost. On receiving this alarming report the governor instantly, but secretly, dispatched a messenger to Lapwai, informing Craig of the plot, and instructing him how best to forestall and frustrate it by advising with Lawyer, and committing the other chiefs to a firm adherence to the treaty and active support of the governor. Thus forewarned, he was enabled to frustrate the designs of the treacherous chief without his suspecting that they had been discovered.

The following extracts from the speeches show the excited and disaffected mood in which they entered the council. Observe in Garry's second speech his artful advice in aid of his friend Looking Glass's design to enlarge the reservation:—

Garry: "When I heard of the war, I had two hearts, and have had two hearts ever since. The bad heart was a little larger than the good. Now I am thinking that if you do not make peace with the Yakimas, war will come into this country like the waters of the sea. From the time of my first recollection, no blood has ever been on the hands of my people. Now that I am grown up, I am afraid that we may have the blood of the whites on our hands....

"I hope that you will make peace on the other side of the Columbia, and keep the soldiers from coming here. The Americans and the Yakimas are fighting. I think they are both equally guilty. If there were many Frenchmen here, my heart would be like fighting. [Meaning

Canadians, ex-employees of the Hudson Bay Company.] These French people here have talked too much. I went to the Walla Walla council, and when I returned I found that all the Frenchmen had gotten their land written down on a paper. [Alluding to notifications under the Donation Act.] I ask them, Why are you in such a hurry to have writings for your lands now? Why don't you wait until a treaty is made?

“Governor, these troubles are on my mind all the time, and I will not hide them. When I was at the Walla Walla council my mind was divided. When you first commenced to speak, you said the Walla Wallas, Cuyuses, and Umatillas were to move on to the Nez Perce reservation, and the Spokanes were to move there also. Then I thought you spoke bad. Then I thought, when you said that, that you would strike the Indians to the heart. After you had spoken of these nine different things, as schools, and shops, and farms, if you had then asked the chiefs to mark out a piece of land—a pretty large piece—to give you, it would not have struck the Indians so to the heart. Your thought was good. You see far. But the Indians, being dull-headed, cannot see far. Now your children have fallen. They [the Indians] have spilled their blood, because they have not sense enough to understand you. Those who killed Pu-pu-mox-mox's son in California, they were Americans. Why are those Americans alive now? Why are they not hanged? This is what the Indians think, that it will be Indians only who are hanged for murder. Now, governor, here are these young people,—my people. I do not know their minds, but if they will listen to you, I shall be very glad. When you talk to your soldiers and tell them not to cross Snake River into our country, I shall be glad.”

A principal chief of the lower Spokanes said: “Why is the country in difficulty again? That comes on account of the smallpox brought into the country, and is all the time on the Indians' heart. They would keep thinking the whites brought sickness into the country to kill them. That is what has hurt the hearts of the Yakimas. That is what we think has brought about this difficulty between the Indians and the whites. I think, governor, you have talked a little too hard. It is as if you had thrown away all the Indians. I heard you said at the Walla Walla council that we were children, and that our women and children and

cattle should be for you, and then we thought we would never raise camp and move where you wished us to. We had in our hearts that if you tried to move us off we would die on our land.”

Stellam, Cœur d’Alene head chief: “We have not yet made friends. All the Indians are not yet your children. When I heard that war had commenced in the Yakima country, I did not believe they had done well to commence. I wish you would speak and dry the blood on that land now. If you would do that, then I would take you for a friend. You have many soldiers, and I would not like to have them mix among my people.”

Schlat-eal: “Now the Yakimas have crossed the Columbia. I would not like to have the whites cross to this side. If the whites do not cross the river, the Indians will all be pleased. We have not made friendship yet. We have not shaken hands yet. When we see that the soldiers don’t cross the Columbia, we shall believe you take us for your friends. When you stop that difficulty, the fighting now going on, we shall believe you intend to adopt us for your children. Then I will believe that you have taken us for your friends, and will take you for my friend.”

Peter John Colville, chief: “My heart is very poor, very bad. My heart is of all nations. I never hide it. My heart is fearful. There are some who have talked bad. I am always thinking that all would be well. I wish all the whites and Indians to be friendly; but even if my people should take up arms against the Americans, I myself would not. I know we cannot stop the river from running, nor the wind from blowing, and I have heard that you whites are the same. We could not stop you. I only speak to show my heart. I am done.”

Sno-ho-mish, a chief of the lower Spokanes, near the Columbia: “When you went away to the Blackfoot country, and the Yakimas commenced fighting, my heart was broken. Ever since my heart is very small. Ever since I have been thinking, How will the governor speak to us? And yesterday he did speak, and said to the Indians, ‘You must keep peace;’ and I have been thinking what God would say if we should spill blood on our land. I never loved bad Indians, nor war; I

never believed in making war against Americans. I wish they would stop all the whites and Indians from fighting. Now I will stop. I have shown my heart.”

Big Star, Spokane chief: “The reason that I am talking now is that all the Indians did not like what you said at the Walla Walla council. They put all the blame on you for the trouble since. The Indians say you are the cause of the war. My heart is very small towards you. My heart is the same as the others for you. Ever since I heard there was war, I was afraid for you. I am afraid you will be killed. You have not yet made a treaty, and you passed by us, and your people have commenced coming,—the miners,—and they will upset my land. This spring, when my people commenced talking about the ammunition, I said, ‘My children, do not listen to my children who wish to do wrong.’ I said to the Sun chief, ‘What is the reason you are getting into trouble? Your father was good. Now he is killed by the Blackfeet.’ And this summer when the governor passed here, I spoke to him again, and he would not listen. That is why my heart is small,—that young man would not listen. I left home and went to the Nez Percés, and there met Mr. McDonald. After crossing the Columbia River those two young fellows overtook me. I spoke to Mr. McDonald to give me good advice to help my children. He did speak, and I thought he gave me good help. I was glad. We had not yet arrived at the fort when that young man [a young Spokane] rushed on the whites and choked them. After McDonald and myself had talked to them, I thought they would listen. If I had not tried to make them do right, it would not have hurt my feelings so much. Since that, I am crying all the time.”

Quin-quim-moe-so, Spokane chief, living at Eells’s old mission: “When I heard, governor, what you had said at the Walla Walla ground, I thought you had done well. But one thing you said was not right. You alone arranged the Indian’s land. The Indians did not speak. Then you struck the Indians to the heart. You thought they were only Indians. That is why you did it. I am not a big chief, but I will not hide my mind. I will not talk low. I wish you to hear what I am saying. That is the reason, governor; it is all your fault the Indians are at war. It is your fault, because you have said that the Cuyuses and Walla Wallas

will be moved to the Yakima land. They who owned the land did not speak, and yet you divided the land.”

Garry: “When you look at those red men, you think you have more heart, more sense, than these poor Indians. I think the difference between us and you Americans is in the clothing,—the blood and body are the same. Do you think, because your mother was white and theirs black, that you are higher or better? We are black, yet if we cut ourselves the blood will be red, and so with the whites it is the same, though their skin is white. I do not think we are poor because we belong to another nation. If you take those Indians for men, treat them so now. If you talk to the Indians to make a peace, the Indians will do the same to you. You see now the Indians are proud. On account of one of your remarks, some of your people have already fallen to the ground. The Indians are not satisfied with the land you gave them. What commenced the trouble was the murder of Pu-pu-mox-mox’s son and Dr. Whitman, and *now* they find their reservations too small. If all those Indians had marked out their own reservations, the trouble would not have happened. If you could get their reservations made a little larger, they would be pleased. If I had the business to do, I could fix it by giving them a little more land. Talking about land, I am only speaking my mind. What I was saying yesterday about not crossing the soldiers to this side of the Columbia is my business. Those Indians have gone to war, and I don’t know myself how to fix it up. That is your business. Since, governor, the beginning of the world, there has been war. Why cannot you manage to keep peace? Maybe there will be no peace ever. Even if you should hang all the bad people, war would begin again, and would never stop.”

In these speeches can be seen the reflection of the tales spread by the Yakima emissaries. It was afterwards learned that some of the Yakimas had really crossed the Columbia to avoid an expedition into the Yakima valley, under Major Rains with a force of regulars, and Colonel J.W. Nesmith with a detachment of Oregon volunteers, which proved abortive, except in the loss of many of the horses and mules belonging to the regulars, which were run off by the hostile Yakimas.



SPOKANE GARRY
Head Chief of the Spokanes

After the council the Indians were so friendly and well disposed that they readily exchanged their fine, fresh horses for the jaded and tired animals of the party and the Indian goods, which had been brought up for the now deferred treaty, and even sold several rifles, which were used to arm the Spokane Invincibles.

On the afternoon of the 6th, with transportation reduced to twelve days' supplies, packs to eighty pounds, the best train of the season, and the party, with the recent accessions, forty-eight strong, the governor struck out for

the Nez Perce country, "in condition," he says, "that if the Nez Perces were really hostile, and I was not strong enough to fight, I could make a good run!" He moved three miles to the Spokane River, crossed it just above the falls, and encamped on the site of the present city of that name. The march thence to the Clearwater and Lapwai, a distance of one hundred and eight miles, occupied four days, and was made in the midst of a driving and continuous storm of cold rain, sleet, and snow, wetting and chilling every one to the bone. The trail was excessively muddy and slippery, and for half a day's travel the snow was ten inches deep. On the second day an express from Craig brought the cheering news that the Nez Perces were faithful, and the whole tribe ready to support the governor to the death. And on reaching camp the same day two Frenchmen or Canadians were met making their way from Walla Walla to the Spokane, who reported the valley overrun with hostile Indians, the settlers killed or driven below, and their stock swept off by the savages. Fifty miles from the Spokane they struck the same trail passed over in June on the way to the Cœur d'Alene, and pursued it for twenty miles, crossing the Palouse, where an enemy was most likely to be encountered, but no Indians were seen. The Clearwater, or Kooskooskia, was crossed just above the mouth of the Lapwai. The river was barely fordable, with a powerful current and rocky bottom, and two riding horses were swept off their feet into deep water and drowned, making no effort to swim, benumbed in the icy water, and their riders barely escaped a similar fate. Moving seven miles up the Lapwai, Craig's hospitable house, and the end of this severe march, the most comfortless and trying of the whole trip, was reached, and camp gladly made on the 11th.

CHAPTER XXXVI

THE FAITHFUL NEZ PERCES

Although it was now in the midst of winter, and the ground was covered with snow, Lawyer had assembled two hundred and eight lodges, containing over two thousand Indians, and able to muster eight hundred warriors. An animated council was at once held. The council lodge was a hundred feet in length, built of poles, mats, and skins, and in this assembled two hundred chiefs and principal men, Lawyer presiding. An ox had been killed, and young men, who officiated for the occasion, roasted or boiled the meat at fires in the lodge, and handed it around in large pans, from which each person selected such choice pieces as suited his fancy.

The scheme of Looking Glass found no adherent, indeed was not broached, and the unanimous resolve was not only to maintain their friendship to the whites and stand by their treaty, but to escort Governor Stevens with two hundred and fifty of their bravest and best-armed warriors, stark buffalo hunters and Blackfoot fighters every one, and force their way through the masses of hostile Indians gathered in the Walla Walla valley.

Looking Glass, too, was among the first in his professions of friendship. Jealousy of Lawyer, and the hope of increasing his own influence among his people by obtaining great and exceptional advantages for them, were probably the causes of his unworthy plot, rather than actual enmity to the whites.

Said Looking Glass: "I told the governor that the Walla Walla country was blocked up by bad Indians, and that I would go ahead and he behind, and that's my heart now. Now that he says he will go, I will get up and go with him. Now let none of you turn your face from what has been said. Your old men have spoken, and where is the man will turn his back on it?"

Three Feathers: “Why don’t you get up and say you are all going with Governor Stevens? We said before coming here they should go over our dead bodies before coming to him. That is our hearts now.”

And chief after chief spoke in similar vein.

Red Wolf in his speech said: “I was on the Spokane at the council held there by the Indians last summer, when runners sent by Kam-i-ah-kan came there to get all the people to go to war.”

Scotum declared: “The chief Pu-pu-mox-mox sent us word, and so did the Cuyuses; they sent us word many times, but we have always turned our faces from them and kept the laws.”

Here was evidence that the treacherous chiefs were inciting hostilities immediately after signing the treaties.

At this juncture an Indian runner was announced from the Walla Walla valley with the important news that a force of five hundred Oregon volunteers, under Colonel Kelly (late United States senator), after a severe battle of four days’ duration, had defeated the hostiles, and driven them from the valley. The absence of the Palouse Indians during the forced march through their country was now explained. They were fighting the volunteers at that very time. The way being thus opened, Governor Stevens was enabled to dispense with the proffered aid of the Nez Perces; but in order to confirm their fidelity and good feeling, he invited a hundred warriors to accompany his party as a guard of honor as far as the Walla Walla valley.

It was a clear, bright, frosty December morning that the mingled cavalcade of white and Indian left behind the hospitable lodges of the Nez Perces, and filed along the banks of the Lapwai and Kooskooskia. Rarely has the Clearwater reflected a more picturesque or jovial crew. Here were the gentlemen of the party, with their black felt hats and heavy cloth overcoats; rough-clad miners and packers; the mountain men, with buckskin shirts and leggings and fur caps; the long-eared pack-mules, with their bulky loads; and the blanketed young braves, with painted visage, and hair adorned with eagle feathers, mounted on sleek and spirited mustangs, and dashing hither and thither in the greatest excitement and glee. Each of the warriors had three fine, spirited horses, which he rode in turn as the fancy moved him.

They used buckskin pads, or wooden saddles covered with buffalo, bear, or mountain-goat skin. The bridle was a simple line of buffalo hair tied around the lower jaw of the steed, which yielded implicit obedience to this scanty headgear. At a halt the long end of the line is flung loosely on the ground, and the horse is trained to stand without other fastening.

The whole party were ferried across Snake River by the Indians in their canoes, the animals swimming. Proceeding down the left bank some distance as the trail to Walla Walla ran, it was found that the Nez Perces had wholly vacated that side of the river, and removed with their bands of horses, goods, and lodges, and especially their canoes, to the other side, in order to cut off intercourse with the hostile Indians. The demeanor of the young braves on this march was in marked contrast to the traditional gravity and stoicism of their race. They shouted, laughed, told stories, cracked jokes, and gave free vent to their native gayety and high spirits. Craig, who accompanied the party, translated these good things as they occurred, to the great amusement of the whites. Crossing a wide, flat plain, covered with tall rye grass, he related an anecdote of Lawyer, with the reminiscence of which the young braves seemed particularly tickled. When yet an obscure young warrior, Lawyer was traveling over this ground with a party of the tribe, including several of the principal chiefs. It was a cold winter day, and a biting gale swept up the river, penetrating their clothing and chilling them to the bone. The chiefs sat down in the shelter of the tall rye grass, and were indulging in a cosy smoke, when Lawyer fired the prairie far to windward, and in an instant the fiery element, in a long, crackling, blazing line, came sweeping down on the wings of the wind upon the comfort-taking chiefs, and drove them to rush helter-skelter into the river for safety, dropping robes, pipes, and everything that might impede their flight. For this audacious prank Lawyer barely escaped a public whipping.

At the governor's request, the Indians undertook to guard the horses while the whites guarded the camp at night, and as the country was still infested with bands of hostiles, who had burned off nearly all the grass, and the animals were with difficulty prevented from straying far and wide in search of feed, it will be readily seen that they had chosen the more arduous task. Every evening, as the young men would linger around the camp-fires, reluctant to start out upon the cold and dreary night work, one or more of the chiefs would exhort them to their duty, bemoan the degeneracy of the

present race, and relate instances of the superior bravery and fortitude of young men in former times. The young fellows were not slow to retort to these harangues with many a sarcastic gibe and jest, but finally they would go forth to spend the cold winter night upon the exposed prairie on horseback, posted around the band of animals. So faithfully did they perform this duty that not one was lost during the march.

It was a gala day for the Nez Perces when the party reached the valley, and were received by the Oregon volunteers with a military parade and a salute of musketry; and when Governor Stevens dismissed them with presents and thanks and words of encouragement, they returned home the most devoted and enthusiastic auxiliaries that ever marched in behalf of the whites.

On this march the Nez Perce escort captured a strange Indian on Al-pa-wha Creek, who proved to be the son of Ume-how-lish, the war chief of the Cuyuses, and who said that the chief, with one follower and a number of women, was in hiding farther up the creek, having fled from the valley the last day of the recent fight. The governor sent the young man to his father with the summons to surrender himself a prisoner. The next day Ume-how-lish delivered himself up, saying that he had done nothing bad, and was not afraid to be tried by the white man's law, and thereafter traveled along with the party to his uncertain fate with true Indian stoicism. He accompanied the governor to the Dalles, where he was turned over to the Oregon authorities. He was afterwards released by Colonel Wright. There was no evidence that he had taken part in the murder of settlers, although he had undoubtedly fought in the recent battle.

The valley was reached on the 20th. Major Chinn, commanding the volunteers, and other officers rode out to meet the governor, and, on reaching the volunteer camp, the troops, four hundred in number, paraded, and fired a volley in salute as the picturesque column marched past, the fifty sturdy, travel-stained whites in advance, followed by the hundred proud and flaunting braves, curveting their horses and uttering their war-whoops. The volunteers then formed in hollow square, and the governor addressed them in a brief speech, complimenting them on their energy in pushing forward at that inclement season, and gallantry in engaging and routing a superior force of the enemy, and tendering the thanks of his party for opening the road. He seized the occasion also to dwell upon the

advantages—the necessity—of a winter campaign to bring the war to a speedy end. The governor was the first to grasp this idea of a winter campaign as the most effective method of reducing hostile Indians to subjection. As will be seen hereafter, he urged this course upon General Wool and the military authorities, but only to have his views denounced and ridiculed as “impracticable;” but finally, under the stern lessons of experience, they had to be adopted. It was only by winter campaigns that General Crook succeeded in subduing the Snakes of Idaho and eastern Oregon in 1868–69.

Over a hundred of the Cuyuses and Walla Wallas refused to join their kindred in the war, and remained friendly, including Steachus, Tin-tim-meet-see, and How-lish-wam-poo, and were now encamped on Mill Creek under the protection of a guard, needed unhappily not less against a few of the unruly volunteers, who had already killed some of their cattle, than against apprehended raids by the hostiles. The little flock of Indians under the ministrations of Father Chirouse of the Catholic mission also remained friendly, thanks to the good influence of the Fathers.



UME-HOW-LISH
War Chief of the Cuyuses

Colonel Frank Shaw was found with the volunteers, and from him and the Oregon officers the governor learned the latest news and the condition of affairs. The fight had been a severe one. The Indians resisted stoutly for four days, and only gave way at last because they mistook a large pack-train, seen descending into the valley, for reinforcements to the whites. Pu-pu-mox-mox had been captured, and slain attempting to escape. General Wool had arrived at Vancouver, but had refused to take active measures against the enemy, assuming that the Indians were not at fault, but that the

war had been gotten up by white speculators. He had even disbanded two companies of Washington volunteers at Vancouver after they had been actually mustered into the United States service. And a company that had been raised under the direction of Shaw, for the express purpose of going to the assistance of the governor, was dismissed by Wool in spite of the remonstrances of its officers and of Major Rains.

The first act of the governor after grasping the situation was to indite a letter to Wool announcing his safe return, and suggesting the energetic and aggressive military measures by which the outbreak could be speedily quelled.

Some of the fruits of the delay in holding the Blackfoot council, caused by the mulish and incapable Cumming, were now apparent. Had it been held early in August, as it might and should have been, the governor would have gotten back early in September, in time to cope with the first outbreak, to infuse the military authorities with a little of his own sound judgment and energy, to induce harmony and concert of action between the regular and volunteer forces, possibly to remove even Wool's prejudiced and utterly wrong views, certainly in time to prevent the volunteers of his own territory from being paralyzed in action, and rendered worse than useless. But he was delayed, and in his absence bitter prejudice and divided councils ruled the hour, and the war, which should have been brought to an end in a single season by a few quick, strong blows, was suffered to drag on for years.

After the reception by the volunteers the train moved up the Walla Walla to a point opposite the mission and went into camp, where it remained the next three days. The weather grew intensely cold, the glass ranging 27° below zero; nevertheless, the governor kept the officers at work gathering information concerning trails, crossings of rivers, etc., with a view to military operations, and had a conference with Major Chinn as to pushing against the Indians beyond Snake River; but it appeared that the lack of rations and transportation rendered an advance impracticable, and of course no move could be made while the severe weather continued. On the 24th the camp was moved four miles farther upstream to a more sheltered spot, with plenty of wood, and where there was a deserted house, which the governor and the officers occupied. The cold weather continued unabated for fourteen days. The men had all they could do to keep the fires going and

avoid freezing, and many of the horses in the volunteer camp were frozen to death. Although the ground was covered with snow, the animals found grass enough projecting above it, or by pawing it off, to avoid starvation. Herds of cattle, abandoned by the Indians in their flight, grazed within sight of camp, and were driven in and slaughtered as needed, and great flocks of prairie-chickens roosted in the trees about camp, so there was no lack of food.

On the 29th the governor dismissed the Nez Perce escort, who were to return home under Craig as soon as the cold abated, thanking them for their fidelity and services, and charging them to stay on their own side of Snake River, and shun intercourse with the hostiles. The friendly Cuyuse, Steachus, attended this conference, very desirous of joining the Nez Perces and moving into their country, and asking permission to do so. "I am really afraid of those whites, those volunteers," said he. The Nez Perce chiefs strongly supported him in his request. Said Spotted Eagle: "I am glad to hear those Indians ask to go with us. It looks as if they wished to live and do right when they talk of joining the Nez Perces." But the governor, after considering the matter for a day, denied the request, for the reason that he feared that the disaffected and hostile kindred of these friendly Cuyuses would be constantly visiting them, and would exert a bad influence upon the Nez Perces, whom he wished to keep entirely aloof from the hostiles.

On the last day of the year, the cold weather continuing with unmitigated severity, the governor decided to hasten below in advance of the train, deeming his presence imperatively required within the settlements on Puget Sound, and issued general orders directing Colonel Doty to move the train to the Dalles as soon as the weather permitted, and there muster out the Stevens Guards and Spokane Invincibles, constituting the Walla Walla Battalion, appointing Craig lieutenant and aide-de-camp, and instructing him as to marching home and disbanding the Nez Perce allies, and taking measures for protecting that tribe against hostile raids or attempts, and assigning Colonel Shaw of the territorial militia to take charge of matters in the valley, organize the settlers and friendly Indians as a military force, to act as their own guards at least, and appointing Sidney S. Ford and Green McCafferty captain and lieutenant of volunteers respectively as his assistants, and finally returning thanks to the battalion

“for the alacrity with which they have obeyed his orders and discharged their duty, for their constancy and manliness in the rapid movement which they made from the Spokane to this valley in bad weather and in an inclement season, a movement begun and half accomplished with the certain knowledge that a large force of hostile Indians were to be met in this valley, and no expectation that aid was near at hand and would be extended in season.

“But aid was at hand, and the commander-in-chief would do injustice to his own feelings, and those of the men of his immediate command, if in the general order he did not acknowledge the services of the gallant volunteers of Oregon, who successfully met in arms in this valley the combined forces of the hostile Indians at the time he was moving from the Spokane to the Nez Perce country.”

On New Year's Day, 1856, Governor Stevens started for the Dalles, accompanied only by his son, Pearson, Robie, the Nez Perce chief, Captain John, and the captive Ume-how-lish, and reached that point in three days and a half. The intense cold continued unabated. Every morning the little party saddled in the darkness and started at daylight without breakfast, pushed their horses at a speed of ten miles an hour for about six hours, making about sixty miles, and made camp early in the afternoon, giving the horses several hours to graze before dark, and themselves plenty of time to gather wood, build up a rousing fire, and cook and eat a tremendous meal, breakfast, dinner, and supper in one; then early to bed, sound slumbers, and off again at daylight. All the streams were crossed on the ice until the Des Chutes River was reached. Here was found a great gorge of broken ice twenty feet deep, through the centre of which the rapid and powerful stream had torn its way, a hundred yards wide, bordered by perpendicular walls of ice. Carefully leading their horses over the broken ice masses, they reached the usual fording-place, only to find the dark, swirling river sweeping past twenty feet below them at the foot of this perpendicular and impassable icy cliff, while a similar obstacle stared at them from the other side of the river, and barred exit from the stream even should its passage be accomplished. But, nothing daunted, all set to work with stakes and knives, and at length broke down a barely passable path to the ford. Captain John now led the way across, the water coming to the saddle-skirts; a practicable passage out was found, and all felt much relieved as they again spurred on.

Resting one day at the Dalles, and accompanied only by his son and a guide, the governor continued his journey by the trail down the Oregon side of the Columbia. It was a little-used track, barely passable, or indeed visible, in many places, jammed between the river and the foot of the great mountain masses and precipices which overhang that mighty and sublime gorge. Although the severe cold had abated, considerable snow had fallen, greatly increasing the dangers of the way; but he reached the lower Cascades without mishap, and crossed to the Washington side late in the evening of the second day, spending the intermediate night at Hood River, at the house of Mr. Coe. The next day he continued by land, passing in rear of Cape Horn, and reached a landing on the Columbia, six miles above Vancouver, soon after dark. Here a ship's long-boat, a stout, staunch craft, with a good sail, was obtained, with a crew of three sturdy fellows. On getting well out in the river away from land, a terrific gale came tearing downstream, struck the boat, and drove her on at great speed. The sail was quickly reefed, but the little craft careened to the gunwale; the waves broke over her; only incessant bailing kept her afloat. The dark night, the tumultuous waves, the howling gale, the open boat tearing along with the helmsman braced against the tiller, the bailer dipping the water overboard with furious haste, and the rest of the party clinging to the upper rail with clenched grasp and tense faces, can never be forgotten by one who witnessed the scene. Vancouver was reached in twenty-six minutes from starting, and all landed with a strong feeling of relief at having escaped a watery grave.

The governor again endeavored to communicate with General Wool, and hastened to Portland to see him, but he had left on the steamer for San Francisco only the day before.

The journey up the Cowlitz in canoe and across the muddy road to Olympia was made in three days, without special incident to vary the monotony of toil and discomfort ever attending it at that season, and on January 19, after an absence of nearly nine months, the governor reached Olympia, and found himself once more at home with his family.

During the governor's absence Mrs. Stevens, with her little girls and the nurse Ellen, spent several weeks on Whitby Island, at the home of a family named Crockett, in hopes that the stronger sea air of that locality would

overcome the Panama fever, from which they were still suffering. The Crocketts were hearty and kindly Kentucky farmer folks of the best type, and received the sick lady and her children with warm-hearted hospitality and kindness. Mrs. Stevens with the children used frequently to bathe in the Sound, and on one occasion, as they were in the water, a band of northern Indians was observed approaching in their great war-canoes at rapid speed. Mr. Crockett hastened to the beach in great apprehension and hurried the bathers to the house, declaring that the predatory savages would be sure to seize and carry them off, if they were given an opportunity. Under the invigorating open-air life on the island and the excellent fare, with abundance of venison and other game, the family rapidly regained health, and after their visit returned in canoes to Olympia.

Mrs. Stevens afterward visited the military post at Steilacoom, and the wives of the officers there visited her in Olympia, and it was at her house that Mrs. Slaughter received news of the death of her husband, Lieutenant W.A. Slaughter, who was killed by the Indians, December 5. Several times, after the war broke out, circumstantial and apparently trustworthy reports were brought of the massacre of the governor and his party by the Indians, all of which Mrs. Stevens utterly disbelieved. She scouted even more decidedly the idea that he would return by way of the Missouri and Isthmus of Panama, which his friends were so strongly urging him to do, and declared to them that he would certainly come back by the direct route, no matter what obstacles might intervene.

CHAPTER XXXVII

PROSTRATION.—THE RESCUE

When Governor Stevens, after his midwinter forced march across the mountains, reached Olympia, he found the whole country utterly prostrated, overwhelmed. The settlers in dismay had abandoned their farms and fled for refuge to the few small villages. They were all poor, having no reserves of money, food, or supplies, and starvation stared them in the face if prevented from planting and raising a crop. The only military post on Puget Sound, Fort Steilacoom, could muster less than a hundred soldiers, and was so far from protecting the settlers that it had called for and received the reinforcement of a company of volunteers for its own protection. The post at Vancouver was also but a handful in strength, and had also been reinforced by two companies of volunteers. But even this pitiful force was not to be used against the savage enemy; for Wool had just gone back to San Francisco after a flying visit to the Columbia River, during which he had disbanded the volunteer companies, refused to take any active measures to protect the people, and loudly proclaimed, both in official reports and through the press, that the war had been forced upon the Indians by the greed and brutality of the whites, and that the former would be peaceful if only let alone and not treated with injustice.

There was a deficiency of arms, and still more of ammunition, in the country. Six weeks were required to send a letter to Washington City, and three months before an answer to the most urgent demand or entreaty could be received. It was no wonder that the pioneers were universally discouraged, and that nothing kept many of them from abandoning the country but their absolute inability to get away.^[10]

A brief review of the outbreak and course of the war will make clearer the situation at this juncture.

Scarcely was the ink dry upon his signature to the Walla Walla treaty, when Kam-i-ah-kan, the leading and most potent spirit, and his Yakimas were

hard at work inciting an outbreak against the whites. They with the Cuyuse and Walla Walla chiefs assembled the disaffected Indians, and many of the others, at a council north of Snake River in the summer, and made every effort to gain over the Spokanes, Cœur d'Alenes, and even some of the Nez Perces, who had intermarried with the Cuyuses, and not without success among the young braves. Their emissaries stirred up the tribes on the eastern shore of the Sound, too, the Nisquallies, Puyallups, and Duwhamish, who had intermarried to some extent with the Yakimas, and penetrated even to Gray's Harbor and Shoalwater Bay on the coast, and to southern Oregon. Every falsehood that Indian ingenuity could invent, or credulity swallow, was employed to fire the Indian heart. The conspiracy was in full train, but not yet ripe, when the outbreak was prematurely begun by the murder of the miners in the Yakima valley in September, by Kam-i-ah-kan's warriors, who could no longer be held back; and when agent Bolon visited the tribe to investigate the matter, he was treacherously shot in the back, seized and his throat cut, and with his horse burned to ashes, September 23. Qualchen, the son of Ou-hi and nephew of Kam-i-ah-kan, was the chief actor in this tragedy. Major Haller marched with a hundred men from the Dalles into the Yakima valley to demand the surrender of or to punish the murderers; and Lieutenant W.A. Slaughter, with a small force of forty men, moved from Steilacoom across the Nahchess Pass to the Yakima to coöperate with Haller. But the Yakimas attacked the latter October 6, and compelled him to retreat with the loss of twenty-two killed and wounded, his howitzer, and baggage. Pu-pu-mox-mox then seized and plundered old Fort Walla Walla, which had no garrison, and distributed the goods found there, including a considerable supply of Indian goods, among his followers, who danced the war-dance in front of his lodge around a fresh white scalp. These Indians, with the Cuyuses and Umatillas, then drove the settlers out of the Walla Walla valley, destroyed their houses and improvements, and killed or ran off the stock. Lieutenant Slaughter, after crossing the summit of the Cascades, being unable to learn anything of Haller, hastily but wisely fell back to the western side. Here Captain M. Maloney joined him with seventy regulars and a company of volunteers, under Captain Gilmore Hays, and again advanced across the mountains, but in turn retreated, fearing to leave the settlements on Puget Sound wholly unprotected; but his messengers were waylaid and slain by the Sound Indians, and the settlers on White or Duwhamish River, near Seattle, were

massacred with unspeakable atrocity, the bodies of the women and children being thrown into the wells. These settlers had taken refuge in Seattle, but were induced to go back to their farms by the friendly professions and assurances of the very savages who fell upon and butchered them the night after their return. And settlers on the Nisqually and at other points met a similar fate.

At Major Rains's request, Acting-Governor Mason called out two companies of volunteers, which were mustered into the United States service, one being used to reinforce Fort Steilacoom, and one the Vancouver post. A company was also raised at Vancouver for the express purpose of going to the assistance of Governor Stevens, in case he attempted to force his way through the hostiles.

In November an engagement took place on White River, in which some loss was inflicted upon the Indians, but they soon reappeared in undiminished strength, surrounded the troops at night, and captured a number of baggage animals, and on December 5 killed Lieutenant Slaughter and two men, and wounded six others. Several more companies of volunteers were raised for home defense, and efforts were made to separate the friendly Indians from the hostiles. Acting-Governor Mason did all that was possible to meet the crisis, and he was ably seconded by Major Tilton, whom he appointed adjutant-general, and by Colonel Simmons, but the storm was too great for their efforts. Moreover, they depended upon the regular officers to conduct the war, which made Wool's action doubly paralyzing.

The whole region about the Sound, with the exception of the prairies scattered about the head of it, was covered with the primeval evergreen forest and a dense and tangled undergrowth, so thick and matted, and obstructed by immense fallen giants and downfalls of every kind, that the most energetic hunter or woodsman could traverse through it only five or six miles a day. There were also numerous river-bottoms and swamps, even more impenetrable. Only seventy miles back to the eastward stretched north and south the great Cascade Range, affording innumerable safe and hidden retreats; and many trails across it, well known to the Indians, but unknown to the whites, gave access to the Yakima emissaries and reinforcements to join the hostiles on the Sound, and furnished the latter the ready means of retreat to the Yakima country when hard pressed. In the dense forests and

swamps the savages lurked at the very doors of the settlements, and no man ventured out, for fear of ambush by the wily and omnipresent foe.

After Haller's defeat Major G.J. Rains led an expedition from the Dalles to the Yakima valley with three hundred and fifty regulars and two companies of Washington volunteers, under Captains William Strong and Robert Newell, and was supported by four companies of Oregon volunteers, under Colonel J.W. Nesmith. He reached the Catholic mission on the Ah-tah-nam branch of the Yakima, which was found deserted, and destroyed it, and then returned to the Dalles, having accomplished nothing except the breaking down of his animals. The Yakimas, avoiding battle with so large a force, managed to run off fifty-four of his mules and horses, and immediately their young braves rode post-haste to the neighboring tribes, proclaiming victory over the troops, and proudly showing the captured animals with the United States brand on their shoulders in proof of their success.

Another force of about five hundred Oregon volunteers, under Colonel James K. Kelly, marched to the Walla Walla valley and defeated the hostiles there congregated, which opened the road to Governor Stevens, as already related. But the Indians, although punished, simply fled across Snake River, and were free to continue their efforts to stir up the friendly tribes, for the volunteers, from lack of supplies and transportation, were unable to pursue them.

The Oregon volunteers were not mustered into the United States service, because both they and Governor Curry were anxious to strike the Indians, and justly feared that if placed under the orders of regular officers, they would be held back or placed in garrison.

In December General Wool came up from San Francisco to Vancouver, mustered out the Washington volunteers, placed the regulars at the Dalles, Vancouver, and Steilacoom strictly on the defensive, and denounced in unmeasured terms the brave Oregon volunteers, who had struck the only real blow inflicted upon the enemy. He disbanded even the company specially raised for Governor Stevens's relief, notwithstanding the remonstrances of its captain, of Major Rains, and of his own aide-de-camp, Lieutenant Richard Arnold.

Thus, at the beginning of the year 1856, the Indians of the upper country held the whole region, except the point occupied in the Walla Walla valley by the Oregon volunteers; the Yakimas were more hostile, active, and triumphant than ever; the Cuyuses, Walla Wallas, and Umatillas were made more embittered and defiant by the punishment they had received; and all were free to instigate more hostility among the other tribes, which they were industriously doing. The regulars were on the defensive by Wool's orders, while the volunteers in the valley were unable to take the aggressive for lack of supplies.

West of the Cascades the Indians infested and held the whole country except a few points. The whites were virtually in a state of siege, deserted and maligned by a veteran officer, whose duty it was to protect them; not knowing where to find succor, or even food, completely discouraged and dismayed. The great majority of Indians on the Sound had not yet taken to the war-path, although much disaffected. Even among the most hostile, the Nisquallies, Puyallups, and Duwhamish, it is doubtful if a majority of any tribe took active part in the outbreak; but the war faction comprised the chiefs and the vigorous young warriors, and they were constantly stimulated and encouraged, and at times largely reinforced, by their Yakima kinsmen. The hostile warriors on the Sound probably varied in numbers from two hundred and fifty to five hundred, but the swamps and forests, with their knowledge of the country, gave them every advantage. The great danger was that the other Indians, already disaffected, and many of whose restless young braves were aiding the hostiles to an extent which cannot be certainly determined, would openly join in the outbreak, and this danger was aggravated by every day's delay on the part of the whites in attacking and striking the enemy. A defensive policy was sure to throw the whole Indian population into the arms of the hostiles. An additional and imminent danger was found in the northern Indians, gangs of whom were prowling about the Sound, ever ripe for murder and plunder.

The first day after his arrival Governor Stevens delivered in person and orally a special message to the legislature, then in session. He pointed out how the Donation Act and the advent of settlers had made it absolutely necessary to treat with the Indian tribes and extinguish their title to the soil. He showed how this had been accomplished by the treaties he had made,

and described the care taken to deal with the Indians justly and understandingly, especially at the Walla Walla council:—

“The greatest care was taken to explain the treaties, and the objects of them, and to secure the most faithful interpreters. Three interpreters were provided for each language. The record of that council was made up by intelligent and dispassionate men, and the speeches of all there made are recorded verbatim. The dignity, humanity, and justice of the national government are there signally exhibited, and none of the actors therein need fear the criticism of an intelligent community, nor the supervision of intelligent superiors. By these treaties, had the Indians been faithful to them, the question as to whether the Indian tribes of this Territory can become civilized and Christianized would have been determined practically. The written record will show that the authorities and the people of this Territory have nothing to blush for, nothing to fear in the judgment of impartial men now living, nor the rebuke of posterity. It was a pleasant feeling that actuated me, on my mission in making these treaties, to think I was doing something to civilize and to render the condition of the Indian happier....

“The war has been plotting for two or three years,—a war entered into by these Indians without a cause; a war having not its origin in these treaties, nor in the bad conduct of the whites. It originated in the native intelligence of restless Indians, who, foreseeing destiny against them,—that the white man was moving upon them,—determined that it must be met and resisted by arms. We may sympathize with such a manly feeling, but in view of it we have high duties.

“The war must be vigorously prosecuted now. Seedtime is coming, and the farmer should be at his plough in the field. In my judgment, it would be expedient forthwith to raise a force of three hundred men from the Sound to push into the Indian country, build a depot, and vigorously operate against the Indians in this quarter, and nearly the same force should be raised on the Columbia River to prosecute the war east of the Cascade Mountains. It would prevent reinforcements from either side joining the bands of the other side, and would effectually crush both. But what is more important would be the influence upon the numerous tribes not yet broken out into hostility.

There is a surprising feeling of uneasiness among all the tribes who have not broken out, except alone the Nez Percés. These tribes may be led into war, if delay attends our operations. The Indians must be struck now. But if we delay, in a few months the roots and fish will abound, supplying the Indians with food; the snows will melt; and the mountain passes will allow them hiding-places. It is my opinion that if operations are deferred till summer, they must be deferred till winter again.

“What effect would it have on the Sound should nothing be done until May or June? The whole industrial community would be ruined, the Sound paralyzed; the husbandman would be kept in a state of suspense by rumors of wars, and could not adhere to his pursuits; fields would not be tilled; and the Territory would starve out.”

While approving as a general rule the mustering into the United States service of volunteers, and disclaiming any impugning of Wool’s motives, he advised against mustering them into that service, in consequence of that officer’s “disbanding troops in violation of a positive understanding,” and boldly declared:—

“I am ready to take the responsibility of raising them independent of that service, and it is due to the Territory and myself that the reasons for assuming it should go to the President and the department at Washington.

“The spirit of prosecuting this war should be to accomplish a lasting peace,—not to make treaties, but to punish their violation. While justice and mercy should characterize the acts of our government, there should be no weakness, no imbecility. The tribes now at war must submit unconditionally to the justice, mercy, and leniency of our government. The guilty ones should suffer, and the remainder be placed on reservations under the eye of the military. By such a decisive, energetic, and firm course the difficulty may be grappled with, and peace restored.

“Let not our hearts be discouraged. I have an abiding confidence in the future destiny of our Territory. Gloom must give way to sunlight. Let us never lose sight of the resources, capacities, and natural advantages

of the Territory of Washington. Gather heart, then, fellow citizens. Do not now talk of leaving us in our hour of adversity, but stay till the shade of gloom is lifted, and await that destiny to be fulfilled. Let us all put hands together and rescue the Territory from its present difficulties, so that we may all feel that we have done our whole duty in the present exigency.”

To this manly and clear-sighted appeal the legislature made haste to respond with the alacrity and heartfelt sense of relief, and renewal of hope and courage, with which men in the extremity of danger ever turn to a natural leader, and, so far as lay in its power, gave him unlimited authority to take measures necessary to save the settlements from extinction.

Forthwith Governor Stevens adopted and put in force, with all the energy of his determined and vigorous nature, the following measures:—

1. He called upon the people by proclamation, dated January 22, to raise a thousand volunteers for six months for offensive operations against the enemy, wherever they might be ordered. He refused to enlist any troops for local or home defense or short terms, and summarily disbanded all the companies which were under arms, they having been raised for such restricted service.
2. He called upon the settlers, wherever three or four families could join together, to return to their abandoned farms, build blockhouses, and hold and cultivate the soil.
3. He required all Indians on the eastern side of the Sound to move to, and remain upon, reservations selected on islands, or on points on the western shore, under the care and oversight of agents, there to be fed and protected by the government while the war lasted. Any Indian found on the eastern side without permission of his agent was to be deemed hostile.
4. He sent Secretary Mason to Washington to lay the pressing need of funds to meet the expenses of feeding and caring for the non-hostile Indians before the government, and to enlighten it as to the war and general situation.
5. He made effective use of the friendly Indians in scouting operations against the hostiles, hunting them down in their retreats, and confirming the

fidelity of the doubtful tribes.

6. He sent agents to Portland, San Francisco, and Victoria, B.C., with urgent appeals for arms, ammunition, and supplies, and published his appeal in the San Francisco papers.

7. He issued territorial scrip, or certificates of indebtedness, to defray the pay of volunteers and cost of munitions and supplies.

8. He freely resorted to impressment or seizure of supplies, teams, etc., whenever necessary.

9. He appealed to the patriotism and good feeling of the volunteers, but enforced discipline, and punished misconduct by summary and dishonorable dismissal of the guilty from the service.

It is only by bearing in mind the facts that the entire white population numbered only four thousand souls, of whom the males fit to bear arms barely equaled the number of volunteers called for; that they were destitute of arms, ammunition, supplies, money, and credit; discouraged and wholly on the defensive; denied protection by the regular troops, who indeed were too few to afford it; and all hope of support and sympathy from the government, or from outside, blasted by the denunciations of Wool,—that one can really appreciate the courage and self-reliance of Governor Stevens in undertaking the task before him. The ability and self-devotion with which he successfully accomplished it, and the remarkable spirit and patriotism of the people, who sustained their leader, and loyally and patiently submitted to these stringent measures, furnish one of the brightest pages in the history of the Republic.

The day after delivering his message, the second after arriving home, the governor hastened down the Sound to inspect the reservations and agents, and perfect measures to enforce the removal of the Indians from the theatre of war. He visited every point of importance on the eastern side, informed himself thoroughly of the needs and conditions at each, and returned to Olympia on the 28th. On this trip he secured the aid of Pat-ka-nim, head chief of the Snohomish, and a force of his warriors, the first Indian auxiliaries to take the field.

The Indians attacked Seattle on January 26 in force, destroyed the larger part of the town, driving the whites to one corner of it, and were only repulsed in the end by the fire of the United States man-of-war Decatur, Captain G. Gansevoort.

The people responded instantly to the governor's manly appeal, with true American spirit and patriotism. They made haste to enlist *en masse* in the volunteer companies, eager to be led against the savage foe. The refugee settlers banded together in small squads, returned to the country, erected blockhouses at or near their farms, and held them with old men and boys. The merchants of San Francisco refused to be misled by the libels of Wool, and furnished supplies and munitions. Inside of three weeks eleven companies were raised, equipped, and taking the field, besides two bodies of Indian auxiliaries.

A regular and efficient express service was organized throughout the Territory. An assistant quartermaster and commissary, the two usual supply departments being united, was stationed in each town and principal settlement on purpose to collect provisions, transportation, etc., as well as to provide for the troops. By these skillful measures the governor so successfully overcame the two great difficulties attending the prosecution of the war, viz., the vast extent of the region and the lack of supplies, that the volunteers never had to wait for orders, nor were they ever put to unnecessary or fruitless marches or labors; and during all their campaigns on both sides of the Cascade Mountains, and expeditions of hundreds of miles, they never suffered, nor lost a day, for lack of supplies.

The military organization is given below, not only as necessary to a clear presentation of this part of Governor Stevens's life, but as a tribute to those patriotic men who so gallantly and faithfully served and saved the Territory of Washington in her hour of extreme need:—

James Tilton, adjutant-general.

James Doty, William Craig, B.F. Shaw, E.C. Fitzhugh, H. R. Crosby, Jared S. Hurd, S.S. Ford, Edward Gibson, lieutenant-colonels and aides.

W.W. De Lacy, captain of engineers.

Rudolph M. Walker, ordnance officer.

Dr. Gallio K. Willard, surgeon and medical purveyor.

Drs. U.G. Warbass and Albert Eggers, assistant surgeons.

W.W. Miller, quartermaster and commissary-general.

James K. Hurd, assistant quartermaster and commissary-general, in charge on Columbia River.

Frank Matthias, assistant quartermaster and commissary, Seattle.

Warren Gove, Steilacoom.

Charles E. Weed, Olympia.

R.S. Robinson, Port Townsend.

M.R. Hathaway, succeeded by M.B. Millard, Vancouver.

A.H. Robie, Dalles and in the field.

S.W. Percival was sent as agent to San Francisco.

SECOND REGIMENT, RAISED FOR SIX MONTHS.

Lieutenant-Colonel B.F. Shaw, commanding the right wing, consisting of Central and Southern battalions.

Major J.J.H. Van Bokkelen, commanding Northern battalion.

Major Gilmore Hays, succeeded by Major George Blankenship, Central battalion.

Major H.J.G. Maxon, Southern battalion.

Lieutenant Eustis Huger, adjutant; Lieutenants Humphrey Hill, B.F. Ruth, W.W. De Lacy, adjutants of Northern, Central, and Southern battalions respectively.

Captain C.H. Armstrong, regimental quartermaster and commissary in field with right wing.

R.M. Bigelow, Justin Millard, M.P. Burns, surgeons, Northern, Southern, and Central battalions respectively.

MOUNTED MEN.

Company.	Strength.	Captain.
C	67	B.L. Henness
		}
D	44	Achilles
		Jephtha S. Powell
I	40	Bluford Miller
K	101	Francis M.P. Goff
M	53	Henry M. Chase
N	74	{ Richards James Williams
Washington Mounted Rifles	95	H.J.G. Maxon
Clark County Rangers	81	William Kelly
Walla Walla Company	<u>29</u>	Sidney S. Ford
	584	

INFANTRY.

Company.	Strength.	Captain.
A	53	Edward Lander
		Gilmore Hays
B	52	{ A.B. Rabbeson David E. Burntrager
E	21	C.W. Riley
F	40	C.W. Swindal

G	55	{ J.J.H. Van Bokkelen Daniel Smalley
H	42	R.V. Peabody
I	35	{ Samuel D. Howe George W. Beam
L	91	Edward D. Warbass
Train guard	47	Oliver Shead
Pioneer Company	40	{ Joseph White Urban E. Hicks
Nisqually Ferry Guard	9	Sergeant William Packwood
	485	
Stevens Guards	25	C.P. Higgins
Spokane Invincibles	23	B.F. Yantis

INDIAN AUXILIARIES.

Nez Perces, Volunteers	70	Chief Spotted Eagle
Snohomish	82	Chiefs Pat-ka-nim and John Taylor
Squaxon	15	Lieutenant Wesley Gosnell
Chehalis	17	Sidney S. Ford
Cowlitz	9	Pierre Charles
Total	1310	

The horses used for mounted men were furnished partly by the government and partly by the volunteers.

Company M was composed of ten white men and forty-three Nez Perces, Indians furnishing their own horses.

Company N was first commanded by Captain Richards, and second by Captain Williams.

A portion of the Pioneer Company, after Colonel Shaw's march across the Cascades, served as mounted men in the Puget Sound country.

Company B was commanded first by Captain Gilmore Hays, second by Captain A.B. Rabbeson, and lastly by Captain David E. Burntrager.

Company E was first commanded by Captain Riley, and second by Lieutenant Cole.

Company G was first commanded by Captain Van Bokkelen, and second by Captain Smalley.

Company I was first commanded by Captain Howe, and second by Captain Beam.

Volunteers called out by Acting-Governor Mason:—

FIRST REGIMENT, RAISED FOR THREE MONTHS OR LESS.

MOUNTED MEN.

Company.	Strength.	Captain.
A	61	William Strong
B	91	Gilmore Hays
E	40	Isaac Hays
F	63	Benjamin L. Henness
K	26	John R. Jackson
Cowlitz Rangers	39	Henry A. Peers
Lewis River Rangers	44	William Bratton
Puget Sound Rangers	<u>36</u>	Charles H. Eaton
	408	

INFANTRY.

Company.	Strength.	Captain.
----------	-----------	----------

C	70 George B. Goudy
D	55 William H. Wallace
G	22 W.A.L. McCorkle
M	75 C.C. Hewett
I	84 Isaac N. Ebey
J	29 Alfred A. Plummer
Nisqually Ferry	Sergeant William
Guard	<u>10</u> Packwood

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Newell's Company, mounted Captain Robert Newell

McKay's Company " Captain William C. McKay

Captain Strong's and Hays's companies were mustered into the regular service. The mounted men furnished their own horses.

CHAPTER XXXVIII

WAGING THE WAR ON THE SOUND

The force thus speedily raised was organized into three battalions, designated the Northern, Southern, and Central, each of which elected its major, and the two latter were subsequently formed into a single command by the election of Shaw as lieutenant-colonel.

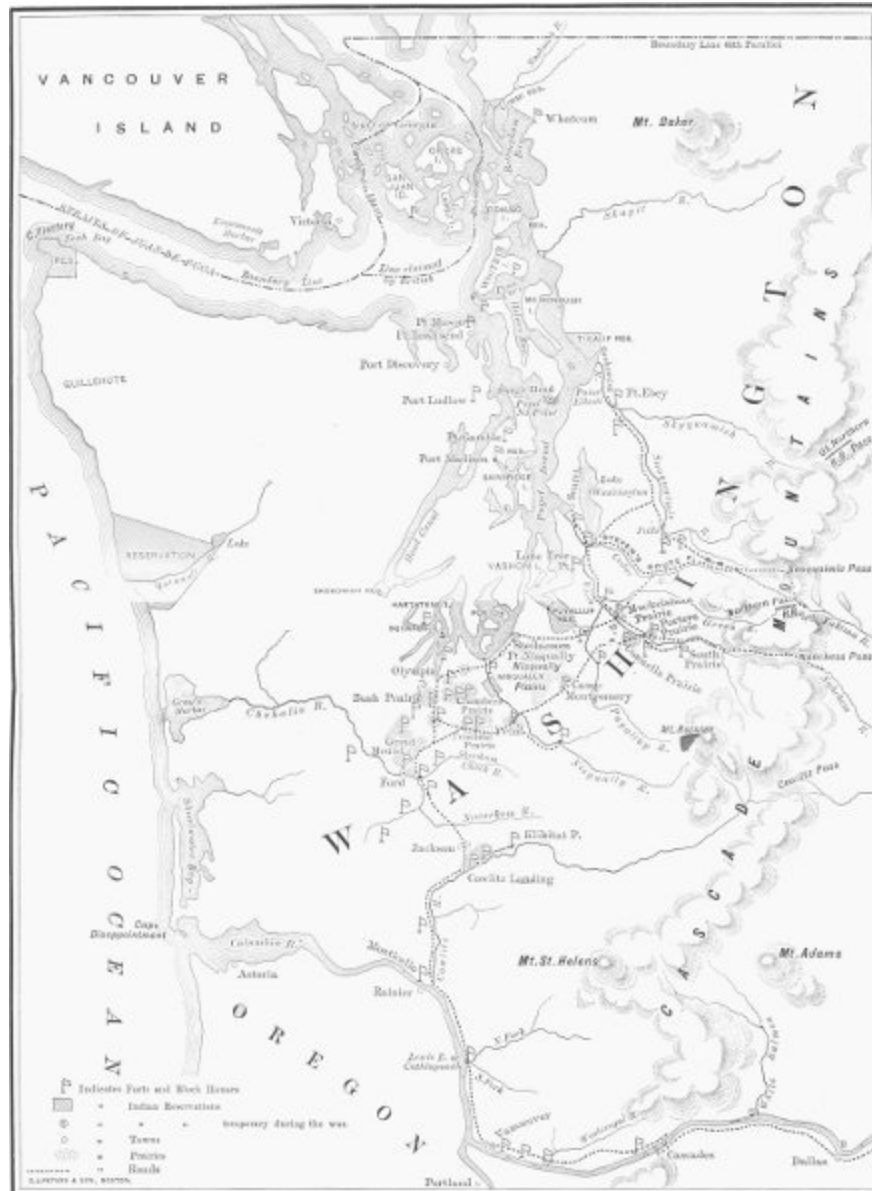
The Northern battalion, under the command of Major J.J.H. Van Bokkelen, consisted of companies C, Captain Daniel Smalley; H, Captain R.V. Peabody; and I, Captain Samuel D. Howe. The Central battalion, under Major Gilmore Hays, comprised companies B, Captain A.B. Rabbeson; C, Captain B.L. Henness; E, Captain C.W. Riley; F, Captain C.W. Swindal; the Pioneer Company, Captain White; and the train guard, Captain Oliver Shead. The Southern battalion included the Washington Mounted Rifles, Major H.J.G. Maxon; Company D, Captain Achilles; J, Captain Bluford Miller; and K, Captain Francis M.P. Goff, all under the command of Major Maxon. The Southern battalion and Captain Henness's Company C were mounted, most of the volunteers furnishing their own horses. The others served as infantry. Besides these, Company A, of forty-two men, Captain Edward Lander (chief justice of the Territory), was raised at Seattle, and garrisoned that place.

The plan of campaign was to guard the line of the Snohomish River with the whole available force of the Northern battalion, to move with the Central battalion at once into the heart of the enemy's country with one hundred days' supplies, to operate with the Southern battalion east of the Cascades, and to combine all the operations by a movement from the Sound to the interior, or from the interior to the Sound, according to circumstances.

The most favorable and commonly used passes across the Cascades were at the head of the Snohomish and its southern branch, the Snoqualmie; about and opposite the mouth of the river were a good part of the Sound Indians; it was here that the council of Mukilteo was held, at which twenty-three

hundred Indians were present, and across the Sound, nearly opposite, was collected the greatest number of non-hostiles. The occupation of the line of the Snohomish, therefore, was a move of the first strategic importance as shutting the door against the incursions of the Yakimas, and cutting off the tribes on the Sound from access to the back country and intercourse with them and other hostiles.

It was determined to occupy the country permanently by roads and blockhouses, by which, together with the stockades and blockhouses which the encouraged settlers were building and holding at many points, to circumscribe the hostile resorts and coverts, and open up the trackless back country. Indian auxiliaries were to be used as the best means of preserving their doubtful fidelity, and of using their knowledge of the country to search out and hunt down the hostiles.



THEATRE OF INDIAN WAR OF 1855-56 ON PUGET SOUND AND WEST OF CASCADE MOUNTAINS

[Larger image](#)

This plan the governor early communicated to Lieutenant-Colonel Silas Casey (major-general in the Civil War), then commanding at Steilacoom, and invited and secured his coöperation therewith. So desirous was he to insure coöperation between the regular and volunteer forces that, waiving etiquette, he twice visited Casey in person; and early in February he again made the arduous journey to Vancouver, and by personal conference with Colonel George Wright, who commanded the regular troops both on the

river and the Sound, sought to arrange harmonious and combined action between their respective forces, returning to Olympia by the 17th. During the war the governor spared no pains to consult with the regular officers and secure their concert of action with him, and this end he brought about quite fully with Casey, and partially with Wright, notwithstanding both officers were under the strictest injunctions from Wool not to recognize the volunteer forces in any way. The letter which Governor Stevens wrote to General Wool on reaching Walla Walla gave very fully the results of his knowledge of the country and the Indians, and his views and suggestions in regard to prosecuting the war, which, if adopted or heeded by the prejudiced commander, would have brought the contest to an end in a few months. After announcing his safe arrival, and giving a brief account of the numbers and dispositions of the Indian tribes, he describes the features of the Walla Walla, Palouse, Spokane, and Yakima countries which a military mail should know for planning the movement of troops, namely, roads, river crossings, grass, wood, depth of snow, etc., sending also a map.

The governor recommended Wool to occupy the Walla Walla valley with all his available force in January, establishing a depot camp there, and a line of barges on the Columbia between the mouth of the Des Chutes and old Fort Walla Walla, to bring up supplies; in February to cross Snake River with 500 men and strike the Indians on the Palouse, where the hostiles driven out of the valley were congregated; to follow up this blow by sending a column of 300 men up the left bank of the Columbia towards the Okinakane River (Okanogan), while 200 remained to guard the line of the Snake, and keep the Indians from doubling back. The effect of these movements would be to drive these hostiles across the Columbia into the Yakima country, when the troops north of the Snake were to follow them, and all the troops south of that stream, who had been holding the river crossings and depot camps, were to unite, cross the Columbia at the mouth of the Snake, and move up the Yakima valley, and with the other column put the Indians to their last battle, for the effect of these movements would be to drive the enemy into a corner from which he could not easily escape. Moreover, and this was of the first importance, this plan would interpose the troops between the hostile and friendly tribes. Simultaneous movements against the Yakimas and north of Snake River would throw the hostiles upon the Spokanes, and might cause them to take up arms. About 800 effective troops would be required.

There were already 500 mounted Oregon volunteers in the Walla Walla valley, and Wool had, or would soon have, 500 to 600 regulars available.

In the last paragraph of this letter the governor stated:—

“In conclusion, it is due to frankness that I should state that I have determined to submit to the department the course taken by the military authorities in disbanding the troops raised in the Territory of Washington for my relief. No effort was made, although the facts were presented both to Major-General Wool and Major Rains, to send me assistance. The regular troops were all withdrawn into garrison, and I was left to make my way the best I could, through tribes known to be hostile. It remains to be seen whether the commissioner selected by the President to make treaties with the Indians in the interior of the continent is to be ignored, and his safety left to chance.”

On finding that General Wool had left so hastily for San Francisco the governor sent a copy of this memoir to Colonel Wright, with a letter, dated February 6, urging him to send at least two companies of the troops at Vancouver to the Sound, and to push his troops against the Indians east of the mountains.

But instead of profiting by the valuable information and sound views given him by Governor Stevens, Wool sarcastically replied that he had neither the resources of a Territory nor the treasury of the United States at his command. Instead of making use of, or coöperating with, the Oregon volunteers already in the Walla Walla valley, he denounced them as making war upon friendly Indians, and declared that, with the additional force recently arrived at the Dalles and Vancouver, he could bring the war to a close in a few months, provided the extermination of the Indians was not determined upon, and the volunteers were withdrawn from the Walla Walla valley. He filled the greater part of a long letter with denunciations of outrages by whites upon Indians in southern Oregon, and of the Oregon volunteers and of Governor Curry. He declared that two companies he had just sent to the Sound, with three already there, making five in all, under Lieutenant-Colonel Casey, would be a sufficient force to suppress the outbreak in that region. He concluded by saying:—

“In your frankness and determination to represent me to the department, I trust you will be governed by truth, and by truth only. I disbanded no troops raised for your relief; and your communication gave me the first intelligence that any were raised for such a purpose.”

The bad blood and duplicity of this communication was the more inexcusable from the facts that it was on the requisition of his own officers that the Washington volunteers had been raised and mustered into the United States service, that he made no complaint whatever against them or the people of that Territory, and that his last assertion was a downright falsehood. Even after receiving the full and valuable memoir which Governor Stevens sent him, he declared in official communications: “I have been kept wholly ignorant of the state of the country, except through the regular officers of the army.”

On March 15 Wool made another flying visit to Vancouver, thence by steamer to Steilacoom, where he tarried but a single day, conferred with and instructed Colonel Casey, rebuked him for coöperating with the volunteers, and hurried away without deigning to notify the governor of his presence. The latter, on hearing that he had left Vancouver for the Sound, immediately dispatched Adjutant-General Tilton to Steilacoom with a letter to Wool, stating:—

“He is instructed to advise you of the plan of operations which I have adopted, the force in the field, and the condition of the country. I have to acquaint you of my desire to coöperate with you in any plans you may think proper to adopt, and I shall be pleased to hear from you in reference to the prosecution of the campaign.”

But Wool had left before Tilton could reach him.

The first and only result of Wool’s flying visit was manifested next day in a formal demand by Colonel Casey on Governor Stevens for two companies of volunteers to be mustered into the United States service, and placed under his orders. He stated in conclusion:—

“I received yesterday an accession of two companies of the 9th infantry. With this accession of force and the two companies of volunteers called for, I am of the opinion that I shall have a sufficient

number of troops to protect this frontier without the aid of those now in the service of the Territory.”

This demand was made just after the volunteers had defeated the hostiles, as will soon be narrated.

Thus, instead of the coöperation which he so earnestly sought with the regular service, he was coolly required by the commanding general to disband thirteen companies of white troops and four bodies of Indian auxiliaries, abandon his posts and blockhouses defending the settlements and in the enemy’s country, leave the door of the Snohomish open for the Yakima emissaries to strike the reservations and the settlements,—in a word, give up his whole campaign at the moment when he had inflicted a severe defeat upon the enemy, and, fully prepared, was on the eve of following it up with his whole force, all posted in the very positions, and furnished with the needed supplies, which he had secured by so much labor and foresight, and to leave the defense of this extended and exposed frontier to an officer whose force would consist of only five companies of regulars and two of volunteers,—seven in all,—and whose most extended operations thus far had never gone beyond fifteen miles from his headquarters at Fort Steilacoom. This artful and impudent request of Wool—for Colonel Casey made it by his instructions—was instantly rejected by the governor with the scorn it deserved; and in a letter to Wool, dated March 20, he administered a well-deserved castigation to that ill-disposed officer:—

EXECUTIVE OFFICE, WASHINGTON TERRITORY,
OLYMPIA, March 20, 1856.

MAJOR-GENERAL JOHN E. WOOL,
Commanding Pacific Division.

Sir,—I have the honor to acknowledge the receipt of your communication of the 12th of February, and to state generally in answer thereto that the events of the past four weeks, in connection with your own official course, afford satisfactory evidence that the most objectionable positions of your letter have been abandoned, and that you have finally been awakened to the true condition of the Indian war, and are seeking to make some amends for the unfortunate blunders of the past. You have probably learned how much you have

been misled in your views of the operations of the Oregon volunteers, and how much unnecessary sympathy you have wasted on the infamous Pu-pu-mox-mox. For your own reputation I have felt pain at the statement made in your letter to me, for I am an authoritative witness in the case; and in the letter which submitted your own action in refusing to send me succor, I have presented briefly the facts, showing the unmitigated hostility of that chief. I assert that I can prove by incontrovertible evidence that Pu-pu-mox-mox had been hostile for months; that he exerted his influence to effect a general combination of the tribes; that he plundered Walla Walla and the settlers of the valley, distributing the spoils to his own and the neighboring tribes as war trophies; that he rejected the intercession of the friendly Nez Perces to continue peaceful; that he had sworn to take my life and cut off my party; that he and the adjoining tribes of Oregon and Washington had taken up their military position as warriors at the proper points of the Walla Walla valley,—and all this before the volunteers of Oregon moved upon him....

That some turbulent men of the Oregon volunteers have done injury to the friendly Cuyuses is unquestionable, and it is reprobated by the authorities and citizens of both Territories. It has, however, been grossly exaggerated. Had, sir, the regulars moved up to the Walla Walla valley, as I most earnestly urged both Major Rains and Colonel Wright both by letter and in person, these Indians would have been protected. The presence of a single company would have been sufficient. The responsibility, if evil follows, will attach, sir, to you, as well as to the volunteers.

In your letter of the 12th of February you state: “I have recently sent to Puget Sound two companies of the 9th infantry. These, with the three companies there, will give a force of nearly or quite four hundred regulars, commanded by Lieutenant-Colonel Casey. This force, with several ships of war on the Sound, to which will be added in a few days the United States steamer Massachusetts, it seems to me, if rightly directed, ought to be sufficient to bring to terms two hundred Indian warriors. Captain Keyes, in his last report, says there are not quite two hundred in arms in that region.”

Here you have expressed a very confident opinion. You thought proper to quote Captain Keyes as to the number of Indians, but you found it did not suit your purpose to refer to the requisitions he had made upon you for six additional companies, two of which only had been sent forward; nor could you find time to refer to the fact that Colonel Casey had recommended that, after the war was over, eight companies should be permanently stationed there for the protection of the Sound.

You think volunteers entirely unnecessary, although after having received from the executive information as to the condition of the country. It is now March, a month later, and you send two companies of regulars, and direct Colonel Casey to call upon me for two additional companies of volunteers.

Thus you have practically acknowledged that you were wrong, and that I was right; and thus I have your testimony as against yourself in vindication of the necessity of my calling out volunteers. As regards this call for volunteers, it is presumed that Colonel Casey informed you that the whole available force of the Sound country was bearing arms, and that the great proportion of them were actively engaging the enemy; that, organized in two battalions, the Northern battalion occupied the line of the Snohomish, where they were establishing blockhouses and closing the passes of the Snoqualmie.

That the Central battalion was occupying the military road over the Nahcchess, in relation to which road and its military bearing your aide-de-camp, Lieutenant Arnold, will be able to give you full information; and that on both lines decisive blows had been struck; and also that it was beyond the ability of our citizens to raise an additional company of even fifty men to honor your requisition.

I have a right to hold you to a full knowledge of our condition here. If you say you were misinformed, then you are not fit for your position, and should give place to a better man. If you were informed, then your measures as a military man manifest an incapacity beyond example.

Therefore the call on me for two companies of volunteers is a call upon me to withdraw the troops now in the field with sixty to eighty days' provisions, after decisive blows have been struck, and when

everything is ready to strike a, and perhaps *the*, decisive blow to end the war.

I am, sir, too old a soldier ever to abandon a well-considered plan of campaign, or to do otherwise than to press forward with all my energies in the path marked out, promising, as it does, the speedy termination of the war; and, sir, I am too wary a man not to detect the snare that has been laid for me. You never expected, sir, that the requisition would be complied with. You knew that it was a practical impossibility; but, not having the courage to acknowledge your errors, it was resorted to in the hope that my refusing your requisition might enable you to occupy my vantage-ground, and throw me on the defensive. I hold you, sir, to the facts and necessity of the case, clearly demonstrating by your own confession the propriety of my course, and the necessity on my part of a steady adherence to it.

You have referred to the atrocities committed upon the friendly Indians by the whites. I know nothing of what has occurred in southern Oregon; but I have to state that no man, to my knowledge, in the Territory of Washington advocates the extermination of the Indians. The authorities here have not only used every exertion to protect them, but their exertions have been completely successful. Did you learn, sir, in your brief visit to the Sound, that nearly four thousand Indians—friendly Indians—had been moved from the war ground on the eastern shore of the Sound and its vicinity to the adjacent islands, and have for nearly five months been living in charge of local agents? That not an Indian in the whole course of the war has been killed by the whites except in battle? That where a military commission, composed of a majority of volunteer officers, tried some months since eight Indians, only one was convicted, and that the sentence of death passed upon him has not yet been executed? It is the good conduct of our people, sir, that has so strengthened the hands of the authorities as to enable them to control these friendly Indians, and to prevent any considerable accessions to the ranks of the hostiles.

I have recently heard from the Nez Percés, the Cœur d'Alenes, and the Spokanes. The former are firm in their allegiance; but the Spokanes urge me to have a military force on the great prairie between them and

the hostile Indians, so these latter may not be driven to their country, and thus incite their young men to war. The letter of Garry, chief of the Spokanes, is a most earnest and plaintive call for help, so his hands may be strengthened in keeping his people to their plighted faith; and the coincidence is remarkable, that this Indian chief, a white man in education and views in life, should have asked me to do the very thing I have urged upon you; for you will remember, in my memoir I urge that the troops, in operating against the Indians, should be interposed between the friendly and hostile tribes to prevent those now friendly from joining in the war. I have, sir, studied the character of these Indians, and my views as to the influence upon the friendly Indians of the mode of carrying on the war against the hostiles are confirmed by the only educated Indian of either Oregon or Washington, and the head chief of the tribe in reference to which I made the recommendation and felt the most solicitude.

It seems to me that the present condition of things imposes upon you the necessity of recognizing the services of the volunteers of the two Territories now in the field, and of your doing everything to facilitate their operations. But if you waste your exertions in the fruitless effort to induce either the authorities to withdraw their troops, to abandon their plan of campaign in order to comply with your requisition, or to meet your peculiar notions, I warn you now, sir, that I, as the governor of Washington, will cast upon you the whole responsibility of any difficulties which may arise in consequence, and that by my firm, steady, and energetic course, and by my determination to coöperate with the regular service, whatever may be the provocation to the contrary, I will vindicate the justice of my course, and maintain my reputation as a faithful public servant. I warn you, sir, that, unless your course is changed, you will have difficulties in relation to which your only salvation will be the firm and decided policy of the two Territories whose services you have ignored, whose people you have calumniated, and whose respect you have long since ceased to possess.

Can you presume, sir, to be able to correct your opinions by a hasty visit to the Sound for a few days? And do you expect, after having taken my deliberate course, that I shall change my plans on a simple intimation from you, without even a conference between us? Were you

desirous, sir, to harmonize the elements of strength on the Sound, you would have seen that it was your duty at least to have informed me of your presence, and to have invited me to a conference.

Whilst in the country, in the fall and winter, you complained that the authorities of the two Territories did not communicate with you. Why did you not inform me of your presence in the Sound on your arrival at Steilacoom? I learned of your probable arrival by simply learning on Saturday morning by my express of your having left Vancouver, and I immediately dispatched the chief of my staff to wait upon you with a letter. But you were gone; and whether you did not know the courtesy due the civil authorities of the Territory, who had taken the proper course to place themselves in relations with you, or whether you were unwilling to meet a man whose safety you had criminally neglected, and whose general views you have been compelled to adopt, is a matter entirely immaterial to me.

What, sir, would have been the effect if Governor Curry had not made the movement which you condemn, and my party with the friendly Nez Perces had been cut off? Sir, there would have been a hurricane of war between the Cascades and Bitter Root, and three thousand warriors would now be in arms. Every tribe would have joined, including the Snakes, and the spirit of hostility would have spread east of the Bitter Root to the upper Pend Oreilles.

I believe, sir, I would have forced my way through the five or six hundred hostiles in the Walla Walla valley with fifty-odd white men and one hundred and fifty Nez Perces. Would you have expected it? Could the country expect it? And what was the duty of those having forces at their command? Governor Curry sent his volunteers and defeated the enemy. You disbanded the company of Washington Territory volunteers raised expressly to be sent to my relief.

I have reported your refusal to send me succor to the Department of War, and have given some of the circumstances attending that refusal. The company was under the command of Captain William McKay. Before your arrival there was a pledge that it should be mustered into the regular service and sent to my assistance. Major Rains informs me

that he did everything in his power to induce you to send it on. William McKay informs me that he called on you personally, and that you would do nothing. I am informed that your aide-de-camp, Lieutenant Arnold, endeavored to get you to change your determination. What was your reply? "Governor Stevens can take care of himself. Governor Stevens will go down the Missouri. Governor Stevens will get aid from General Harney. If Governor Stevens wants aid, he will send for it." These were your answers, according to the changing humor of the moment.

And now, sir, in view of your assertion that you disbanded no troops raised for my relief, and that my communication gave you the first intelligence that any were raised for that purpose, I would commend the chalice to your own lips, "that I trust you will be governed" hereafter "by the truth, and the truth only."

I am, sir, very respectfully,

Your obedient servant,

ISAAC I. STEVENS,

Governor, Washington Territory.

Unable to answer this letter, which so clearly exposed and justly rebuked his reprehensible course and conduct, Wool returned it, with a note from his aide stating that it was done by his order. In response the governor, in a final letter to Wool, remarks of this act:—

"It can only be construed as evincing a determination on your part to have no further official communication with the executive of the Territory of Washington, at the very time when, from the circumstances of the case and the nature of their respective duties, there should, and must often be, such communications.

"It is a matter which is not to be decided by personal feeling, but by consideration of public duty, which alone should govern public acts. I shall therefore continue in my official capacity to communicate with the major-general commanding the Department of the Pacific whenever, in my judgment, duty and the paramount interests of the Territory shall demand such communication to be made, casting upon that officer whatever responsibility before the country and his

superiors may attach to his refusal to receive such communications. My duty shall be done. Let others do their duty.”

The governor was always of the opinion, the result undoubtedly of what he was told by other officers, that, in disbanding the troops raised for his relief, Wool was actuated by resentment at his, the governor's, manly declaration in San Francisco, when, disgusted at Wool's self-laudation and disparagement of a greater commander, he said that “every officer knew, and history would record, that General Taylor won the battle of Buena Vista.” However that may be, after the caustic letter given above, Wool's malice knew no bounds. He redoubled his accusations of making war upon friendly Indians, gathered up and sent on to the War Department in his official reports newspaper slanders against the governor, and even declared that he was crazy. He reiterated his orders to his subordinates to have nothing to do with the territorial volunteers or authorities, and finally went to the length of directing his officers to disarm the volunteers, if practicable. No attempt was ever made in that direction.

Early in February Pat-ka-nim, with eighty Snohomish braves, accompanied by Colonel Simmons, pushed up the Snohomish and against the hostiles on Green River under Leschi, the Nisqually chief, and defeated them in a sharp fight, inflicting a loss of five killed and six wounded, besides two taken and executed.

As fast as organized, the Northern battalion was advanced on the line of the Snohomish, where it built blockhouses and a camp known as Fort Tilton below the Snoqualmie Falls, and Fort Alden above them, and scouted the surrounding country. This battalion also established a blockhouse, with a garrison of fifteen men, at Bellingham Bay, and with blockhouses on Whitby Island and at Point Wilson, near Port Townsend, and a service of small vessels and canoes, kept watch over the lower Sound.

The Central battalion, having been assembled on Yelm prairie, twenty miles east of Olympia, and constructed there Fort Stevens, moved to and built Camp Montgomery, twelve miles back of Steilacoom, February 19 to 23; the post and ferry at the emigrant crossing of the Puyallup, 25th to 29th; and the post and blockhouses, named Fort Hays, on Connell's prairie, on White River, by March 2; and later two blockhouses at the crossing of that river,

named Forts Pike and Posey. Small garrisons held this line of blockhouses; roads were cut and opened through the forest; and a train of thirty ox-teams, three yoke each, bought, hired, or impressed from the settlers, hauled out a hundred days' supplies. Captain Henness's mounted rangers cheerfully dismounted, and, leaving their horses at Yelm prairie, advanced on foot. The governor visited Camp Montgomery on the 28th, pressing forward the movement.

Captain Sidney S. Ford, with a force of friendly Chehalis Indians, scouted the lower Puyallup. Lieutenant-Colonel Casey advanced a detachment of regulars to the Muckleshoot prairie, eight miles below Connell's prairie, where they built a blockhouse named Fort Slaughter.

The government vessels on the Sound were the war steamer Massachusetts, Captain Samuel Swartwout, which remained mostly in Seattle harbor, where she relieved the Decatur; the Coast Survey steamer Active, Captain James Alden; and the revenue cutter Jefferson Davis, a sailing vessel, Captain William C. Pease. These officers were ever ready to aid in the defense of the settlements by every means in their power. They furnished ammunition, transported volunteers and supplies, and cruised the Sound to overawe the northern Indians.

On March 2 two white men were killed by Indians within a few miles of Olympia; Indians were seen and stock was driven off at other points; a band of savages under Qui-e-muth were discovered in the Nisqually bottom; and it appeared that, while the troops were pushing out, the Indians were coming in behind them to raid the settlements. Unwilling to arrest the forward movement, the governor immediately ordered Maxon's company, of the Southern battalion, over to the Sound from Vancouver, and soon after brought over the rest of the battalion. By a special war notice he also called a hundred more men from the already denuded settlements, and, with the few that were able to respond, strengthened the exposed points.

On March 6 Colonel Casey's troops on Muckleshoot prairie had a sharp fight with the enemy. On the 10th Major Hays, with 110 men of his Central battalion, fought the principal and decisive battle of the war on the Sound, known as the battle of Connell's prairie. It was brought on by the Indians, who, emboldened by their previous successes, fought for five hours with a

confidence and stubbornness that enabled the volunteers to inflict severe losses upon them. They were finally routed by a charge on their left flank by Captains Swindal and Rabbeson, and a simultaneous attack in front by Captains Henness and White, with a loss of twenty-five or thirty killed and many wounded. They even abandoned their war-drum in their flight. Major Hays, who handled his command with skill and judgment as well as courage, reported that they numbered at least two hundred warriors. It afterwards appeared that their numbers were much larger, and that they were aided in the fight by a hundred Yakima warriors.

The fruits of Governor Stevens's thorough preparations were now manifested by incessant blows and untiring, unsparing warfare. The Indians were allowed no respite from attack, and could find no refuge, even in the densest swamps and thickets. The Central battalion sent out strong parties to beat up the country of the White, Green, Cedar, and Puyallup rivers to the base of the mountains. Major Van Bokkelen, with Captain Smalley's Company G, forty-six men, and seventy-six of Pat-ka-nim's braves, swept the forests from the Snohomish to Connell's prairie, thence up the mountain to the Nahchess Pass, thence northward along the foot of the range to his own northern line, and thence into and over the Snoqualmie passes. Captain Sidney Ford with his Chehalis Indians, and agent Wesley Gosnell with a party of friendly, or pretended friendly, Indians from the Squaxon reservation—own brothers to the hostiles these—scoured the swamps and bottoms of the Puyallup and Nisqually; Lieutenant Pierre Charles, with a force of Cowlitz and Chehalis Indians, scouted up the Cowlitz and Newarkum rivers, and captured a number of the enemy. The ladies of Olympia, under the lead of Mrs. Stevens, made blue caps with red facings, with which these red allies were equipped, to distinguish them from their hostile kindred. Another company was called out and organized among the settlers of the Cowlitz plains under Captain E.D. Warbass, which built a blockhouse on Klikitat prairie, twelve miles higher up the Cowlitz, and also kept scouting parties constantly on the move. Major Maxon and his company scouted and searched the whole length of the Nisqually valley far into the range, leaving their horses and plunging into the tangled forests on foot, and on one of their scouts killed eight and brought in fourteen captives of the enemy. Miller's and Achilles's companies joined in the work, while Goff was sent back to the river to increase his strength to a hundred, and,

with another company to be raised there,—N, Captain Richards,—to rendezvous at the Dalles in readiness for operations in the upper country.

The governor urged Captain Swartwout to unite with Captain Lander's company, by furnishing a detachment and boats from the Massachusetts, in routing out the Indians who infested the shores of Lake Washington; and when the naval officer declined, Captains Howe and Peabody led detachments of the Northern battalion from the Snohomish down through the unknown and trackless forest, and beat up the shores of the lake. Lander's Company A was posted on the Duwamish River, a few miles from Seattle, where it built a blockhouse, and from which point Lieutenant Neely led a party in a canoe expedition up Black River into the lake, and fell upon a camp of the hostiles just after it had been abandoned, which was found filled with remains of cattle, stores, and goods recently plundered from Seattle and the settlers. Colonel Casey, after being reinforced by the two companies brought over from Vancouver, established a post higher up on White River, from which, and from his post on Muckleshoot prairie, parties scouted the surrounding forest. Every blockhouse with its little garrison, every armed train and express and canoe, as well as the numerous scouting parties, was constantly watching and searching for hostile Indians, and, worse than all, their own kindred, of whom Shaw declared "blankets will turn any Indian on the side of the whites," now joined in the hunt, and, stimulated by rewards offered for the heads of the hostile chiefs and warriors, showed the way to all their secret haunts and trails. The tide had, indeed, turned, after two months of this unrelenting warfare, and nearly every tribe on the Sound now freely proffered its assistance. The northern Indians, also, tendered their services, which were declined, excepting eight men, who joined the Northern battalion, and proved themselves uncommonly brave, strong, and hardy soldiers.

Thus the whole tangled region, with its dense forests and almost impenetrable swamps, from the Snohomish to the Cowlitz, nearly two hundred miles, was beaten up, the Indian resorts and hiding-places searched out, and their trails discovered and explored, especially those across the mountain passes, many of which were now for the first time made known to the whites. The whole policy and plan of campaign were Governor Stevens's, and the execution almost entirely the work of his brave and patriotic volunteers. The governor had, indeed, brought about a real concert

of action with Colonel Casey by his frank and considerate treatment of that officer, but the regular forces kept within a very short tether of Fort Steilacoom.

It was in the midst of the rainy season that this aggressive campaign was waged. So impracticable and unwise was it deemed by the brave and excellent Major Hays that he remonstrated with the governor against exposing the volunteers to such hardships, and, finding him inexorable, resigned rather than undertake it, as also did two officers of his former company. Amid constant rains and swollen streams the volunteers thrived the dripping forests, where every shaken bough drenched the toiling soldiers with another shower-bath, following some dim trail, or oftener cutting or forcing their way through the trackless woods,—heavy packs of blankets and rations on their backs, the axe in one hand and the rifle in the other. Scarcely would they return from one scout when they would be ordered out again. To every demand the volunteers responded with the greatest alacrity, spirit, and fortitude. The mounted men without a murmur left their horses and took to the woods as foot scouts. The Southern battalion, enlisting with the expectation of campaigning on the plains of the upper country, instantly and without a murmur obeyed the order summoning them to the Sound, to the discomforts and hardships of the rains and forests and swamps. The settlers freely turned out with their teams of oxen, and the storekeepers furnished blankets, clothing, shoes, and provisions to the extent of their ability.

On March 26, just as the campaign was well under way, the Yakimas and Klikitats swooped down upon the Cascades portage on the Columbia, which was left insufficiently guarded by Colonel Wright with a force of only nine regular soldiers in a blockhouse, and massacred nineteen settlers, and killed one soldier and wounded two others. Colonel Wright, who was at the Dalles preparing an expedition for the Yakima country, immediately proceeded to the Cascades with a strong force of regular troops, and the Indians disappeared. Satisfied that the friendly Indians in that vicinity were implicated in the attack, he caused ten of them, including the chief, to be summarily tried by military commission and hanged, an act which, if committed by the territorial authorities or volunteers, would have caused redoubled denunciations on the part of Wool and his parasites, but which,

done by this regular officer, excited no comment. This affair at the Cascades is also of interest as being General P.H. Sheridan's début in the art of war.

The massacre at the Cascades excited new alarm among the settlers about Vancouver and along the Columbia. To reassure them, and keep them from abandoning their farms, the governor called out another company of volunteers under Captain William Kelly, known as the Clark County Rangers, caused several new blockhouses to be built, and had the rangers constantly patrol the settlements. It was at this time, and largely in consequence of the Cascades massacre, that he called out Captain Warbass's company, for he deemed it essential that the settlers should not again abandon their farms. He also wrote Colonel Wright proposing a "thorough understanding between the regular and volunteer service, so their joint efforts may be applied to the protection of the settlements and the prosecution of the war," in order that no force need be wasted, and inviting his suggestions to that end. But Colonel Wright, although personally ready to coöperate like Colonel Casey, was under the strictest orders from Wool in no way to recognize the volunteers. In his reply to the governor he simply stated what he was doing, and proposing to do, without venturing any suggestions. In truth, between the governor and his volunteers, who were so efficiently protecting the settlements and attacking the common foe, on the one hand, and his irate commanding general, who had positively ordered him to ignore the territorial authorities and forces, on the other, Colonel Wright was in something of a quandary, and it must be confessed that he conducted himself with no little diplomatic skill.

For two months after the fight of Connell's prairie, Governor Stevens kept his whole force thus incessantly searching the forests and hunting down the hostiles with unrelenting vigor. The Indians, thrown completely on the defensive, did not commit another depredation after the Cascades disaster on all that long line of exposed and scattered settlements. They were driven and chased from resort to resort; their most hidden camps and caches of provisions were discovered and destroyed; many were killed or captured; and by the middle of May over five hundred came in and gave themselves up, while the guilty chiefs and warriors fled across the Cascades and sought refuge among their Yakima kindred. The surrendered were placed on the reservations with the friendly Indians, except a number of suspected murderers, who were tried by military commissions; but very few were

found guilty for lack of evidence, and they were also sent to join their people on the reservations. It was not the governor's policy to punish them for taking part in the war, or fights only, but he deemed it essential to the future peace of the country that the murderers of settlers and chief instigators of the outbreak should be punished, and believed that if they were allowed to escape scot free they would stir up trouble again.

Thus the war west of the Cascades was ended by the complete surrender or flight of the hostiles.

In June the posts and blockhouses built by the volunteers on Puyallup and White rivers, Connell's prairie, and Camp Montgomery were turned over to the regulars, and the volunteers who were not required for an expedition east of the Cascades were disbanded in July.

After the suppression of hostilities on the Sound, becoming satisfied that the reservations set apart at the treaty of Medicine Creek were inadequate for the Nisquallies and Puyallups, Governor Stevens held a council with these Indians on Fox Island on August 4, and arranged with them to give them, in place of those established by the treaty, a larger reservation for the former tribe on the Nisqually River, a few miles above its mouth, embracing some excellent bottom land, and for the latter twenty-one thousand acres of the finest alluvial land at the mouth of the Puyallup River. At the same time a smaller reservation was given the Duwamish Indians on the Muckleshoot prairie. The Puyallup reservation included thirteen donation claims taken by white settlers, but the governor had these appraised by a commission which he appointed for the purpose, and its awards, amounting to some five thousand dollars, were paid by Congress. On his recommendation the President, by executive order, promptly established the new reservations, in pursuance of the sixth article of the treaty, which empowered him to take such action. The Indians have remained in undisturbed possession of them ever since. When the Northern Pacific Railroad Company fixed its terminus at Tacoma in 1874, it cast covetous eyes upon this noble tract of land situated across the bay, right opposite the proposed city, and the author, then its attorney in Washington Territory, was instructed to examine and report upon the validity of the Indian title to it. His report satisfied the officers of the company that the right of the Indians to their reservation was indisputable.

Much of the success attending Governor Stevens's prosecution of the Indian war was due to the able and energetic men he called to his aid as staff officers. He especially commended General W.W. Miller as having imparted "extraordinary efficiency to the quartermaster's and commissary department, the most difficult of all,—which, generally kept distinct, was a single department in our service,—reflecting the highest capacity and devotion to the public service upon its chief and subordinate officers." It was General Miller who collected, largely by impressment, organized, and led out into the Indian country the large ox-train which hauled out three months' supplies for the volunteers in the beginning of the campaign, without which it could not have been waged. He was distinguished by remarkable sound sense and judgment, and the governor counseled with and relied upon him more than any other. And after the Indian war General Miller was his closest friend in the Territory. The governor also took occasion to make special acknowledgment to General Tilton for his services as adjutant-general, where his military experience was of great value. It is much to be regretted that the limits of this work preclude the detailed mention of their services, which they so well merit; but the remarkable success of their departments is their best encomium.

CHAPTER XXXIX

THE WAR IN THE UPPER COUNTRY

While the war of the Sound was thus vigorously and successfully prosecuted, operations east of the Cascades were marked by lack of vigor and purpose, and no impression was made upon the hostile tribes, except to encourage them to continue on the war-path. The Oregon volunteers, who wintered in the Walla Walla valley, crossed Snake River in March, advanced a short distance up the Palouse, then traversed the country over to the Columbia below Priest's Rapids, from which point they returned to Walla Walla, and in May moved back to the Dalles and were disbanded. Thus it will be seen how easy it would have been for the regular forces, supporting and supplementing this movement of the Oregon volunteers across Snake River, to have made the effective campaign that Governor Stevens outlined to Wool. With a little reinforcement, the volunteers could have pushed beyond Priest's Rapids up the left bank of the Columbia, driving the hostiles across the river into the Yakima country, when the main columns of regulars, entering that country from the Dalles and up the Yakima River, could have "put the hostiles to their last battle."

But it was not until May that Colonel Wright marched from the Dalles into the Yakima country with five companies of regulars. He found the hostiles in strong force on the Nahchess River, one of the upper tributaries of the Yakima. Instead of fighting, he stopped to parley with them; but after a week of talking to no purpose, he sent back for reinforcements.

At this juncture, the hostile Indians on the Sound having been thoroughly subdued, and those of the upper country being still in unbroken strength and confidence, Governor Stevens, on May 28, proposed to Lieutenant-Colonel Casey a joint movement of their respective forces across the Cascades:—

"I would suggest your sending three companies to the Nahchess, retaining one at or near the pass, and advancing the others into the Yakima country.

“At the same time I will put my whole mounted force through the Snoqualmie Pass and down the main Yakima. The Northern battalion shall occupy posts on the line of the Snoqualmie from the falls to the eastern slope. A depot shall be established on the eastern slope; all the horsemen will then be available to strike and pursue the enemy.”

But Casey, strictly forbidden by Wool to recognize the volunteers, sent two companies under Major Garnett to reinforce Wright by the circuitous Cowlitz and Columbia route, declining to “send him across the Nahchess Pass, for the reason, first, I consider there would be too much delay in getting across. In the next place, I have not sufficient transportation to spare for that purpose.” From Steilacoom to Wright’s camp on the Nahchess was barely a hundred miles by the direct route across the pass; by the Cowlitz-Columbia route it was three hundred and fifteen miles, for a hundred and fifteen of which the troops could be transported by water, leaving two hundred to march. By these facts, and by the ease and celerity of Shaw’s march a few days later over the rejected route, the validity and candor of Casey’s “reason” may be judged.

Such a combined movement would have given Wright ample reinforcements, and in the mounted volunteers the very arm he most needed; for infantry could never reach the Indians on those plains in summer unless the latter chose to fight. And for the second time he was given the opportunity, by availing himself of the coöperation of the volunteers, to inflict a severe punishment upon the enemy. Unhappily Wool’s orders tied his hands, and Wright himself was imbued with Wool’s delusion that the Indians of the upper country—the great hostile tribes that had plotted and brought on the war fresh from treacherously signing the treaties at Walla Walla, had murdered the miners and agent Bolon, and had plundered Fort Walla Walla, and laid themselves in wait to cut off Governor Stevens and his party—were innocent and peaceably disposed Indians, who had been forced to war by the aggressions of the whites.

Upon Casey’s rejection or evasion of the joint operation he proposed, Governor Stevens determined to push his mounted men across the mountains, and throw upon that officer the burden of protecting the settlements upon the Sound against hostile incursions. Accordingly he offered to turn over to him his posts on the Puyallup, and on Connell’s and

South prairies, and the colonel received and occupied them, for which he was censured and rebuked by Wool as soon as the latter was informed of it. The governor was convinced that the war could be brought to a close only by subduing the hostile tribes of the upper country; that until this was done the Sound country was liable to their raids and stirring up of fresh outbreaks among the Sound Indians; and that every day's delay in striking them was helping Kam-i-ah-kan and his emissaries in winning over the Spokanes, Cœur d'Alenes, and disaffected Nez Perces to their side. He also deemed it necessary to send supplies and Indian goods to Craig and Lawyer, and strengthen their hands in keeping the Nez Perces loyal, now left more exposed by the withdrawal of the Oregon volunteers from the Walla Walla valley. He proceeded, therefore, to carry out his plans, cherished from the beginning, of striking a blow in the upper country.

On June 12 Lieutenant-Colonel Shaw marched from Camp Montgomery with one hundred and seventy-five mounted men of the Central and Southern battalions, under their respective majors, Blankenship and Maxon, comprising Captain Henness's Company C, Maxon's Washington Mounted Rifles, Company D, under Lieutenant Powell, Captain Miller's Company J, and a pack-train of twenty-seven packers and one hundred and seven pack animals, under Captain C.H. Armstrong, the regimental quartermaster and commissary. On the 20th he reached the Wenass branch of the Yakima, with the loss of only one animal, finding the road good for a mountain road. Colonel Wright was still parleying with the Yakimas, trying to patch up a peace, and not only with them, but also with Leschi, Kitsap, Stahi, Nelson, and Qui-e-muth, the hostile chiefs who had fled from the Sound country, and would vouchsafe no information or suggestion to the volunteer colonel, except the statement that the regular troops were amply sufficient for the Yakima. Shaw therefore continued his march, crossed the Columbia at old Fort Walla Walla, and reached and made camp on Mill Creek, in the valley, on the 9th of July.

Having seen the necessary arrangements made, and orders given for Shaw's march, the governor hastened in person to the Dalles, arriving there June 12, where he had already assembled Captains Goff's and Richards's companies, in anticipation of operating in the upper country.

He had previously, on April 27, inquired of Colonel Wright if he intended to occupy the Walla Walla valley, and if, in case it were not occupied, and the Oregon volunteers there were withdrawn, he could furnish an escort of one company to guard the train to the Nez Perce country. To this Wright replied that it was no part of his plan of campaign to occupy the Walla Walla country, “as we are assured that the Indians in that district are peacefully inclined,” and that the matter of an escort was referred to General Wool, which, of course, was equivalent to refusal. The governor, on receiving this reply, at once wrote Wright:—

“My information in regard to the Indians in the Walla Walla, and on the Snake River, is that they are determined to prosecute the war. This was the declaration made by the prominent chiefs of the Cuyuses to the express of Mr. McDonald some weeks since. This is the opinion of my agent in the Nez Perce country and of the Nez Perce chiefs, and it would seem to be indicated by the recent attack by the Indians on the volunteers at the Umatilla.

“I have therefore thought it my duty to communicate these views, and I will suggest that you receive with great caution any information of their peaceful intention, to the end that you may not be thrown off your guard.”

Thus Wright was fixed in the opinion that these Indians were peaceably disposed, all evidence to the contrary notwithstanding. He ignored the information and views given him by Governor Stevens, who, as Superintendent of Indian Affairs, was especially charged with the care and management of them; the information furnished by the Hudson Bay Company's officer at Colville; the opinions of the Nez Perce chiefs and agent Craig; and even a recent attack actually made upon a post of Oregon volunteers on the Umatilla.

The governor now notified Wright of Shaw's march and orders to coöperate with him:—

“His orders are to coöperate with you in removing the seat of war from the base of the mountains to the interior, and for reasons affecting the close of the war on the Sound obvious to all persons.

“He will then push to the Walla Walla valley, crossing the Columbia at Fort Walla Walla.

“The supplies and escort for the Walla Walla will move from the Dalles on Friday morning.

“The Walla Walla valley must be occupied immediately, to prevent the extension of the war into the interior.

“Kam-i-ah-kan has, since your arrival on the Nahchess, made every exertion to induce the tribes thus far friendly to join in the war. He has flattered the Spokanes, where he was on the 25th of May, and has endeavored to browbeat the Nez Perces. The Spokanes have answered in the negative, and the Nez Perces will, I am satisfied, continue friendly.

“I am ready, as the Superintendent of Indian Affairs, to take charge of any Indians that may be reported by yourself as having changed their condition from hostility to peace.

“From all I can gather, I presume your views and my own do not differ as to the terms which should be allowed the Indians, viz., unconditional submission, and the rendering up of murderers and instigators of the war to punishment.

“I will, however, respectfully put you on your guard in reference to Leschi, Nelson, Kitsap, and Qui-e-muth, from the Sound, and suggest that no arrangement be made which shall save their necks from the executioner.”

But the governor's wise and patriotic efforts to secure coöperation, and this fine opportunity to strike the enemy a crushing blow, were frustrated by Wright's pacific attitude and the cold shoulder he turned to Shaw. It was indeed hard to induce concert of action, especially aggressive action, between authorities who knew the Indians as hostile and murderous, and to be subdued only by defeat and punishment, and officers who regarded them as wronged, and deserving to be made peace with and protected. Thus Wool's pernicious and inexcusable views and orders paralyzed the campaign of his subordinate, who shared his delusion.

The governor remained at the Dalles some two weeks, combining and expediting the movements of his two columns to the Walla Walla valley, and gaining the latest information from the Indian country, and returned to Olympia June 30.

On this trip the governor summarily dismissed a quartermaster at Vancouver for dishonest conduct, and the incident was made the subject of a caricature

by John Phoenix, the *nom de plume* of that inveterate wit and joker, Lieutenant George H. Derby, who was then stationed at Vancouver.[\[11\]](#)

It will be recollected that the governor left Captain Sidney S. Ford in the Walla Walla to organize a company for home defense of the few settlers who had returned with the Oregon volunteers. He succeeded in raising twenty-five men, but was soon succeeded by a company under Captain Henry M. Chase, composed of ten whites and forty-three Nez Perces. On the withdrawal of the volunteers, they, too, had to be disbanded, and the valley was wholly abandoned.

On the 22d the two companies under Captains Goff and Williams, who succeeded Richards, mustering one hundred and seventy-five men, with a train of forty-five wagons and thirty-five pack-animals, in charge of Quartermaster Robie, marched from the Dalles, and on July 9 joined Shaw on Mill Creek, except a detachment of seventy-five men under Captain Goff, which left the train on the Umatilla to go to the assistance of Major Lupton, of the Oregon volunteers, who was in the presence of a force of the enemy in the Blue Mountains. Goff and Lupton followed the hostiles across the mountains, and on the 15th and 16th inflicted a sharp blow upon them on Burnt River.

Lieutenant-Colonel Craig, with a force of seventy-five Nez Perce volunteers under Spotted Eagle, marched from Lapwai and joined Shaw's command, also on the 9th, so that the three columns, starting from points as widely divergent as Puget Sound, the Dalles, and Lapwai, all met in the valley on the same day. The Nez Perces gave assurances of the continued friendship of the tribe, and Robie proceeded with the train of Indian goods to their country under their escort alone.

Thus far Shaw had encountered no enemy in his march, the Yakimas being virtually protected by Colonel Wright and his parleyings, and the Cuyuses and Walla Wallas having left the valley; but learning that the hostiles were in the Grande Ronde valley in force, he determined to strike them. Moving by night by an unused trail across the Blue Mountains, guided by the faithful Nez Perce chief, Captain John, he encountered the enemy on the third day, July 17, in the open valley. Although taken by surprise, they received him in a defiant attitude; large numbers of braves, mounted and

armed, and with a white scalp borne on a pole among them, confronted him, while the squaws were fleeing across the valley to seek refuge, and, on Captain John's approaching them to parley, cried out to shoot him. Upon this, throwing off his hat, and with a shout, the tall, rawboned leader of the volunteers instantly charged at the head of his men, his long red hair and beard streaming in the wind, broke and scattered the Indians, chased them fifteen miles clear across the valley, killed forty, and captured a hundred pounds of ammunition, all their provisions, and over two hundred horses and mules, many of which bore the United States brand, and had been evidently run off from Wright's and Rains's commands. Shaw's loss was only three killed and four wounded.

Having driven the hostiles beyond the Grande Ronde, and not having sufficient supplies to warrant pursuing them farther, Shaw returned to his camp in the Walla Walla.

Meanwhile Robie had been threatened and ordered out of the Nez Perce country by the disaffected portion of that tribe, and had returned by forced marches to the valley, but on learning of Shaw's victory, and in answer to his message that "if they beat their drums for war, he would parade his men for battle," the recusant chiefs again made professions of friendship. Lawyer and the majority of the tribe were unwavering in their friendship, but there were a considerable number who sympathized with their Cuyuse kindred, and repented having made the treaty, among whom Looking Glass, Red Wolf, Joseph, and Eagle-from-the-Light were leaders.

One of the first acts of Colonel Wright at the Dalles had been to release the Cuyuse war chief, Um-how-lish, whom the governor had captured and brought to that point, and to allow him to return to his people, accepting all his professions at par. Under this encouragement some of the friendly Cuyuses and the families of some of the hostiles had taken refuge among the Nez Percés, despite the governor's refusal to permit them to go there. The very thing he apprehended occurred, viz., the disaffected and hostile Cuyuses, visiting their kindred with, and mingling among, the Nez Percés, had stirred up considerable disaffection in this hitherto faithful tribe. Moreover, the Yakima emissaries had assured the Nez Percés that the Spokanes were about to break out against the whites, and threatened them with the same treatment accorded the whites, unless they, too, would make

common cause against the encroaching race. Lawyer and Craig, therefore, were sorely troubled to hold firm the wavering friendship of the disaffected part of the tribe, and had written the most urgent messages to the governor for assistance. Hence his great anxiety to have the Walla Walla valley held in force, and to get through to the Nez Perce country a train bearing supplies and encouragement to the faithful chiefs.

Shaw's victory occurred most opportunely to restrain the disaffected, and both he and Craig represented that the moral effect of it was great and salutary upon them. The governor therefore decided to proceed in person to Walla Walla, and there hold a council with the Indians, in order to confirm the friendship of the Nez Percés and restrain the doubtful and wavering from active hostility. He directed Craig and Shaw to summon the hitherto friendly Indians, the Nez Percés, Spokanes, Cœur d'Alenes, and friendly Cuyuses, to the council; and also to send messengers to the hostiles, inviting them to attend it also, under the sole condition of submission to the government, requiring them to come unarmed, and assuring them of safe conduct to, at, and from the council. He took this course in order to give the hostiles every opportunity to give up the conflict and accept peace, if their minds were ripe for it, and also to refute the infamous charges of Wool and satisfy the doubts or scruples of other regular officers, by demonstrating his earnest wish to end the war and treat the hostiles with all possible leniency. To this end, on August 3 he wrote a pressing invitation to Colonel Wright to attend the council, recommended him to establish a permanent garrison in the Walla Walla valley, and requested a conference at the Dalles on the 14th of September.

The governor called out two hundred more volunteers to maintain the strength of Shaw's command, whose term of enlistment was about to expire, for he deemed it indispensable to hold the Walla Walla valley.

Colonel Wright, acting on Wool's theory of wronged and innocent Indians, had suffered himself to be completely deceived by the wily Yakimas, and had given open ear to their lying tales and treacherous professions, and, without striking a blow, or seizing a single murderer, or exacting any guaranty for future good behavior,—not even a promise to observe their treaty and allow whites to come into their country,—had concluded a quasi-peace with them. This was as great a victory for their diplomacy as Haller's

defeat was for their arms. It rendered Wright's campaign utterly abortive, saved them from losses and punishment, recognized as valid their objections to the treaty and the presence of white settlers, and left Kam-i-ah-kan and his followers free to continue their machinations among the doubtful tribes, which they were actively carrying on.

While these wily Indians were thus beguiling Wright, they also tried their diplomacy on the authorities on the west side of the Cascades. In May Indian messengers from Ow-hi and Te-i-as—two of the most cunning and treacherous of the Yakima chiefs, the former second only to Kam-i-ah-kan, as well as foremost in bringing on the war—approached Colonel Simmons through friendly Indians, pretending a desire to make peace, and were sent to Olympia to the governor. After conversing with them, the latter was satisfied that they came only as spies and trouble-instigators, but directed them to return to the chiefs who sent them, bearing his invitation to all who wished to resume friendly relations to come with their women and children to the prairie above Snoqualmie Falls, and submit to the justice and mercy of the government; that only those guilty of murder and instigating the war would be punished, and all others would be pardoned and kindly treated, like the Indians on the reservations. At the same time he charged Colonel Fitzhugh, in connection with Colonel Simmons, with the mission of bringing about the surrender of the Indians in question in case they were acting in good faith. Three weeks later, June 20, Fitzhugh reported that his mission had turned out a perfect failure, that the governor was correct in his opinion, that the messengers only wanted to gain time and information, and added:—

“The Indians expected to make better terms with Colonel Wright, who had been entertaining them and making them presents on the other side of the mountains, and had told them that he was the ‘Big Dog’ in this part of the world, and had come a long distance to treat with them, and if they would only stop fighting all would be well. As things now are, they will have to be well thrashed before they will treat. From the beginning of the difficulty to the present time, the regulars, from their commander-in-chief down, have stultified themselves. They have done no fighting, and now they wish to patch up a treaty, so as to get the credit for putting an end to the war.”

Little did the cunning Ow-hi foresee the tragic fate that awaited him and his son, only two years later, at the hands of Colonel Wright.

Thus ingloriously was the war carried on, or rather paralyzed, by the regular forces in the upper country. The only blow inflicted upon the hostiles of that region during the year was struck by Shaw in the Grande Ronde, and the effect of that was dissipated by the subsequent behavior of Wool's officers.



CHAPTER XL

THE FRUITLESS PEACE COUNCIL

It will be remembered that Colonel Wright, hugging his delusion and shutting his eyes to obvious facts, in April expressed the opinion that the hostile Cuyuses and Walla Wallas were “peaceably disposed” when declining to occupy the valley or furnish an escort for the Nez Perce train. The governor, by bringing him to attend the council and see and judge for himself, hoped to open his eyes to the real situation, and to induce him to take a more manly and aggressive course in case the Indians persisted in the war.

Accordingly, leaving Olympia August 11, Governor Stevens reached Vancouver on the 13th, and there met Colonel Wright, who informed him that he was unable to attend the council from pressure of other duties, but that he was dispatching a force of four companies of regulars under Lieutenant-Colonel Steptoe in season to be present, and that the governor could rely upon that officer for support in case of need, an assurance not made good, and which involved him in no little personal peril.

As it was no longer necessary to maintain Shaw’s force in the valley, since the regulars were to occupy it, the governor now revoked his call for two hundred more volunteers.

Traveling together to the Dalles, the governor and Colonel Wright had repeated conferences en route, and at that point also met and conferred with Lieutenant-Colonel Steptoe, Major Lugenbeel, and Captain Jordan, with the result, as the governor supposed and reported to the Indian Bureau, of establishing “the most cordial and effective coöperation in all the measures taken to maintain the friendly relations of the tribes east of the mountains.” It is evident that Governor Stevens, by his personal ascendancy over men, and the manifest wisdom and necessity of his measures, actually compelled these officers, like Lieutenant-Colonel Casey, to a degree of coöperation incompatible with Wool’s orders, and probably repugnant to their own

prejudices. It is impossible, however, to acquit Wright and Steptoe of a lack of candor in concealing from the governor the real character of Wool's instructions, and in leading him to expect their faithful coöperation and support. For not only had Wool positively forbidden anything of the kind, but had ordered them to disarm the volunteers, if they had sufficient force to do so, and expel them from the Indian country, as appeared from Wool's orders when subsequently published by the government. He also ordered them to exclude American settlers from the entire upper country, but not to interfere with the Hudson Bay Company people, it being his intention to make the Cascade Range a scientific frontier to the settlements.

It is noteworthy that the officers of the 4th infantry, who garrisoned the country at and before the outbreak of the war,—Alvord, Rains, Haller, Maloney, Slaughter, and Nugen,—agreed perfectly with the territorial authorities and the people as to the causes of the outbreak, and were always ready to coöperate with them. It was Major Alvord who first detected and reported the existence of the Indian conspiracy, and Major Rains who called for the volunteers.

But the officers of the 9th infantry, like Wright and Casey, were newcomers in the country, bound by Wool's orders, and prejudiced by his infamous slanders, and undoubtedly affected by professional jealousy. They were ready to ignore the territorial authorities, and to make peace by restraining the whites instead of punishing the hostile Indian aggressors. They prolonged the war east of the mountains and kept back the settlement of the country for two years, but at last the scales were torn from their eyes by stern experience; they realized how mistaken had been their views and fruitless their policy, and found themselves obliged to adopt the views of Governor Stevens and make war in earnest. Then, under the severe blows of Wright, the hostile tribes were finally punished and subdued, and permanent peace assured.

On the day after reaching Vancouver the governor held a council with a band of Klikitat Indians, at which Colonel Wright was present, and made arrangements for removing them temporarily to their original home east of the Cascades on the Klikitat River, with the view of placing them ultimately on the Yakima reservation. He informed Colonel Wright that he would receive and care for, as Superintendent of Indian Affairs, any surrendered

Indians, except the Sound murderers,—Leschi, Qui-e-muth, Nelson, Sta-hi, etc.,—to whom he had already cautioned him against granting amnesty. He now made formal requisition upon Colonel Wright for the surrender of these chiefs to be tried for their crimes, and notified him that he had forbidden the Indian agents to receive them on any reservation either east or west of the Cascades. He gave full and careful instructions on all these matters to the agents on the river,—Captain J. Cain, who had general charge of the Indians on the Columbia, Mr. Field at Vancouver, Mr. Lear at the Cascades, and the agent near the Dalles,—and made the necessary arrangements to meet all exigencies. This trip affords one of many examples of the governor's untiring zeal and energy in the public service. In a single week he travels sixty miles on horseback, thirty in canoe, and forty by steamboat to Vancouver; holds a council with the Klikitats, and arranges for removing them from the settlements; instructs five Indian agents; revokes his call for volunteers; confers with Colonel Wright; demands of him the surrender of Indian murderers for punishment; travels eighty miles farther to the Dalles; and, by repeated conferences with Wright and his officers, secures their coöperation, as he has reason to believe. Moreover, he finds time to write the most clear and detailed reports to the Indian Bureau and to the Secretary of War.

Leaving the Dalles on the 19th, and pushing forward in advance of Steptoe with a train of thirty wagons drawn by eighty oxen, and two hundred loose animals, attended only by Pearson, and without escort except the employees, Governor Stevens reached Shaw's camp in the valley on the 23d. On the evening of the 28th a small pack-train was captured by the Indians within a few miles of camp, the packers escaping on their horses without loss, after firing away all their ammunition. The governor was much chagrined at this, the only loss of animals or supplies suffered by his volunteers during the whole war, and in orders rebuked the parties whose negligence was responsible for the mishap, and concluded:

“He desires to impress upon the troops the fact established by experience, especially in the present Indian war, that bold and repeated charges upon the enemy, even when the disparity of numbers is great, will alone lead to results. In this way only can the superiority of our race be established. In all mere defensive contests with Indians, whether behind breast-works or in the brush, an Indian is as good as a

white man; few laurels can thus be won, and the result may be discreditable.”

Craig and Dr. Lansdale, the latter the agent for the Flatheads, just down from the Bitter Root valley, arrived on the 30th with some of the Nez Perce chiefs. The next day agent Montour and Antoine Plante came in from the Spokanes and reported that, although the tribe professed a friendly disposition, they would not attend the council. Captain D.A. Russell (later major-general commanding 1st division, 6th corps, Army of the Potomac) with three companies marched from the Yakima to the Columbia, opposite old Fort Walla Walla, and, being without means of crossing, the governor sent him a wagon boat guarded by twenty volunteers, by means of which he ferried his command over the river. On the 5th Steptoe reached the valley, and went into camp four miles below the governor’s camp, his force, including Russell’s, consisting of four companies. The volunteers were therefore all started for the Dalles, their term of service expiring on the 8th, except Captain Goff’s company, which cheerfully consented to remain as a guard at the camp until relieved by the regulars.

Lawyer and the bulk of the Nez Perces arrived on the 6th, and encamped four miles above. A train of Indian goods under Robie reached the camp the next day. On the 8th the governor received the Nez Perce chiefs and headmen to the number of three hundred, after which he held a conference with the chiefs, and entertained them at dinner. Father A. Ravalli, of the Cœur d’Alene mission, arrived in the evening, bringing important information. Reports the governor:—

“The Father reports having seen and conversed with Kam-i-ah-kan, Skloom, Ow-hi, and his son, and that they will not attend the council. The Spokanes also declined coming. He also saw Looking Glass, who was not well disposed, and said he would not come to the council. From Father Ravalli’s report, it became evident to me that all the Indians in the upper country, if not openly hostile, were yet far from entertaining a disposition for friendship to be relied upon. Kam-i-ah-kan had taken advantage of the cessation of hostilities against him in the Yakima to circulate the grossest falsehoods as to the objects of the government in making treaties, against the volunteers, the miners, the settlers, and Americans in general, and he declares that no settler shall

live in the country. These falsehoods are universally credited by the Indians, and thus Kam-i-ah-kan, who personally visited most of the tribes, has by his intrigues been enabled to excite to a point verging upon open hostility all the tribes in the upper country, withdrawing from their allegiance one half of the Nez Perce nation. As yet, however, the Spokanes, Cœur d'Alenes, and Colvilles have not molested the settlers or miners passing through their country."

On the 9th provisions were issued to the Nez Percés. In the evening it was reported that a party of volunteers on their way to the Dalles were being attacked by the hostile Indians, and Colonel Shaw was dispatched to their assistance with all the volunteers in camp and a detachment of Nez Percés. This left the governor with only ten men, and as he expected to open the council the next day, and had a large quantity of Indian goods on the ground, he requested Steptoe to send a company of dragoons to the council ground as early as practicable. In notes to and conversation with him the governor had repeatedly requested him to camp at or near the council ground, in order "to show the Indians the strength of our people and the unity of our councils." In sending the wagon boat to Captain Russell he made a similar request. He well knew that the pacific and parleying attitude of the regular officers had imbued the Indians with the idea that the regular troops were a different people from the settlers and volunteers. He wished to disabuse the Indians, and moreover a guard would be indispensable for the protection of his camp and supplies as soon as the last of the volunteers moved away. Wright's assurances, and the cordial conferences with that officer and Steptoe, fully justified him in relying upon their support.

The next morning Colonel Steptoe moved his camp farther up the valley, and on his way called at the governor's camp with a company of dragoons. The latter, supposing that, after his repeated request and the manifest necessity of the case, Steptoe would of course encamp near by, did not reiterate his request, and the regular officer continued his march and established his camp eight miles above the council ground, leaving it wholly unprotected. Fortunately Shaw, with his small force, returned in the afternoon, the rumored attack proving a false alarm, and reported having seen Stock Whitley, chief of the Des Chutes Indians, who said his people and the Cuyuses would come to the council that day. The opening of the council was postponed to the morrow. Later in the afternoon these Indians,

with the Umatillas in large force, advanced mounted to within a short distance of camp, then, without any salutation or shaking hands, wheeled and moved off to the Nez Perce camp, where they partook of a feast prepared for them, after which they encamped just above their hosts. This demeanor, with the facts that they fired the prairie when coming in, and treated some members of the party with great insolence, was indicative of anything but a friendly spirit.

The governor now ordered the company of volunteers to march for the Dalles the next morning, and made a requisition on Colonel Steptoe for the presence of two companies of troops on the council ground, stating that the Cuyuses had all come in, and, as the volunteers were about to leave, it was essential to have a force on the ground to control the Indians. Incredible as it may seem, Steptoe refused, giving several lame excuses, and his real reason in the following pregnant sentence: "And permit me to say that my instructions from General Wool do not authorize me to make any arrangements whatever of the kind you wish." As the governor requested no arrangements except that a regular force should camp near him to protect his council ground and show the Indians "the unity of our councils," as he bore the President's commission, and was charged by the government with the care of the Indians, this act shows to what length the malignity of Wool and the prejudices of a somewhat weak though well-meaning officer could extend. The fact was that these regular officers had idealized the Indians, accepting as true the falsehood of Kam-i-ah-kan, sympathized with the savages, and were "down" on the settlers and volunteers.

The governor learned for the first time from this note that Steptoe had moved his camp so far away, for he had taken it for granted that that officer had encamped near by. Therefore he retained Goff's company of only sixty-nine men for the protection of the council, countermanding the order for it to march below in the morning. A portion of it was already one day's march on their way down, but was immediately brought back.

The council was duly opened the next day, September 11, the chiefs of the Nez Perce, Cuyuse, Umatilla, John Day, and Des Chutes Indians being present. The governor expressed his sorrow at the state of hostilities,—reviewed the course of Kam-i-ah-kan, Pu-pu-mox-mox, and the hostiles in accepting their treaties, professing the utmost satisfaction with them, and

then murdering whites traveling through their country and their agent, Bolon, plundering Fort Walla Walla, burning the houses of settlers, and threatening the lives of himself and party returning from the Blackfoot council. He had labored only for their good as their friend, and could they wonder that he was grieved at this state of affairs? The provisions of the treaties relating to punishments for offenses committed by Indians upon whites, or by whites upon Indians, were fully explained, and the fact stated that under the treaties they had bound themselves to deliver up the murderers. It was the law, and to that they must submit. Men were killed on both sides in battle, but that was not murder. But the Indians who killed their agent, Bolon, and others must be given up to be tried and punished by the law. He invited all Indians who desired peace to submit unconditionally to the justice and mercy of the government; the lives of all except the murderers should be safe. He spoke of the Indians of the Sound who had surrendered and been placed on reservations, fed, clothed, and protected, and treated not harshly, but with kindness. Few of the hostiles were present. Many conflicting rumors were current as to the whereabouts of Kam-i-ah-kan and other hostile chiefs.

The council continued the next day. The governor said that he had given his views in regard to the war and how it could be ended, that his words were intended for all the Indians of the country, and called upon them to express their minds. The Indians manifested a reluctance to speak, each seeming to wait for another. Several chiefs expressed sorrow that war existed, and hoped a peace might be made. Peeps, a hostile Cuyuse chief, said there was no haste, as Kam-i-ah-kan was coming, and they waited for him.

Wee-lap-to-leek, a hostile chief of the Tigh Indians, a band near the Dalles, said that the Indians were determined to have their country; they would bet it on a fight with the whites, and the winners should take it. He was indorsed by Camas-pello, former war chief of the Cuyuses.

Eagle-from-the-Light, the prominent Nez Perce chief, complained bitterly because a Nez Perce brave had been hanged in the valley last winter by the Oregon volunteers, and asserted that the man was guiltless. He was followed by others in the same strain.

The governor explained the laws of the whites in regard to spies, and that the executed Nez Perce was punished as one, and that he would speak further of the case the next day, after he had learned all the facts. He then adjourned the council, expressing the hope that Kam-i-ah-kan and Garry would be present the next day.

The Indians held councils in their camps all night. So hostile were the Cuyuses, Umatillas, Walla Wallas, and others, and so much did more than half of the Nez Perces sympathize with them, that the friendly Nez Perces danced the war-dance during the whole night. The lives of the friendly chiefs were threatened, and the great bulk of the Indians seemed simply to be waiting for the coming of Kam-i-ah-kan to fall upon the governor and his party. Some of the Indians were detected attending the council with arms under their blankets, and posting themselves near the governor and other members of the party; but although no open notice was taken of them, the redoubled vigilance of the volunteer guards gave no chance for their premeditated treachery.

Early the following morning the governor sent the following letter to Steptoe:—

COUNCIL GROUNDS, WALLA WALLA VALLEY, W.T.,
September 13, 1856.

LIEUTENANT-COLONEL E.J. STEPTOE.

My dear Sir,—The council did not adjourn yesterday till near sundown. I understand the feelings of the Indians from what was developed yesterday.

The want of a military force on the ground seriously embarrassed me (I have retained for a day some fifty of Goff's company), but having called the council in good faith as the Indian superintendent, and also as the commissioner to treat with the Indian tribes by the appointment of the President, I shall go through with the duty I have undertaken.

One half of the Nez Perces and all the other tribes, except a very few persons, are unmistakably hostile in feeling. The Cuyuses, the Walla Wallas, and other hostiles were so when they came in. Hence the requisition I made upon you for troops.

I particularly desire you to be present to-day, if your duties will permit, and I will also state that I think a company of your troops is essential to the security of my camp.

I shall, as I said, go through with this business whatever be the consequences as regards my own personal safety, but I regard it to be my duty to the public, to the Indians, and to my own character.

This communication is marked confidential, but is intended as an official communication, and will go on my files as such, only I do not think it prudent that my judgment as to the aspect of affairs should, at this time, be disclosed to any other person than yourself.

I have the honor to be, very respectfully,

Your obedient servant,

ISAAC I. STEVENS,

Governor and Superintendent.

While this letter was being dispatched the council reopened, and the governor took up the case of the Nez Perce spy, showed that he had joined Kam-i-ah-kan, taken presents from him, participated in burning settlers' houses and in stirring up hostilities, and pointed out that Kam-i-ah-kan and his people were to blame for the death of this man, for they had caused the war, and but for them he would still have been living. He had visited and been arrested in the volunteer camp in time of war, and duly tried, convicted, and executed. Finally Red Wolf, to whose band the spy belonged, admitted that he committed the offense for which he was punished, and this ended all complaint.

Speaking Owl, a Nez Perce chief and the mouthpiece of Looking Glass, now spoke up and said, "Will you give us back our lands? That is what we all want to hear about; that is what troubles us. I ask plainly to have a plain answer." The governor, in his report to the Indian Bureau, comments on this demand as follows:—

"Now thus far there had not been the slightest allusion to the land of the Nez Percés in council, and this rapid change of front was most extraordinary. The case of the Nez Perce who was hanged was simply a device by means of which they hoped to get the desired concession

from me by way of propitiation. When they were obliged to abandon the case, they had no alternative but to show their hand, which they did very promptly. I called upon Lawyer, the head chief, to speak. He produced his commission and a copy of the Nez Perce treaty, remarking that he knew that, if he cast away the laws, he should be brought to justice. He pointed out to them the boundaries of the country sold, and of the reservation, and spoke of other provisions of the treaty, and concluded by saying that fifty-eight great chiefs of the Nez Percés had signed the treaty made at the council of last year, when all fully understood it, and it was his determination to abide by it, and he trusted his people would do the same.”

Timothy and James expressed a similar determination, but Joseph, Speaking Owl, Eagle-from-the-Light, and Red Wolf denied that they understood the treaty, or ever intended to give their land away, and declared that Lawyer had sold it unfairly. It appeared almost certain that no satisfactory peace could be made with the hostiles, and that one half of the Nez Percés, through the intrigues of Kam-i-ah-kan and the Cuyuses, had become disaffected and desirous of annulling their treaty.

In the afternoon a company of dragoons came with Steptoe’s answer to the governor’s dispatch of the morning:—

“If the Indians,” he wrote, “are really meditating an outbreak, it will be difficult for me to provide for the safety of my own camp, *impossible* to defend *both* camps. Under these circumstances, if you are resolved to go on with your council, does it not seem more reasonable that you shall move your camp to the vicinity of mine? I send down the company of dragoons to bring you up to this place, if you desire to come. My force is so small that to be efficient against the large number of savages in the neighborhood it must be concentrated; nor can I detach any portion of it, in execution of certain instructions received from General Wool, while the Indian host remains so near to me.”

In view of the threatening attitude of the hostiles, and the approach of Kam-i-ah-kan, who was reported as encamped that day on the Touchet, only a few miles distant, as well as for the protection of the large quantity of Indian goods brought up for the friendly Nez Percés, and such of the

hostiles as might surrender, the governor the next day moved his whole party and train to Steptoe's camp, and established a new camp and council ground within a quarter of a mile of his encampment. They were met on the march by Kam-i-ah-kan and Ow-hi, with a party of one hundred warriors under the lead of Ow-hi's son, Qualchen, who clearly meant mischief; but the coolness with which they were received, and the manifest readiness of the volunteers and dragoons for battle, checked them, and they made no disturbance save attempting to provoke a quarrel with the friendly Nez Perces in rear of the train. The Indians, having been notified in the morning of the change of council grounds, moved up to the new location the same day and the following. Kam-i-ah-kan and his followers encamped a quarter of a mile from the council ground, separated therefrom only by Mill Creek and its wooded bottom.

The council continued the next two days, the 16th and 17th. The Lawyer and half the Nez Perces were determined in their adherence to their treaty and ancient friendship to the whites, and approved of all the governor said. The other half of the tribe wished the treaty done away with. The hostiles all said, "Do away with all treaties, give us back our lands, let no white man come into our country, and there will be peace; if not, then we will fight."

The governor advised the Nez Perces to stand by their treaty. It was now in the hands of the President, and could only be set aside by him. To the hostiles he repeated the terms of peace alone possible: they must throw aside their guns and submit to the justice and mercy of the government; but as they were invited under safe conduct, they were safe in coming, safe in council, and safe in going. The council was then declared at an end. Many of the friendly Nez Perces departed at once to their camp, but a large number of hostiles, most of whom it was observed had arms concealed beneath their blankets, remained loitering around the council ground. Noting the vigilance and readiness of the volunteers, they made no disturbance, and by nightfall all retired to their camps. On every day except the first, known braves of the hostiles came to the council armed to the teeth, and took positions evincing designs upon the life of the governor; but picked men watched them closely, ready to strike down any assailant at the first overt act, so no attempt was made.

During the night of the 16th there was great excitement among the Indians. The friendly Nez Perces were much alarmed, and brought frequent reports that the hostiles were bent upon attacking the camp, and wiping out the governor and his party. These faithful allies beat the drum all night, and kept guard around his camp.

The governor called attention especially to the speech of Spotted Eagle on the last day,—

“which for feeling, courage, and truth, I have never seen surpassed in an Indian council. The Spotted Eagle is the great war chief of the Nez Perces, and the right arm of Lawyer. Both the words and manner of the Spotted Eagle showed that his object in speaking was to set himself and the friendly Indians right, and that he had no expectation of changing the hearts of those who were bent on war. His words, however, ‘I will not follow you into the war,’ were significant.”

The day after the conclusion of the council the governor made preparations for returning to the settlements. He decided to withdraw Craig temporarily from the Nez Perce country on the advice of the friendly chiefs, who feared he might be killed by Kam-i-ah-kan’s warriors as a means of embroiling the Nez Perces in war against the whites. Said the Spotted Eagle:—

“If you [Craig] do not return with me, we shall go back as if our eyes were shut. I think my people will not go straight if Craig gets up from that place. But, my friend Craig, on account of the talking I have heard at this place, I am afraid for you.”

That afternoon Steptoe had a conference with the Indians, in which he declared: “My mission is pacific. I have come not to fight you, but to live among you. Come into my camp when you please. I trust we shall live together as friends,” and he appointed the next day for a fuller conference with the chiefs. By this action Steptoe intentionally repelled the governor’s wise recommendation and endeavor to “show the Indians the strength of our people and the unity of our councils.” Reports the governor:—

“Indeed, the Indians looked upon the Indian superintendent and the military officer as not representing a common cause. The former in the morning parts from them, having signally failed in making any

arrangement to end the war; the latter speaks to the Indians as though there was no war, and therefore no necessity of making any arrangement at all.

“The Indians, sharp-sighted and constantly on the alert from the merest trifles to draw conclusions as to character and policy, saw there did not exist between the Indian Department and the military the proper coöperation.”

What next occurred is graphically related by the governor, in his report to Secretary of War Davis, as follows:—

I was occupied the remainder of the day and the next morning in establishing Craig’s agency in the neighborhood of Steptoe’s camp, and a little before noon, with some fifty friendly Nez Perces in charge of sub-agent Craig, I started with the train and Goff’s company for the Dalles.

The Indians did not, however, come to see Steptoe at the time appointed. They previously set fire to his grass, and, following me as I set out about eleven o’clock on my way to the Dalles, they attacked me within three miles of Steptoe’s camp at about one o’clock in the afternoon.

So satisfied was I that the Indians would carry into effect the determination avowed in their councils in their own camps for several nights previously to attack me, that in starting I formed my whole party, and moved in order of battle.

I moved on under fire one mile to water, when, forming a corral of the wagons, and holding the adjacent hills and the brush on the stream by pickets, I made my arrangements to defend my position and fight the Indians. Our position in a low, open basin some five hundred or six hundred yards across was good, and with the aid of our corral we could defend ourselves against a vastly superior force of the enemy.

The fight continued till late in the night. Two charges were made to disperse the Indians, the last led by Lieutenant-Colonel Shaw in person with twenty-four men, but whilst driving before him some one hundred and fifty Indians, an equal number pushed into his rear, and he was

compelled to cut his way through them towards camp, when, drawing up his men, and aided by the teamsters and pickets, who gallantly sprang forward, he drove the Indians back when in full charge upon the corral.

Just before the charge the friendly Nez Perces, fifty in number, who had been assigned to holding the ridge on the south side of the corral, were told by the enemy, "We came not to fight the Nez Perces, but the whites; go to your camp, or we wipe it out." Their camp, with their women and children, was on a stream about a mile distant, upon which I directed the Nez Perces to retire, as I did not require their assistance, and I was fearful that my men might not be able to distinguish them from the hostiles, and thus friendly Indians might be killed.

Towards night I notified Lieutenant-Colonel Steptoe that I was fighting the Indians, that I should move the next morning, and expressed the opinion that a company of his troops would be of service. In his reply he stated that the Indians had burnt up his grass, and suggested that I should return to his camp, and place at his disposal my wagons, in order that he might move his whole command and his supplies to the Umatilla, or some other point, where sustenance could be found for his animals. To this arrangement I assented, and Lieutenant-Colonel Steptoe sent to my camp Lieutenant Davidson with detachments from the companies of dragoons and artillery with a mountain howitzer. They reached my camp about two o'clock in the morning, where everything was in good order, and most of the men at the corral asleep. A picket had been driven in an hour and a half before by the enemy,—that on the hill south of the corral, but the enemy was immediately dislodged, and all the points were held, and ground-pits being dug.

The howitzer having been fired on the way out, it was believed nothing would be gained by waiting till morning, and the whole force immediately returned to Lieutenant-Colonel Steptoe's camp.

Soon after sunrise the enemy attacked his camp, but were soon dislodged by the howitzer, and a charge by a detachment from Steptoe's command.

On my arrival at the camp I urged Lieutenant-Colonel Steptoe to build a blockhouse immediately, to leave one company to defend it with all his supplies, *then* to march below and return with an additional force and additional supplies, and by a vigorous winter campaign to whip the Indians into submission. I placed at his disposal for the building my teams and Indian employees.

The blockhouse and stockade were built in a little more than two days. My Indian store-room was rebuilt at one corner of the stockade.

In the action my whole force consisted of Goff's company of sixty-nine men, the teamsters, herders, and Indian employees, numbering about fifty men, and the fifty Nez Perces. Our train consisted of about five hundred animals, not one of which was captured by the enemy. We fought four hundred and fifty Indians, and had one man mortally, one dangerously, and two slightly wounded. We killed and wounded thirteen Indians.

One half the Nez Perces, one hundred and twenty warriors, all of the Yakimas and Palouses, two hundred warriors, the great bulk of the Yakimas, Walla Wallas, and Umatillas were in the fight. The principal war chiefs were the son of Ow-hi and the Isle de Père chief, Quil-to-mee, the latter of whom had two horses shot under him, and who at the council showed me a letter from Colonel Wright acknowledging his valuable services in bringing about the peace of the Yakima.

In his report to the Indian Bureau the governor adds:

“The Indians were greatly surprised at Steptoe's sending a force to my assistance, and Kam-i-ah-kan said on learning it, ‘I will let these men [referring to the regular troops] know who Kam-i-ah-kan is.’”

On the 23d the combined force, accompanied by Craig and the fifty Nez Perce auxiliaries, started for the Dalles, where they arrived on October 2 without incident of moment. Thus, as the governor remarks:—

“Circumstances had brought about the coöperation between the military and the Indian service which had not previously existed, and the words of Steptoe to the hostiles and mine to the friendly Indians corresponded. I had sent messengers to the Nez Perce country

directing the friendly Nez Perces to separate from the hostile Nez Perces, and to keep the latter out of their portion of the country. Steptoe sent word that good Indians he would protect, and bad Indians he would punish.”

In truth, a great change had come over Steptoe’s views. The burning of his grass and the attack on his camp were too strong even for the orders of Wool and his own prejudices. He writes to Colonel Wright from his camp on the Umatilla, September 27:—

“In general terms I may say that in my judgment we are reduced to the necessity of waging a vigorous war, striking the Cuyuses at the Grande Ronde, and Kam-i-ah-kan wherever he may be found.”

The day before the attack on the governor, he wrote the same officer:—

“As it is, he [Governor Stevens] complains that I have, by not aiding him, or by not coöperating heartily with him, actually opposed him. This may be so, but I certainly have done for him all, and more than, my instructions warranted.”

The governor warmly commends—

“the admirable conduct of the volunteers and the Indian employees not only during the council, but in all the operations east of the Cascade Mountains.... There was not a single case of injury either to the person or the property of a friendly Indian, or of injury to the persons or property of the hostiles, during the council. The kindness and forbearance of officers and men, agents and employees, even when treated with rudeness by the hostiles, was extraordinary. The strayed cattle and horses of the Indians were restored to them. The volunteers were well supplied, and were not tempted to plunder for subsistence. I have the permission of Colonel Steptoe to refer to him and his officers as witnesses of what I have stated, and have the assurance from Lieutenant-Colonel Steptoe that he has reported it to Colonel Wright, and of Colonel Wright that he has forwarded the report to General Wool.”

But Wool’s malignant animosity was not to be abated by the testimony of his own officers. He augmented his charges by declaring that Governor

Stevens had called the council on purpose to force war upon the friendly Indians.

Immediately on reaching the Dalles, Governor Stevens renewed his demand upon Colonel Wright for the delivery of the Sound murderers for trial. Writes Wright in reply:—

“You know the circumstances under which the Indians referred to were permitted to come in and remain with the friendly Yakimas. Although I have made no promises that they should not be held to account for their former acts, yet in the present unsettled state of our Indian relations I think it would be unwise to seize them and transport them for trial. I would therefore respectfully suggest that the delivery of the Indians be suspended for the present.”

But the governor firmly reiterated his demand, declaring:—

“If the condition of things is so unsettled in the Yakima that the seizing of these men will lead to war, the sooner the war commences the better. Nothing in my judgment will be gained by a temporizing policy.”

The result was that Colonel Wright gave an order on Major Garnett, who commanded the post in the Yakima, to deliver up to the governor, for trial before the courts, Leschi, Nelson, Qui-e-muth, and Stahi.

But any embarrassment that might be caused to the peace on the Yakima by the execution of this order was very cleverly obviated by sending these Indians, or permitting them to go, back to the Sound country, and placing them under the protection of Colonel Casey, as will more fully appear hereafter.

On the 5th Wright and Steptoe started for the Walla Walla, their force being increased one company. One of Colonel Wright's first acts on arriving there was to hold councils with the disaffected and hostile chiefs, the same who had so recently attacked the governor and the camp of his own officer, Steptoe, at which he assured them that “the bloody cloth should be washed, past differences thrown behind us, and perpetual friendship must exist between us.” He gave ready ear to their complaints and demands, adopted their views in regard to the Walla Walla treaties, and actually recommended

that they never be confirmed. Lieutenant-Colonel Steptoe put forth a proclamation, by order of General Wool, forbidding all white settlers to return to the country except the missionaries and Hudson Bay Company people. Wool instructs Wright under date of October 19: "Warned by what has occurred, the general trusts you will be on your guard against the whites, ... and prevent further trouble by keeping the whites out of the Indian country."

A month later Steptoe, who seems to have had doubts of the good faith of the Indians, and to apprehend that they might resume active hostilities in the spring, ventured to recommend that "a good industrious colony" be permitted to settle the Walla Walla valley, but Wool promptly negated this suggestion, declaring that "the Cascade Range formed, if not an impassable barrier, an excellent line of defense, a most valuable wall of separation between two races always at war when in contact. To permit settlers to pass the Dalles and occupy the natural reserve is to give up this advantage, throw down this wall, and advance the frontier hundreds of miles to the east, and add to the protective labors of the army." He charged Steptoe to carry out his orders strictly. Thus he joined hands with the Indian enemy to keep out American settlers from the region to which they had been especially invited by Congress by the Donation Acts, and strove to frustrate the policy of his own government of extinguishing the Indian title and settling up the country. Seldom has our history shown a more shameful betrayal of duty than this veteran officer and his subordinates making a quasi-peace by surrendering to the demands of the hostile Indians for the abrogation of the treaties they had accepted, and the exclusion of white settlers from their country, and seeking to lighten "the protective duties of the army" by abandoning the defense and protection of their own race.

Governor Stevens remained at the Dalles until the 6th, settling up the business of the expedition and the Indian service, when he proceeded down the river, and, after spending some days at Vancouver and Portland in discharge of his multifarious duties, reached Olympia on the 15th.

In his reports, both to the Indian Bureau and to Secretary of War Davis, Governor Stevens condemned with just severity this craven policy.

On learning of Colonel Wright's pacific and sympathetic talks with the disaffected and hostile chiefs in the valley, he again protested to Secretary Davis in the following indignant strain:—

“It would seem that, to get the consent of Colonel Wright to take the ground that a treaty should not be insisted upon, it was simply necessary for the malcontents to attack the Superintendent of Indian Affairs and his party. Now, one half of the Nez Perce nation, including the head chief, Lawyer, wish the treaty to be carried out. They have suffered much from their steadfast adherence to it. Are their wishes to be disregarded?

“It seems to me that we have in this Territory fallen upon evil times. I hope and trust some energetic action may be taken to stop this trifling with great public interests, and to make our flag respected by the Indians of the interior.”

The following, from his report of October 22 to the Indian Department, sums up the mistaken policy of the regular officers and its deplorable results, and gives his opinion of those neutrals in the war, the Hudson Bay Company and the missionaries:—

The department is aware that for many months I have been of opinion that a large portion of the Nez Percés were on the verge of hostilities, and that I deplored the mistaken course of Colonel Wright in the Yakima as tending directly to inflame the whole interior and prepare it for war. The war commenced, on our part, in the Yakima, in consequence of the attempt to arrest the murderers of Bolon, Mattice, and others, killed without provocation and under circumstances of unsurpassed atrocity. Two expeditions were made to effect this object and to punish the tribe. After the massacre of the Cascades, the third expedition, under Colonel Wright, went to the Yakima with the avowed object of pacifying the Indians, and a quasi-peace is made, and murderers are allowed to come into camp with impunity.

No effort is made to strike the Indians when within reach, and they breathe nothing but war, and the result of the campaign is that, after the chiefs had refused to come into council as they had promised, and weeks are fruitlessly expended in the attempt to negotiate, certain

Indians with their families come in, and the master spirits of these tribes, with the flower of the young men, go east of the Columbia to prepare for continuing the war.

I state boldly and plainly to the authorities that this mode of managing affairs is disgraceful to the government, and will bring with it in the future the most bitter consequences to the character and prosperity of the people of this most remote portion of our country.

The demand for the murderers should have been inflexibly insisted upon; the Indians should have been struck in battle and severely chastised. Then there would have been peace in the Yakima. There would not have been war in the interior.

But feeble and procrastinating measures having been pursued, even to the extent of impressing the Indians with the belief that the regular troops were a distinct people from the Americans, and were even allies of the Indians, Kam-i-ah-kan and Looking Glass have effected that combination in the interior which I apprehended and predicted. The brilliant victory of the Grande Ronde, which caused for a time the lower Nez Perces to break from the war party, has proved unavailing.

I have therefore determined to have no agent on the Spokane, believing, in view of certain influences there, to which I will briefly allude, his presence would not be beneficial.

In times of peace the influence of the Catholic missionaries is good in that quarter, and their good offices are desirable till some outrage is committed, or war breaks out. But since the war has broken out, whilst they have made every exertion to protect individuals, and to prevent other tribes joining in the war, they have occupied a position which cannot be filled on earth,—a position between the hostiles and the Americans. So great has been their desire for peace that they have overlooked all right, propriety, justice, necessity, siding with the Indians, siding with the Americans, but advising the latter particularly to agree to all the demands of the former,—murderers to go free, treaties to be abrogated, whites to retire to the settlements. And the Indians, seeing that the missionaries are on their side, are fortified in the belief that they are fighting in a holy cause. I state on my official

responsibility that the influence of the Catholic missionaries in the upper country has latterly been most baneful and pernicious.

Again, what is the interest of the Hudson Bay Company? There are unquestionably large deposits of gold, both north and south of the 49th parallel, east of the Cascade Mountains. A road has been made connecting Fraser River with the British interior, and the Hudson Bay Company have established a post in connection therewith on the main Columbia, north of the 49th parallel. This post and Fort Colville were supplied over this road the present year.

I ask again, what is the interest of the Hudson Bay Company? Most unquestionably to develop the British interior and its mines of gold, and to keep the Americans out, which will be most effectually accomplished by yielding to the demands of the Indians east of the Cascades, and making peace by an abandonment of the country.

I charge no man of that company with collusion with the Indians, but I know what human nature is; it will look out sharply for its own interests, and the interest of the Hudson Bay Company is the same as the Indian conceives to be his interest in that quarter.

It will be impossible for Dr. Lansdale to return to the Flathead agency this year; both the hostility of the Indians through whose country he would have to pass and the lateness of the season forbid it. I regret this, as the Flathead nation have stood firmly by the Blackfoot treaty, and take a proper view of the acts of the hostiles between the Cascades and the Bitter Root.

Thus, sir, east of the main Columbia the result of the operations of the regular troops has been that I am compelled to withdraw all my agents, except that it is barely possible that Craig, when he reaches the Walla Walla valley on his return, may be able to go to the Nez Perce country.

What is the remedy for this state of things? I answer, vigorous military operations,—the whipping of hostile Indians into absolute submission, the hanging of murderers on conviction, and the planting of these Indians on reserves established by Congress.

Agent Craig did return to Lapwai at the request of the Lawyer.

The soundness of Governor Stevens's views and the accuracy of his foresight were abundantly vindicated within two years. During the following year, 1857, the settlers were excluded, the regulars lay inactive in their posts, and the quasi-peace continued. But in 1858 the Yakimas waxed too insolent and predatory for even Wright's patience. He sent Major Garnett through their country with a large force, who summarily seized and hanged a number of the chiefs and warriors, shot seven hundred of their ponies, and these severe acts humbled the haughty savages and reduced them to good behavior at last.

Colonel Wright also ordered Steptoe, with two hundred dragoons, to advance from Walla Walla across Snake River towards Spokane. The Spokanes had warned the troops not to invade their country, alleging that they were neutral, and would permit neither the Yakima braves nor the white soldiers to enter their limits. Disregarding this warning, Steptoe marched some eighty miles north of the Snake, when he was assailed by the whole force of the Spokanes and Cœur d'Alenes, badly defeated, and driven in precipitate retreat the whole distance back to Snake River, hotly pursued by the victorious Indians, and his force was only saved from massacre by the friendly Nez Perces, who ferried the fugitive troops over the river in their canoes, and boldly interposed between them and the pursuing savages.

As soon as he could organize a powerful force, Colonel Wright in September, two months later, marched to the Spokane in person, encountered and defeated the Indians near the scene of Steptoe's defeat, and reduced them to submission, hanging a number of them offhand without trial, and killing many of their horses. On his return to Walla Walla he seized and executed in like manner several of the more turbulent Cuyuse and Walla Walla warriors. And this was the end of Wool's theory of peaceable and injured Indians, and the prejudiced officers, who clung to it so long and so obstinately, were at length obliged to adopt the very policy that Governor Stevens urged upon them in the beginning.

The Yakima chief, Ow-hi, most active next to Kam-i-ah-kan in bringing on the war and inciting the other tribes to hostility, and cunning and treacherous in his diplomacy, boldly entered Wright's camp on the Spokane soon after the fight, and was forthwith arrested and held a prisoner by that commander. The next day Ow-hi's son, Qualchen,—the murderer of agent

Bolon,—rode into camp, putting on a bold face and fully expecting to be treated with the consideration formerly shown the Yakima chiefs. Far different was his fate. Wright sternly ordered him to immediate execution, and the wretched brave was forthwith hanged by the guard, despite his frantic pleadings and protestations. His father, the chief Ow-hi, was killed a few days later while attempting to escape. But Wool and his parasites, so vociferous in denouncing the slaying of Pu-pu-mox-mox under like circumstances, raised no voice in rebuke of the merciless severity of Wright.



CHAPTER XLI

DISBANDING THE VOLUNTEERS

On returning to Olympia the governor issued the order disbanding the entire volunteer organization, and took the necessary steps for disposing at public auction of the animals, equipments, and supplies on hand, and settling the accounts. The animals captured by Shaw in the Grande Ronde were sold at Vancouver, and brought enough to defray the entire cost of the expedition. In fact, owing to the large number taken, there were more animals actually sold at the several auctions than the whole number purchased for the volunteer service, notwithstanding the many worn out during the months of hard service. The sales of property realized some \$150,000, and the articles sold generally brought more than the original cost. "I trust," remarked the governor, "that in view of the fact that our transportation has cost us nothing, that our people have let their animals go into the service from three to nine months, and have taken them back at a premium, the enemies of the Territory will be more guarded in their speech." As all the expenses of the volunteer organization had been defrayed by scrip, the sales were made for scrip, and many of the settler-volunteers were glad to purchase stock, wagons, or supplies to take home with them, instead of paper promises to pay, yet at that time the scrip was but little depreciated.

An incident showing the scrupulous regard for orders and public property maintained among the volunteers is related of Captain Henness. He captured a mule at the battle of the Grande Ronde and rode it home to Olympia, a distance of some five hundred miles. Desirous of owning the animal, he bid for it when put up at the public auction, but it was struck off to another for \$475; and this brave officer, who had served in the field as captain of a company for ten months, was unable to secure his own riding mule, and one, too, captured by himself.

When the accounts were finally adjusted, the scrip issued amounted to—

Equipments, supplies, etc., \$961,882.39

Pay-roll of the troops	519,593.06
Total	<u>\$1,481,475.45</u>

The aggregate number of volunteers was 1896. About one thousand were in service at one time. They were about equally divided between mounted and infantry troops. Oregon furnished 215,—the companies of Miller, Goff, and Richards (afterwards Williams). As the whites capable of bearing arms in the entire Territory did not exceed 1700, it is evident that this aid from Oregon was of great value.

Thirty-five stockades, forts, and blockhouses were built by the volunteers, some of them being quite large works, twenty-three by the settlers, and seven by the regular troops. Besides which, the roads and trails cut by the volunteers involved an immense amount of labor.

The strict discipline, high *morale* and good conduct of the volunteers were remarkable, and very creditable to them, and to the firm and sagacious mind that organized and commanded them. All captured property was turned over to the quartermasters, and properly accounted for. There was no case of murder, or unauthorized killing of Indians, by the volunteers. There was no plundering or serious offenses of any kind charged upon them. They obeyed their orders with alacrity and zeal, no matter how arduous or how dangerous the duty required of them. They were the best type of American settlers, brave, intelligent, patriotic, self-respecting. They went into the war in self-defense, and were determined to put it through as soon as possible.

Study the maps of their marches and scouts; count the blockhouses they built, the roads and trails they opened; consider the unknown and almost impenetrable forest region the theatre of war; the rains; the hardships, the labors they underwent; and reflect how uniformly successful they were, not only in engagements, but in throwing the savage enemy wholly on the defensive, in completely putting an end to his attacks and depredations, and hunting him down so vigorously that only flight or submission could save him from death,—and one cannot but realize how necessary were their patriotic services and achievements, and how well they justified the wisdom and ability of Governor Stevens in calling them to the defense of the country, and carrying on an aggressive war.

FORTS AND BLOCKHOUSES BUILT BY VOLUNTEERS.

Stockade, Cowlitz Landing	Fort Ebey, Snohomish River
Blockhouse, Cowlitz Farms	Fort Tilton, below Snoqualmie Falls
Blockhouse, Skookumchuck	Fort Alden, Ranger's Prairie
Blockhouse, Chehalis River, at Ford's	Blockhouse, Port Townsend
Fort Miller, Tanalquot Plains	" Point Wilson
Fort Stevens, Yelm Prairie	" Bellingham Bay
Blockhouse at Lowe's, Chambers' Prairie	" on Skookumchuck
Blockhouse, Olympia	" Vancouver
Stockade, Olympia	" Fourth Prairie
Fort Hicks, Camp Montgomery	" Washougal River
Blockhouse, Camp Montgomery	" Lewis River
Fort White, Puyallup Crossing	Fort Mason, Walla Walla Valley
Fort Hays, Connell's Prairie	Fort Preston, Michel Fork of Nisqually
Blockhouse, Connell's Prairie	Blockhouse, Klikitat Prairie
Fort White, White River Crossing	Fort Kitsap, Port Madison
Fort Posey, White River Crossing	Fort Lander, Duwamish River
Fort McAllister, South Prairie	Stockade, Seattle
Blockhouse, Lone Tree Point	

BY SETTLERS FOR MUTUAL PROTECTION.

Blockhouse at Davis's, Claquato	Two blockhouses at Tumwater
Stockade at Cochran's, Skookumchuck	Blockhouse, Dofflemyer's Point
Stockade, Fort Henness, Grand Mound Prairie	Blockhouse, Whitby Island

Stockade at Goodell's, Grand Mound Prairie	" Port Gamble
Blockhouse, Tanalquot Plains	Fort Arkansas, on Cowlitz
Blockhouse, Nathan Eaton's, Chambers' Prairie	Blockhouse, on Miami Prairie
Two blockhouses, Chambers' Prairie	Blockhouse, Port Ludlow
Blockhouse at Ruddell's, Chambers' Prairie	" Port Madison
Stockade at Bush's, Bush Prairie	Two blockhouses, Boisfort
Blockhouse at Rutledge's, Bush Prairie	Two blockhouses, Cascades

BY REGULAR TROOPS.

Fort Slaughter, Muckleshoot Prairie	Fort, Walla Walla Valley
Fort Maloney, Puyallup River	Fort, Yakima Valley
Fort Thomas, Green River	Blockhouse, Cascades
Blockhouse, Black River	

A few days after his return Governor Stevens was requested by Colonel Casey to take charge of a band of about a hundred lately hostile Sound Indians who had recently returned, or been sent back, from the Yakima. The colonel complained that he had already sent them to the reservation, but the agent had refused to receive them, and, in order to prevent any disturbance that might arise from the "strange conduct of your agent," he had again received and was feeding them. The governor, having learned that Stahi and other known murderers were with this band, and that Leschi had been recently seen near Fort Nisqually, the Hudson Bay Company post, at once replied, positively refusing to receive them until the murderers among them were arrested for trial, and formally demanded Colonel Casey's aid to that end:—

"I have therefore to request your aid in apprehending Leschi, Qui-e-muth, Kitsap, Stahi, and Nelson, and other murderers, and to keep them in custody awaiting a warrant from the nearest magistrate, which being accomplished, I will receive the remainder.

“In conclusion, I have to state that I do not believe any country or any age has afforded an example of the kindness and justice which has been shown towards the Indians by the suffering inhabitants of the Sound during the recent troubles. They have, in spite of the few cases of murder which have occurred, shown themselves eminently a law-abiding, a just, and a forbearing people. They desire the murderers of Indians to be punished, but they complain, and they have a right to complain, if Indians, whose hands are steeped in the blood of the innocent, go unwhipped of justice.”

In response to this Colonel Casey declared that these Indians “delivered themselves up to Colonel Wright when in the Yakima country, made their peace with him, and were promised protection. Colonel Wright informed me of these facts.” He declined, therefore, to assist in arresting the murderers, on the ground that it would be bad policy, if not bad faith, to do so, and added that he would refer the matter to General Wool. He also remarked: “The Indians on the Sound, there is no doubt, can, by neglect and ill-usage, be driven to desperation.”

The governor controverted the position assumed by Colonel Casey that protection had been promised these Indians by Colonel Wright, and renewed his demand:—

“I have the statement to me by Colonel Wright that he had made no terms with them, and had guaranteed to them no immunity from trial and punishment. This statement was made to me repeatedly by Colonel Wright, and in the presence of witnesses, one of whom is Mr. Secretary Mason. On the contrary, I have twice in writing made requisition on Colonel Wright for the delivery to me, in order that they might be brought within reach of the civil authorities, of Leschi, Qui-e-muth, Kitsap, Stahi, and Nelson,—a requisition which he has not pretended to disregard, but which he simply asked my consent to have suspended for the present in view of the circumstances under which they came in. I renew my requisition upon you, as I did upon Colonel Wright, and I inclose for your information the correspondence with Colonel Wright in relation to the subject.

“Granted that it was a case of legitimate warfare, the men for whom I make requisition committed the murders in a time of profound peace, wider circumstances of unsurpassed treachery and barbarity, when their victims were entirely unsuspecting of danger, and this, too, in violation of the faith of treaties, which expressly stipulated for the giving up of men guilty of such offenses.

“Nor is there any analogy between the cases of known Indians who have murdered white men and certain unknown white men who have murdered Indians. Your soldiers killed an Indian. Where are they? The citizens have killed Indians. Where are they? Two are in your own garrison in confinement awaiting trial; and the others,—proof has not yet been found, after every exertion has been made to insure a bill from a grand jury in regard to the persons suspected.

“I do not understand, in view of the known humanity and energy of the Indian service on the Sound, aided as it has been by the body of the citizens, the necessity, in communications to me, of this constant reference to the ill-treatment of the Indians, for it must be borne in mind that we have managed some four thousand five hundred Indians on temporary reservations on the Sound during the war. Indians taken from the war ground, by unwearied vigilance and care, have been seen to pass from a state of uncertainty as to whether they would join the war party, to one of contentment and satisfaction, with no assistance from the military whatever.”

The governor also sent Colonel Casey a copy of Colonel Wright’s order on Major Garnett to deliver up the murderers.

This correspondence seems to raise an ugly question of veracity between the two regular officers in regard to whether protection had or had not been promised the Sound murderers, but the strenuous efforts to shield them from punishment for their crimes made by these officers is passing strange.

Colonel Casey persisted in his refusal, saying: “This is a case in which the rights and usages of war are somewhat involved, and in consequence I consider myself and military superiors the proper persons to judge in the matter,” and he referred it to General Wool. That officer, of course, swiftly

directed him to protect Leschi, and all other Indians professing friendship, against the whites.

A few days later Colonel Casey again referred to the case of the Indians, suggested that the reports which his agents and others carried to the governor should be received with great caution, and remarked:—

“The one which I had the honor to receive from you a few days since, that more than one hundred Indians had left the reservation for the purpose of joining Leschi, proves to have been, what I believed at the time, a baseless fabrication. With a sincere desire to do justice to all, I will say that it is my firm belief, after weighing I trust with due consideration all the circumstances connected with the matter, that if, in dealing with the Indians on the Sound, a spirit of justice is exercised, and those who have charge of them are actuated by an eye single to their duties and the peace of the country, there need be no further difficulty.”

This unwarrantable slur called forth the following pungent reply from the governor. He had made no such report as Casey attributed to him:—

LIEUTENANT-COLONEL SILAS CASEY.

Sir,—My reasons for declining to receive the Indians at your post have been already stated, and remain in full force. When the murderers, and those accused of murder, are, in compliance with my requisition, placed by you in the hands of the civil authority, the Indians will be received. The agents have positive orders to receive none of these Indians except by my written instructions. The Indians have been or will be indicted by the grand jury of the several counties. As you have proclaimed that hostilities have ceased, they are in your military possession.

In regard to your observations about the reports which my “agents and others carry to me,” as well as the reiterations of former observations in reference to the exercise of a spirit of justice, and the efforts of persons in charge of Indians being “actuated by an eye single to those duties and the peace of the country,” I have simply to state that the tone of them is offensive, and comes with an ill grace from the

authority which has done little to that which has done much. It is not my disposition to retaliate, but the occasion makes it proper for me to state that the greatest difficulty I have had to encounter in stopping the whiskey traffic with the Indians at Steilacoom and Bellingham Bay has been the conduct of your own command. It would seem to be more appropriate that you should first control and reform the conduct of your own people, before going out of your way to instruct and rebuke another branch of the public service,—a service, too, which, both from its experience and the success which has attended its labors, is entitled to the presumption that it is as much interested in, and as much devoted to, the peace of the country as yourself, and as well qualified, to say the least, to consider dispassionately and to judge wisely of affairs at the present juncture.

I have also been informed of your thanking God, in the presence of Mr. Wells, who informed you how the Muckleshoot reservation was laid off, that the iniquity of it was not upon your hands,—a remark highly presumptuous and insulting, as well from the fact that the business did not concern you, as from the fact that the reservation was laid off both in the way I arranged with the Indians at the council on Fox Island and to their entire satisfaction on the ground.

Very respectfully your obedient servant,

ISAAC I. STEVENS,
Governor and Supt. Indian Affairs.

N.B. I will respectfully ask you to send me a copy of my letter notifying you that one hundred Indians had left to join Leschi.

It is perhaps creditable to Colonel Casey's discretion that he attempted no reply to this letter, but simply acknowledged its receipt, and admitted that, in attributing the report about Leschi to the governor, "it was an error on my part, and I cheerfully correct it." A thoroughly well-meaning man, he was evidently affected by Wool's orders and influence; and, moreover, he suffered himself to give ear to, and was consequently misled by, the clique of lawyers and politicians who had instigated the martial law trouble in order to embarrass the governor, and were now hounding him with unabated rancor.

Notwithstanding Casey's scruples and Wool's orders, Leschi and other accused murderers were duly indicted, arrested, and delivered to and received by Colonel Casey for custody at Fort Steilacoom, and thereupon the governor relieved him of his unwelcome protégés by sending them to the reservation. Leschi was tried in due time, but the jury disagreed. He was convicted at a subsequent trial, and expiated his crimes on the gallows. The regular officers at Fort Steilacoom, with certain lawyers and Indian sympathizers, made desperate efforts to save him from punishment, but in vain. The well-meaning Casey was even hanged in effigy by the people, indignant at his course.

Leschi's brother, Qui-e-muth, was captured near Yelm prairie, November 18, and brought to the governor's office in Olympia at midnight. The governor gave strict orders for guarding and protecting him there until morning, when he was to be taken to Steilacoom. Just before daylight, as he was sleeping on the floor, surrounded by his guards, who were also asleep, a man rushed into the room, the door being unlocked, shot Qui-e-muth in the arm with a pistol, and, as he rose to his feet, drove a bowie knife into his heart, and rushed out as suddenly as he had entered. The deed was done, the assassin vanished, the victim sank lifeless to the floor, all in an instant, ere the startled and astonished guards could raise a hand to protect their charge. The governor, who had retired to rest in his quarters in the next building, aroused by the shot and the trampling of feet, came immediately to the scene, and was horror-struck and filled with indignation at the crime, and denounced it in unmeasured terms as a disgrace to the good name of the people and of the Territory. He made every effort to identify and punish the murderer, but without avail. None of the guards could identify him, and no testimony could be found against any one. Yet it was currently whispered that vengeance for the murder of McAlister, a settler on the Nisqually and one of the earliest victims of savage treachery, had nerved the arm of his son-in-law, Joseph Bunting, to strike the blow.

Nothing that occurred during the whole war excited greater indignation in the mind of the governor than this act, or caused him more regret and chagrin. He had been unremitting in his efforts to protect the Indians from lawless violence, and with such remarkable success that the volunteers were wholly free from reproach; only six cases had occurred among the

exasperated settlers, and several of these he had brought to trial. And now this dastardly deed brought reproach to his very door.



CHAPTER XLII

MARTIAL LAW.—DIFFICULTIES OVERCOME

During all the Indian outbreak and hostilities a number of Hudson Bay Company ex-employees, Scotchmen and Canadians, were living in the Indian country back of Steilacoom in safety, when every American settler was murdered, or had fled to the towns. They had Indian wives and half-breed children, and claimed to be neutral. They were in frequent communication with the hostile Indians, and were not molested by them. Captain Maxon and other officers reported that they were undoubtedly giving information, aid, and comfort to the enemy, and that their scouting expeditions were fruitless in consequence. The Indians who killed White and Northcraft in March so near Olympia were tracked straight to the houses of two of these neutrals, who acknowledged having been visited by the savages, but disclaimed any knowledge of their deeds. The volunteer officers, however, believed that they were not only sympathizers with, but active allies of, the hostiles, and were ready at the least intimation from the governor to treat them as hostiles. Colonel Casey declared that they ought not to be suffered to remain on their farms, where they could aid the enemy, if so disposed. The governor therefore ordered them to leave the Indian country and remove to Olympia, Fort Nisqually, or Steilacoom, and there remain until further orders, in order to place them where they would be unable to give information or aid to the enemy, and also for their own safety, for the indignation of the volunteers was at white heat against them. Accordingly they moved in as ordered, twelve of them.

Most of them had already taken out their first naturalization papers, and filed on their claims under the Donation Acts, and were entitled to all the rights of American citizens. A few lawyers at Steilacoom, political or personal opponents of the governor, most active of whom was Frank Clark, saw here a chance to embarrass him,—in their own vernacular, “to get him down.” They went to these ignorant men, exhorted them in regard to their

rights as citizens, assured them that the governor had no authority to order them to abandon their claims, which Congress had bestowed upon them, and that they could return to their homes with safety, because the law and the courts would protect them in so doing. Thus persuaded, five of these misguided men, Charles Wren, Sandy Smith, John McLeod, Henry Smith, and John McField, went back to their farms. As soon as informed of their return, the governor caused them to be seized by a party of volunteers, taken to Fort Steilacoom, and turned over to Colonel Casey for safe custody, there being no jails in the Territory.

Clark and his coadjutors lost no time in suing out a writ of habeas corpus. They represented matters to Colonel Casey in such a light that he notified the governor to relieve him of the prisoners. But the governor was not the man to suffer a few political tricksters to frustrate his necessary military measures. He well knew that if he surrendered in this case, he would have to abandon the practice, indispensable for carrying on the war, of impressing teams and supplies, and that his hold upon and discipline of the volunteers would be seriously impaired. On April 3 he proclaimed *martial law* over the county of Pierce, and suspended the functions of all civil officers therein. He caused the prisoners to be taken from the custody of Colonel Casey, brought to Olympia, and incarcerated in a blockhouse.

As the regular May term of the United States Court for Pierce County drew near, the mischief-makers were urgent for Judge F.A. Chenoweth, of whose district that county formed part, to hold court and enforce the writ of habeas corpus; but he, being sick, or else, as was currently believed at the time, fearing trouble and feigning sickness, requested Chief Justice Edward Lander to hold the term in his stead. Judge Lander at the time was captain of Company A, and with his company was garrisoning the post on the Duwamish, near Seattle; but without a word of notice to his military superiors he forsook his post, hastened to Steilacoom, and opened court on May 7. The governor previously urged him to adjourn his court for one month, by which time there was every prospect that the Indians would be subdued, and the exigency necessitating the restraint of the prisoners would have passed. But Lander refused this way of avoiding a conflict, and persisted in what he doubtless deemed his duty.

The governor resolutely met the issue thus raised. The court was duly opened on the appointed day, the lawyers were ready with their motions, when a detachment of volunteers under Lieutenant-Colonel Shaw marched into the court-room, arrested the chief justice on the bench and the clerk at his table, and carried them under guard to Olympia, where they were released.

As soon as the detachment had departed with the prisoner judge and clerk, the clique, which had so cunningly engineered this conflict between the federal governor and the federal judge, both commissioned by the same President, made haste to hold a meeting of the “bar,” vociferously to denounce the “flagrant usurpation and high-handed outrage” of the governor, and to pass a long string of condemnatory resolutions, which were signed by all the members participating in the meeting, nine in number. Immediately afterwards the same parties held a “citizens’ meeting” with a few others in the same room, and gave vent to more vituperative oratory, and passed more denunciatory resolutions. The whole proceedings were then published in a circular and in the newspapers. Undoubtedly some who took part in these demonstrations were sincere in believing the governor’s action to be wrong and uncalled for, but the real motives and animus of the prime movers were abundantly shown by the false, bitter, and scandalous statements and affidavits they made against him, and dispatched to the President, committees of Congress, and the Eastern press. They vehemently accused him not only of high-handed tyranny and usurpation, but of getting up the war by his Indian treaties, which he had made in obedience to the instructions of the government; of vindictively oppressing and persecuting the Indians, when he was feeding five thousand of them on the reservations, and standing like a rock to protect them from abuse; and even of drunkenness and embezzlement of public funds. These charges, from their very excess and bitterness, largely defeated themselves with the government, and with all by whom Governor Stevens was personally known; but they excited a deep prejudice against him in the minds of many, as he afterwards found in his congressional career. Wool, too, welcomed with avidity these reinforcements to his crusade, and immediately forwarded copies of the resolutions, together with anonymous articles reflecting on the governor, to the War Department.

The signers of the resolutions were: W.H. Wallace, George Gibbs, Elwood Evans, C.C. Hewitt, Frank Clark, B.F. Kendall, William C. Peas, E.O. Murden, H.A. Goldsborough. Wallace and Gibbs were the principal speakers at the citizens' meeting; Thomas M. Chambers, chairman; E. Schrotter and E.M. Meeker, secretaries; S. McCaw, R. S. Moore, Hugh Patteson, William M. Kincaid, William R. Downey, committee on resolutions.

Evans and Kendall came among the aides whom Governor Stevens brought to the country with the Northern exploration, and who settled in Olympia. The former became distinguished as an eloquent speaker and writer and historian of the Pacific Northwest, and, in after-years, paid the most warm, heartfelt, and appreciative eulogies to Governor Stevens's character and public services. Gibbs and Goldsborough, whom it will be remembered the governor had employed in the Indian service and treated with great kindness and consideration, were unsuccessful and disappointed men. The former nursed a grievance, in that the governor had rejected an extensive and ambitious policy of Indian treaties and Indian management which Gibbs had elaborately set forth in his report on the Indians, and which, if accepted, would probably have furnished a good position for himself.

The circular contained many misstatements, and was highly colored to give a wrong impression of the actual condition of affairs. To correct this, the governor published his vindication for proclaiming and enforcing martial law in Pierce County. In this he clearly and forcibly states the facts and conditions rendering it necessary, for the success of military operations, that the suspected men be removed from the Indian country, and sums up:—

“It is simply a question as to whether the executive has the power, in carrying on the war, to take a summary course with a dangerous band of emissaries who have been the confederates of the Indians throughout, and by their exertions and sympathy can render to a great extent the military operations abortive.

“It is a question as to whether the military power, or public committees of the citizens, without law, as in California, shall see that justice is done in the case.

“And he solemnly appeals to the same tribunals, before which he has been arraigned in the circular, in vindication of his course, being assured that it ought to be, and will be, sustained as an imperious necessity, growing out of an almost unexampled condition of things.”

Judge Lander’s own district included Thurston County and Olympia, and the term of his court was to be held in a few days after his release from arrest. The governor’s opponents and the judge determined to call him to account for contempt of court in proclaiming martial law and arresting the judge; and a strong-room was quietly prepared by the United States marshal for his incarceration in case of sentence to imprisonment. The governor issued his proclamation declaring martial law in Thurston County on May 13, and sent two of the prisoners, Charles Wren and John McLeod, to Cape Montgomery for trial before a military commission. The others were released and permitted to go to Steilacoom, on giving their parole to remain there.

Judge Lander opened his court on the 14th, and issued notice, and then a writ, summoning the governor to show cause why he should not be punished for contempt. No notice being taken of these missives, on the 15th a writ of attachment was issued to be served *instanter*, and United States Marshal George W. Corliss, with a strong posse, armed with this document, proceeded to the executive office for the purpose of arresting the governor and bringing him before the court. The governor received them, when they announced their business, with a quiet, cool dignity, which completely nonplussed them, and remarked, “Gentlemen, why don’t you execute your office?” As they still hung back, and looked at each other, as though at a loss to know what to do, the clerks, aided by some gentlemen present, ejected the posse from the office, to which they offered no resistance. Major Tilton, Captain A.J. Cain, James Doty, Quincy A. Brooks, R.M. Walker, A.J. Baldwin, Lewis Ensign, Charles E. Weed, and Joseph L. Mitchell were they who expelled the posse; but it is evident that the latter made only a formal show of executing the writ.

This farcical attempt had scarcely ended when a force of mounted volunteers rode rapidly into town. Judge Lander, hearing of their approach, hastily adjourned court, and took refuge in the office of Elwood Evans, the acting clerk of court, a wooden building of two rooms, situated on the east

side of Main Street, between Fourth and Fifth streets. To this, a few minutes later, came Captain Bluford Miller with a file of men, and demanded admittance. Finding the door locked, he remarked, "I'll add a new letter to the alphabet: let her rip," and kicked in the door with his heavy boots. Entering, he found the judge and Evans in the rear room, and arrested them. Mr. Evans was immediately released, and Judge Lander was taken to Camp Montgomery, where he was held in honorable custody until the war on the Sound was practically over, when he was set at liberty.

Immediately on the departure of the volunteers with their judicial prisoner, an attempt was made to hold a public meeting to protest against the governor's action. Evans and Kendall were the chief movers and speakers, and harangued a small crowd on Main Street, in front of the governor's dwelling and office. Mrs. Stevens, with her little girls, happened to be sitting in the front doorway as they approached, and refused to withdraw; but her presence did not deter nor mollify the speeches. Despite the would-be indignation of the promoters, the whole proceeding fell flat, for nearly every one approved the governor's course, and only a mere handful took part in the demonstration. At length, having emptied the vials of their wrath, one of the speakers moved to adjourn in order to spare the feelings of Mrs. Stevens, who had sat apparently unmoved through it all, and the assemblage dispersed.

A mass meeting, one of the largest ever convened in Olympia, was held at the blockhouse on the public square, Judge B.F. Yantis presiding, and J.W. Goodell, secretary, and the course of Governor Stevens in the matter of martial law was emphatically indorsed, with but twelve dissenting votes. Memorials strongly defending his action were almost unanimously signed by the volunteers, and sent to the Oregon and Washington delegates in Congress. Both Judge Lander and Judge Chenoweth, in their reports to the Secretary of State, complaining of the governor for enforcing martial law, admit that the people indorsed his course, and that the marshals or sheriffs were powerless to resist his orders.

The two prisoners, Wren and McLeod, were tried by military commission on the charge of giving aid and comfort to the enemy; but owing to lack of evidence and the end of the war, they were not convicted, and were finally set at liberty.

Martial law was revoked by proclamation on May 24. Judge Lander held his court at its next regular term in July. In response to notice the governor appeared by counsel, disclaimed any intentional disrespect to the court, but justified his action in proclaiming and enforcing martial law on the ground of imperious public necessity. A fine of fifty dollars for contempt was imposed, which he paid. Anticipating a heavy fine, his friends and admirers were preparing a popular subscription to defray it, but they were not called upon. The judge's action in imposing a merely nominal fine was taken to be an acknowledgment, in accordance with the opinion of nine tenths of the community, that the governor's course, if technically illegal, was necessary and right. No action was taken against the volunteers who broke up the courts, or the citizens who turned the marshal and his posse into the street. In his communications to the government in defense of his course in proclaiming martial law, Governor Stevens advanced almost identically the same reasons and arguments that were afterwards adduced by President Lincoln to justify his suspension of the writ of habeas corpus.

By a letter of the Secretary of State, dated September 12, Governor Stevens was informed that the President, while having no doubt of the purity of his motives, disapproved his action in proclaiming martial law. THE CASE OF COMPANY A.

The chief punishment by which the governor maintained such excellent discipline among the volunteers was that of dishonorable dismissal from the service, which carried with it the loss of pay. This was inflexibly enforced in flagrant cases of disobedience or misconduct, and, being regarded as a disgraceful stigma, was found sufficient. The good conduct and discipline of the volunteers was doubtless promoted by the incessant activity and labor to which they were put; but they were due still more to the superior intelligence and character of the settlers who turned out *en masse* in defense of their hearthstones, and carried on the war with such patriotic zeal.

In one case, however, the governor felt constrained to dismiss a whole company, an act afterwards made the pretext for much political denunciation and censure. It will be remembered that almost the first act of the governor, in the prosecution of the war, was to disband all local and home guards, and to enlist volunteers for general defense, to serve wherever and whenever ordered. On February 1 he directed Judge Lander to disband

a company he had raised in Seattle for home defense, and to enlist there a company for six months, subject to the orders of the executive, in conformity with the proclamation calling out volunteers. "Every man," wrote the governor to Lander, "who enlists, must do so with the understanding that he enlists for the general defense of the Territory, and that he must move to any point where his services, in the opinion of his commanding officer, are most needed."

Under these instructions Lander disbanded his first company and raised another, Company A, which garrisoned Seattle for a time, and then built and occupied a post on the Duwamish River, a few miles above Seattle, and rendered good service in scouting that vicinity and Lake Washington. It was this post and command that Lander abandoned in order to hold Judge Chenoweth's court, with such mortifying results to himself.

On June 9 Lieutenant A.A. Denny, who succeeded to the command of Company A on Lander's abandonment of it, was ordered to detail an officer and eight men to hold the post, and to move with his company to Fort Hays, on Connell's prairie, thence to assist in cutting a road to Snoqualmie Falls. On his representation that a greater force was needed for the protection of the citizens in his vicinity than was designated, he was directed to leave twenty men at the post, and to send the remainder of his company by canoe to Steilacoom, thence to march to Camp Montgomery, where he would receive supplies. He was informed that—

"the representation of Captain Lander that forty men could be spared, the fact of parties of from three to five having traveled in safety the route from the falls of the Snoqualmie to Porter's prairie, and the reports of Mr. Yesler that but six or eight Indians are still out east of Seattle, are sufficient to warrant the leaving of the town of Seattle to the protection of the naval forces and the regulars at Fort Thomas;"

and that fifteen days would probably be occupied in cutting the road. The Massachusetts lay in the harbor of Seattle, and fifteen of her men were on shore garrisoning the town. Lieutenant Denny, in a long and argumentative letter dated June 19, reiterated his opinion that it would not be safe to withdraw the company from its post. He wrote:—

“I am extremely surprised at the opinion represented as expressed by Judge Lander. During the period of his command it was often publicly stated by him that this company was expressly organized (by private understanding with the governor and commander-in-chief) for the protection of this immediate neighborhood.”

It is hard to reconcile this with the governor’s explicit orders and letter to Judge Lander.

For such failure to obey orders Lieutenant Denny was directed to turn over his command to the next officer in rank, and was relieved from duty in the volunteer service until further orders. Lieutenant D.A. Neely, the next in rank, was ordered to assume command of the company, and detail twenty men to proceed to Camp Montgomery for work on the road. But Lieutenant Neely and the whole company proved equally recusant, and signed and transmitted to the governor resolutions fully indorsing the course of Lieutenant Denny, and declaring that they considered the course of the commander-in-chief in suspending Lieutenant Denny from his command an act of injustice and an insult to the company, wholly unjustifiable and uncalled for.

With great forbearance, regarding the company not as willfully disobedient, but as led astray by feeling and bad advice, the governor sent his aide, Colonel Fitzhugh, to endeavor to bring them to reason and due sense of duty, and gave him the following instructions:—

“You will show these resolutions to the company, and request the signers to either repudiate or modify them in such a manner as to relieve themselves from the position of disobedience to the orders which these resolutions condemn.

“You will represent to the company that the resolution disapproving of the course of the commander-in-chief, and considering it ‘an act of injustice and wholly uncalled for,’ places the company in an attitude of insubordination which will necessarily preclude the possibility of their being honorably discharged from the service until they, by their own acts, occupy different ground from that of justifying disobedience to orders.

“There is nothing improper or objectionable in Company A requesting the reinstatement of Lieutenant Denny, and a request to that effect would be properly considered, but by indorsing and sustaining that officer in his refusal to obey orders they participate in a state of indiscipline and insubordination which is destructive to efficiency, and injurious to the reputation of the volunteer service of Washington Territory.

“In the hope that the intelligent and gallant men of Company A will see the matter in the true light, and by their act in rescinding these unmilitary and insubordinate resolutions will place themselves upon the same footing as the rest of the regiment, and so enable the commander-in-chief to report as efficient and useful the whole body of troops raised from the citizen soldiery of Washington Territory, I have the honor to be,” etc.

But Colonel Fitzhugh was unable to induce the company to rescind the resolutions, and reported that a false sense of shame restrained them. He was then sent back to formally disband the company, which he did July 28, and they were dishonorably discharged. The governor, however, did not allow this discharge to deprive them of full pay, but in this respect presented their claims on the same footing as the other volunteers. All were finally paid by Congress.

CONTROL OF DISAFFECTED INDIANS.

Governor Stevens's responsibilities and labors were vastly increased by the great number of Indians on the Sound who did not actively join in the outbreak, but who caused constant care and anxiety on the one hand to prevent their aiding their kindred who had taken the war-path, and on the other to protect them from retaliatory violence at the hands of infuriated settlers, whose nearest and dearest had been sacrificed in savage massacre, and from the destructive whiskey traffic with vicious and debased white men. Five thousand of such Indians were placed upon the insular reservations and supported, in large part, under the charge of reliable agents; while three thousand more remained on the Strait of Fuca and the western shore of the Sound in less strict custody, as they were more remote

from the scene of hostilities. For a time these reservation Indians were in a very excited and disaffected state. It was impossible to prevent hostile emissaries from mingling among them, or some of the young braves from slipping away to help their brethren against the hated whites. The agents lived among them in constant and imminent danger of massacre; they carried their lives in their hands. The governor's plan of enlisting them as auxiliaries, and sending them out under white officers to hunt down the enemy, although attended at first with great risk of treachery, was the most effective means of confirming their fidelity, and when the tide turned against the enemy, all were eager in their professions of friendship and offers of services. The first of these expeditions, that of Pat-ka-nim and his Snohomish warriors under Colonel Simmons, was considered a very doubtful and dangerous experiment; but heavy rewards were offered the chief for the heads of the hostiles he might slay, and one that he sent in was said to have been that of his own brother. Well might Shaw exclaim, "Blankets will turn any Indian on the side of the whites." After this, Pat-ka-nim's allegiance was well secured.

When Sidney Ford led a party of Chehalis Indians on a scout against the enemy, he lay one night pretending slumber, while he listened to a long discussion between his *friendly* Indian followers as to the expediency of killing him and joining the hostiles. Agent Wesley Gosnell had a somewhat similar experience. What iron nerves, what devoted patriotism, thus to venture into the trackless forests at the head of these uncertain and treacherous savages! There is not the slightest doubt that a few weeks of Wool's pacific and defensive policy would have united all these disaffected Indians in the outbreak, and swept the whole country with a whirlwind of savage war. Nothing but Governor Stevens's prompt, aggressive, and masterly measures prevented the catastrophe.

By many of the settlers the governor's treatment of the Indians was deemed too lenient and generous. They declared that Indians who received and concealed the visits of hostile warriors, and allowed their young men to join in the raids and fights, ought themselves to be treated as hostile, and warred down without mercy. On one occasion a worthy and intelligent clergyman pleaded long and earnestly with the governor, urging him to attack and put to the sword the Indians on the Squaxon reservation, many of whom were Nisquallies, the tribe that had taken the lead in the outbreak. But the

governor disregarded all such appeals, and remained as firm in protecting the friendly or merely disaffected Indians as inflexible in requiring the punishment of the murderers who first instigated the war by the wanton massacre of inoffensive settlers.

Summary measures were taken with whiskey-sellers, when caught about the reservations. The agent would arm his employees, and when necessary a few stout and trustworthy Indians, descend on the culprit, stave, smash, and destroy his poisonous stores, and drive him to instant flight. There was no fooling with legal proceedings or courts. The means were effective, if somewhat high-handed, and the only ones that could be made so. It was more difficult to prevent the Indians from obtaining liquor away from the reservations, especially about the towns, and the governor complained that the regular soldiers were among the worst offenders in this respect.

In a private letter to Colonel Nesmith, who succeeded him as Superintendent of Indian Affairs, the governor says of his Indian agents:—

“I have never known a more faithful and efficient body of men than the officers and employees connected with me in the Indian service. I have never known, all things considered, a body of men at all to be compared to them in the high qualities which fit men for duty in times of emergency. They literally for months went with their lives in their hands, and moreover in the economy of the service they were vigilant and faithful. I look upon it as the duty of all officers, without waiting for instructions, to guard the treasury. I have had some difficulties to contend with in the past, growing out of political antipathies. I have from the beginning set my face sternly against all cliques, combinations, and sinister influences in the discharge of my duty.”

On these temporary insular reservations were collected some 5000 Indians. The Snohomish and other tribes, numbering 1700, were placed on Skagit Head, the southern point of Whitby Island, under Colonel M.T. Simmons; the Lummi, Nooksahk, and Samish, 1050, at Penn's Cove, Whitby Island, under R.C. Fay; the Duwhamish, etc., 1000, on Port Madison Bay, Dr. D.T. Maynard, H. L. Yesler, and G.A. Paige taking charge of them; the Puyallaps, and Nisquallies, 806, on Fox Island, under Sidney S. Ford; the Quaks-na-mish, 400, on Klah-shemin or Squaxon Island, under Wesley

Gosnell; the Chehalis, 400, on the Chehalis River, near Judge S.S. Ford's, and under his charge; the Cowlitz, 300, near Cowlitz, under Pierre Charles.

On the Columbia River, under general charge of agent J. Cain, 200 Chinooks were collected at Vancouver; 200 Klikitats on the White Salmon, under A. Townsend; and 300 Yakimas, opposite the Dalles, under A.H. Robie.

The Indian Department, in response to Governor Stevens's urgent letters taken to Washington by Secretary Mason, and the latter's clear statement of the emergency, promptly remitted \$27,000 to feed these Indians, and followed it with large sums for that purpose.

The northern Indians, gangs of whom persisted in visiting the Sound in their great war canoes in spite of the prohibition and warnings of both American and British authorities, caused great anxiety and apprehension. The governor urged the naval officers to keep a vessel constantly cruising the lower Sound to overawe and restrain them. On February 17 he wrote Captain Gansevoort that, from information received, he was apprehensive of a descent on the settlements by fourteen war canoes of these savages, and urged that the Active be kept cruising the whole time between Port Townsend, Bellingham Bay, and Seattle, saying:—

“These northern Indians, in daring, force, and intelligence, greatly surpass the Indians of the Sound. Their war canoes, carrying seventy-five men, can be moved through stormy seas, and with great rapidity. I deem it essential to the safety of the lower portion of the Sound that a steamer should be constantly in motion there.”

Apparently reliable reports were brought to the governor from time to time that these desperadoes were seeking to join the hostiles. Some of them actually offered their services to fight for the whites. They were attracted to the scene of war like vultures to the carrion, and were equally ready to fight and spoil either party to the conflict, or both. In July one of these unwelcome visitors was killed in a drunken brawl by a regular soldier at Steilacoom. From their well-known vindictive character, it was certain that they would avenge the death sooner or later by some act of atrocity. The governor therefore reinforced Whitby Island with fifteen men from the line of the Snohomish, and the Massachusetts and Hancock were kept diligently

cruising. When, in November, another party appeared near Steilacoom, committing depredations, and had a fight with the Indians on the reservation, in which two of their number were killed, Captain Gansevoort hastened to the scene in the Massachusetts, determined to compel them to leave the Sound. They had already started down it, but he pursued and overtook them at Port Gamble, where he found them encamped on an island. After exhausting all efforts at conciliation, offering to pardon all their depredations, and even to tow their canoes to Victoria if they would only depart from the Sound, and all friendly overtures being treated with the utmost contempt and ridicule by the Indians, Captain Gansevoort opened fire upon them from his guns, and, throwing a party ashore, attacked them on land also. Their canoes were destroyed, and they were driven back into the woods, but they fought with desperate courage and determination, and continued the contest the entire day. To a message sent by a captured squaw, inviting them to surrender with the sole condition of leaving the Sound, they returned the defiant answer that they would fight as long as there was a man left alive. But being on a small island, and all their canoes and supplies destroyed, they were forced by hunger to surrender, which they did after holding out for forty-eight hours. The party consisted of one hundred and seventeen men, besides squaws and boys, and lost twenty-seven killed and twenty-one wounded. Captain Gansevoort took the survivors in his vessel to Victoria, where he purchased canoes for them and started them northward, exacting their promises never to return to the Sound. Even this severe punishment did not deter them from seeking revenge. The following year a party of them landed on Whitby Island, murdered Colonel Isaac N. Ebey, the United States collector of customs, cut off his head, plundered his house, and departed northward with their booty and ghastly trophy.

CHAPTER XLIII LEGISLATIVE CENSURE.—POPULAR VINDICATION The family remained in Olympia during this year of Indian troubles. The children attended the public school, and found kind and judicious teachers in the Rev. George F. Whitworth and his estimable wife. Mrs. Stevens, escorted by her son, frequently rode on horseback over the neighboring prairies, heedlessly running a greater peril than they knew of, for the Indians murdered two men and committed depredations quite near the town. There was not much social gayety at such an anxious time, but the little community were drawn closer together by the dangers surrounding it.

When not absent on his trips, the governor usually worked in his office till long after midnight, and his assistants and clerks were kept hard at it to dispose of the multifarious orders, reports, accounts, and other details of the war and the Indian service. He kept both the War and Indian departments in Washington constantly informed of the progress of the war and the condition of affairs by frequent detailed and graphic reports, and these, with his correspondence, made a volume of four hundred pages as published with his message of 1857. His physical labors were also extreme, involving journeys to the Columbia River, the Dalles, Walla Walla, and down the Sound, aggregating over two thousand miles. And it should be borne in mind that he was not assisted by any regularly long established and tried services, but had in a measure to create the organizations, and to make use of hastily selected and inexperienced officers. He had by this time fully adopted the rough, serviceable costume of the country,—slouch hat, woolen shirt, and heavy riding-boots,—and, indeed, no other garb was practicable for one so constantly engaged on long and arduous journeys by horseback and canoe, frequently in stormy weather.



HOMESTEAD IN OLYMPIA

In the summer and fall the governor caused his block of land No. 84, which he purchased on his first arrival, to be cleared, and the late Benjamin Harned built for him a plain, square dwelling, with a wide hall in the centre and rooms on either side, a story and a half high. A smaller building, for an

office, on the northeast corner of the block, and a stable in the rear on the southwest corner were also built. The family moved into the new home in December, and found the spacious rooms, with the magnificent view of the Sound and the Coast Range, a most agreeable change from the former contracted quarters and noisy surroundings.

The governor gave a house-warming, to which he invited the members of the legislature, a number of naval officers, who happened to be in the harbor, and about all the townspeople, including Elwood Evans and others who had been unmeasured in their denunciation of his course.

The site of the residence had been covered with immense fir-trees, and all within reach of the dwelling had to be felled to avoid danger of their falling and crushing the house during some storm, which involved the felling of the trees over an area of ten acres. But notwithstanding all this care, one of these forest monarchs was left standing some distance in front of the office, and the following winter fell directly across it, cutting the building clear to the ground. The labor of digging out the immense stumps was very great and expensive, and when the governor, late in the winter, assured Colonel Cock and Mr. George A. Barnes that he meant to have the finest garden in town the next spring, and would send them the earliest vegetables, these old settlers laughed in confident incredulity.

The governor was unable to follow up the improvement of the Taylor claim this year, but John Dunn, the hired man, and Hazard, now an active lad of fourteen, rode out there from time to time and planted and raised quite a crop of potatoes, celery, cabbages, etc., on the beaver meadow, which also afforded several tons of hay.

The legislature met in December, and Governor Stevens, in a strong message, accompanied by the correspondence with the War Department and military officers, rendered a clear and graphic account of his successful prosecution of the war. In view of his herculean labors and entire self-devotion, and the outrageous abuse heaped upon him, the concluding paragraph is touching in its manly simplicity and confidence:—

“I have endeavored faithfully to do my whole duty, and have nothing to reproach myself with as regards intention. I could have wished some things had been done more wisely, and that my whole course had been

guided by my present experience. I claim at your hands simply the merit of patient and long labor, and of having been animated with the fixed determination of suffering and enduring all things in your behalf. Whether in the wilderness contending with the hostile elements, managing and controlling the more hostile aborigines, or exploring the country, or at the Capitol struggling with disaffection, the subject of obloquy and abuse, I have had no end but my duty, no reward in view but my country's good. It is for you to judge how I have done my part, and for the Almighty Ruler to allot each man his desert."

It was generally believed that the legislature, like the people, would gladly recognize the great services of the governor, and do all in their power to sustain him. But his political and personal enemies had been very active, and had covertly secured a number of members, some of them elected in the guise of pretended friends. From Whitby Island was chosen an able but corrupt man, J.S. Smith, commonly known as "Carving Fork Smith," from the current report that his too pressing advances towards a married woman in Oregon had been repulsed with such an implement by the insulted matron. This worthy called upon Governor Stevens at the beginning of the session and proposed some deal, with the result that the governor indignantly ordered him out of the office. Angered at this repulse, he made common cause with the governor's enemies, and eagerly sought means to attack and injure him. His general course in the prosecution of the war, and even in the martial-law difficulty, was so universally approved that it would be useless to assail him on that score, but finally they concluded to make a handle of the dismissal of Company A. Their object was to obtain some sort of legislative censure of the governor in aid of the untiring and unscrupulous efforts they were making for his removal. A resolution pronouncing the charge of insubordination against Company A to be without sufficient foundation and also a resolution condemning martial law were introduced, and by the combination of the supporters of the two, and the strenuous efforts of the governor's enemies, were passed by a bare majority.

A committee was appointed to present them to him in person, in order to make the censure more emphatic and offensive. The governor received the committee with his wonted dignity and equanimity. One of the members was Colonel William Cock, whom the governor had always treated with

consideration, whose son he had befriended and employed in the Indian service, and who had always professed a warm friendship for the governor, and approval of his course. But Colonel Cock had been won over by the conspirators by appeals to his vanity, and had allowed himself to be placed on the committee. When it had delivered its message, the governor, genuinely grieved at the defection of a friend, addressed Colonel Cock in a quiet and friendly manner, pointing out how he had stultified himself, repudiating his own sentiments and declarations, endeavored to strike down the man who had done so much to defend the country, and his own professed friend, and finally, against his better feelings and judgment, had allowed himself to be made a tool of as a member of the committee. Colonel Cock, realizing at last the ignoble part he was playing, was thoroughly ashamed and took his leave, expressing his regret and sorrow at his course. The remainder of the committee sneaked out, feeling small and crestfallen. But the conspirators were jubilant, making sure that this legislative censure, coming on top of General Wool's attacks, the martial-law resolutions, and the numerous secret affidavits sent on, would certainly cause the governor's removal, and went about exclaiming, "Governor Stevens is a dead lion at last."

After this deliverance, the legislature passed all the measures and memorials that the governor recommended. Some of the members who voted for the resolutions of censure regretted their action like Colonel Cock, and all were soon compelled to cower and apologize before the indignation which their action excited all over the Territory. Everywhere the real people, the stalwart settlers, the men of worth and character, were denouncing this underhanded and cowardly attempt to misrepresent their sentiments, and strike down the man who had saved the Territory in her peril and defended her fair fame against the slanders of high officials, whose patriotic self-devotion and herculean labors they had witnessed, whose courage, force of character, and ability they admired, and whose leadership they were proud to follow. The people were eager to manifest their approval and support of Governor Stevens, and in response to this sentiment the Democratic convention, meeting at Cowlitz Landing, unanimously nominated him for delegate in Congress.

Meantime the governor, least disturbed of all at the unjust but impotent censure, enjoyed a little respite after four years of incessant and

overwhelming responsibilities and labors. He was comfortably established in his new home, and hugely enjoyed his garden and farming. He employed two excellent men about the place, Joel Riden and William Van Ogle, and fully redeemed his promise of the finest garden and earliest vegetables in Olympia. He purchased a yoke of oxen, had a cart built, and commenced clearing the Walker claim, situated half way to Tumwater. The malignant charges and attacks upon him failed to cause his removal.

The governor, however, felt that he had not been properly supported at Washington. His Indian treaties were left unconfirmed, and Wool's course in excluding settlers from the upper country and vilifying the people was not rebuked. He declared with great feeling that he would never accept another appointive civil office.

On January 26, 1857, at the instance of the governor, the legislature passed an act incorporating the Northern Pacific Railroad Company, with a capital of fifteen millions, which might be increased to thirty millions, and authority to build a railroad from one of the passes in the Rocky Mountains, on the border of Nebraska, westwardly across Washington by the Bitter Root valley, crossing the Cœur d'Alene Mountains, and traversing the plain of the Columbia, with two branches, one down the Columbia, the other over the Cascade Mountains to the Sound, with a line from the river to the Sound. Among the incorporators were Governor Isaac I. Stevens, Senator Ramsay, and General James Shields, of Minnesota, Judge William Strong, Colonel William Cock, Elwood Evans, A.A. Denny, and W.S. Ladd. The governor expected a rapid development of the Territory, and evidently thought that an organized company with a charter was a practical step towards starting the great railroad enterprise.

Early in the year 1857 General Wool was relieved of the command of the Pacific Department by General N. G. Clarke, colonel 6th infantry, and went to New York, where he continued his malignant warfare upon the authorities, volunteers, and people of Oregon and Washington, by whose governors and legislatures he was denounced, "and whose respect he had long since ceased to possess."

After his nomination the governor determined to make a canvass of the Territory, and invited Alexander S. Abernethy, who was nominated by the

Whig convention, to accompany and meet him in joint discussion. The newly appointed receiver of the Land Office, just arrived from the East, Selucious Garfielde, a man of fine, showy presence and great oratorical gifts, offered to assist in the canvass by discussing national politics. A small steam-tug, the Traveler, W.H. Horton owner and captain, was chartered to take the party around the Sound. Mr. Abernethy declined the invitation, but Colonel William H. Wallace went in his stead, and the governor, accompanied by Garfielde, Wallace, his son Hazard, and a few friends, started from Olympia in May, and visited Steilacoom, Seattle, Ports Madison, Gamble, Ludlow, and Townsend, thence up Hood's Canal to Sebec, thence Whitby Island, thence Bellingham Bay, and thence returned to Olympia. At each point the governor spoke at length, defending his course, but devoting more time to pointing out the needs of the Territory and the measures necessary for its benefit, such as the confirmation of the treaties, payment of the war debt, additional roads and mail service, and especially the Northern Pacific Railroad and its relation to the trade of Asia. With much feeling he indignantly denied the personal charges against himself, denounced the traducers, and defied them to meet him face to face and repeat them. Though not a fluent speaker, he was clear, strong, earnest, and convincing, and was everywhere received with the greatest attention and respect.

A plot was formed at Steilacoom to get up a row at the meeting to be held there, and under cover of it to assassinate the governor; and in consequence of the earnest entreaties of his friends there, who had discovered the plot at the last moment and were wholly unprepared for it, he made but a short stop at that point. In July he again visited Steilacoom, and held a meeting and joint discussion, but no attempt at disturbance was made, his friends being ready for it.

As the little Traveler slowly churned her way into Bellingham Bay, a great war canoe, manned by the northern Indians,—those dreaded sea wolves,—went speeding across the entrance to the bay twice as fast as the Traveler could possibly go, and the little party felt rejoiced to have escaped meeting them. It was only a few weeks later that the unfortunate Colonel Ebey met his tragic fate at the hands of a crew of these savages. They were forbidden to enter the Sound, and the appearance of one of their war canoes betokened only violence and robbery.

After returning to Olympia the governor spoke at meetings of the settlers there, at Tumwater, and Yelm, Chambers', and Grand Mound prairies. Then he proceeded down the Chehalis River and traveled along the coast, crossing Gray's Harbor and Shoalwater Bay, to the mouth of the Columbia, holding meetings on Miami prairie, and each of these points; thence, continuing the canvass, he went up the river, speaking at Cathlamet, Monticello, Lewis River, Vancouver, and the Cascades, and then, returning home by way of the Cowlitz, he spoke at Cowlitz Landing and Judge Ford's.

In this canvass, in five weeks Governor Stevens traveled by steamer, canoe, and on horseback fourteen hundred and sixty miles, and spoke at forty meetings. His friends supported him with great enthusiasm, and one of the features of the contest was the "Stevens Hat," adopted as a badge by his more enthusiastic supporters,—a black slouch hat, the rougher and shabbier the better.

The election took place July 13, and he was chosen by a vote of 986 against 549 for his opponent.

During the governor's absence on the canvass occurred the untimely death of James Doty, his faithful secretary and assistant in so many difficult and dangerous Indian councils and expeditions. "I have never been connected with a more intelligent and upright man," declared the governor. He was buried on Bush prairie beside his friend, George W. Stevens.

After his election as delegate Governor Stevens resigned as governor, August 11, 1857, and Lafayette McMullan, of Virginia, was appointed his successor. The governor turned over the gubernatorial office to the new appointee on his arrival, and the Indian superintendency to Colonel Nesmith, who was appointed superintendent for both Oregon and Washington, the two superintendencies having been united by the last Congress, in May. At his invitation Colonel Nesmith visited him at Olympia, and the governor took the greatest pains to impart to him all the information and assistance in regard to his new duties in his power.

It was on a beautiful morning in the early fall that Governor Stevens with his family started from Olympia on the return journey to the East. He rode his noble gray charger Charlie, and his son was also mounted, while Mrs.

Stevens and the three little girls rode in an easy spring wagon. The roads were dry, the weather of the finest, the country in its most beautiful garb, and all the family were in high health and spirits; and the governor, buoyant with courage, hope, and vigor, having accomplished the tremendous tasks laid upon him by the government, carried the Territory through the Indian hostilities, overcome all obstacles, and put down his enemies, now looked forward with renewed confidence to vindicating his course in Washington, and compelling a deceived and misguided Congress and administration to do justice to his people and himself.

The return journey to the Cowlitz, and down that stream in canoes, and up the Columbia to Portland by steamboat was uneventful but pleasant, in strong contrast to the discomforts of the trip on entering the country three years previously. San Francisco was reached after a short voyage down the coast, where the governor was again welcomed by his old friends, and everywhere received with the attention and deference considered due his remarkable achievements in face of unprecedented obstacles.

On the voyage to Panama, the steamer Golden Gate broke her shaft the second day out, and had to creep back to port with one wheel, like a bird with a broken wing, losing an entire week. The Golden Age, which took her place, came near meeting a worse disaster; for one stormy and misty afternoon, as the captain and cabin passengers were at dinner, a steerage passenger on the forward upper deck espied a rock-bound island directly in front of the steamship, upon which she was rushing at full speed, and gave the alarm. The great paddle-wheels were instantly reversed, and the vessel just managed to back off before striking.

Colonel John C. Fremont, the Pathfinder, the Republican candidate for the presidency, was one of the passengers,—a slender, alert man,—as was also one of the Californian senators, John Broderick, who fell in a duel with Judge Terry soon afterwards. The passage across the Isthmus was made safely and easily all the way by rail; and the voyage from Aspinwall to New York was unmarked, save by a severe storm, with mountainous billows for three days, off Cape Hatteras. They arrived in New York in time to make a short visit in Newport, and to spend Thanksgiving at Andover with the Puritan father.

CHAPTER XLIV

IN CONGRESS.—VINDICATING HIS COURSE

Governor Stevens lost no time in hastening to Washington, and the very next day after his arrival called upon the Commissioner of Indian Affairs in regard to the funds for, and accounts of, Superintendent Nesmith. The large numbers of Indians, chiefly in Oregon, still being restricted to reservations and partially supported by the government, necessitated heavy expenditures, some of which were made without previous authorization, and it was essential for the peace of the country that they should be approved and Nesmith sustained. Following the matter up with his accustomed energy and thoroughness, he calls upon the commissioner and Secretary of the Interior again and again; he has all the suspended accounts, estimates, and papers brought together, and, having mastered them, he sits down with the chief clerk,—“an old friend of mine,” he writes Nesmith,—posts him up and satisfies him on all points, and secures his favorable report, and then convinces the commissioner and secretary. By the very next steamer the funds for Washington Territory liabilities are sent to Nesmith, and during the next few months, by unremitting and painstaking efforts, his deficiency payments are allowed, his estimates approved, and ample funds remitted. This was an extremely difficult and laborious task, for the expenditures for the Indian service in the two Territories were unexpectedly large, the department was naturally reluctant to authorize them, and the difficulties were largely increased by the rasping and peppery, if not insubordinate, letters which Nesmith, indignant at the neglect of his recommendations, addressed to the commissioner, and which the governor ingeniously neutralized by personally vouching for Colonel Nesmith, and submitting extracts of Nesmith’s letters to himself evincing the superintendent’s devotion to duty.

The still more important duty of vindicating his Indian treaties and procuring their ratification engaged his closest attention. In one short fortnight, by his clear exposition of their wise and beneficent provisions,

and by his graphic portrayal of the conditions in the Pacific Northwest, he satisfies Commissioner Mix, Secretary Thompson, and President Buchanan that the treaties ought to be confirmed, and secures their urgent recommendations to the Senate in favor of confirming them without delay. He seemed to take his former attitude of personal influence with the highest officers of the government at a bound, despite the serious charges that had been made against him. On December 2 he writes Nesmith:—

“We have had many conferences with the commissioner, and two with the President and Secretary of War, in regard to Indian affairs. I am working very hard with the department in order to have everything completely in train against the meeting of Congress.

“I have been most cordially received in all quarters since my arrival, and I hope I shall be useful to our Territories.”

And again, on December 17:—

“Lane and myself will canvass the Indian committees. Have seen Senator Sebastian, chairman Senate committee. Pushing armed steamer for the Sound. Indian and War departments and President all concur. I have had a most attentive and courteous hearing from all these gentlemen. Years since, I learned brevity and directness in the transaction of business here, and I find no difficulty whatever in effecting a good deal in very brief interviews.”

His old friends in Washington—Professors Bache, Henry, and Baird, General Totten, Mr. John L. Hayes, former brother officers, and others—welcomed him back, and were glad and proud to observe that he was unchanged except in increased maturity and strength of character, and that his very presence, with his simple, earnest, and dignified demeanor, refuted the infamous slanders that had been circulated against him. General Joseph Lane, the delegate from Oregon, received him with open arms, delighted to have so able a coadjutor to fight the battles of the far-distant and neglected Northwestern Territories. General Lane was highly esteemed by all parties, and had much influence with the Democratic leaders. The governor said he was a tower of strength. A devoted friendship grew up between the two whole-souled and patriotic men.

It will be remembered how inflexibly Governor Stevens insisted upon the trial and punishment of the Indian murderers who so treacherously massacred unoffending settlers, deeming the example absolutely necessary, to deter the commission of outrages by the Indians in the future. Having brought Leschi and the Sound murderers to condign punishment, in spite of the efforts of the regular officers to shield them, he now urged the Indian Department to make requisition upon the War Department for the arrest and

delivery to the civil courts, for trial, of the Yakima murderers, whose atrocious slaying of their agent, Bolon, and the miners, precipitated the war, but who thus far had been virtually safeguarded by the pacific and temporizing policy of the regular officers. After a number of interviews with the Indian commissioner and the two secretaries, the demand was about to be complied with, for all agreed that the murderers ought to be punished, when the objection was raised by the military authorities on the Pacific that an attempt to seize the offenders would lead to further hostilities, and it was intimated that the Indians regarded the quasi-peace operations of Colonel Wright in 1856 as promising them immunity for the murders. The Secretary of the Interior, doubtful how far the good faith of the government might be involved, was consequently reluctant to make the necessary requisition on the War Department. The governor thereupon addressed an able letter to the commissioner, in which he pointed out that an inflexible adherence to the policy of punishing perpetrators of unprovoked murders was the only course to impress savage tribes with respect, and deter them from the commission of similar outrages; that, while such a course in this case might be attended with the renewal of hostilities on a small scale with the recalcitrant faction of the Yakimas, it would do more than all else to strengthen the hands of peaceful and friendly Indians in other tribes. He declared that he had always understood, from repeated interviews with Colonel Wright, that that officer had given no immunity to murderers. Moreover, the very manner in which the military objected showed conclusively that no such immunity was ever granted; for, if it had been granted, they would have avowed it positively as their own act, and not merely have referred to it hypothetically, as it were, and as subordinate to the question of expediency. For if the faith of the government had been pledged, questions of expediency were subordinate. He concluded:—

“I must therefore urge the requisition, unless the military will take the responsibility of saying, ‘We did make a pacification on the ground of immunity to the murderers,’ in which case I shall press the matter no further, except to suggest that measures be taken to prevent such pacifications hereafter.”

Thus ably and ingeniously the governor forced upon the military the onus of acknowledging having patched up a fictitious peace by granting immunity to murderous savages, whom it was their duty to punish. This

they could not bring themselves to do; they were obliged to abandon their protégés to their fate, and the requisition was made. One cannot but think, after a careful study of all the evidence, that the Indian murderers were led to believe in the promise of immunity, if it was not explicitly promised them.

At the end of December he broke away from these engrossing cares and labors for a few days, and went North for his family, having leased a commodious brick house, No. 510, on the north side of Twelfth Street, between E and F, at \$200 a month; but on January 4 he is again at his post in the House. He installed Mr. James G. Swan as his secretary, set apart the upper rooms in the house as an office, and plunged with redoubled energy into the important and multifarious duties and objects he had undertaken, chief of which was the confirmation of the Indian treaties; payment of the Indian war debt; advocacy of the Northern route, separate Indian superintendency for Washington Territory, armed steamer for Puget Sound, mail route, military roads, appropriations for Indian service, and for other needs of the Territory; and pressing before the departments many private claims growing out of the Indian war. Besides all these, he published, February 1, a circular letter to emigrants, giving useful information for those wishing to move to the Territory. In this month he also wrote a strong appeal to the Indian Department, urging that the farms promised the Blackfeet by the treaty of the Blackfoot council be established without further delay, and suggesting that the commissioner confer with Alexander Culbertson, who was then visiting Washington,—an appeal which bore fruit, for the commissioner immediately sent for Mr. Culbertson, and took steps to start the farms. The governor also gave effective aid to Mr. Culbertson in collecting an account due him from the government.

The appropriation of \$30,000 for a wagon-road between Fort Benton and Walla Walla—made in 1855—had never been used, in consequence of the Indian hostilities, and the governor now induced the Secretary of War to authorize the commencement of the road, and to place Lieutenant Mullan in charge of it. The topographical engineers of the army were not a little put out at the governor's action in Mullan's behalf, claiming that the duty rightfully belonged to one of their corps, and that he was disregarding the rights of the engineers in bestowing it upon a line officer; but he had found Mullan one of the most zealous and efficient officers of the Exploration,

and one, moreover, especially conversant with the country. His recommendation had great weight with the War Department, thus to overcome the influence of the corps and the almost invariable usage. Another incident which occurred at this time afforded further evidence of his influence. An officer of General Wool's staff, Captain T.J. Cram, in 1857 made a report to him upon the upper Columbia country, much of which was taken from Governor Stevens's exploration reports without acknowledgment. Moreover, the navigability of the great river was pronounced utterly impracticable, and the country itself stigmatized as essentially barren and worthless; and the report was made the vehicle for reiterating all Wool's exploded charges against the territorial authorities, people, and volunteers, and collecting and retailing all the stories of outrage upon Indians by whites that could be trumped up. This precious "topographical memoir" was widely published in the newspapers, and was submitted by General Wool to the War Department, with the evident design of defeating the confirmation of the treaties and the payment of the war debt. When the report arrived, the governor filed a statement in the department exposing its character; and at his instance Captain A.A. Humphreys, who had charge of all the Pacific Railroad reports, also filed a similar statement, pointing out Cram's unreliability and plagiarisms, so thoroughly discrediting the report that the department would never give it out, and it failed of its intended effect.

It was a hard fight over the treaties before the Senate committee. Wool's charges, widely spread in the newspapers, had excited much prejudice against them, and they were strenuously opposed by most of the regular officers on the Pacific. But by the middle of March the governor was equally successful in convincing that committee that they ought to be confirmed, and was able to write Nesmith that the committee would report favorably, and that there was every prospect of confirmation.

The Northwestern boundary, with the disputed question of the San Juan archipelago, also claimed his attention. His resolute letter of May, 1855, to Sir James Douglass, declaring that he would sustain the American right to the islands to the full force of his authority, having been submitted to both governments with Sir James's protests, had brought home to them the risk of armed collision unless the boundary question were speedily settled. Accordingly commissioners were appointed on both sides to determine and

delimit the boundary as drawn by the treaty of 1846. But as the controversy turned on the construction of the treaty itself, it could not be settled by any survey, and in this, the most important part of their task, the commissioners soon became clever disputants, each advocating his own side of the question. Jefferson Davis, now a senator of great influence, writes Governor Stevens, March 18, requesting him “to call on the President and Secretary of State, and give them your views as to the importance and necessity of marking the boundary,” etc. The American commissioner was Mr. Archibald Campbell, and Captain J. G. Parke, of the engineers, was the chief surveyor, both old friends of Governor Stevens. With his thorough knowledge of the islands in dispute, and of the astute, grasping, and persistent character of the Hudson Bay Company and British officials, the governor strove to stiffen the backbone of the administration, and to expedite the boundary survey.

Governor Stevens’s first speech in the House occurred May 12, on his bill to create additional land districts in his Territory, and was a brief one. The next day a bill came up to reimburse Governor Douglass for the supplies he had furnished in the Indian war, and the governor seized the opportunity to deliver a powerful speech in behalf of the war debt. He referred to Sir James’s emphatic testimony that his, the governor’s, course was the only one which could have protected the settlements, or prevented their depopulation, and vigorously defended the people and volunteers:—

“During the whole course of that war, not a friendly Indian, nor an Indian prisoner, was ever maltreated in the camp of the volunteers of Washington. For six months the people of Washington had to live in blockhouses; and yet so obedient were the people to law, so proud of their country, doing such high homage to the spirit of humanity and justice, that during all that time the life of the Indian was safe in the camp of the volunteers. Why, sir, there were nearly five thousand disaffected Indians during all this time on the reservations lying along the waters of the Sound, and not a man ever went there to do them harm.

“I trust that the same measure of justice, which the committee propose to deal out to Governor Douglass, will be dealt out to the people of the Territories of Oregon and Washington. The debt in all the cases rests

upon the same foundation. Our people furnished supplies and animals and shipping, and rendered their own services, on the faith of the government.”

On the 31st he delivered a long and exhaustive speech on the same subject, giving the history of the war, vindicating his own course, and the patriotism and conduct of the volunteers and people.

On May 25 he delivered a speech of an hour upon the Pacific Railroad, the subject of all others in which he took the greatest interest and expended the greatest exertions. He took the broad national view, embracing the whole country, and advocated three routes, and then pointed out the superior advantages of the Northern route, and dwelt upon its value for gaining the trade of Asia:—

“Therefore I would not carve our way to the Pacific by a single route. It would not satisfy the country. It is not for its peace and harmony politically. It could not do the business of the country. It is not up to the exigencies of the occasion. But carve your way to the Western ocean with at least three roads.

“Considering, therefore, the greater shortness of the Northern route, and its nearer connections with both Asia and Europe, it must become the great route of freight and passengers from Asia to Europe, and even of freight from Asia to the whole valley of the Mississippi.”

These views have become established facts for so many years that it is hard to realize how far in advance of his contemporaries Governor Stevens was in holding them. He was one of the first, if not the very first, to discern the necessity for three transcontinental railroads, and the opportunity for securing the trade of Asia offered by the Northern route.

A few days later he sprang to his feet in defense of his friend Nesmith, who was bitterly assailed by M.R.H. Garnett, of Virginia, and answered him in a manner so complete and satisfactory as to defeat an amendment offered by him.

On the 27th he spoke in support of an appropriation for a military survey of the upper Columbia, and in a sharp and breezy debate had the satisfaction of exposing Cram’s report.

Congress adjourned on June 9. The treaties were not reached, but the governor writes Nesmith that a test vote showed that the Senate was strongly in favor of them, and that they would all be confirmed next session.

During the session Governor Stevens introduced nineteen bills and resolutions, and offered four amendments. He spoke nine times, making five considerable speeches, including two on the war debt, one on the Pacific Railroad, one on the survey of the Columbia, and the defense of Nesmith. The following synopsis gives the matters which claimed his attention in Congress:—

- Indian war debt.
- Military roads.
- Additional land districts.
- Settlement of accounts of clerks of courts.
- Erection of public buildings.
- Survey of Columbia River.
- Geological survey.
- Military road, Columbia to Missouri.
- Increased pay for land surveys.
- Relief of C.H. Mason.
- Additional post and mail routes.
- Pacific Railroad.
- Port of entry at Vancouver.
- Marine hospital.
- Land for lunatic asylum.
- Port of delivery at Whatcom.
- Enrolling clerk for legislature.
- As to false reports of Wool.
- Bringing on Indian chiefs.
- Payment territorial deficiency.
- Extending certain acts to Washington Territory.

The above summary gives but a faint idea of the amount of work and attention involved in the several matters enumerated. With characteristic thoroughness, the governor always paved the way for his measures by first obtaining the support and recommendation of the department to which each

pertained, and was equally indefatigable in following them up before the committees. But nothing engrossed so much of his time and attention as the numerous claims for losses and services growing out of the Indian war, sent to him by his constituents, almost all poor men, all of which he presented and pressed with the greatest pains and assiduity.

So intent had he become upon all these important measures that, as he writes Nesmith, he determined to remain in Washington during the recess of Congress, and prepare for success the next session.

On July 21 Governor Stevens submitted an able and exhaustive memoir to Lewis Cass, Secretary of State, on the unjust and exorbitant exactions imposed upon Americans, who were then flocking to the newly discovered gold fields of New Caledonia,—now British Columbia,—on Fraser and Thompson rivers, having previously, on May 18 and June 29, informed him of this emigration, and the impositions placed upon it by Governor Douglass. The chief of these were, a license tax of five dollars a month for the privilege of mining, and the prohibition of all navigation and trading except by license from the Hudson Bay Company, and the requirement that all supplies must be purchased from that company. He showed that with forty thousand miners, nearly all of them American citizens, entering the gold fields, as was the estimate of the most intelligent gentlemen of the Pacific coast, the license tax would amount to \$2,400,000 per annum; while the Hudson Bay Company, from the exclusive right of furnishing supplies, would reap the enormous harvest of \$14,000,000 per annum. Moreover, as the bulk of these supplies could not be furnished from the present resources of that company, they would have to be drawn by it from California, Oregon, and Washington, so that in fact those States were compelled to make that company their factor for the sale of their products, and allow it all the profits from the sale of their own products to their own citizens.

The governor declared that this state of things could not be submitted to by American citizens unless imposed by positive and imperative law, and that the exactions in question had been imposed without any legal authority which should be respected by the citizens or government of the United States.

He held that, the British government having passed no law levying a mining tax, Governor Douglass, as governor of Vancouver Island, was not given authority by his commission or instructions to impose such tax; that he was governor of Vancouver Island only, and his political jurisdiction did not extend to the mainland, where, in fact, he had always declined to exercise authority over the Indians as governor, while he had dealt with them as chief factor of the Hudson Bay Company.

That the company, a mere Indian trading company, had no authority under its charter to set up a monopoly of selling supplies to white men, whether American citizens or British subjects, such monopoly, moreover, being expressly prohibited by British law.

And he concluded by asking, in behalf of the citizens of our whole Pacific coast, that the government would interpose with the British authorities for the removal of the restrictions, and would demand the repayment of all mining taxes collected, and of the value of all vessels and cargoes confiscated. In the last paragraph he takes pains to acknowledge the assistance of his friend, John L. Hays, Esq., in the investigation of the legal questions involved.

The memorial was widely published in the papers, and produced an excellent effect on the Pacific coast. The Hudson Bay Company relinquished its attempt to compel the miners to purchase supplies from it exclusively, and the monthly mining tax was reduced to a moderate yearly one. The memorial was a timely and much-needed warning to the Buchanan administration to stand up against the ever greedy and bull-dog demands of the British upon the Pacific Northwest.

The news of Steptoe's defeat reached Washington in June, and created a great sensation. It was looked upon as a complete vindication of Governor Stevens's views and policy in regard to the management of the Indians, and a convincing proof of the folly and failure of the Wool military peace policy. The very officers who had condemned and denounced the governor's plan of punishing and subduing the hostiles in order to preserve the fidelity and peace of the friendly and doubtful tribes, now that their weak temporizing had drawn the latter into hostilities, breathed nothing but war. Writes Colonel Nesmith with glee, natural enough considering how his

request for two howitzers had been brusquely refused, and himself treated with contumely, by Wool:—

“General Clarke and the whole military are now fully answered, and they believe there *is a war*. The military now find themselves in something like your position when the Indians, in violation of all pledges, attacked your camp in the Walla Walla. I say again, ‘Hands off;’ they have a fair field, and I hope they will have a *free fight!*”

The War Department took energetic measures in consequence of Steptoe’s defeat. Colonel Wright was largely reinforced, and in September led a thousand troops into the Spokane country, defeated the Indians in two engagements, and summarily hanged sixteen of them without trial. The same month Oregon and Washington were constituted a separate military department, and the veteran general, William S. Harney, was sent out in command. This appointment was highly satisfactory to Governor Stevens, for General Harney adopted all his views in regard to the military problem, the Indians, the opening of the country to settlement, and later, as will be seen, in regard to defending our right to the San Juan archipelago. The governor writes Colonel Nesmith and Governor Curry requesting them to call on the veteran commander on his arrival, and extend to him their good will and support.

General Harney’s first act on reaching his new command was to throw open to settlement the whole upper country, revoking Wool’s orders excluding settlers therefrom. This was a notable victory for Governor Stevens, and wiped out the last of Wool’s reactionary measures.

The governor spent the whole recess in Washington, except for a flying visit North in July (when, in passing through New York, he had his phrenological chart again drawn by Fowler) and a visit of three weeks in the fall to Newport and Andover.

In the evening of December 2 he delivered before the American Geographical and Statistical Society, in New York, an elaborate address on the Northwest, comprising fifty-six printed pages. Mr. E.V. Smalley, the historian of the Northern Pacific Railroad, says of this address that “he presented the whole argument in behalf of the Northern route. Some of his

statements were received with a great deal of skepticism, but time has shown that they were strictly and conscientiously accurate.”

Mr. Swan returned to the Pacific coast in the fall, and a very capable, faithful, and agreeable young man, Mr. Walter W. Johnson, succeeded him as secretary. The adjacent house on the south side was occupied by Mr. Johnson’s aunts, Mrs. W.R. Johnson and Miss Donelson, most estimable, cultivated, and attractive ladies, and the two families contracted the warmest friendship for each other.

Congress reassembled December 6. During the session Governor Stevens offered seven bills and five resolutions, and moved four amendments. His longest and most important speech was on the payment of the war debt, delivered February 21, 1859. He also spoke on bringing Indian chiefs to Washington, twice on the Northwest boundary, and on the military road between Fort Benton and Walla Walla.

In January he had two hearings before the Senate Indian Committee. The treaties were all confirmed in the Senate on March 8 without serious opposition, for by this time their wisdom and merit were recognized on all hands. J. Ross Browne, special agent sent out by the Interior Department to investigate matters, strongly urged their confirmation. Judge G. Mott, another special agent, who had been dispatched to examine Nesmith’s superintendency, did the same. Colonel Mansfield, the inspector-general of the army, after visiting the upper country and studying the conditions there, strongly recommended the treaties. And even General Clarke and Colonel Wright, nobly acknowledging their mistake in opposing them, joined in the recommendation. At last Governor Stevens’s great work was vindicated by the test of experience, and approved by its former opponents.

It has already been related how Jefferson Davis, as Secretary of War, summarily rejected Governor Stevens’s plans for continuing the surveys on the Northern route, throwing the whole influence of the government in favor of the Southern route, and strove to discredit his report of the superior advantages of the former; and how the governor, on his expedition to the Blackfoot council, notwithstanding this rebuff, indefatigably continued his surveys, taking barometrical observations, and making careful examinations of different passes and routes, using the officers and parties of the Indian

service for the purpose. Throughout all the labors and responsibilities of the Indian war he kept up the determination of important points, and the collection of data concerning the climate, snows, navigability of the great rivers, passes, etc., making use in like manner of the volunteer parties.

During this fall and winter he made his final report on the Northern Pacific Railroad route, giving the results of his labors since the first report, made some three years before. This final report was published in two large quarto volumes, containing 797 pages. The first volume contains the Narrative, 225 pages; Geographical Memoir, 81 pages; Meteorology, 25 pages; Estimate, 27 pages; and, with the exception of the meteorological tables and a paper on the hydrography of Washington Territory, comprising 28 pages, was entirely the governor's own composition, and equal to about 700 ordinary printed pages. The second volume contains the botany, zoölogy, ichthyology, etc., with numerous plates.

The governor expected, on returning from Fort Benton, to devote a year to the preparation of his final report, but this was interrupted by the Indian war, and then, with largely increased data, he found himself absorbed in these congressional duties and labors, which completely engrossed all his time and attention. It was a physical impossibility for any man to write out with his own hand in a few months such a report, even if it lay all composed and arranged in his mind. The way in which Governor Stevens overcame the difficulty was original, and showed his remarkable mental grasp and powers of memory. He dictated the whole report. Every morning an expert stenographer came at six, and the governor, walking up and down in the dining-room, dictated to him for one or two hours before breakfast. The reporter then took his notes, wrote them out, and had the manuscript ready for the governor's revision at the next sitting. Walter W. Johnson, Dr. J.G. Cooper, and other assistants were kept hard at work on the report, and on February 7, 1859, the governor had the satisfaction of submitting it to the Secretary of War, John B. Floyd, Jefferson Davis's successor.

The report is written in a clear and graphic style. The facts presented in it fully sustained and confirmed the conclusions of the first report, and made a crushing answer to Jefferson Davis's doubts and criticisms. And Governor Stevens's views set forth therein have been fully and strikingly borne out in the subsequent development of the country.

Ten thousand copies of the report were ordered to be printed by the Senate March 3, and afterwards the House ordered ten thousand extra copies March 25, and the Senate as many more May 9, 1860. Those first printed were not satisfactory to the governor in execution, paper, or binding, and he was at no little pains to have the twenty thousand extra copies ordered. Being disappointed in a certain senator whom he expected to pass the desired order in the Senate, the governor frankly applied to Jefferson Davis to secure the order, and Davis was manly and magnanimous enough to do so at once. It was characteristic of Governor Stevens, as has already been pointed out, to base all his action and objects upon the high ground of public needs and welfare, and therefore, ignoring any personal considerations, he demanded Davis's aid, on the ground that the valuable data in his final report ought to be published for the benefit of the country.

The governor was inclined to attribute good motives to his opponents, or those who differed from him; was quick to see and admit their points of view; and never assailed their motives, nor descended to personal attacks. Indeed, he was inclined to think too well of men, and to expect too much of them. CHAPTER XLV SAVING SAN JUAN Six weeks after the final adjournment of Congress, Governor Stevens left New York in April, on the steamer *Northerner*, on the long journey to Puget Sound, via the Isthmus and San Francisco. He was accompanied by his family, except his son, who remained at school in Boston, and by his brother-in-law, Mr. Daniel L. Hazard, who was going to the Pacific coast to seek his fortune, which he found after six years' devotion to business. The journey out was a pleasant one, and they reached Vancouver on the *Columbia*, and repaired to the hotel of the town. General Harney immediately called, and insisted on taking the governor and family to his house, where they remained several days. The incident is significant as showing the close relations between the veteran commander and Governor Stevens, and helps explain the prompt and decisive action of the former on the San Juan controversy a few weeks later. This dispute was in the acute stage; the boundary commissioners were as busy with arguments and contentions as a whole bar of lawyers, and as far from agreement. Undoubtedly the governor, in his earnest and convincing manner, fully imbued the general with his views of the American right, and the duty of the authorities to defend it.

The journey from Vancouver to Olympia was made in the manner usual in those days,—down the Columbia in river steamboat, up the Cowlitz in canoes paddled and poled by Indians, and across country in wagons to Olympia. The governor was everywhere received with demonstrations of popular confidence and goodwill. The Democratic convention unanimously renominated him as delegate to the next Congress.

Colonel William H. Wallace was nominated by the Republican convention. Selucious Garfielde, having been removed from his office of receiver of the Land Office for misconduct, now vehemently opposed the governor, and came out in support of Wallace. Governor Stevens at once entered upon a systematic and thorough canvass of the Territory, inviting his competitor to accompany him, which he did. But Garfielde and Judge Chenoweth started around the Sound ahead of the candidates, hoping to capture the vote of the people for Wallace beforehand. Mr. Daniel L. Hazard accompanied the canvassing party. The governor, as was too much his habit, crowded into a short space of time a greater amount of speaking and traveling than most men could stand. Colonel Wallace broke down on the Columbia River under the strain, and had to return home, whereat the governor seemed rather pleased, not at his opponent's misfortune, but at his own superior endurance.

The election took place July 11, and he was chosen by a vote of 1684 against 1094.

Mr. Charles H. Mason, the secretary of the Territory and at times the acting governor, died on July 23, rather unexpectedly. He was beloved by every one, and the whole town was plunged in mourning. The governor felt his loss as that of a brother, and was very much affected. Two days later the funeral services were held in the Capitol building. Governor Stevens delivered an eloquent and heartfelt eulogy, moving all present to tears, after which a procession was formed, and almost the entire population followed the remains to the grave. He was laid at rest on Bush prairie, beside his friend, George W. Stevens.

A row over a pig precipitated a crisis in the San Juan dispute. An American settler shot a Hudson Bay Company's porker found rooting in his garden, whereupon Governor Douglass promptly dispatched a steamer to the scene,

bearing his son-in-law, who was a high official of the company and also of the colony, and two members of the colonial council. Landing, they loudly claimed the island as British soil, and ordered the settler to pay one hundred dollars for the slain pig, on penalty of being taken to Victoria for trial if he refused. But the settler, who had already offered to pay the reasonable value of the pig, did refuse, and boldly defied arrest, revolver in hand. The British officials retired, baffled for the time, but declaring that the settler was a trespasser on British soil, and must submit to trial by a British court for his offense. A few days after this episode General Harney, returning from a visit to Governor Douglass, stopped at San Juan, and the American settlers there invoked his protection against British aggression, relating the story of the pig. They also begged protection against the raids of the northern Indians, who had committed many depredations on Americans, while they never molested the English or Hudson Bay Company people, whom they regarded as friends. The old soldier realized the defenseless condition of the settlers. His blood was stirred at the attempted outrage. On his way back to Vancouver he stopped at Olympia and dined with Governor Stevens, and discussed with him what action the emergency required. Immediately on reaching his headquarters at Vancouver, General Harney ordered Captain George E. Pickett,—the same who, a Confederate general, led the famous charge at Gettysburg,—to proceed with his company of the 9th infantry from Bellingham Bay to San Juan Island, occupy it, and afford protection to American settlers. Pickett landed on the island July 27, and at once issued a proclamation declaring that, in compliance with the orders of the commanding general (Harney), he came to establish a military post on the island, notifying the inhabitants to call on him for protection against northern Indians, and stating that “this being United States territory, no laws other than those of the United States, nor courts except such as are held by virtue of said laws, will be recognized or allowed on this island.” This was throwing down the gauntlet at the feet of the British lion with a vengeance; and Governor Douglass, a bold, haughty, and determined man, hurried three warships to the island, with positive orders to prevent the landing of any more United States troops; but Pickett took up a position on high ground, threw up intrenchments, and notified the British that he would fire upon them if they attempted to land.

Governor Douglass now issued his proclamation, protesting against the “invasion,” and reasserting that the island was British soil; and, armed with this document, his three naval commanders waited on Pickett, and formally demanded his withdrawal. On his refusal, they proposed a joint occupation. But the daredevil American officer was equally obdurate in rejecting this compromise, and repeated his warning to them not to land. Nothing remained for them but to report their mortifying failure to Governor Douglass. It happened that Admiral Baynes, commanding the British Pacific fleet, had just put into Esquimaux Harbor, the British naval station on Vancouver Island, four miles from Victoria, with a strong naval force. Sir James, his indignation at white-heat, and fiercely determined to expel the Yankees from the coveted island, now ordered the admiral to take his whole force and drive them from it. As governor of a British colony, Sir James was authorized to give the order, and it was the admiral’s duty to obey it. But Admiral Baynes took the responsibility of not obeying it. It would be ridiculous, he declared, to involve the two great nations in war over a squabble about a pig. But he reinforced the ships blockading San Juan, and renewed the orders to prevent the landing of any more American troops. Five British ships of war, carrying 167 guns and 2140 men, closely beset the southeastern end of the island, charged with the execution of these orders.

Governor Stevens visited San Juan soon after Pickett landed, and on August 4 left it in the steamer Julia. Captain Jack Scranton, with dispatches from Captain Pickett to General Harney, reached Olympia the next day, and at once forwarded the dispatches by special messenger to General Harney at Vancouver. In return, Harney’s orders reached Olympia on the 8th, were forwarded immediately by the Julia to Steilacoom, and in pursuance of them Colonel Casey embarked on the steamer with three companies, hastened down the Sound, silently stole through the blockading fleet in a dense fog, and effected a landing on San Juan on the 10th. The sight of the empty steamer anchored close to the shore in the gray of the morning, and the cheers of the reinforcements as they marched into Pickett’s fort on the hill above, first apprised the British navy of the successful landing.

Soon afterwards Admiral Baynes withdrew his ships and relinquished the blockade, leaving the American forces in undisputed possession.

While the British were omnipotent on the water, they were ill prepared to sustain a contest on land, and undoubtedly the knowledge of this fact influenced Admiral Baynes, and Governor Douglass, too, after his first indignation, in their forbearing attitude. Victoria and all the points on Fraser and Thompson rivers and other places on the mainland were thronged with American miners, attracted by the recently discovered gold fields. The British were but a handful. The brave and adventurous pioneers of Washington and Oregon, the Indian war volunteers, were close at hand. The first clash of arms on San Juan would have signaled the downfall of every vestige of British authority in northwest America, except on the decks of their warships. There is no doubt that Governor Stevens and the American commander intended to press their advantage to the utmost in case of conflict. The governor of the Territory was then R.D. Gholson, a well-meaning and respectable Kentuckian, who had recently succeeded McMullan, and who reposed wholly on Governor Stevens for advice and guidance, constantly consulting him. This governor now tendered to General Harney the support of the territorial militia in case of need, sending him a return showing the number of stands of arms the Territory possessed, with the statement that there was a lack of ammunition. In response General Harney immediately dispatched a large quantity of ammunition to Fort Steilacoom and placed it at the governor's disposal. Truly the times were changed since General Wool refused ammunition to the settlers battling for their homes against the savage foe, and maligned their patriotic efforts.

The directing hand of Governor Stevens is manifest in this resolute assertion of American rights. It was his determined stand, when governor, against the persistent encroachments of the British, which first put our government on its guard. He it was who instructed General Harney as to the merits of the controversy, encouraged him to take decisive action, visited San Juan and noted the conditions there at the critical time, and saw to hurrying reinforcements to Pickett. It is not too much to say that he was the master spirit whose bold and decided action repelled the foreign aggression, aroused public opinion, deterred a weak and timid administration from surrendering our rights, and saved the archipelago to the United States.

Judge James G. Swan, who was acting as the governor's secretary at this time, quotes from his diary how General Harney and Governor Gholson consulted Governor Stevens, and declares that the stand he took and his

influence were the great means of saving San Juan to the United States; that, without his clear and decided counsel, General Harney would hardly have felt justified in taking such vigorous action as he did; that there was a deal of doubt felt and expressed among officers of the army, and it needed the strong, outspoken action of such a man as Governor Stevens at that crisis to turn the scale.

Alarmed at the risk of war, and the scarcely veiled threats of the British minister, the government hastened to send General Scott to the seat of war, big with compromise. He withdrew Captain Pickett and all the troops save one company from the island. Admiral Baynes established a post of an equal number of marines on the opposite or western end, and the joint occupation was maintained thirteen years, and until terminated by the Emperor William's award in favor of the United States.

Scott then endeavored to perform a still more ungracious task, laid upon him by the administration, to wit, to remove Harney in deference to Great Britain, without arousing the indignation of the people at such a rebuke for his spirited and patriotic action; to cringe to the Lion without exciting the Eagle. He gave Harney an order to relinquish his command on the Pacific and take the Department of the West, with headquarters at St. Louis, with permission to accept or decline the order as he saw fit. But Harney was not disposed to assist in his own rebuke, or smooth the way of truckling to England, and kept his post. Hardly had Scott turned his back, when Harney ordered Pickett back to San Juan, an order in turn countermanded by the general-in-chief.[\[12\]](#)

The people of the Pacific coast were enthusiastic over Harney, the legislatures of Oregon and Washington applauded his course by public resolutions, and the public opinion thus aroused put a needed check to the compromising spirit of the administration.

Governor Stevens spent the remainder of August and part of September in Olympia. He enjoyed visiting his farms and planning their improvement, for his early and hereditary love of the soil was always strong. In September he started eastward by the Isthmus route with his family, and reached Washington the following month.



CHAPTER XLVI

THE STAND AGAINST DISUNION

The Indian treaties confirmed, Governor Stevens was more determined than ever to secure the payment of the Indian war debt. This had been thoroughly examined and audited by a commission appointed by the Secretary of War, consisting of Captains Rufus Ingalls and A.J. Smith, of the army, and Mr. Lafayette Grover, the brother of Lieutenant Grover and afterwards governor of Oregon, and their report had been referred by the last Congress to the third auditor. It was a long time before he reported, and his report, when made, was a very unjust and condemnatory one, manifestly tinged with the prejudice so widely spread by Wool's slanders. The friends of the debt for some time were unable to get it before the House, and had to content themselves with enlightening individual members and the public.

The governor followed up the various matters in behalf of the Pacific Northwest with his usual energy this session. He spoke on the Pacific Railroad, on steam vessels for Puget Sound, on Indian appropriations, military post on Red River, appropriations for surveys, separate Indian superintendency for Washington Territory, etc. He succeeded in obtaining an appropriation of \$100,000 for the military road between Fort Benton and Walla Walla, which Lieutenant Mullan was now building, \$10,000 for a military road between Steilacoom and Vancouver, \$4500 for the boundary survey between Oregon and Washington, \$95,500 for the Indian service, and secured a new land office and district for the southern part of the Territory. During the session he offered thirteen bills, eight resolutions, and two memorials.

His chief interest and labors, however, were on the Northern Railroad route. He was indefatigable in making known its great national advantages. On April 3 he addressed an elaborate letter on the subject to the railroad convention of the Pacific coast, held at Vancouver. In this he again advocated three routes; showed the national importance of the Northern route, its advantages for securing the trade of Asia, and the danger, if that

route were neglected, that the British-Canadians would build a line to the Pacific within their own borders, and thereby forestall this country in developing its Pacific ports and securing the Asiatic commerce. He declared that the explorations thus far made were simply reconnoissances; that two years would be required to complete the surveys, and probably ten years to build the road. He urged the convention to reject absolutely the compromise in the shape of a branch line from some point on the central route to the Columbia River and Puget Sound, which had been urged in Congress and elsewhere, and firmly to insist on the Northern route as a great national work. As published, this letter makes twenty-four printed pages, and Mr. Smalley, the historian of the Northern Pacific Railroad, already quoted, says of it that—

“he gave so clear and condensed an account of the Northern route, its distances and grades, as compared with the line then projected to Benicia, California, its advantageous situation in relation to the China and Japan trade, and the adaptability of the country it would traverse for continuous settlement, that the document, printed in pamphlet form, became a cyclopedia in miniature, from which facts and arguments have ever since been drawn by the friends of that route.”

Governor Stevens had now become the recognized authority on the Northern route, and the acknowledged leader of its advocates in Congress. He was ably supported by General Lane, and by the Minnesota senators, Rice and Ramsay, and was indefatigable in furnishing them with data and points for use in debate. At a dinner party on one occasion, Senator Gwin openly taxed the governor with writing the speech which a certain senator had just delivered in behalf of that route, and which made some stir, declaring that no one could mistake the governor's style and ideas; and the charge was well founded.

During Governor Stevens's first term in Congress great efforts were made by the friends of the Central route to pass a bill granting a subsidy in lands and bonds to that route, and the bait of a branch from the vicinity of Salt Lake to the Columbia River and Puget Sound was held out to placate the adherents of the Northern route. Governor Stevens strenuously fought this scheme of a branch instead of the through Northern route. The proposed bill failed.

In the next Congress the adherents of the Central and Southern routes joined forces. The extreme secessionists, on the eve of withdrawing from Congress in order to break up the Union, were ready enough to vote subsidies to the united routes, and the Union sentiment was invoked by the argument that the aid extended to the Southern route would help satisfy the South and strengthen the Union. By this combination the House, on December 20, 1860, passed a bill for a land grant and subsidy to both the Central and Southern routes. The Northern route was completely ignored. An amendment offered by Governor Stevens, granting ten sections of land per mile for a road from Red River to Puget Sound, was rejected. But when the bill came before the Senate, an amendment was offered by Senator Wilkinson, of Minnesota, and adopted, the New England senators aiding those from Minnesota, Wisconsin, and Oregon, giving a subsidy of twenty-five millions for a railroad from Lake Superior to Puget Sound, and a land grant of six alternate sections per mile on each side of the track in Minnesota, and ten alternate sections for the rest of the way. The amendment created the Northern Pacific Railroad Company, and empowered Charles D. Gilfillan, of Minnesota, Nathaniel P. Banks, of Wisconsin, and Isaac I. Stevens, of Washington Territory, to act as a board of commissioners to organize the company. The bill thus amended went back to the House for concurrence, but the session was almost at an end, and repeated efforts to take the bill from the speaker's table, to get it before the House for consideration, failed for lack of a two thirds vote.

Governor Stevens rapidly overcame—lived down—the prejudice excited by the charges and reports against him, and won the respect of his fellow members. Several of them expressed to him their surprise at finding him so different a man from what they had been led to believe. Said one gentleman, "I expected to find you a loud-voiced, tobacco-chewing, drinking, swearing, violent man, and instead I find a gentleman of quiet manners, education, ability, and high aims and ideals." The governor used to regard this change of opinion, which he personally made upon members, with a good deal of satisfaction.

He usually rose early, and spent the two hours before breakfast at work in his office. After breakfast and until noon, when Congress met, he would spend in visiting the departments. He kept a light carriage with one horse for this purpose, and for going to and from the Capitol, having the colored

servant Bob drive it, or driving himself. He had unbounded influence in all the departments. The clear, lucid way in which he presented his cases; his brief, prompt, business-like methods; the fact that he never asked anything that he did not believe to be right, and called for by public interests, and that he would not submit to delay or neglect, but would follow up his matters until they received due attention, even to the President himself if necessary,—made him respected and somewhat feared, while his uniform courtesy and consideration for the clerks and subordinates won their goodwill.

He acquired great influence with President Buchanan. His son Hazard was desirous of entering West Point, and he took the youth to call on the President and ask an appointment for him. Mr. Buchanan very naturally asked the governor why he did not give his son the appointment within his own gift as a member of Congress. The latter declared he could not do this with propriety, and pointedly requested the desired appointment, which the President seemed reluctant to make, pleading the many claims upon him for the few cadetships at his disposal. But finding the governor still firm in his request, he promised unequivocally and positively to appoint his son. The governor carefully refrained from advising or influencing the latter in the choice of a profession, telling him that he had better decide the matter for himself. An uncle, however, very strenuously urged him not to go to West Point. At last the young man besought the advice of his father, who simply said that he would not advise him to enter West Point, or adopt the army as a profession, but told him to decide according to his own judgment and inclination. Under these circumstances he concluded to give up West Point. Within a year the rebellion broke out, and he was carrying a musket in the ranks of the Union volunteers. How little can we foresee the future!

The governor appointed Robert Catlin as cadet to West Point from Washington Territory.

He dined at six, and spent the evening in social intercourse. Sometimes he would make the rounds of the hotels, meeting old friends and acquaintances, and frequently would work late in the night on some matter that engaged his attention. Like all rising and influential men, he was more and more sought after in behalf of all sorts of people and schemes. Mrs. Stevens relates that on one occasion, when she was reading in the rear end of the large double parlors and the governor was receiving two gentlemen in

the front room, she was startled to see him suddenly spring from his chair, face his visitors with upright, soldierly bearing and head erect, exclaiming in a stern and indignant voice, "Look at me, gentlemen, and tell me what you see about me that you dare intimate such a proposition! Leave my house!" They slunk off without a word.

The governor delighted in hospitality, and was never happier than when entertaining his friends. While in Washington he was visited by many of his own and Mrs. Stevens's relatives.

Governor Stevens was preëminently a national man in all his ideas and sympathies. His Revolutionary ancestry, his West Point training, his participation in large national interests,—as the Mexican war, the Coast Survey, the exploration of the continent and upbuilding of the Pacific Northwest, together with the natural bent of his patriotic nature and comprehensive, far-sighted mind,—strengthened his love for and pride in the great Republic, and made sectionalism or disunion utterly abhorrent to him. Like Webster, he regarded the Union as the palladium of national liberty, life, and power, and its preservation the highest patriotic duty.

There was an aggressive disunion faction, in the Southern tier of slave States, seeking to disrupt the Union by magnifying Northern encroachments against the Southern institution of negro slavery; but the great bulk of the Southern people still held fast to their ancient moorings. Governor Stevens firmly believed that to maintain unimpaired the compromises of the Constitution in regard to slavery was not only the highest statesmanship looking to the preservation of the Union, but a matter of justice and good faith to the Southern Unionists. He believed that as long as the Northern Democracy stood by the constitutional rights of the South, they would continue to hold fast to the Union, and defeat the Secessionists, and that thus, by the league of broad-minded national men both North and South, the extremists could be kept down and the Union maintained.

The political issues of the day sprang up over the question of slavery in the Territories. The Republican party held that Congress had the right, and it was its duty, to prohibit slavery within them; and its more progressive leaders openly expressed the belief that the institution, if debarred from extension and confined to the existing slave States, would ultimately

become extinct. The Democratic party was divided between two doctrines on the question. The majority of Northern Democrats upheld the "Squatter Sovereignty" doctrine of Stephen A. Douglas, to wit, that the people of each Territory had the right to decide for or against slavery; while the Southern Democrats and a large part of those in the North, including many of the oldest and ablest leaders and public men, held that, as the Territories had been acquired by the blood and treasure of all the States, neither Congress nor the citizens of a Territory could lawfully prohibit slavery therein as long as they remained Territories; but when they assumed Statehood, the people could prohibit or establish slavery, as they saw fit. The latter doctrine had the support of a dictum of the Supreme Court. Moreover, well-informed men knew that, as a practical matter, there was no probability that negro slavery could be extended into any of the existing Territories, for both natural conditions and the great preponderance of Northern emigration to the West were adverse to it. A few brief years would settle the question in the Territories, and remove it from national politics; and meantime, if the Southern people, the great majority of whom were Union-loving and patriotic, could be reassured that their constitutional rights as to slavery would be respected, the disunionists would become powerless, the dangerous controversies over slavery would die out, and the Union would be saved, stronger and more glorious than ever. Such were the views of Stevens and many of the ablest Democratic leaders, the same views that actuated Clay and Webster and their compatriots when they allayed the storm of an earlier strife over the same subject. No spirit of subserviency to the South actuated them, but a strong sense of justice to the weaker section, of fidelity to the Constitution, of loyalty to the Southern Unionists, and, above all, a broad-minded national patriotism. Thus it was that the men of whom Governor Stevens was a type, after striving to the utmost to safeguard the Southern constitutional rights, when sacrilegious hands assailed the nation's life, and the Southern people, frenzied with the madness of the hour, were swept into the maelstrom of the great rebellion, were foremost in defense of the country, in self-devotion and self-sacrifice for her sake. In this school of patriots are numbered two members of Lincoln's cabinet, Edwin M. Stanton, the great War Secretary, and Joseph Holt, the Attorney-General; General John A. Dix and Daniel L. Dickinson, of New York; Generals Grant, Sherman, Halleck, Sheridan; Benjamin F.

Butler, of Massachusetts; John A. Logan, of Illinois; and many others, all of whom supported Breckinridge and Lane.

Although deeply immersed in the important practical measures for the advancement of the Northern route and the Pacific Northwest, Governor Stevens was as earnest and decided in his political views as in everything else he undertook. He attended the Democratic National Convention, which was held in Charleston, S.C., April 23, as a delegate representing Oregon, the Territories having no representation. He ardently advocated the nomination of General Lane, his friend and co-worker in behalf of the Pacific Territories. General Lane had achieved much distinction in the Mexican war, was a man of broad, statesman-like views, sound judgment, upright, high-toned, generous, and considerate of others, and universally esteemed. He was just the man for a compromise candidate, and his chances were good for the nomination after the more prominent candidates should defeat each other. But the convention split upon the platform, the Northern delegates insisting upon the squatter sovereignty doctrine; whereupon the representatives of nine extreme Southern States seceded from the convention, which, without making any nominations, adjourned to meet at Baltimore on June 18. In the few ballots taken, General Lane received six votes; but the opportune moment for which his friend hoped never arrived, owing to the disruption of the convention.

The Baltimore convention served but to emphasize the irreconcilable difference between the two doctrines and wings dividing the Democracy. Douglas's doctrine was adopted, and himself nominated, by a reduced convention; while the delegations of eight more States, withdrawing from it, met in separate convention on June 28, in the same city, and nominated John C. Breckinridge, of Kentucky, for President, and Joseph Lane, of Oregon, for Vice-President, on a platform declaring the other doctrine, and assuming the name of the National Democratic party.

President Buchanan and the entire influence of the administration supported the latter, and, as the election showed, not only the majority of the foremost public men of the Northern Democracy, but one third of its voters.

Abraham Lincoln and Hannibal Hamlin were nominated by the Republican party on a platform opposing the extension of slavery in the Territories; and

a convention representing the old Whigs, and many moderate men and Unionists in both sections, nominated John Bell, of Tennessee, and Edward Everett, of Massachusetts, on the bare declaration of “The Union, the Constitution, and the Enforcement of the Laws.”

The National Democratic party, thus launched into the struggle, was destitute of any national organization, so essential for carrying on a presidential contest. The leaders, including the nominees and members of the cabinet, after full consultation, besought Governor Stevens to accept the position of chairman of the National Executive Committee, organize it, and carry on the canvass. Ever ready to devote himself to any cause in which he was enlisted, the governor undertook the herculean task. In a single night he wrote the party address to the country,—an address covering a whole page of a large metropolitan newspaper, a feat for which General Lane years afterwards expressed unbounded admiration and astonishment, both for its ability and for the ease and rapidity with which it was dashed off.

During the next four months Governor Stevens drove on the canvass with his accustomed energy and ability. Headquarters were opened in New York, contributions collected, meetings organized, and large numbers of speeches and documents circulated all over the country. On September 5 he entertained at dinner, in Washington, General Lane, Secretaries Howell Cobb and Jacob Thompson, of the cabinet, and a delegation from New York. The situation seemed by no means hopeless to the adherents of Breckinridge and Lane. The Republican vote at the last presidential election was far in the minority, even in the North; and now, with four candidates in the field, it seemed probable that there would be no popular election. In such case the choice of President would devolve upon the House of Representatives, voting by States, and the Democratic members controlled a majority of the States, and could therefore choose one of the Democratic candidates. In the event that the House failed to elect, owing either to dissensions among the Democratic members, or the abstention of enough members to break a quorum, which the Republican members could bring about, as they had the numerical majority, then the Senate had the election of Vice-President, who would act as President, and that insured the choice of General Lane, because the majority of the States were represented in the Senate by senators who supported Breckinridge and Lane.[\[13\]](#)

The election of Lincoln in November overset all these hopes and calculations, and the drama of the great rebellion, which was to humble the arrogant fire-eaters of the South, free the land from the curse of slavery, and vindicate the Union by the sword, the last argument of kings and nations, was ushered in.

At the last session of this, the 36th Congress, the bill to pay the Indian war debt was passed, notwithstanding the most strenuous and bitter opposition, led by a member from New York, General Wool's State, and inspired by him. The report of the third auditor, which greatly and very unfairly cut down the award of the Ingalls commission, was made the basis of the bill. Governor Stevens, in his speeches in Congress, severely criticised and exposed the mistakes and unfair findings of the auditor, without impugning his honesty. He was a well-meaning but narrow man, who had allowed himself to be prejudiced against the volunteers. Other advocates of the bill were less considerate towards him. On one occasion he thanked the governor with great warmth and sincerity for always treating him, and referring to him, as an honest man and well-meaning public servant, much to the governor's surprise.

He also succeeded in having his Territory made a separate Indian superintendency, and his friend W.W. Miller appointed superintendent. He also increased the mail service on the Sound from weekly to semi-weekly, and secured appropriations of \$59,700 for the Indian service, \$61,000 for general expenses, and had Lieutenant Mullan's report on building the military road across the mountains printed. He offered five bills, six resolutions, and four amendments, and spoke on the Northern Pacific Railroad, in defense of the Coast Survey, Indian war debt, increased mail service on Puget Sound, military post on Red River, etc.

During his congressional tour the governor was particularly indefatigable and successful in establishing new post-roads, and increasing mail facilities in all parts of the Territory. Years afterwards General Miller declared that the government had done nothing since his death but to cut down the mail service, and abolish the post-offices and routes he had caused to be established.

The military road between Fort Benton and Walla Walla, which the governor caused to be opened, and in charge of which he had placed Lieutenant Mullan, known as the Mullan road popularly, was for a number of years the highway across the Bitter Root and Rocky Mountains, traversed by thousands of trains, and the great artery for communication with and supply of thousands of settlers and miners in Montana, until superseded by the railroads.

The payment of the Indian war debt was a great triumph for Governor Stevens, and completed the vindication of his course, as the confirmation of his treaties vindicated his Indian policy.

During the last seven years, what severe and unremitting labors he had undergone, what great results he had achieved, and what tremendous obstacles and opposition he had overcome! He had made the exploration of the Northern route the most complete and exhaustive of all; had demonstrated its superiority, not simply as a transcontinental line, but as a world route for the world's commerce, and had made himself the authority and exponent of that route. By his Indian service he had treated with over thirty thousand Indians, extinguished the Indian title to a hundred and fifty million acres, established peace among hereditary enemies over an area larger than New England and the Middle States, and instituted over thousands of savages a beneficent policy of instruction and civilization. By calling out volunteers and waging an aggressive war against the savage foe, when all was gloom and terror, and the settlers were not only forsaken but vilified by the military authority, whose duty it was to protect them, he saved the settlements of his Territory from extinction, and the progress of the Northwest from being set back for years. And his firm and patriotic stand against British aggression saved the San Juan group to the United States.

Entering Congress vilified by high and low, with the censure of his territorial legislature and the disapproval of the President recorded against him, he had so ably demonstrated the wisdom and rightfulness of his course that he secured the ratification of his Indian treaties, the payment of the Indian war debt, the reversal of the reactionary policy of Wool, the opening of the interior to settlement, and the punishment of Indian murderers.

During his brief career up to this time he disbursed over three quarters of a million dollars for the government, as follows:[14]—

As an officer of engineers, the larger part on Fort Knox	\$278,108.29
As Governor and Superintendent of Indian Affairs	386,642.66
In the Northern route exploration	<u>114,103.56</u>
	\$778,854.51

Events followed fast that winter in the great national drama. The ultra-secessionists in the cotton States had it all their own way; and the Democratic leaders throughout the South, regardless of their Northern allies, who had stood by them so bravely and against such odds, were only too ready to follow in the same treasonable path, some accepting Seward's doctrine of an irrepressible conflict between slavery and freedom, and believing that separation and an independent government were the only means by which slavery could be maintained; while others, furious at the loss of political power, like Lucifer, would rather reign in hell than serve in heaven,—would ruin where they could no longer rule.

Great efforts were made by the moderate men, especially of the border States, to heal the breach; the Republican leaders, frightened at the storm, displayed a conciliatory spirit; and it seemed for a time that the differences might be compromised, the fears of the South allayed, and the Union peacefully preserved. Governor Stevens clung to this hope to the last. He thought that if a constitutional convention could be held, the breach could be healed; that the strong Union sentiment in most of the Southern States would cause them to adhere to the Union; and that the few seceding States, isolated and helpless, would soon be glad to resume their places. It is altogether probable that this view was correct, but one essential condition of such a plan was that no overt act of hostility should be committed. The secessionists, by violently seizing the national forts and property, and beginning hostilities, rendered peaceful adjustment hopeless.

Governor Stevens was firm and decided in his opinion that it was the duty of the President to protect the national property and forts and enforce the laws. The following sentences culled from his correspondence show his views and feelings at this trying and momentous crisis:—

December 10. Should Carolina attack the forts, or seize the revenue, there must be collision. The government must protect its property and execute its laws.

Let all men agree to a convention of all the States. When the delegates meet, I am sure it will be found easier to unite than to separate. If Union seems to be accompanied by occasional discord, separation will threaten perpetual war. If in Union there is not always harmony, in separation there will never be peace.

December 17. That the President will protect the public property and execute the laws, no one can doubt. That he has troops in readiness to embark at a moment's warning to succor the forts in the event of their attack by South Carolina cannot be doubted. I do not believe that the authorities of South Carolina will make any attack of the kind, or resist the collecting of the revenue, at least until ample notice has been given. When the case arises will be the time for the President to act. That he will act decisively I do not doubt. But the great problem to be solved is to vindicate the laws without collision. The only hope of reconciliation is in avoiding collision. Never were wanted more the qualities of forbearance and moderation in connection with those of decision and of action.

January 3. The blow of the secessionists in seizing the arsenal and forts at Charleston has been followed up by the seizure of the arsenal at Augusta, and of the forts on the Savannah River. There is no doubt that the secessionists here sent word South some time ago to seize all the forts on the Gulf, and most if not all are probably now in their hands.

The mad, headlong, and unjustifiable course of the Southern States is tending to unite the North as one man. The firm course which the President is taking will rally around him all true, Union-loving, conservative men.

When secession raised its treasonable head among his political associates, Governor Stevens denounced it, and broke with them at once and forever. He took an active part in urging President Buchanan to withdraw his confidence from the Southern members of his cabinet, and take a positive stand in defense of the government and country. He called on Mr. Buchanan

repeatedly, and strongly urged this course. His recent position as chairman of the National Democratic Executive Committee added strength to the personal influence he already had, and aided much in bringing the President to the firmer attitude which distinguished the last days of his administration. The governor respected Mr. Buchanan, while he pitied his lack of firmness and moral courage. He said that for a time Mr. Buchanan presented a pitiable spectacle of indecision and lack of firmness and courage. He even feared personal violence, and had been threatened with it by some of the Southerners.

During the winter Washington was filled with alarming rumors that the secessionists were plotting to seize the capital, to assassinate the President-elect, to prevent his inauguration, and there was considerable foundation for them. To guard against such dangers, Governor Stevens aided in the organization of a regiment of District of Columbia militia, and was one of the chief advisers and supporters of Colonel C.P. Stone, who raised and commanded it, assisting him in procuring arms and equipments. Colonel Stone was the General Stone who was so unjustly persecuted for the disaster at Ball's Bluff. The governor personally urged Mr. Buchanan to sustain Major Anderson in his bold move of occupying Fort Sumter, to give his entire confidence to General Scott, and approved and defended his bringing regular troops to Washington. In these matters Governor Stevens was intimately associated and acted with Holt, Stanton, Dix, and other Democrats, most of whom had been supporting Breckinridge and Lane, and who rescued Mr. Buchanan from the hands of his secessionist cabinet, and inspired him to assert the national authority.

CHAPTER XLVII

THE OFFER OF SWORD AND SERVICES

Immediately after the inauguration of President Lincoln, Governor Stevens hastened to return to the Territory. General Miller wrote:—

“I believe that the National Democracy can easily keep possession of the Territory. As to your own prospects, they seem as good to me as ever they were. Now that you have won a national fame, you will always be looked upon as the leading man of the Northwest. Should you be thrown out of the delegateship at the next election, in two years you would be the strongest man on the coast. But you cannot be beaten even at the next election.”

General Lane, however, had just been defeated in Oregon by a coalition of the Republicans and Douglas Democrats, and Colonel J.W. Nesmith was chosen his successor.

Breaking up the Twelfth Street establishment, and leaving Mrs. Stevens and the three girls in Newport and his son at Harvard, Governor Stevens sailed from New York on the steamer Northern Light, March 12, by the Isthmus route, and arrived in Olympia the last of April. There he denounced secession, took strong ground in favor of supporting the government, and recommended organizing and arming the territorial militia. Accordingly a company was raised in Olympia, known as the Puget Sound Rifles; he was elected captain, accepted the command without hesitation, and was duly commissioned and sworn in. This was before the news of the attack on Fort Sumter and the grand uprising of the nation had reached the Pacific slope, and the minds of many were still in doubt.

The Democratic convention was held at Vancouver in May. Untiring efforts had been made by the faction opposed to Governor Stevens to defeat his renomination, and the showy and oratorical Garfielde headed the opposition. The governor's friends felt too secure in his well-earned and

undiminished popularity, and the prestige of his successful career in Congress, just crowned by the payment of the war debt, and neglected the active work and support the occasion called for. Notwithstanding this, a clear majority of the delegates were elected as Stevens men; but when the convention met, the opposition were found well organized, active, and bitter; they won over a number of delegates, several of them by bribery, as was publicly charged, and rendered the governor's nomination doubtful, and only to be made at the cost of a protracted contest. Indignant at such unworthy treatment at the hands of the party he had served so faithfully and well, and disdaining such a contest at such a time, for the news of the firing on Sumter had just been received, and he had resolved to tender his service to the country, Governor Stevens at once withdrew his name as a candidate before the convention. Garfielde was then nominated, and the governor accepted the situation in the following manly and magnanimous speech:—

MR. PRESIDENT, GENTLEMEN OF THE CONVENTION, AND FELLOW CITIZENS OF THE TERRITORY OF WASHINGTON,—I congratulate you on the harmonious termination of your labors. Notwithstanding great differences of judgment as to the admission of delegates and the fairness of the organization of this convention, you have at length, with almost entire unanimity, agreed upon a platform and a candidate. By your action I shall abide. The choice of this convention is my choice, and shall receive my cordial and unwavering support. For one, I shall not look mournfully into the past. This, the hour of agony of our country's life, is no time for recrimination and the indulgence of selfish feeling. It appeals to whatever is noble and patriotic in behalf of that country's cause. Our beloved Union is in most imminent peril. The sad spectacle of civil and fratricidal strife is being exhibited to the world, and doubt has arisen as to the capacity of man for self-government. No longer devotion to our whole country, no longer an enlarged view of the liberties and progress of mankind, shapes the policies of parties and prevails in the councils of the government, but the strife of jarring sections and an insane grasp after ascendancy has precipitated upon the country a cruel, internecine war. It is the duty of the Democracy to unite for the sake of the union of these States. The sundered Democracy of the States has already come together. Let not our hitherto united Democracy now separate.

I most heartily indorse the platform of the convention that secession is revolution. There is no such thing, indeed, as peaceable secession. From the beginning of this controversy, not only have I deprecated, but I have denounced secession. I have deemed it the worst possible remedy for the redress of the grievances of the South. I have considered it an aggravation ten-thousand-fold of all their wrongs. I feel that, as the representative of the most northwest Territory, I have been true and unfaltering to my constituency and my country. For during the entire winter past I have used every exertion of my nature in behalf of the union of these States and against secession.

Gentlemen, it is our duty as patriots, and as true lovers of liberty, to stand by our government and our country in this its great emergency. The aggressions of the South upon the property and the forces of the general government must be sternly repelled. The government must be maintained as well against domestic as foreign foes. Let these States become the prey of revolutionary schemes, let the doctrine be admitted that one of the parties can alter or break up the compact without the consent of the others, and anarchy will reign throughout the land and all hopes of regulated liberty will come to an end. We must, I repeat, stand steadfastly by the constituted authorities in their efforts to sustain the government.

Fellow citizens and fellow Democrats, I am profoundly grateful for the confidence which, during eight long years of labor, you have placed in me. I am especially grateful for the marks of confidence which I have received in this hour of uncertainty and doubt. My own views and opinions are known to you. I have nothing to explain, to retract, or to apologize for. I have sought faithfully, under all circumstances, to do my duty. I feel that at my hands the honor of the Territory has been sustained, and I can look every man in the face, knowing, as I do, that I have done no man intentional injustice.

But many of his friends were so indignant at the rascally methods employed to compass his defeat that they refused to support Garfield, and he was badly defeated in the election.

The day the convention adjourned, Governor Stevens tendered his services to the government in the following letter:—

PORTLAND, OREGON, May 22, 1861.

HON. SIMON CAMERON, *Secretary of War*.

Sir,—I have the honor to offer my services in the great contest now taking place for the maintenance of the Union in whatever military position the government may see fit to employ them.

For my services in the war with Mexico I will respectfully refer you to General Scott, on whose staff I served as an officer of engineers during that war.

For my services in the subsequent Indian wars of the country, I will refer you to the Hon. J.W. Nesmith, one of the senators from Oregon.

I need not add that, throughout this unhappy secession controversy, I have been an unwavering and steadfast Union man.

I am, sir, very respectfully,

Your obedient servant,

ISAAC I. STEVENS.

Portland Oregon
May 22nd 1861

Hon. Simon Cameron,
Secretary of War,
Washington,

Sir,

I have the honor to offer my services in the great conflict now taking place for the maintenance of the Union, in whatever military position, the Government may see fit to employ them.

For my services in the war with Mexico, I will respectfully refer you to Gen^l Scott, in whose Staff I served as an Officer of Engineers during that war.

For my services in the subsequent Indian wars of the Country, I will refer you to the Hon^{ble} S. W. Nesmith, one of the Senators from Oregon.

I need not add but throughout this unhappy Mexican controversy, I have been an unswerving and steadfast Union man.

I am, Sir, very respectfully,
Yours very truly,
James W. Nesmith

Facsimile of Letter offering Services

The same day, from Vancouver the governor wrote Senator Nesmith, requesting him to see the Secretary and—

“let him know that the offer is made from the earnest purpose and desire to do my duty in this great emergency of our country’s history.... I am afraid there is to be a protracted contest. I want to see the rebellion crushed out. The policy of conciliation, to which I adhered as long as it presented the least hope, has not only been exhausted, but it has been contemptuously rejected by the South. The war ought to be prosecuted with the utmost vigor. Let us see if we have a government. Nothing can be worse than anarchy.”

The governor was anxious to reach Washington at the earliest possible moment in order to renew in person his tender of services, but was detained

in Portland over the sailing of one steamer by a severe though brief fit of sickness. At this time he was obliged to borrow \$600 of Judge Seth Catlin,—a warm personal and political friend,—for his expenses in Washington had been heavy and he had nothing laid up. He was always too much engrossed in public affairs to give due attention to his private interests, but he was always careful to meet his bills and expenses. He was able to take the next steamer down the coast, the Cortez, and on board of her he wrote General Totten as follows:—

STEAMER CORTEZ, June 19, 1861.

MY DEAR GENERAL,—I am on my way to the States to offer my services in a military capacity to the government, and for the war.^[15] I feel and know that I can do good service. Educated at the public expense, my country has a right to my services. This secession movement must be put down with an iron hand. Anarchy and interminable civil wars will be the inevitable, logical consequence of yielding to it.

I do not propose a permanent return to the service, but simply service for the war. Whilst I shall accept any military position the government may tender me, I take it for granted proper regard will be had to my somewhat large military experience since I left the army, and my position before the public.

I want, therefore, the confidence of those in authority. You can render good offices in the matter. I want the confidence of General Scott. I have ever been his discriminating friend. Last winter I sustained his entire course. I personally urged the President to give his entire confidence to General Scott. I approved and defended the bringing of regular troops to the city, the organizing, arming, and promptly officering the District militia, of which, except the late President and Secretary of War, the inspector-general, Colonel Stone, is more cognizant than any one else. I had frequent conferences with him about the District militia, and was able to be of some service to him in consequence of my relations with Mr. Buchanan and Mr. Holt.

It has been most fortunate that, notwithstanding my intimate relations with most of the secession leaders, in consequence of the part I took in the presidential campaign, I never wavered for a moment in resolutely

fighting secession. I was actively at work the moment it arose. I gave it no quarter. My position was well known in Congress.

General Totten forwarded this letter with the following indorsement:—

“With a high order of talent, his great characteristics of promptness, boldness, and energy cannot fail to mark prominently any career that may be opened to him as a soldier, and I trust the government will at once avail itself of his high qualifications by assigning him a position that will give full play to powers so well suited to the present wants of the country.”

Governor Stevens also wrote Professor Bache, Colonel Stone, and others to present his merits to the new administration; for, confident in his own powers, he was most anxious to secure such a position as would enable him to render his best service to his country.

He reached New York early in July, and went straight to Washington, not even stopping to visit his family in Newport. His reception there was cold and discouraging. The very active part he had taken in the recent presidential campaign, and his intimate association during it with men who were now foremost in striving to destroy the country, prejudiced many against him, and Douglas Democrats even more than Republicans. Senator Nesmith rather turned the cold shoulder, alleging that he felt bound to reserve all his influence for the benefit of men from his own State. Governor Stevens called upon the new President, and made a good and lasting impression upon him, but no response was made to his tender; and while the whole country was aroused, and troops were flocking to Washington, and the great needs of the hour were military ability and experience, it seemed as though the services of one of her best qualified and most patriotic sons would be rejected, and he be denied the opportunity of serving his country in her extremity. He offered his services to General McDowell as aide, or in any capacity, for the movement which culminated in the defeat of Bull Run, but they were declined. The only bright spot in this time of disappointment and mortification was his meeting General Scott, and regaining the esteem and confidence of his old chief.

Meantime his friends and patriotic men of all parties, who were anxious that his services should not be lost to the country, were sending on

recommendations in his behalf. Governor Sprague and the legislature of Rhode Island, Governor Andrew, Senator Wilson, Representatives Rice, Train, and others, of Massachusetts, Senator John P. Hale, of New Hampshire, Nesmith, of Oregon, Rice, of Minnesota, and many other members of Congress urged his appointment as brigadier-general. The "Springfield Republican" strongly set forth his qualifications, and urged the government to employ his services. As, contrary to expectations, it was not made, Governor Andrew offered him the colonelcy of a Massachusetts regiment, and Governor Sprague that of a Rhode Island regiment, both explaining that they would have made the offer before, had they not supposed he would be given the position of general. But just before these offers were received, the Secretary of War tendered him the colonelcy of the 79th Highlanders, a New York regiment, which had been badly cut up at Bull Run, and he had accepted it. A few days later a paragraph appeared in the papers to the effect that he had declined this position, and immediately Governor Andrew telegraphed, "Can you now accept regiment temporarily while we try for brigade?" and Governor Sprague telegraphed, "I hear you decline position in 79th. Will you accept my offer?" But having tendered his services to the government without qualification, Governor Stevens felt in duty bound to accept any position to which he might be assigned, and therefore was obliged to decline both offers.

Before entering upon the new duty he made a hasty visit of two days to his family in Newport, where he addressed a Union meeting with General Burnside.

At this time he was still reduced in health and strength from the overwork of the last year, and mortified and depressed in spirit, almost the only occasion his buoyant and self-reliant character was thus affected. To a personal friend he exclaimed, "I will show those men in Washington that I am worthy of something better than a regiment, or I will lay my bones on the battlefield."



CHAPTER XLVIII

THE 79TH HIGHLANDERS.—THE ARMY OF THE POTOMAC

For many years the Highland Guard was a crack New York city militia battalion, composed of Scots, or men of Scottish lineage. They wore the kilt as their uniform, and, for fatigue or undress, a blue jacket with red facings, and trousers of Cameronian tartan. At the breaking out of the rebellion, the battalion was raised to a full regiment by the addition of two companies and filling up the ranks, and on May 13, 1861, entered the United States service for three years as the 79th Highlanders, New York volunteers.

Few regiments even in those patriotic days contained a finer, braver, or more intelligent body of men. Nearly every walk of life was represented among them except common laborers; but business men, clerks, and mechanics, with some sailors and even a few veteran British soldiers, filled the ranks. One company contained so many bookkeepers and clerks that it was known as the clerks' company. If a skilled man was wanted at headquarters for any purpose, from clerk to mule-driver, from manning a light battery to rowing a boat, the Highlanders were always called upon to furnish the detail, and their successive commanders had all they could do to prevent the regiment from being depleted by such calls.

At the battle of Bull Run the Highlanders were terribly cut up, losing one hundred and ninety-eight killed, wounded, and missing, including eleven officers. The colonel, James Cameron, brother to the Secretary of War, was killed gallantly leading his regiment, which was considerably scattered after the battle. It was collected together in a few days, and moved to a camp on Meridian Hill, at the head of Tenth Street, north of Washington, named Camp Ewen. The officers and non-commissioned officers now petitioned the secretary to order the regiment home to recruit and recuperate. The secretary, visiting the camps, repeatedly expressed great regard for the

regiment, and promised to do anything in his power for it. When the petition reached him, he indorsed it as follows:—

The Secretary of War believes that in consideration of the gallant services of the 79th regiment, New York volunteers, and of their losses in battle, they are entitled to the special consideration of their country; and he also orders that the regiment be sent to some one of the forts in the bay of New York to fill up the regiment by recruits, as soon as Colonel Stevens returns to the command.

SIMON CAMERON,
Secretary of War.

The men were informed of the secretary's order, and notified to prepare for the homeward trip, to which they looked forward with eager anticipations and longing. But the military authorities remonstrated so strenuously against the order, on the ground of the bad effect on other troops of allowing one regiment to go home, that the secretary allowed it to be set aside, yet no notice of the revocation was given the Highlanders. As day by day went by without the much-desired homeward orders, they became more and more dissatisfied; the officers, as much in the dark as the men, could not satisfy their doubts and misgivings, and the spirit of insubordination grew daily.

On August 7 Lieutenant-Colonel Samuel M. Elliott was directed from Headquarters First Division, New York State Militia, to convene the commissioned officers, after five days' notice, for the purpose of electing a colonel, and accordingly notified them to meet on the 13th at four P.M. for such purpose. Apparently the state authorities ignored the action of the War Department in appointing a new colonel, and it does not appear that the appointment of Colonel Stevens was announced to the regiment, except by his own order assuming command.

On August 10 Colonel Stevens arrived at the camp, and at dress parade that evening the following order was read:—

The undersigned, in pursuance of orders from the War Department, hereby assumes command of the 79th regiment, New York State Militia. He will devote himself earnestly to the regiment, and trusts

that its high reputation, gained by honorable service in the face of the enemy, will not suffer at his hands. He doubts not that zeal, fidelity, and soldierly bearing will continue to characterize every member of the regiment.

ISAAC I. STEVENS,
Colonel.

The new colonel spent the next day in simply observing the officers and men and inspecting the camp, taking no active steps. On the following day, however, he summoned the major and several other officers to his tent, and demanded and exacted their resignations. On the 13th, the third day of his command, he issued an order at dress parade that the regiment should move camp on the morrow.

This brought matters to a climax. The men plainly saw that they were not to go to New York, and felt that they had been trifled with and deceived. They gathered in knots like angry bees to discuss their wrongs. Many of them went into the city that night and returned late, more or less intoxicated. Whiskey was smuggled into the camp, and some of the forced-to-resign officers had a hand in this, and by the eventful morning of the 14th the regiment was ripe for mutiny.

When, after an early breakfast, the order was given to strike tents, all flatly refused except two companies,—I and K,—which remained faithful and obedient during the trouble. These were the new companies recently organized, and probably were less infected with militia notions than the others. Colonel Stevens visited the refractory companies in turn, but the men, deaf to orders and expostulations, stubbornly refused obedience, and told how they had been deceived and disappointed. Lieutenant-Colonel Elliott attempted to explain his action, but without satisfying the colonel, who gave him half an hour in which to resign, on penalty of court-martial. Elliott resigned.

Colonel Stevens continued going freely and fearlessly among the men, remonstrating with them and urging them not to bring disgrace upon the regiment, but in vain. When the officers attempted to strike the tents themselves, they were forcibly prevented, and several of them roughly handled. Colonel Stevens, coming to a group where some officers had just

been thus repulsed, the armed and angry mutineers threatening to shoot any one who touched a tent, at once exclaimed, "Then I will take it down myself," and, disregarding threatening words and looks, laid hold of the tent to strike it. At this the men, struck with admiration at his intrepidity, exclaimed, "Dinna mind, colonel; we'll take it doon for ye this ance."

At length, finding all efforts to restore obedience fruitless, Colonel Stevens felt obliged to report the mutiny, and ask for troops to suppress it. In response the camp was surrounded late in the afternoon by an overpowering force of regular infantry, artillery, and cavalry, which, in presence of the refractory regiment, ostentatiously loaded muskets, drew sabres, and charged the guns with canister and trained them on the camp. Colonel Stevens then addressed them, standing in the midst of the camp:—

"I know you have been deceived. You have been told you were to go to your homes, when no such orders had been given. But you are soldiers, and your duty is to obey. I am your colonel, and your obedience is due to me. I am a soldier of the regular army. I have spent many years on the frontier fighting the Indians. I have been surrounded by the red devils, fighting for my scalp. I have been a soldier in the war with Mexico, and bear honorable wounds received in battle, and have been in far greater danger than that surrounding me now. All the morning I have begged you to do your duty. Now I shall order you; and if you hesitate to obey instantly, my next order will be to those troops to fire upon you. Soldiers of the 79th Highlanders, fall in!"

His voice rang out like a trumpet. The men, thoroughly cowed, made haste to fall into the ranks.

The regiment, guarded on both flanks by the regulars, was then marched into Fourteenth Street, the colors were taken away by order of General McClellan, and thirty-five men, reported by the officer of the guard as active in the disturbance, were marched off to prison. The regiment resumed its march for the Eastern Branch, crossed that stream, and bivouacked for the night near the Maryland Insane Asylum,—a suggestive coincidence, remarks the historian of the regiment. Soon after daylight the next morning the new camp was reached, named Camp Causten, after a resident of Washington, who had shown the Highlanders many kind

attentions after Bull Run, tents were pitched, and the routine of camp life established.

Fourteen of the so-called ringleaders were soon afterwards released and returned to the regiment, and the remainder were sent to the Dry Tortugas on the Florida coast, where they were kept on fatigue duty until the 16th of the following February, when they were also released, and rejoined the regiment at Beaufort, S.C.

Colonel Stevens commanded his regiment with a firm and severe hand. He enforced early roll-calls, hard drilling, and strict cleanliness in person and camp. There were some men so demoralized, by homesickness or otherwise, that they could not be induced to keep themselves decent, or attend to their duties, and he made the guard take them daily to the river, and strip and scrub them with soap and brooms. Under such drastic treatment they speedily recovered their tone. He promptly and severely punished every neglect of duty. He selected a number of bright, efficient young sergeants, and promoted them to be officers of the companies. He daily sent out detachments on scouting expeditions, or marches of ten or twelve miles, and had sketches and measurements made for a topographical map. By these means he varied the monotony of camp life, and infused hope and spirit into the command. He obtained furloughs for a limited number of men, those with families having the preference, and thus assisted some forty to visit their homes for fifteen days each. He was especially strict with the officers, taught them to assert their authority, and broke up the time-honored habit, the curse of militia organizations, of deferring to, and hobnobbing with, the rank and file.

On the 26th the regiment broke camp, marched through Washington, the band playing the dead march, by order of the colonel, in token of their disgraced condition and loss of the colors, and went into camp on Kalorama Hill, beyond Georgetown, a mile from the Chain Bridge. Colonel Stevens named the new location Camp Hope, and in a brief address to the regiment bade them hope, and declared that together they would win back the colors and achieve a glorious career. With all his matter-of-fact judgment, he had a pronounced vein of enthusiasm and poetic feeling, and had a singular power of arousing them in others, and of appealing to the higher motives. It was

Napoleon who declared that in war the moral is to the physical as three to one.

At this camp Colonel Stevens dispensed entirely with camp guards, which in all the new regiments were deemed indispensable, and appealed to the sense of honor and discipline of the Highlanders to refrain from wandering from camp, and from annoying, or pilfering from, the country people. The men responded nobly to this appeal, and took great pride in scrupulously obeying these orders, and in the confidence reposed in them. The inhabitants felt safe when they saw the uniform of the Highlanders, and frequently spoke of the difference between them and other troops. The Highlanders still wore the blue jacket with red facings, but the regulation uniform as to the remainder. Later, when the jackets were worn out, they were uniformed like other troops.

On the evening of the 6th of September a large force, including the Highlanders, crossed Chain Bridge to the southern side of the Potomac, and took up positions in front and extending to the left, connecting with troops from Arlington. At midnight, as the regiment was drawn up in line, Colonel Stevens addressed them as follows:—

“Soldiers of the 79th! You have been censured, and I have been censured with you. You are now going to fight the battles of your country without your colors. I pray God you may soon have an opportunity of meeting the enemy, that you may return victorious with your colors gloriously won.’

“As cheering was prohibited,” says the historian, “the men listened in silence, but with a determination to do all in our power to recover our lost honors.”

It was an impressive scene,—the long line of silent soldiers dimly seen in the gloom of night, as they gained new courage and determination from the brief, brave, and soldierly words of their leader.

The troops in front of Chain Bridge constituted a division under General W.F. Smith (Baldy Smith), of the Army of the Potomac, forming under General George B. McClellan, and Colonel Stevens was placed in charge of the First Brigade, consisting of the 2d and 3d Vermont, the 6th Maine, and

his own regiment, and was intrusted with building Fort Ethan Allen, a strong and extensive earthwork on the left of the Leesburg turnpike, and of felling the woods in the vicinity. The Maine men, all expert woodsmen, armed with axes and deployed in a long line at the foot of a wooded slope, worked upwards, chopping every tree nearly through, so that it stood by only a narrow chip, until they reached the top of the slope; then at the signal of the bugle the last few quick strokes of the axe resounded against the top row of trees, which fell crashing on those below, and they on the next lower, and so on, until the whole forest crashed down together in thundering ruin.

The troops were kept hard at work, thus felling forests and digging forts, and also in outpost duty, for a strong picket line to cover the front, posted nearly a mile in advance, had to be maintained. Alarms from this line were frequent, and on one occasion the enemy were reported as advancing in heavy force, and the troops were hastily gotten under arms. Every one expected to take post in the fort, but Colonel Stevens led his brigade out nearly to the picket line, deployed them on a commanding position on both sides of the road, and coolly awaited the attack. This movement, so promptly but deliberately made, visibly raised the confidence and *morale* of the troops; and when, the alarm proving unfounded, they marched back to camp, they felt able and eager to encounter the enemy on equal ground.

On the 11th, under orders from General Smith, but with strictest injunction not to bring on a general engagement under any circumstances, Colonel Stevens, with two thousand troops, made a reconnoissance in force of Lewinsville, a hamlet six miles in advance of Chain Bridge. His force comprised the Highlanders; the 3d Vermont, under Colonel Breed N. Hyde; two companies of the 2d Vermont, under Lieutenant-Colonel George J. Stannard; four companies of the 1st Chasseurs or 65th New York, under Lieutenant-Colonel Alexander Shaler; five companies of the 19th Indiana, under Colonel Solomon Meredith; four guns of Griffin's battery, 5th United States artillery, Captain Charles Griffin; a detachment of fifty of the 5th regular cavalry, under Lieutenant William McLean; and one of forty volunteer cavalry, under Captain Robinson.

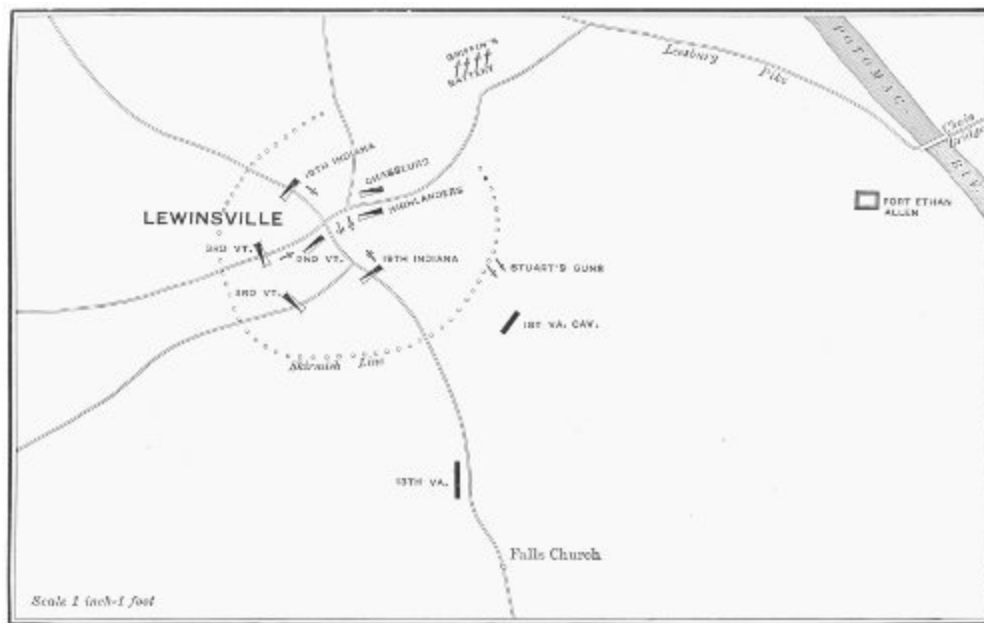
With skirmishers in advance, and exploring the ground on both flanks to the distance of a mile, the command advanced steadily to Lewinsville, the enemy's cavalry pickets falling back without resistance, and occupied the

village at ten A.M. Cavalry pickets were thrown out on all the roads; three guns and some five hundred skirmishers were posted well out to command the approaches on all sides; and the position was held for five hours, during which Lieutenant Orlando M. Poe, of the engineers (afterwards General Poe), and Mr. West, of the Coast Survey, made a topographical map and sketch of the place and vicinity. Colonel Stevens, with Captain Griffin and Lieutenant Poe, thoroughly examined the whole position of Lewinsville, of which he reported, "It has great natural advantages, is easily defensible, and should be occupied without delay." During this time small bodies of the enemy were seen observing the Union force at a safe distance, and a cavalry picket, or reconnoitring party of fifty men, was driven off by Lieutenant McLean.

The accompanying sketch shows the roads and dispositions of the force to cover the reconnoissance. Colonel Meredith, with three companies of his regiment and one gun, held the road leading north to the Leesburg pike. The same road, running south of the village to Falls Church, was guarded by one company of the same regiment with one gun. Colonel Hyde, with the 3d Vermont and one gun, held the road leading westward to Vienna, and also the new road to Vienna, which fell into the Falls Church road half a mile south of the hamlet. The remaining gun, with the two companies of the 2d Vermont, was kept in reserve at the cross-roads; while the Highlanders and Chasseurs were held in reserve a third of a mile back from the village, and two companies of the former were thrown out as skirmishers to cover the left flank and rear, and connected with the Indiana skirmishers on the Falls Church road.

About three in the afternoon the skirmishers were called in, and the column formed for the return march. Just as the bugle sounded "Forward!" a section of artillery, which the enemy, stealing up under cover of the woods as the Highlanders' skirmishers retired, had adroitly planted on the left rear, opened a brisk fire of shells over the head of the column as it marched back; and simultaneously a considerable force of their skirmishers from the Vienna and Falls Church roads advanced on the village and commenced firing on the withdrawing troops, but were directly repulsed, and gave no further trouble. For a few minutes there was some flurry in the column under the shell fire at a turn in the road where it was most exposed. Some of the officers and men threw themselves flat on the ground at every missile

that burst or hurtled overhead, and once twenty men ranged themselves in line behind a tree barely a foot in diameter. But this confusion was over in a few minutes; the excitable ones, under the jeers and laughter of their comrades, resumed their places in the ranks, and the column was not broken or delayed.



RECONNOISSANCE OF LEWINSVILLE, SEPTEMBER 11, 1862

Colonel Stevens posted Griffin's battery in a good position on the right, or north of the road, which opened a rapid and well-sustained fire on the enemy's guns, and in half an hour silenced them. The column continued its march meantime in admirable order, and Lieutenant McLean brought up the rear unmolested. Colonel Stevens, having thus withdrawn his column from the village and well past the annoying battery, selected other positions for the guns, a section on each side of the road, and disposed his troops to meet the enemy's attack, or to attack him if opportunity offered. The troops were in fine spirits, and obeyed every order with alacrity. But the enemy having ceased his artillery fire, and making no demonstration, showing glimpses only of cavalry and infantry at a distance, the return march was continued, and the troops reached their camps without further incident.

The Union loss in this affair was two killed and thirteen wounded, besides three captured, the latter having, in their eagerness to get a shot at the

enemy, ventured too far in front of the skirmish line of the 19th Indiana, to which they belonged.

The enemy's force consisted of the 13th Virginia, a section of Rosser's battery of the Washington artillery, and a detachment of the 1st Virginia cavalry, all under command of Colonel J.E.B. Stuart, of the latter. Colonel Stuart made a most exaggerated and magniloquent report of the action, and was actually promoted to brigadier-general for it.

The action was over, and the Union troops were calmly marching down the road, when General Baldy Smith came galloping up it in hot haste, followed by his staff and a section of Mott's battery, and manifesting considerable anxiety, for the artillery firing had been brisk and noisy while it lasted, and his orders from McClellan—the same he had impressed on Colonel Stevens—charged him not to bring on a general engagement. But perceiving the fine order and undaunted bearing of the troops, and learning how well they had all behaved, and that the enemy was keeping his distance, he resumed his wonted coolness, and heartily congratulated Colonel Stevens and his command on the well-conducted and successful reconnoissance. Half an hour later General McClellan, with a large following of staff and escort, came tearing up the road to the returning column, showing even greater excitement and anxiety. He, too, calmed down on learning that the affair was all over, congratulated General Smith, ostentatiously visited and commiserated the wounded, and returned to Washington without noticing Colonel Stevens.

A few days later the colors were restored to the Highlanders by General McClellan in person, in recognition of their soldierly conduct since recrossing the Potomac, especially in the affair at Lewinsville.

Colonel Stevens took great pains in disciplining and training the regiments under his command, one of which, the 6th Maine, was raised at Bucksport and vicinity, and some of whose officers he knew when building Fort Knox, and he looked forward with confidence and pride to forming and commanding in them a fine body of soldiers. They, too, were responding to and appreciating his efforts, and strong feelings of mutual esteem and devotion were fast growing up between the commander and command. Before moving from Camp Hope, President Lincoln had assured him of his

appointment as brigadier-general within a week, and he was daily expecting it. He never doubted that the troops he was so carefully instructing would form his brigade when he became a general, nor did they. His surprise and chagrin, therefore, were great when the Maine and Vermont regiments were summarily taken from him to make up a brigade for General W.S. Hancock, who, a new brigadier, had just reported to Smith, and three newer and greener regiments were sent to replace them. They were the 33d and 49th New York and 47th Pennsylvania. Colonel Stevens was deeply hurt and disappointed at this action. With the unexplained delay in his promised appointment, and McClellan's significant and averted demeanor, it seemed to indicate a fixed intention on the part of the authorities to deny him promotion, and to keep him down to his colonelcy indefinitely. But he uttered no word of remonstrance or repining at this unworthy treatment, and took the new regiments in hand with unabated care and vigor. He declared to his son, in strict confidence, that, if his appointment as general was not soon made, he would relinquish the command of a brigade and devote himself to the Highlanders; that he would make them the best-disciplined and the best-drilled regiment in the army, and would so infuse them with the spirit of devotion to the country and the cause that, like Cromwell's Ironsides, nothing could resist their onset. He dwelt much at this time on Cromwell, and how he had formed and trained his invincible soldiers.

Before embracing the contemplated course, however, Colonel Stevens sent his son to see the President and deliver a brief message to the effect that, although several weeks had elapsed since the assurance was given of his appointment as a general officer within a week, he had heard nothing of it, and feared that the President, under the great weight of care and responsibilities, might have forgotten it. The young man accordingly rode into the city and presented himself at the White House. His card was taken; the ante-rooms were crowded with anxious applicants and callers, and among them he waited for hours, unable to get access to the President, or secure any attention. At last he accosted a colored messenger, who from time to time entered the President's room with cards, and begged his assistance in obtaining an interview, stating that he had a message of great importance from his father, Colonel Isaac I. Stevens, who had sent him expressly to deliver it to the President. The messenger would scarcely listen, indeed, had to be almost forcibly detained, until the name struck his

ear, when his whole manner changed. "Do you mean Governor Stevens?" he exclaimed. "Is Governor Stevens your father? I used to see him here often in Mr. Buchanan's time, and I am glad to do anything in the world I can for him. I'll take your name in the next time, and you shall see the President, if I can fix it." He was as good as his word, and soon ushered the youth into the inner office.

Mr. Lincoln received him in a kindly and fatherly manner that at once placed him at ease, listened to the message, and said: "Tell your father that I have not forgotten my promise, nor him; that I should have had his appointment made before this, if it had not been for General McClellan; that General McClellan said Colonel Stevens had better remain in command of the Highlanders some time longer; that they were not yet reduced to proper discipline, and it would be unsafe to take away their colonel at present. But tell your father," he added, "that it shall be no longer delayed." He then took a small blank card and wrote a line upon it, directing that Colonel Stevens's appointment as brigadier-general be made out, and handed it to his visitor, bidding him take it over to the War Department and deliver it to the adjutant-general. This was soon done, and the young man, plying the spur, joyfully galloped back to camp with the gratifying news.

Any military man knows perfectly well that as brigadier-general he could have as much oversight and control over a regiment in his brigade as though he remained its colonel. In fact, General Stevens retained personal and immediate command of the Highlanders, although he commanded a brigade, and long after he became a general.

On the 25th General Smith advanced to Lewinsville with five thousand troops on a foraging expedition. Colonel Stevens, with the Highlanders and the 2d Vermont, led the advance, and the skirmishers of the former captured an officer of Stuart's regiment with his horse. The enemy made no resistance, and after loading ninety wagons with corn and grain, the expedition returned.

CAMP ADVANCE, September 27, 1861.

MY DEAR WIFE,—I appointed Hazard adjutant of the Highlanders yesterday. He has been with the regiment under fire three times, acting

as my aide on two occasions, and the aide of Captain Ireland on the third. The appointment is very acceptable to the regiment.

Hazard will make an excellent adjutant. It will be easy for him to learn the technical part. His general experience will make everything easy.

I am looking somewhat for my brigadier's commission this week.

The young man joined the regiment immediately after it crossed the Potomac, and had borne a musket in some of its skirmishes, and was appointed adjutant on the advancement of the former adjutant, David Ireland, to a captaincy in the regular army.

General Stevens's appointment as brigadier was made on the 28th, and on the following day he was formally assigned to the command of the third brigade of Smith's division, consisting of the four regiments already under his charge, viz., the Highlanders, 33d and 49th New York, and 47th Pennsylvania. He retained the immediate command of the Highlanders in addition to that of the brigade.

A few days afterwards Smith's division and other troops of the right wing were advanced some four miles permanently, without encountering the enemy. About noon, soon after the troops had come to a halt, General McClellan, escorted as usual by a numerous staff, appeared on the scene, and, after visiting different points, dismounted, and sat down to a lunch which his attendants spread for him. He invited General Smith and some other officers to partake of the repast, but ignored the presence of General Stevens, who was quite near. The latter may have been unduly sensitive, but he regarded the omission as an intentional slight, and remarked that he actually pitied McClellan.

General Stevens named the new position occupied by his brigade, which was not far from Falls Church, the Camp of the Big Chestnut, from a huge sylvan monarch near by. A train of one hundred and forty-four wagons came over from Washington to move the tents and baggage of the command,—what a contrast to later campaign days, when four wagons only, or even less, were allowed to a brigade!—but even this number proved inadequate to bring everything at one trip. The new adjutant of the Highlanders directed the wagon-master to send some wagons back for what

was left behind, but that functionary flatly refused, alleging that he was under orders to make but one trip, and then return to the city. The adjutant thereupon applied to the general for instructions in the premises, but his reception was hotter than he bargained for. "Have you a thousand men at your disposal, and suffer yourself to be set at defiance by a wagon-master? If you are not man enough to make your authority respected, you are not fit to be an officer. Go back to your regiment and attend to your duty."

Smarting under this unexpected rebuke, the young officer again summoned the wagon-master and reiterated the order, and, on his second refusal to obey it, had him lashed fast to a neighboring tree. Four of his wagoners, equally contumacious, shared the same fate; and a sergeant and four soldiers of the ever ready and capable Highlanders were soon driving the teams back to the old camp, and in a few hours safely returned with the left-behind goods. The bound wagon-master and teamsters were then set free and ordered to mount their wagons and drive off instantly, an order which they obeyed with alacrity, and returned to Washington doubtless madder if not wiser men. Although at times a severe and exacting man, General Stevens always encouraged his subordinates to self-reliance, to do things, "to take the responsibility," in Jackson's phrase, and was sure to back them up if they acted in this spirit.

Drilling, picketing, and tree-felling fully employed the troops, at Camp of the Big Chestnut. By McClellan's orders the woods, which covered a good part of the country, were slashed, the roads blocked, and the whole front obstructed by felled trees. The troops were ordered to get under arms and stand in line for half an hour before daylight every morning in anticipation of an attack which never came. This was an especially disagreeable and unhealthy task, for the Potomac fog shrouded the country at that hour, the autumnal mornings were damp and chilly, and the men would stand coughing all along the line. Many a poor fellow owed his death or disablement to this useless exposure. Strict orders were issued to avoid any movement which might lead to a collision with the enemy, and especially to shun everything which might bring on a general engagement. The orders frequently repeated these cautions, and seemed to be filled with a nervous apprehension of fighting. General Stevens thought this passive-defensive attitude all wrong. He took great pains to inculcate and develop a bold and enterprising spirit in his own brigade, especially charging his pickets to hold

their ground in case of attack, and was delighted when a detachment of the 49th New York stood firm, and handsomely repulsed a dash of the enemy.

At breakfast on October 16 General Stevens unexpectedly received orders to turn over the command of his brigade to the senior colonel, and report in person to General Thomas W. Sherman at Annapolis, Md., by daylight the next morning. By eleven o'clock A.M. he had written farewell orders to the brigade and to the Highlanders, devolved the command upon Colonel Taylor, of the 33d New York, had all his belongings packed up, and mounted his horse to ride to Washington.

To avoid anything like a scene, the general was about to ride away without visiting the regiment and bidding them farewell, but Captain David Morrison, the senior officer, came and begged him to say good-by in person, saying that the regiment was formed and was most anxious to see him. He rode in front of the line, and in a few feeling words expressed his regards and hopes for them and bade them farewell. As he wheeled and rode off, a spontaneous and universal cry of "Tak' us wi' ye! Tak' us wi' ye!" burst from end to end of the line, and tears stood in many a manly eye.

Stopping only two hours in Washington, during which he called at the War Department and secured the appointment of his son as captain and assistant adjutant-general of United States volunteers, and to make necessary purchases, he took the cars in the afternoon for Annapolis.

As they rolled along through the pleasant rural scenery of Maryland, General Stevens threw off all traces of care and became as cheerful and light-hearted as a boy. He fell to talking about the recent experiences in the Army of the Potomac in a most interesting and instructive way, exposing and condemning the mistakes and evil effects of McClellan's passive-defensive management, and pointing out what he deemed to be the right course. Instead of obstructing the entire front with blocked roads and tracts of slashed woods, which would impede the enemy's attack indeed, but would also confine the Union troops to the strict defensive, making it impossible to manœuvre them offensively outside the works, the front should have been kept clear and unobstructed, and the ground carefully studied and understood by subordinate commanders, with the view of throwing a heavy force upon the enemy's flank, or any weak point he might

offer, in case he attacked. Instead of restraining the natural enterprise and ardor of the troops, prohibiting and deprecating all hostile contact with the enemy, as if they were no match for the rebels, thus keeping them under the cowering of Bull Run, and aggravating the awe of the enemy's prowess inspired by that defeat, they should have been continually brought face to face with the foe, scouts and reconnoissances kept afoot and boldly pushed, and parties of picked men under picked officers sent to fall upon the enemy's pickets and exposed detachments at every favorable opportunity. Such a course, he declared, would most speedily give the troops confidence and restore their *morale*, would foster and develop their natural enterprise and bravery, and would most effectively and quickly make them reliable soldiers. He had none of that distrust of volunteers often felt by regular officers, and which undoubtedly influenced McClellan, for he knew how quickly such splendid material as the brave young volunteers then flocking to the country's defense would become soldiers, if well officered and under a bold and skillful commander. He discussed, also, McClellan's character without the least trace of animosity, admitting his ability and patriotism, but lamenting his fatal lack of boldness and decision, which, he said, rendered his failure inevitable, and finally he exclaimed, with great feeling and conviction, "I am glad to leave McClellan's army. I am rejoiced to get out of that army. I tell you that army under McClellan is doomed to disaster."

They reached Annapolis that evening, and were most cordially received by General Sherman, and by Colonel Daniel Leasure, of the 100th Pennsylvania, known as the "Roundheads," which was to form part of General Stevens's new brigade. His first act on reaching Annapolis was to apply by telegraph to the Secretary of War, in conjunction with General Sherman, for the Highlanders. He also personally telegraphed the President to that effect. Colonel Leasure, too, telegraphed the Secretary that his regiment was largely composed of the descendants of Scotch Covenanters and Cromwell's soldiers, and were anxious to be joined by the Highlanders. Both the President and secretary were desirous of granting the request, but it was first referred to General McClellan, and properly, as the regiment was in his army. He strenuously objected to it, protesting that he could not possibly spare one of his best veteran regiments. But Mr. Lincoln again overruled the "Young Napoleon," and ordered the Highlanders to Annapolis to rejoin their beloved commander.



*Hazard Stevens,
Capt. & Asst. Adj. Gen'l.*

**Hazard Stevens,
Capt. & Asst. Adj. Gen'l.**

CHAPTER XLIX

THE PORT ROYAL EXPEDITION

The force which General Sherman was fitting out at Annapolis was destined, in conjunction with the navy, to secure a harbor on the Southern coast to serve as a base for the blockading fleets. General Sherman was a veteran regular officer of artillery, who had greatly distinguished himself at the battle of Buena Vista, a thorough soldier, a strict disciplinarian, devoted to his profession, and moreover a man of ability, sound judgment, and true patriotism, but perhaps somewhat deficient in enterprise. He personally applied for General Stevens, for whom he entertained great esteem, as one of his brigade commanders. His force numbered some twelve thousand, all new, raw volunteers, except two regular batteries and the Highlanders, who, having fought at Bull Run, were looked up to as veterans by the other troops, and was divided into three brigades, commanded by Brigadier-Generals Egbert L. Viele the first, Isaac I. Stevens the second, and Horatio G. Wright the third.

General Stevens's brigade consisted of the Highlanders, the 100th Pennsylvania or Roundheads, Colonel Daniel Leasure; the 50th Pennsylvania, Colonel B. C. Christ; and the 8th Michigan, Colonel William M. Fenton. They were all brave, patriotic, and intelligent men, the best types of American volunteers, and destined to render great and glorious service to the very end of the war, participating in many battles and engagements, and preserving their colors without a stain. The Michiganders, as they were familiarly called, were largely of New England stock, many of them farmers' boys, and had all the grit, intelligence, and enterprise of their lineage. The 50th Pennsylvania were Pennsylvania Dutch, descendants of the Germans who settled the central part of the State before the Revolution, and were slower, more heavily moulded than the others, but always steadfast and reliable. The Roundheads came from the western, more mountainous part of the Keystone State, and were of the vigorous Scotch-Irish stock, with many tall, rawboned men.

The regiments were quartered in the Naval Academy buildings and grounds. On Colonel Leasure's recommendation, General Stevens took a large brick building as headquarters, but soon after moving into it an ambulance was driven up to the front door, and a soldier in an advanced stage of the smallpox, his face perfectly black and festering, was taken out of the vehicle on a stretcher and borne into the house, which, it seems, had been selected as a smallpox hospital. Needless to say that headquarters fled before this visitation. General Stevens, indignant at Leasure's carelessness in the matter, summarily ordered him out of his own spacious quarters and took them for himself, greatly to the colonel's disgust, who was heard to exclaim that there were too many Roundheads about for him to submit to such an indignity; but the incident had a good effect in showing that the new commander would stand no trifling.

The Highlanders arrived on the 18th, and the next day the troops were taken off in small bay steamboats to the large ocean steamships anchored two miles out, and embarked upon them. The largest of these vessels, and second only to the Great Eastern, was the Vanderbilt, a noble side-wheel ship of three thousand tonnage, which had recently been given the government by Cornelius Vanderbilt, the old commodore, and was named after him. His favorite captain, Le Favre, a skillful navigator and accomplished gentleman, commanded her. On this fine steamer were crowded General Stevens and staff, the Highlanders, the 8th Michigan, and a hundred quartermaster's employees, all together over two thousand men. A large number of surf-boats and quantities of tents and baggage were piled in confusion on her decks, leaving scarce standing-room for the troops. The Roundheads and one battalion of the 50th embarked on the Ocean Queen, while Colonel Christ with the remainder of his regiment were loaded on the Winfield Scott.

Captain and Assistant Quartermaster William Lilly here joined the command as brigade quartermaster. He had met General Stevens during the presidential campaign and won his confidence, of which he proved unworthy, and owed his appointment to the general's recommendation. General Stevens was also joined by Colonel William H. Nobles, who had seen much service on the frontier, and whom he appointed lieutenant-colonel of the Highlanders, but he was unequal to the position and soon afterwards resigned. The general appointed as his first aide-de-camp

Lieutenant William T. Lusk, of the Highlanders, an educated and high-toned gentleman, who had abandoned his studies in Germany to fight for his country, and who proved a brave and excellent officer, and has since achieved distinction in his profession as a physician. The remaining members of the staff were Dr. George S. Kemble, brigade surgeon; Captain L.A. Warfield, brigade commissary; and Lieutenants Henry S. Taft and William S. Cogswell, signal officers.

The transports sailed on the 20th and reached Fortress Monroe the next day. Here were awaiting them a fleet of thirty warships, under Commodore Samuel F. Dupont, and a large number of sailing vessels laden with munitions and stores. The expedition lay here at anchor for a week, completing the necessary preparations. Commodore Dupont held many conferences on his flagship, the Wabash, with General Sherman and the brigade commanders, at which the objective point was decided upon. The weather was fine, the sea smooth, and the blue road-stead, covered with the great fleet, comprising every variety of vessel,—the great, grim, black warships, with their frowning batteries; the transports, swarming with blue-clad soldiers; the deep-laden sailing ships, with their tall spars,—presented an impressive and animated scene, enlivened by the numerous launches and cutters darting from ship to ship with officers bearing dispatches or exchanging calls. One of the swiftest and nattiest of these small craft was the captain's gig of the Vanderbilt, manned by a crew of fine oarsmen from the Highlanders, which attracted much attention from the army and navy alike, was the envy of other headquarters, and was kept busy conveying General Stevens and staff over the waters blue.

It was a fine, bracing autumn afternoon, October 29, when the great fleet sailed out of the Chesapeake in two parallel columns a mile apart. The giant warship Wabash led the right column, followed in single file by the war vessels, thirty in number, a black and formidable array. The left column was composed of the transport steamers, crowded with troops, each towing one of the sailing-vessels, and also contained some thirty ships. The Vanderbilt towed the Great Republic, a four-masted, full-rigged ship of four thousand tons, the largest sailing-ship then afloat. Besides a vast cargo of stores, she carried on her main and upper decks a great number of artillery horses. Thus the mighty armada steadily ploughed its way out to sea, with flags waving and bands playing, a glorious and awe-inspiring sight; while the

troops, exhilarated by the novel and stirring scene and the excitement of sailing to an unknown destination, their hearts swelling with the hope and determination of soon dealing the rebel lion a mighty and perhaps fatal blow, cheered and cheered again until they could cheer no more.

The third day a furious storm struck the combined fleet and scattered it far and wide. At midnight, in the height of the tempest, the great hawsers by which the Vanderbilt was towing her consort threatened to tear off her quarters under the terrific strain of the mountain billows, and had to be cut asunder with axes, and the Great Republic was abandoned to her fate in the raging storm, furious sea, and black night. When day broke no other sail was visible amid the driving and tossing billows. Later in the day General Stevens opened the sealed orders with which every ship was provided, to be opened in case of separation from the fleet, in presence of Captains Le Favre, Stevens, and Lilly, and announced that the destination and point of rendezvous was off Port Royal, one of the finest harbors on the Southern coast, situated midway between Charleston and Savannah. The Vanderbilt, the swiftest of the fleet, arrived off the entrance on November 3, among the first. The other ships came straggling in, and by the 6th were nearly all assembled and anchored just outside the bar, save four, the Governor and Peerless, that foundered in the storm, and the Osceola and Union, that were driven ashore. The loss of life, however, was small under the circumstances, being seven drowned and ninety-three captured. The 50th Pennsylvania, on the Winfield Scott, came near going to the bottom, and were only saved by incessant pumping and bailing, and throwing overboard the entire cargo.

Port Royal was defended by earthworks on each side of the entrance, Fort Walker on Hilton Head, the south side, and Fort Beauregard on Bay Point, on the north. These were strong and well-constructed forts, with heavy parapets, traverses, and bomb-proofs, mounted forty-one guns of large calibre, and were garrisoned and defended by three thousand troops, under General Thomas F. Drayton, whose brother, Captain Percival Drayton, commanded the gunboat Pocahontas in Dupont's fleet. The enemy had also three small gunboats in the bay, under Commodore Tatnall, formerly an officer of the United States navy.

After reconnoissance by his gunboats, Commodore Dupont decided to attack the forts with his fleet, and arranged with General Sherman that the

troops were to land in small boats on the open beach during the naval bombardment and carry the works by assault, in case the navy failed to shell the enemy out. Accordingly, on the morning of November 7 the surf-boats, of which there were a large number, and all the boats belonging to the vessels, were launched, and brought up alongside or astern of the transports, and the troops of Stevens's and Wright's brigades were provided with ammunition and one day's cooked rations, and held in readiness to land and attack. While they awaited this movement in high-wrought expectation, the following order was written by General Stevens and read to them, and had a marked effect to increase their determination and ardor:—

HEADQUARTERS SECOND BRIGADE, EXPEDITIONARY CORPS,
S.S. VANDERBILT, November 7, 1861.

GENERAL ORDERS No. 5.

The brigadier-general commanding the second brigade trustfully appeals to each man of his command this day to strike a signal blow for his country. She has been stabbed by traitorous hands, and by her most favored sons. Show by your acts that the hero age has not passed away, and that patriotism still lives. Better to fall nobly in the forlorn hope in vindication of home and nationality than to live witnesses of the triumph of a sacrilegious cause. The Lord God of battles will direct us; to Him let us humbly appeal this day to vouchsafe to us his crowning mercy; and may those of us who survive, when the evening sun goes down, ascribe to Him, and not to ourselves, the glorious victory.

By order of BRIGADIER-GENERAL STEVENS.

HAZARD STEVENS,
Capt. and Ass't Adj't-Gen.

At nine o'clock on the bright, clear morning, with a smooth sea, the great war fleet crossed the bar, and deliberately advanced to attack the forts in a long column of single ships, while the transports lay at anchor just outside with their decks, masts, and shrouds covered with the troops, eagerly watching the scene. Commodore Dupont in the Wabash led the long string of warships slowly up the middle of the bay, receiving and replying to the

fire of both forts until two miles beyond them, then turned to the left in a wide circle and led back past Fort Walker, at a thousand yards distance, opening upon it broadside after broadside. At the same time a flanking column of five gunboats steamed up the bay nearer to Bay Point and poured its broadsides into Fort Beauregard, and, steering towards the other side, advanced against Tatnall's fleet, driving it into Skull Creek, which cuts off Hilton Head on the inside, and then, taking position near the shore and flanking the fort, opened upon it a destructive fire. Meantime the main column, led by the Wabash, was majestically and slowly passing the work, each succeeding vessel opening its batteries upon it in turn as it came within range, and maintaining a rapid fire as it drew past. The naval gun fire was terrific, rising at times to a continuous roar; dense clouds of smoke belched forth and hung about the ships, while the white puff-balls showed where the great 11 and 9-inch shells were bursting over and about the work. The enemy replied with a brisk and well-maintained fire, and many of his missiles could be traced by the great columns of water dashed up as they ricocheted across the bay beyond the vessels. After passing down the bay as far as the depth of water permitted, Dupont turned and again led the fleet in front of Fort Walker, at much closer range than before, pouring upon the devoted work a still more terrific fire. As the admiral repeated this manœuvre for the third time, one of the light-draught gunboats, pushing closely in at six P.M., discovered that the enemy had fled, and sent a boat with a small party ashore, who pulled down the rebel flag and hoisted over it the glorious stars and stripes. What cheers then burst forth from ship to ship of the crowded transports, what joy and relief from suspense were felt by the officers who had so anxiously watched the bombardment for hours, momentarily looking for orders to land and assault the works, which were so stubbornly resisting the navy, can never be realized by those not actors in the scene.

The flight of the enemy was panic. They left their flags flying, their tents standing, and all their supplies. Tatnall's mosquito fleet hastened up Skull Creek, and, with the aid of some large flatboats, ferried the fugitives across that stream. The fact that the enemy's retreat might have been cut off and his entire force captured, by sending gunboats up the inner channels separating Hilton Head and Bay Point from adjacent islands, lent wings to his flight. The opportunity was not improved. Fort Beauregard was

abandoned in equal haste, although not subjected to nearly so severe a battering as Fort Walker. The navy lost only thirty-one killed and wounded; that of the enemy was sixty-six.

The morning after the bombardment the Highlanders went ashore on Bay Point, and occupied Fort Beauregard and the deserted camp, and the rest of the troops were landed on Hilton Head. The beach shoals very gradually, and the men and impedimenta had to be loaded from the ocean steamers into small boats, which took them in until they grounded, a hundred yards or more from the beach, when the troops had to jump overboard and wade ashore. All the camp equipage and supplies had to be taken ashore in the arms of men detailed for the purpose, so that the landing was a very laborious and tedious process.

The enemy's camp bore witness to his panic flight; clothing, bedding, half-cooked provisions, even a rebel flag over one tent and a sword inside, and in another an excellent repast, with jelly, cake, and wine, were found abandoned. General Drayton's headquarters, in a large building near Fort Walker, was abandoned in such haste that the horses in the stable were left behind, and General Drayton's own charger, a fine, handsome bay horse of medium size, but compactly built and of great spirit and endurance, was captured here and became the favorite horse of General Stevens. Back of the fort was a large field in sweet potatoes, and it presented a singular appearance after the soldiers landed and discovered it, covered with thousands of men, all digging the tubers for dear life. General Sherman facetiously remarked that General Drayton planted that potato-field on purpose to demoralize his army.

Immediately after landing, General Sherman held a conference with his general officers as to undertaking an offensive movement. The enemy was evidently demoralized, and either Charleston or Savannah might fall before a sudden dash, and offered a tempting prize. But the general opinion was that a movement upon either involved too great risks, and that the first duty was to fortify and render absolutely secure the point already gained. General Stevens alone dissented from this view. He strenuously urged an aggressive movement inland to the mainland, then, turning to right or left, against one of the cities. In answer to objections, he declared that the overpowering naval force rendered Hilton Head already secure, and it could

be fortified at leisure. The navy, too, could support an advance, and cover a withdrawal in case of need. The country was full of flatboats used by the planters for the transportation of cotton. Hundreds of these could be collected among the islands by the negroes, and would furnish means of transporting the troops up, or ferrying them across the inland waters, which, instead of an obstacle, could thus be made an aid to the movement. But the cautious counsel prevailed, and General Sherman reaped the reward of his lack of enterprise by being superseded a few months later, after rendering faithful service. Certainly he lost a great opportunity. With such subordinates as Generals Stevens and Wright, and the navy to assist, he might have taken Savannah, and could not have been badly damaged, even if repulsed. General Stevens had visited Savannah as an engineer officer shortly after the Mexican war, and his habit of acquiring information about every subject that interested him entitled his views to more attention. But, after all, the general, like the poet, is born, not made, and Sherman may have been wisely governed by his own limitations. As will be seen hereafter, this idea of a movement inland, and making use of flatboats, took a deep hold of General Stevens's mind.

He placed his brigade in camp a mile back from the beach, and was given charge of an extensive line of works, laid out by Captain Q.A. Gilmore, the chief engineer officer. He pushed this work with his accustomed vigor, detailing daily the greater part of his force as working parties. He had a full quota of officers turn out with the men, the details verified every morning, and kept some of his staff always on the work. The troops, seeing that no shirking was tolerated, gave diligent labor, and within a month the line, over a mile in length, was completed. The Highlanders, however, continued to occupy Bay Point, and made many scouting expeditions on neighboring islands. Considerable sickness broke out among the troops on Hilton Head,—smallpox, measles, and typhoid,—and there were many deaths, so that the practice of playing the dead march at funerals was forbidden, notwithstanding which the troops were generally in fine condition and spirits. General Stevens himself had a severe attack of bilious fever, from which he but slowly recovered. The following letters give a pleasant sketch of life at Hilton Head:—

HEADQUARTERS SECOND BRIGADE, E.C.,
HILTON HEAD, November 28, 1861.

MY DEAREST WIFE,—We are getting on in the most quiet manner possible. As I wrote you a day or two since, my brigade is almost exclusively occupied in throwing up intrenchments. It has been hard at work the last ten days, working even the last Sunday. I have to-day nearly thirteen hundred men in the trenches. We are living at my headquarters quite comfortably. For instance, to-day is considered a sort of Thanksgiving Day, being the day set apart for Thanksgiving in some of the States. I have for dinner, at half past five o'clock, roast turkey, boiled turkey, and a fine boiled ham. This ought to be pretty satisfactory. In our stores we have two dozen fine turkeys, growing in better condition every day. These turkeys we buy from the negroes. We have plenty of beef and mutton and sweet potatoes, also oysters and fish.

HEADQUARTERS SECOND BRIGADE, E.C.,
HILTON HEAD, December 5, 1861.

MY DEAR WIFE,—We are enjoying fine weather, and the health of the troops is daily improving. My brigade is still at work on the intrenchments. They have done an immense amount of work, much to the satisfaction of General Sherman. Hazard takes great interest in everything. We are living quite comfortably; have an old house with a fireplace, which answers for my office and Hazard's office and our quarters. Hazard has three and sometimes four clerks, two messengers, and, when needed, an officer to assist him. Our mess consists of the brigade quartermaster, Captain Lilly; the brigade surgeon, Dr. Kemble; my aide-de-camp, Lieutenant Lusk; Hazard, and myself. We have a most excellent cook, brought from New York, and a good dining-room servant picked up here. We have our breakfast at seven o'clock, lunch at twelve, and dinner between half past five and six. How long we shall remain here, I cannot form an idea,—probably some months. We are most wanting in books. I must also get some more military books, and now regret I left so many behind me. Hazard is in the trenches to-day. I keep a large force out, and all my staff that can be spared.



PORT ROYAL AND SEA ISLANDS OF SOUTH CAROLINA

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CHAPTER L

BEAUFORT.—ACTION OF PORT ROYAL FERRY

Scarcely were the works at Hilton Head completed when General Stevens was ordered, early in December, to occupy Beaufort, as an advanced post threatening the mainland, and affording protection to the negroes on the islands. This was a town of five thousand souls, delightfully situated on Port Royal Island on the banks of Beaufort River, some fifteen miles above Hilton Head. It was a place of fine mansions and houses, almost wholly exempt from the poorer class, the seat of wealth and refinement, and often styled the Newport of the South. It was the headquarters of the Sea Islands, upon which alone was grown the fine, long stapled Sea Island cotton, worth a dollar a pound during the war. With unbounded confidence in the strength of the forts at the harbor entrance, and in the prowess of their defenders, the most chivalric blood of Carolina, the people of Beaufort listened to the thunder of Dupont's guns on the eventful 7th of November, and from the steeples and roofs watched the moving masts and clouds of smoke of his fleet as he attacked the works; and when the appalling news reached them of his victory, the whole white population fled in terror, only one white person, and he a native of New England, remaining in the town. From all the islands the flight of the planters was equally hasty and complete. Negroes, live-stock, large quantities of cotton, household goods and furniture, and even wearing apparel, were all abandoned in the panic exodus. Since the bombardment, raiding parties of the enemy were venturing over with increasing boldness, burning the cotton and terrorizing the negroes. These numbered at least ten thousand, thus abandoned by their masters, and were scattered over the extensive archipelago, but chiefly upon Port Royal, Ladies', and St. Helena islands.

The more intelligent house servants having gone with their owners, nearly all the negroes left on the islands were in the densest ignorance, some of them the blackest human beings ever seen, and others the most bestial in

appearance, and there were even some native Africans, brought over by slavers in recent years. They were not put to hard labor, judging by Northern standards, and were set so light a daily task in the cotton-field that they would usually finish it in the forenoon, and have the rest of the day to themselves. The only food furnished them was a peck of shelled Indian corn a week apiece, which the black women had to grind into meal upon rude stones turned by hand; but this ration was eked out by fish and oysters, with which the waters abounded, by the poultry which they were allowed to keep, and also by the vegetables from their little garden patches. At Christmas they were given a liberal dole of fresh beef for a grand feast. The turkeys, of which great numbers were kept on every plantation, were deemed a kind of royal fowl, reserved for the whites like the cattle, and tabooed to the blacks, who were not allowed to raise them as they did the common barnyard fowl. But upon the flight of their masters the negroes were prompt enough to take them for their own, and used to sell them to the troops at generous prices.

These ignorant and benighted creatures flocked into Beaufort on the hegira of the whites, and held high carnival in the deserted mansions, smashing doors, mirrors, and furniture, and appropriating all that took their fancy. After this loot, a common sight was a black wench dressed in silks, or white lace curtains, or a stalwart black field-hand resplendent in a complete suit of gaudy carpeting just torn from the floor. After this sack, they remained at home upon the plantations, and reveled in unwonted idleness and luxury, feasting upon the corn, cattle, and turkeys of their fugitive masters.

Embarking his brigade and a section of Battery E, 3d United States artillery, under Lieutenant Dunbar R. Ransom, on steamers at Hilton Head, General Stevens on the Ocean Queen, with the 50th Pennsylvania, reached Beaufort at seven in the evening of December 11, landed, and threw out a strong picket on the main road across the island, known as the shell-road. The negroes stated that a party of rebel cavalry had visited the town that afternoon, and threatened to return at night and lay it in ashes. At midnight they came riding down the shell-road; but being fired upon by the picket, the whole party, with the exception of the "colonel" and his son, took to their heels, and never drew rein until they reached the mainland, ten miles distant, according to the report of the doughty commander.

The next morning the remainder of the troops landed, and General Stevens advanced across the island on the shell-road to Port Royal Ferry on the Coosaw River, with two regiments and Ransom's guns. The rebel cavalry, falling back without resistance, crossed the ferry, taking to the farther side the ferry-boat and ropes and all other boats. The Coosaw is a large and deep tidal river, separating the island from the mainland. It is bordered by wide, impassable marshes, across which at the ferry long causeways extended on each side from the firm land to the main river. A small, square ferry-house stood at the end of each causeway, and the one on the farther side had been strengthened and converted into a blockhouse, and from it the enemy fired on the Union advance. But the first shell from the 3-inch rifled gun went crashing through the extempore blockhouse, and sent its brave defenders scampering up the long causeway. Two adventurous soldiers then swam the river and brought back a boat, in which a party crossed over, demolished the blockhouse, and returned with the ferry scow and paraphernalia.

A strong picket-line was posted along the river, a good force left in support at a cross-roads some miles back on the shell-road, and the general with the remainder of the party returned to Beaufort.

General Stevens at once cleared the blacks out of town, and established a camp in the suburbs for the temporary reception of refugees and vagrant negroes. He placed the troops under canvas in the outskirts, and prohibited their entering the town without a permit, and strictly forbade all plundering, or even entering the empty houses. Guards were posted over a fine public library, the pride of the town, which, however, had been thrown about in utter disorder; patrols were kept scouring the streets, and the strictest order and discipline were enforced.

In order to protect the negroes and keep the enemy within his own lines, General Stevens strongly picketed the western or exposed side of Port Royal and Ladies' islands, guarding all the landing-places, and watching the Coosaw and Broad rivers for twenty-five miles. Knowing the difficulty of maintaining so long and exposed a line of outposts against an enterprising enemy, he threw him on the defensive by the boldness of his advanced line, and by a succession of well-planned and daring raids upon his pickets on the opposite shore. Thus Lieutenant Benjamin F. Porter, of the 8th Michigan, on the night of December 17 captured a picket of six men on

Chisholm's Island, and on several occasions small parties were thrown across the Coosaw in boats, the enemy's pickets were driven off, and the buildings from which they fired upon the Union pickets were destroyed. So successfully was this policy carried out that the enemy made but one counter attack during the six months that General Stevens occupied the islands, viz., an attempt on the picket on Barnwell Island, February 11, 1862, and that was repulsed without loss on our side.

The first and, as it turned out, only serious operation undertaken by General Sherman was the siege of Fort Pulaski at the mouth of the Savannah River. A large force of troops, under General Viele, and heavy guns and mortars were dispatched to this quarter, and Captain Q. A. Gilmore, the chief engineer officer, was given charge of the siege works.

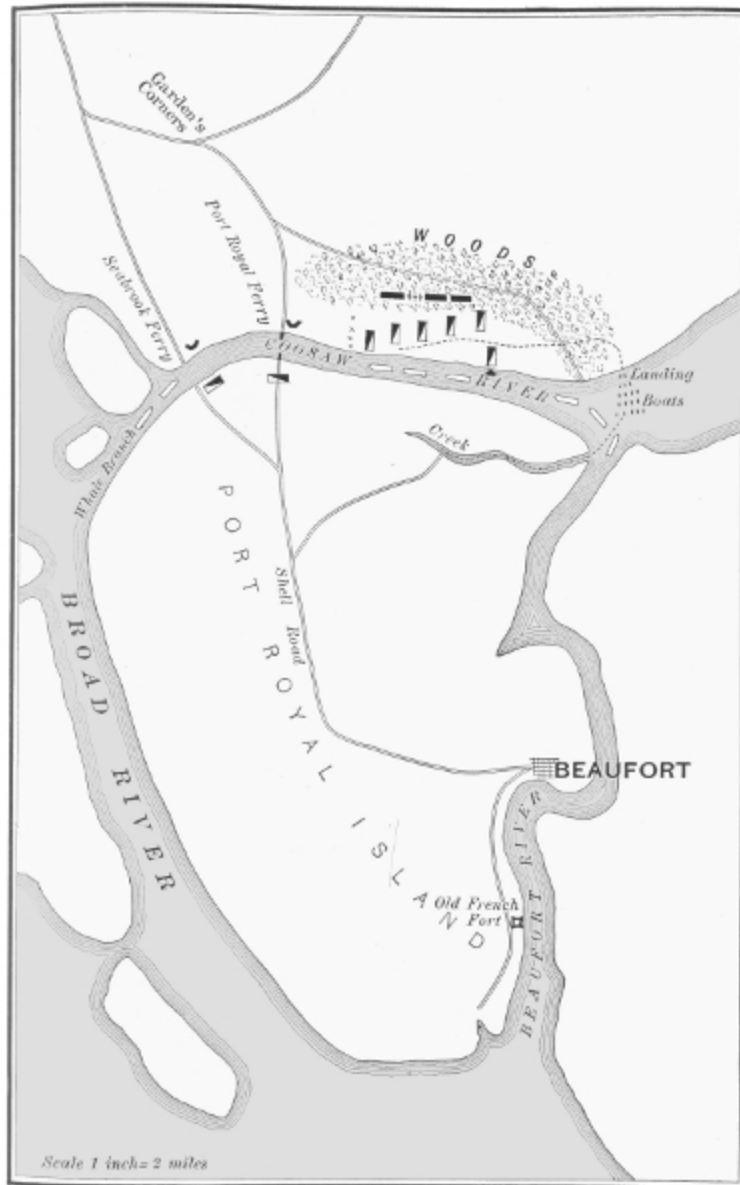
General Wright was sent down the coast with a considerable force, and in March occupied Fernandina and Jacksonville, Fla., which had been abandoned by the enemy.

By the end of December the enemy erected a strong field-work on the mainland, opposite and commanding Port Royal Ferry, and repulsed the efforts of the gunboats to dislodge him. The naval authorities pronounced it impracticable to reduce the work, or to keep the river open with the light wooden gunboats which alone could operate in those waters. Negro refugees reported a large force of the enemy at Garden's Corners, only four miles from the ferry. They were endeavoring to obstruct the channel by driving piles in it. Opposite Seabrook, at a point a mile and a half above the ferry, they were throwing up a formidable-looking battery. Their increased activity and boldness, as well as their success in closing the river to the navy, indicated aggressive action; for with the river closed they could throw a force upon Port Royal Island without fear of its being cut off, could raid the plantation and negroes, and could compel the Union commander to maintain a large force on the island, or run the risk of losing a small one.

Impressed with the importance of dislodging the enemy and keeping the river open, General Stevens laid before General Sherman a plan to that end, which the latter promptly approved. It was simply to throw a sufficient force across the river several miles below the ferry, advance up the left bank, beat any force that might be found covering the work, and take it in

the rear. Three light-draught gunboats were to coöperate in the movement. At the same time, two gunboats entering the Coosaw from Broad River through Whale Branch and small bodies of troops from Seabrook Landing and opposite the ferry were to threaten the enemy on the upper side, and distract his attention from the real attack. It was decided to reinforce General Stevens with two regiments from Hilton Head for the movement,—the 47th and 48th New York.

Nearly every plantation on these islands was supplied with large flatboats, used chiefly for the transportation of cotton. Ever since his occupation General Stevens had been quietly collecting these scows at Beaufort, with a view to using them in future operations. During the night of December 30 over one hundred of these flats, with a crew of negro oarsmen and a guard of two soldiers in each boat, were sent up Beaufort River, Brickyard Creek, and an inlet or creek which branches from the Coosaw near the northeast corner of the island and extends inland southwesterly several miles. There was an excellent landing-place two and a half miles up this creek, and only eight miles from Beaufort, with good roads between. At this landing, screened from sight of the enemy by well-wooded banks, the fleet of flatboats lay during the day. Every precaution was taken to prevent any negro from leaving the party and giving information of the movement.



ACTION AT PORT ROYAL FERRY, JANUARY 1, 1862

Commodore Dupont furnished the desired gunboats, placing them under the command of Captain C.P.R. Rodgers. About noon on the 31st that officer reached Beaufort with the Ottawa and Pembina, followed by the Hale, and the details of the joint movement, and particularly the signals to enable the troops and ships to act in concert, were arranged between him and General Stevens. About dark the 47th and 48th New York, under Lieutenant-Colonel James L. Fraser and Colonel James H. Perry respectively, arrived on the transport steamer Boston.

Two companies of the Roundheads were left to guard the town and depot of Beaufort. Another company of that regiment took post three miles out at the cross-roads. Two companies of the Highlanders and two of the Roundheads, under Captain William St. George Elliott of the former, were posted at Seabrook, with orders, when the gunboats came through Whale Branch and opened on the enemy's battery, to cross over and take it if practicable. Colonel Leasure, with the remainder of his Roundheads and one company of the Highlanders, was stationed at the ferry to observe the enemy, make a demonstration against him, and cross over if circumstances permitted. Flatboats were collected at both points in readiness for the crossing. Lieutenant Ransom, with his guns, was also posted near the ferry. Four companies of the 50th Pennsylvania were left in Beaufort with orders to embark on flats at midnight and proceed upstream to the mouth of the creek already mentioned.

After dark the remainder of the brigade, viz., the 8th Michigan and six companies of the 50th Pennsylvania from Beaufort, and seven companies of the Highlanders from Seabrook and other advanced posts, from which they had been relieved by the Roundheads during the day, marched to the well-hidden landing-place on the creek, where the flats lay awaiting them. At one A.M. New Year's morning the embarkation commenced. The landing-place was narrow, and only two or three flats at a time could be loaded, which made the embarkation slow, tedious, and confused. Each boat was ordered to push off into the stream as soon as loaded, and proceed far enough down it to give plenty of room for others. But the creek became almost blocked with flats crowded with men, laden to the gunwale, and apparently floating about without aim or order. The night was dark, a pale mist rose on the water, the sickly beams of a half moon struggled through the gloom, the fires and lanterns flared at the landing, the smothered orders, oaths and calls of officers from flat to flat, striving to avoid becoming separated from their regiments, made a babel of voices, and all added to and heightened the appearance of hopeless confusion. The scene to the painter or poet was weird and picturesque in the extreme, but to a soldier most exasperating.

When half the troops were afloat, and the embarkation of the remainder, proceeding steadily though slowly, was assured, General Stevens entered his barge and, rowing rapidly downstream, placed himself at the head of the flotilla. Each boat as passed was ordered to follow. Their progress, deeply

laden as they were, was necessarily slow, but as they took up the movement, the dense and confused mass very soon lengthened out into an orderly column, and the perplexities and misgivings of many an officer gave place to the alacrity and confidence which aggressive action ever inspires. The first faint pencilings of dawn were streaking the eastern sky as the flotilla slowly drew out of the mouth of the creek and entered the river. The fog lay low upon the water, and completely shrouded the farther shore. Here joined Captain Rodgers with four launches, each armed with a 12-pounder boat howitzer, and the four companies of the 50th Pennsylvania, which embarked at Beaufort. Then hove in sight the gunboat Ottawa.

Noiselessly the stalwart blacks strained at the muffled oars, the long ashen blades steadily rose and dipped; the blue-coated masses sat in silence, muskets in hand, straining their eyes ahead; while the flotilla, like a huge black cloud, slowly crept over the face of the broad sound, here a mile and a half wide. After an age of cramped waiting and suspense, the dim, spectral trees lining the low shore opposite comes in sight; the launches and swiftest boats now shoot rapidly ahead, the rowers straining every nerve, and the soldiers anxiously scanning the hostile shore; a score of gray forms are discerned among the trees; a straggling volley spatters harmlessly over the water, and the next instant the boats drive upon the bank, and the landing is effected. General Stevens's barge outstripped the other boats, and he leaped ashore the first man, closely followed by Captain John More and ten picked men of the Highlanders, and the enemy's pickets took to their heels.

It was now found that the 8th Michigan, through some strange mistake, had remained near the mouth of the creek, notwithstanding the explicit orders, repeated, too, by General Stevens in person when passing down the creek. Orders were immediately dispatched to Colonel Fenton to proceed across and up the river and land at the Adams House, some three miles above, where there was an excellent landing-place. Colonel Perry had received orders the night before to follow the gunboats, and debark his two regiments at the same point as soon as it was in the possession of the landing party. Thither were also sent the empty flats.

Skirmishers and scouts were thrown out while the troops were landing, and several negroes were picked up who proved useful as guides. With the Highlanders in the advance, preceded by two companies deployed as

skirmishers, and followed by two boat howitzers under Lieutenant Irwin, of the navy, and the 50th Pennsylvania bringing up the rear, the little column pushed rapidly on, taking a course parallel to the river, and traversing woods and swampy and difficult ground, without any road for most of the way, and at eleven A.M., after a hot and fatiguing march, reached a position abreast of the Adams house. Small parties of the enemy, who fired a few shots, were observed at several points on the march, but a few shells from the howitzers and the Highlanders' skirmishers easily brushed them aside.

The column now rested for two and a half hours while the remainder of the troops were debarking, for the landing-place was contracted, and the regiments on the Boston had to be put ashore in small boats. At 1.30 P.M. General Stevens formed his order of march, and moved forward for the fort, marching parallel to the river. The Highlanders, with two companies skirmishing in advance, led the way; the two naval howitzers followed; Colonel Christ's 50th Pennsylvania and Colonel Fenton's Michiganders formed the support, and the 47th and 48th New York the reserve. The column advanced in echelon, the Highlanders nearest the river, and each succeeding regiment battalion distance in rear of and to the right of the one preceding it. This formation was equally well adapted to meet an attack in front or on the right flank. The river protected the left.

A broad belt of cotton-fields stretched along the river to and beyond the ferry, some three miles distant. Back of the open fields a body of woods presented an irregular front, from a mile to half a mile distant from the river. Over these fields the skirmishers advanced steadily, followed by the entire command in the order by echelon described, each regiment moving in line, or occasionally by the flank, or by column of companies, according to the ground, with the regularity of parade. The signal officer, Lieutenant Henry S. Tafft, kept with the skirmishers, signaling constantly with his colleague, Lieutenant Cogswell, on the Ottawa, thus directing her fire, and establishing perfect concert of action afloat and ashore. The shells from the gunboat tore the wood just in front of the skirmishers as they advanced. As the troops advanced in this order the scene from the gunboats was most inspiring,—the wide strip of open country, the dark, frowning forest beyond it, the broad, silver-hued river with the black gunboats, and line after line of dark-blue infantry, tipped with steel, moving onward over the

fields with the steady, rapid, irresistible flow of billows rolling across the sea.

The column had advanced a mile in this order when a puff of smoke and the roar of a gun burst from the edge of the woods, followed by others in rapid succession, and a battery, well screened in the timber, opened a rapid fire of shells over and among the leading regiments. But, without pause, General Stevens continued his movement, regardless of the noisy shelling, until the third regiment, the Michiganders, was fully abreast with the battery. Then halting, he brought his three leading regiments into line, facing the woods, wheeling them to the right, and advancing the Highlanders and 50th on a line with the Michiganders, and threw out four companies of the latter upon the battery to develop the enemy's force. He left the reserve regiments as they stood when halted, being already considerably to the right and in advance of the newly formed line.

The Michigan skirmishers had scarcely disappeared within the bushes which masked the battery, when a rolling volley of musketry rattled among the trees, and out they came, falling back. At the same time a large regiment of the enemy appeared from behind a point of the woods which partially screened its advance, bearing directly down upon the 50th Pennsylvania. Colonel Christ was directed to meet and not to await the attack. At the command his regiment deliberately fixed bayonets and moved forward, presenting a long and imposing line. The charging rebel regiment first ceased its shouts and yells, then fired a scattering and ineffective volley, and broke and fled to the cover of the woods so precipitantly that the 50th had scarcely time to fire a round after them. General Stevens now threw one wing of the 50th upon the flank of the enemy's position, and Colonel Perry's regiment upon the other flank. But the hostile battery ceased its fire, and the troops, on reaching its position, found the enemy gone, with every sign of a precipitate retreat.

Meantime the Highlanders' skirmishers, never halting, had reached the fort, and entered it simultaneously with the force under Colonel Leasure which crossed at the ferry. A single gun, a 12-pounder, was found in the work; the others had been removed by the enemy. The troops were recalled, the wounded cared for, and the march was resumed to the ferry without further opposition. Colonel Leasure and Captain Elliott were found at the fort, and

reported the complete success of the movements intrusted to them. Two gunboats—the Seneca, Captain Daniel Ammen, and Ellen, Captain Budd—entered Whale Branch as prearranged, and opened fire on the battery opposite Seabrook. Captain Elliott immediately crossed over with his party, found the battery ready for guns, but none there, and, after destroying the work, returned to Seabrook. Thence hastening to the ferry, he joined Colonel Leasure, and crossed at that point just as the skirmishers from the main column appeared.

The troops bivouacked that night at the ferry, with pickets well out, and two naval howitzers, under Lieutenant J.H. Upshur, in position commanding the main road, while at short intervals the gunboats fired big 11-inch shells as far into rebeldom as heavy charges could throw them. It was afterwards reported by the refugee negroes that one of these “rotten shot,” as they termed the bursting shells, fell at Garden’s Corners, four miles away.

During the night the ferry was completely restored. The captured gun and wagons, with the wounded, crossed early in the morning. The captured work was leveled, and at nine A.M. the troops commenced crossing, using both the ferryboat and flats. By noon the entire force of three thousand men was over. The enemy remained quiet back in the woods. The troops marched into Beaufort that afternoon in fine spirits, and with confidence in themselves heightened by the brush with the enemy and the success of the expedition. Both officers and men had shown themselves steady, prompt, and ready to march, manœuvre, and fight, and it was not their fault if the enemy would not give them a harder tussle. Excepting the Highlanders, all were green troops, never having even seen an enemy before, except as distant witnesses of the naval bombardment of Hilton Head. The 47th and 48th New York embarked on their transport at Beaufort, and returned to Hilton Head the next morning.

The enemy’s forces in the action, as reported by him, comprised the 14th and four companies of the 12th South Carolina, a section of Leake’s Virginia battery, and a detachment of cavalry, forty-two in number, who are commended as participating with their double-barreled shotguns and navy revolvers. Colonel James Jones, of the 14th, commanded. Besides these troops General Pemberton hurried forward from Pocotaligo a large part of a

Tennessee brigade, under General Donelson, which met the retreating troops after the action was over.

The Union losses consisted of three men of the 8th Michigan killed, and one officer, Major Watson, and eight men of the same regiment, three men of the 48th New York, and two of the 50th Pennsylvania, wounded,—in all, seventeen.

The enemy acknowledged, in official reports, the loss of an officer and seven men killed, and an officer and twenty-three men wounded,—in all, thirty-two.

General Stevens warmly commended the conduct of his troops and the services of his staff, Captain Hazard Stevens, assistant adjutant-general; Lieutenants William T. Lusk and Benjamin R. Lyons, aides; Andrew J. Holbrook, volunteer aide; Henry S. Tafft and William S. Cogswell, signal officers; and Captain Charles A. Fuller, quartermaster.

This action was almost the first Union success achieved by the army since the disaster of Bull Run, and the thanks of the government were extended in general orders to General Stevens and his command for their victory, styled the battle of Port Royal Ferry.



CHAPTER LI

BEAUFORT.—CAMPAIGN PLANNED AGAINST CHARLESTON

After the action of Port Royal Ferry, General Stevens continued to hold Beaufort and the neighboring islands for five months, without the occurrence of any military event of importance, chiefly occupied in thoroughly drilling and disciplining his troops. Lieutenant Abraham Cottrell, of the 8th Michigan, was added to the staff as aide. A battalion of the 1st Massachusetts cavalry, under Lieutenant-Colonel H.B. Sargent, was added to his command; also another section of Battery E of the 3d artillery, Captain A.P. Rockwell's Connecticut light battery, and a company of Serrell's New York engineers, under Captain Alfred F. Sears, with a pontoon bridge equipment. His attention, moreover, was largely taken up with other matters, not military, but growing out of the peculiar conditions there. He caused the public library, which has already been mentioned, with several fine private libraries added to it, to be put in order, restored to the shelves and catalogued, and thrown open for the use of the troops. Corporal Joseph Matthews, Joseph Hall, and George Lispenard, of Company E of the Highlanders, were busy at this work for several months. He intended that the library, thus preserved, should be cared for and kept in the town where it belonged, and restored to the inhabitants when they resumed their allegiance and returned to their homes. But one day the treasury agent, Colonel William H. Reynolds, presented himself, and demanded the books as captured rebel property, to be sold for the benefit of the government,—a demand which General Stevens indignantly and peremptorily rejected. A month later the agent again appeared with a formal demand from the Secretary of the Treasury for the library, indorsed by General Sherman with an order to give them up. Even then General Stevens suspended the order, and wrote a strong protest to General Sherman, setting forth the vandal character of the proposed action, and urging him to represent the matter in its true light to the government, and secure the revocation of the order. But

General Sherman was unwilling to take such a responsibility, and there was no alternative but to give up the books.

General Stevens disapproved the action of the government in sending such treasury agents into the field, with independent authority to gather up cotton and other property, as meddling with military operations, encroaching on the authority of military commanders, and opening the door for dishonest or over-zealous agents to plunder private property. Such work, he declared, should be done by the army through the quartermaster's department, and the captured property then turned over to the Treasury Department.

Apprehensive that the numerous negroes within his lines might become vagrant and burdensome unless brought under control and made self-supporting, General Sherman issued an elaborate order, providing for teaching them the elementary branches, and inducing them to plant crops. The latter requirement General Stevens heartily approved, but he seriously doubted the propriety of the former, and wrote General Sherman, pointing out that to educate the blacks and raise hopes of freedom in their breast would make their condition doubly hard in case, on the suppression of the rebellion, they had to return to their masters, and that the order, manifestly looking to freeing the slaves, might alienate the support of the border States from the Union cause. This view now seems reactionary, but it should be borne in mind that the great mass of Union soldiers sprang to arms, not to free the slaves, but to preserve the Union. Lincoln himself guided his course by the same view of not alienating the border States, withholding his emancipation proclamation until the progress of public opinion made it expedient. Writes General Sherman in reply:—

“After all, my dear general, the government will do as it sees best in this matter. My order can be reversed at its pleasure. But, of myself, it would be doing some violence to my own views of duty to make the change you desire in the system therein indicated. But allow me to express to you my warmest thanks for the thoughtful and considerate manner in which you have done me the honor to write. Although we may differ in our views in one or two points,—both admitted to be delicate ones,—it will not permit any change of my exalted opinion of your talents and your personal character.”

But the generals were only wasting time in discussing the negro problem, for by the next steamer, early in March, there descended on the Department of the South, like the locusts on Egypt, a swarm of treasury agents and humanitarians, male and female, all zealously bent on educating and elevating the “freedmen,” as they immediately dubbed the blacks. The irreverent young officers styled these good people the “Gideonites,” and were disposed to make all manner of fun of them; but among the number were persons of the highest respectability and purest motives, and they undoubtedly accomplished some good. They met with a cold and ungracious reception from General Sherman, who declared that their coming was uncalled for and entirely premature, and incontinently packed them off to Beaufort to the care of General Stevens, thus washing his hands of them.

The latter treated them with the utmost courtesy and kindness, assigned them good quarters in town, and detailed a capable and gentlemanly young officer, Lieutenant H.G. Belcher, of the 8th Michigan, to see to their comfort and needs. He not only gave them every facility and assistance in his power in their care of the blacks, but took a real interest in their mission, talked and advised with the chiefs, and exerted a decided and salutary influence in modifying some of their crude and extravagant ideas, and bringing them down to judicious and practicable measures. It is a curious fact that in several instances he had to curb the attempts of some of the more zealous, who strove to work the blacks harder than their old masters did. Always frank and outspoken in his opinions, and differing widely from many of the views of these visitors, General Stevens impressed them with his sincere and earnest sense of duty, and won their gratitude and goodwill. Hon. Edward L. Pierce, the biographer of Sumner, who was the chief agent, thus acknowledged their feelings and obligations toward General Stevens:

“General Stevens was an officer with whom subordination was a controlling duty. The order for sending able-bodied negroes to Hilton Head to be armed imposed on him an uncongenial service, but he performed it faithfully and with dispatch, and even aided in the selection of the officers to drill them. His preconceived opinions, although he desired them humane treatment, were understood to be unfavorable to an effort at the present time to raise them to intelligent

citizenship; but to the industrial and educational movement to that end he offered no opposition, but gave to it in good faith his official protection and aid, and the special agent of the Treasury Department, who was charged with its direction, never asked facilities which he denied, often more being granted than was requested. The better part of the territory to which that movement applied was under his command, and its friends will gratefully remember him for his personal courtesies and honorable coöperation.”

Mrs. Stevens also arrived on the same steamer to visit her husband, with her youngest daughter, Kate, a beautiful and engaging little girl of ten, and remained nearly a month. Their visit was a great solace to General Stevens, and the last time he was to see them.

The Washington ladies, Mrs. Johnson and Miss Donelson, their neighbors and warm friends for four years, came with the Gideonites, actuated by benevolence. Other visitors were Mr. Caverly, whom General Stevens had met in Washington, and his beautiful young wife. He was in the last stages of consumption, and the general had him taken into his own quarters and carefully nursed and cared for until his death. Hon. John M. Forbes, of Milton, Mass., and his wife, whose son, William H. Forbes, was an officer of the 1st Massachusetts cavalry, then at Beaufort, also visited there that winter; and Hon. W.J.A. Fuller, of New York, an eminent lawyer, and brother to Captain Charles A. Fuller, was another visitor.

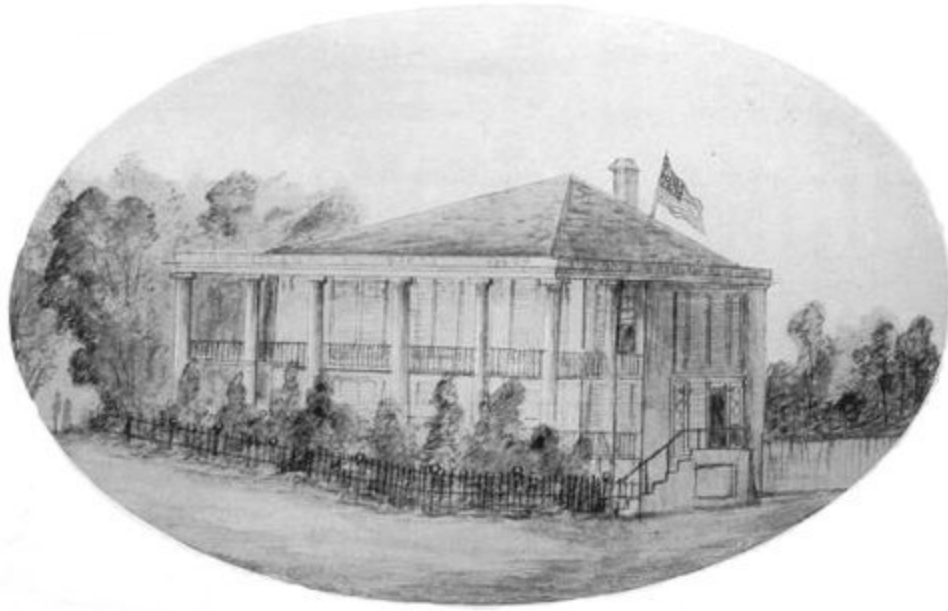
During all this time General Stevens was chiefly engaged in training and disciplining his command. Besides company and battalion drills in the forenoon, brigade drills were had four afternoons a week, usually in some extensive cotton-field below the town, and occasionally these drills were varied by movements through timber, bridging and crossing streams, or overcoming other obstacles, the three arms being exercised to act in concert. There was no other brigade in the armies on either side that was put through such a complete and thorough course of brigade drill as General Stevens gave his command at Beaufort. Schools of instruction for officers and for non-commissioned officers were also vigorously kept up. The picketing of the widely extended and exposed points on the islands involved a line twenty-five miles in extent, and was a severe task on the troops. An entire regiment was required for this duty, and was changed every ten days.

To insure the vigilance of the pickets, General Stevens organized a system of nightly inspections by members of his staff and other officers specially sent out from Beaufort, in addition to the grand rounds and inspections by their own officers. Besides the staff officers already mentioned, Lieutenant Benjamin R. Lyons, of the 50th Pennsylvania, and Lieutenant A. Cottrell, of the 8th Michigan, were detailed as aides, and Captain Charles A. Fuller took the place of Captain Lilly as quartermaster, the latter being court-martialed and cashiered.

A fine mansion in the edge of town, in the midst of a luxuriant semi-tropical garden, with the negro quarters and kitchens in detached buildings, served as headquarters. On the open space on one side, brigade guard-mounting was held every morning to the martial and inspiring music of the Highlanders' band. This was one of the finest bands in the service, or, indeed, in the country. It had been long established in New York, and was maintained with indefatigable zeal and industry by Lieutenant William Robertson, the band-master.

Thus well occupied with drills, dress parades, guard-mountings, picketing, and study, in that beautiful region and delightful winter climate, profusely supplied with fresh beef, poultry, and sweet potatoes, in addition to the ample regular ration, the troops greatly enjoyed their sojourn at Beaufort, while they rapidly gained soldierly discipline and efficiency. In April a detachment of two hundred and fifty of the 8th Michigan escorted Lieutenant James H. Wilson on a reconnoissance to Wilmington Island, on the Savannah River, and in a very creditable action defeated and drove an entire rebel regiment, the 13th Georgia, suffering, however, a loss of forty-two killed and wounded.

The following letters from General Stevens to his wife give interesting sketches of this period:—



HEADQUARTERS AT BEAUFORT

BEAUFORT, S.C., February 16, 1861.

MY DEAR WIFE,—I am devoting my energies to perfecting the discipline of my brigade. All the regiments are now in very respectable drill,—one in very superior drill. For five weeks I have had brigade drills, an average of four per week. In this week they will have been instructed in all the evolutions of the line. Hazard is very expert both at battalion and brigade drill, and he can drill a brigade much better than any of my colonels. Then I have a regiment doing picket duty on the island. I relieve it every ten days, so each regiment has been thoroughly instructed in picket and outpost duty. I have here the second battalion of the 1st Massachusetts cavalry, commanded by Lieutenant-Colonel Sargent. It is finely officered, and is a splendid body of men. I have also a Connecticut light battery of six guns. It will, however, take months to make this battery efficient. For the last three weeks I have had regimental schools for officers and non-commissioned officers. They are doing well, and both officers and non-commissioned officers take great interest in them. Hazard's health is excellent. He takes very great interest in everything, is full of life and energy, very industrious, studies carefully his tactics, regulations, etc. He is making a very superior officer indeed; is a very efficient

adjutant-general. My aides, Captain Lusk and Lieutenant Cottrell, are good men.

April 17.... I have endeavored to do all I could with propriety to facilitate everything which tended to the improvement of the condition of the negroes. Many of the people here, both men and women, understand pretty well the circumstances of the case, and are getting to take practical views of the subject.

April 21.... Mrs. Johnson and Miss Donelson leave day after tomorrow on the Atlantic. We shall send for them and see that they are comfortably taken on the ship. Two officers of my brigade return at the same time on leave of absence, in whose special charge I will place them.

The 8th Michigan regiment had a very brilliant affair last Wednesday. Whilst about two hundred and sixty of the regiment under their colonel (Fenton) were reconnoitring Wilmington Island, they were attacked by a full regiment (the Georgia 13th), eight hundred strong. After a desperate conflict of nearly two hours our men whipped them, drove them off the ground, pursued them for a mile, and then carefully and leisurely held the field for five hours. All our dead and wounded and every particle of baggage were brought off. We lost two officers and ten men killed, and thirty men wounded,—a very heavy loss, being one fifth of the entire command. On Friday and Saturday we buried the dead. The services were very affecting. The regiment returned on Saturday afternoon, and the whole brigade turned out to receive them. We had invited the ladies from the Pope plantation to come to Beaufort on Friday to attend a concert given by the Highlanders on Friday evening. Mrs. Johnson, Miss Donelson, and Miss Ward came over. They returned on Saturday evening. We had the burial of the dead, the concert, and the reception while they were here. We entertained them at the house, and they really enjoyed their visit. Indeed, Mrs. J. and Miss D. have found it rather lonely on Ladies' Island, and I thought, in view of old acquaintance' sake and their kind and excellent natures, that we ought to do something to give them a little change.

May 24. We have had a sad household the last few days. Mr. Caverly has been sinking gradually since Wednesday morning, and died this morning at one o'clock. He was exceedingly patient and resigned, and very grateful for the attentions he had received here. I am very thankful I did not hesitate, in his enfeebled condition, insisting upon his coming to my house. His wife has borne herself with great fortitude and courage throughout. Lieutenant Pratt, of the Massachusetts cavalry, is going home on leave of absence, and will take charge of Mrs. Caverly.

May 18. Above is a view of the steamer Planter, a dispatch boat of General Ripley in Charleston harbor, which was run off by the pilot Robert and the black crew last week. It is a very remarkable affair, and makes quite a hero of Robert. She was tied up at the wharf close to Ripley's office. Yet he slipped out of the harbor unobserved, and gave the steamer up to our blockading fleet. The Planter lay at Beaufort from Thursday morning to this morning. She was run off on Tuesday, May 13.

The following to Mr. Fuller gives General Stevens's views on the proper war policy, and the severity of the contest yet to be fought. It was at this time that the government, rendered over-confident by Western successes, stopped recruiting. It will be seen how exactly he read the military situation:

BEAUFORT, S.C., March 15, 1862.

MY DEAR SIR,— ... At this moment every effort should be made to keep our ranks full by enlistments. We are only at the beginning of the hard fights. Our men will fall in battle, and die in the hospitals. The best troops rapidly melt away in aggressive movements. We must take nothing for granted except the determination on the part of the South to make a stern and protracted resistance. The great point is to open the Mississippi down to the Gulf, and this can be done by driving our forces southward in Tennessee, and farther south into Alabama and Mississippi. This should be combined with a great movement from the Gulf. The Mississippi River in our control, everything westward will fall by vigorous, rapid, comparatively short movements. We must husband our men and resources. We, if we don't look out, will find our

victorious march stayed in mid-course by the melting away of our attacking columns, not kept full in consequence of a too great dissemination of our force.

At this time General Stevens wrote Professor Bache a memoir, to be laid before the President, giving his views of the military policy and operations to be undertaken. Dr. Lusk, who, as his aide, copied the letter from the rough draft, declares that he urged the very movements that were afterwards adopted, and was greatly impressed with the ability and prophetic foresight of the memoir. Unfortunately, no copy of it has been found.

HEADQUARTERS SECOND BRIGADE, E.C.,
BEAUFORT, S.C., February 25, 1862.

W.J.A. FULLER, ESQ.,

My dear Sir,—I hope not the least suggestion will be made in any quarter in relation to placing me in command of the expeditionary corps of General Sherman. I am induced to write you in relation to it, because I have learned from a reliable source that it is being spoken of in some influential quarters in Massachusetts. General Sherman has treated me with marked kindness and consideration, and I feel that I would be acting badly towards him if I did not express decidedly my views and feelings in regard to the matter. It would be, however, sheer affectation on my part to say that I did not desire a separate command. I of course most earnestly desire one, but not at the expense of a friend, or with injustice to any one.

The advanced position of General Stevens's command was a constant threat to the Charleston and Savannah Railroad, justly regarded by the enemy as the vital line of communication between the two cities. The railroad crossed the many rivers which empty along this part of the coast by long pile or trestle bridges of hard Southern pine, full of pitch, and exceedingly combustible. In thirty miles it thus crossed, going north from Savannah, the Coosawhatchie, Tulifiny, Broad, Pocotaligo, Combahee, and Ashepoo rivers, with six miles of bridges in the aggregate, and at Pocotaligo, the centre of this stretch, was only eight miles distant from Port Royal Ferry and the Union lines. So important was the preservation of this railroad regarded by General Robert E. Lee, the Confederate commander, and so

probable did he deem our advance in this direction, that he made his headquarters at Coosawhatchie, posted strong detachments with guns and intrenchments at the bridges, and supported them with considerable bodies of troops at central points, all under General J.C. Pemberton, with headquarters at Pocotaligo. And that officer, on succeeding Lee in command of South Carolina and Georgia in March, remained at the same place, and continued the same attitude of watchful defense.

General Stevens early fixed his eye upon these bridges as affording the most feasible way of breaking up the railroad. He was eager to cross swords with Lee and confident, more than once remarking that he could beat "Bob Lee,"—that he felt himself more than a match for him. From negro refugees he learned that the enemy held them in force, but nothing sufficiently definite and reliable to be of much value. Anxious to gain exact and full information of the bridges, the enemy, and his dispositions, and of the roads and nature of the country, he offered the task to Captain Elliott, of the Highlanders, who undertook it with alacrity. During January, February, and March, this intrepid officer made trip after trip within the enemy's lines, explored the whole region, and examined every bridge between the Coosawhatchie and the Ashepoo, located the enemy's posts, ascertained their forces, intrenchments, guns, etc., and gleaned much information in regard to the roads, approaches, and country. On these scouts Captain Elliott went in uniform. He would start at night in a small canoe with a trusty negro guide, paddle noiselessly up one of the rivers until within the enemy's lines, then land and pursue his explorations on foot. By day he usually lay hid in the swamps or pine woods. The service was not only fraught with danger, but extremely arduous, involving every hardship of cold, hunger, and exposure. It was so well performed that it is doubtful if the Confederate commander himself was much better informed as to the state of things within his lines than was his opponent. No whisper of suspicion of Captain Elliott's scouts was suffered to get out; and although his long and frequent absences on special duty excited comment, all knowledge of them was confined to himself, General Stevens, and the assistant adjutant-general of the brigade.

In the latter part of February General Stevens sent Captain Ralph Ely, of the 8th Michigan, with four officers and twenty-two men, in boats on a reconnoissance up the Combahee River. Captain Ely performed this duty

with skill and success, was gone three days, and went entirely around some of the enemy's posts without revealing his presence to them.

With the thorough knowledge of the enemy's defenses he had so carefully gained, General Stevens conceived the plan of moving suddenly by land and water upon the railroad, breaking it up irremediably by destroying every bridge for thirty miles, thus cutting the communication between the cities and threatening both, and then rapidly to countermarch the whole force to the ferry, Beaufort, or Broad River, embark on transports, and, reinforced by every available man of Sherman's command, to strike for Charleston by the inner waterways of the North Edisto, Wadmalaw, and Stono, thus completely turning the heavy harbor and sea defenses which protected the city against a front attack.

He worked out the details of this movement against the railroad with great pains, knowing that he would have it to execute. He counted largely upon the flotilla of launches and flatboats, by means of which he would be enabled to throw strong forces up the rivers, and cut off and isolate every position and bridge in turn. Port Royal Ferry had demonstrated the practicability of thus moving troops by water, and had given them the idea. He had plenty of flats, great numbers of negroes trained to the oar, and there was no lack of good boatmen among the soldiers.

The largest part of the attacking force was to be thrown directly on the railroad, moving simultaneously in two columns, one overland from Port Royal Ferry via Garden's Corners, the other ascending Broad and Pocotaligo rivers in flatboats, supported by naval launches and light-draught gunboats. Strong detachments were boldly to press the enemy's posts on the Coosawhatchie and Tulifiny, and be ready to join in the attack upon them later by the main force. A picked detachment was to ascend the Combahee in boats, carry the enemy's posts on that river and on the Ashepoo, and destroy the railroad bridges, and then, proceeding along the railroad, join and coöperate with the main column in destroying the bridge over the Pocotaligo, when the united force were to press southward down the railroad towards Savannah, sweeping everything clear beyond the Coosawhatchie, and leaving the railroad in smoking ruins for thirty miles.

In connection with the siege of Pulaski, General Sherman desired to operate against Savannah. He complained that a combined movement in force upon that city planned by him in January was balked by the refusal of the navy to coöperate. Later, he was ordered by McClellan to abandon the design. Naturally impatient of delay, and anxious to achieve some success, he was ripe for new undertakings. As the fall of Pulaski was evidently impending, General Stevens unfolded his plan to General Sherman, and the two officers, in several long and confidential conferences, discussed it fully. General Sherman decided to adopt and carry it out as soon as the fall of Pulaski should free his whole force for the operation. Commodore Dupont also heartily entered into the plan, and was ready to give it all requisite naval support. Moreover, he proposed making a strong naval demonstration on Bull Bay, north of Charleston, in order still further to distract the enemy at the critical time.

The objective point to be seized as the key to Charleston—the turning-point of the campaign—was known as Church Flats, situated on the stream extending from the Wadmalaw to the Stono River. From this point a good road led to Charleston, fourteen miles distant. The gunboats could approach within two miles of it. The movement of Sherman's entire force was to be so combined and timed that every effective man—Wright from Florida, Viele from Pulaski, Williams from Hilton Head, and Stevens's flying column fresh from their attack on the railroad, leaving ruined bridges and a beaten, disconcerted enemy behind it—was to be transported by water and thrown upon Church Flats. True, the point was fortified and garrisoned, but the navy would cover the landing, and afford support in case of repulse. A successful dash might take Charleston at a blow. Or, if a foothold only were gained, the army could force its way by the Stono, turn all the defenses on James Island and the harbor, and reduce or destroy the city from the banks of the Ashley. This movement was taking the enemy by the throat. The subsequent attacks on the sea front were taking the bull by the horns, and met the usual fate of that performance.

Fort Pulaski fell April 11. With due allowance for preparation and delays, the railroad should have been destroyed and our army in possession of Church Flats by May 1. What means of defense had the enemy at this juncture? Lee had been sent to Virginia, and during the six weeks succeeding his departure Pemberton was stripped of regiment after

regiment, dispatched to Richmond or to Corinth. About April 20 he withdrew all troops except the cavalry between the Ashepoo and Oketie for the defense of the two cities. "This," he reports, "will leave the line of the Charleston and Savannah Railroad with no other protection than what the cavalry companies can afford, which is altogether insufficient." At this time also he moved his headquarters from Pocotaligo to Charleston, and abandoned the defenses of Georgetown north of Charleston, removing the guns therefrom for the protection of the latter.

Only four thousand men, under Colonel P.H. Colquitt, 46th Georgia, guarded the long and exposed line south of the Ashepoo clear to Savannah. Colquitt's headquarters, with his own regiment and two field batteries, were at Pocotaligo; the remainder of his force was scattered along the road.

There were no obstructions yet planted in the Stono, except possibly at Church Flats, where, as late as April 29, Pemberton orders Evans, "Sink the obstructions at Church Flats immediately." The line of defenses across James Island was not commenced. The guns with which it was afterwards armed were in the exposed, advanced batteries on Cole and Battery islands, and must have been abandoned there.

The returns of Pemberton's forces for May 11, 1862, give the effective force in his department:—

Georgia	9,172
South Carolina	18,514
Total	27,686

The South Carolina troops were disposed as follows:—

Charleston defenses, Brigadier-General Ripley	9750
James Island to the Ashepoo, Brigadier-General Evans	4883
Ashepoo to Savannah, Colonel Colquitt	3881

General Stevens's movement on the railroad, if successful, would effectually break up Colquitt's command, and prevent succor reaching the threatened point at Charleston from the troops at and about Savannah for at least a week, most probably two weeks; for they would have to be sent

around by way of Augusta, Ga., and by this route the rail was not continuous, there being a gap of over forty miles.

Consequently Pemberton's available force to resist the proposed movement would be reduced to Ripley's and Evans's commands, which mustered,—

Infantry	10,477
Artillery	3,032
Cavalry	<u>1,133</u>
Total	14,642

Counting out the garrisons of the forts and batteries about the city and harbor, and on James, Cole, and Battery islands, it is clear that Pemberton could not possibly have concentrated over six or seven thousand troops to meet Sherman's advance on the Stono. In all probability he would not have had half that number at the critical point in time; for the vigor of the attack on the railroad, sweeping southward, would surely have impressed him that Savannah was in danger, causing him perhaps to hurry part of his troops to the relief of that city via Augusta, while Dupont's demonstration on Bull Bay would have still further distracted his attention from the real point of attack until too late.

Returns of the Union forces for April 30 show present for duty some 17,000, as follows:—

Brigadier-General Viele, Daufuskie, Bird and Jones islands	3077
Brigadier-General Stevens, Beaufort	3881
Brigadier-General Wright, Edisto and Otter islands	3623
Brigadier-General Q.A. Gilmore, Fort Pulaski, Tybee, and Cockspur	2139
Colonel Robert Williams, Hilton Head	2987

Fernandina and St. Augustine, Florida	1194
Fort Seward, South Carolina, 92, and department commander and staff, 16	108
Total	16,988

An effective force of 10,000 could have been formed from these troops and thrown upon the Stono. Sherman was a good and resolute soldier; his troops were in fine condition, and full of pluck and confidence. With Stevens and Wright to lead them, and the navy at his back, he would almost certainly have achieved success.[\[16\]](#)

But this promising movement was nipped in the bud by the untimely and unexpected arrival of Major-General David Hunter to supersede Sherman. Brigadier-General H.W. Benham accompanied Hunter as a kind of second in command. In fact, both officers were *enfants terribles*, whom the administration exiled to South Carolina to get rid of. Hunter had just been relieved from commanding in Missouri for an act of insubordination in issuing an emancipation proclamation in defiance of orders; and Benham, fresh from skirmishes in West Virginia, was in Washington, claiming everything in the way of credit, and loudly importuning the government for high command, when they were ordered to South Carolina.

Sherman turned over the command of the department, and sailed north on the 8th of April. Three days later Pulaski fell after a day and a half's bombardment, and Benham made haste to claim the credit of the achievement due to Sherman and Gilmore.

General Hunter divided his department into the Northern and Southern Districts, and gave Benham the command of the former, comprising South Carolina, Georgia, and part of Florida, and nearly all the troops. About the middle of April General Wright returned from Florida with the greater part of his brigade, and took post on Edisto Island.

Hunter, a sincere, earnest, and patriotic man, was absorbed in the political and humanitarian aspects of the great struggle. He lost no time in issuing another emancipation proclamation. "Martial law and slavery," so ran this

unique document, “in a free country are altogether incompatible; the persons heretofore held as slaves are therefore declared forever free.” The same day he issued the following order to the commanding officers of the several posts and islands: “Sir, you will send immediately to these headquarters, under guard, all able-bodied negroes capable of bearing arms within your lines.” The six hundred forlorn and frightened darkeys, who next day were loaded on a steamer at Beaufort and shipped to Hilton Head, must have been sadly puzzled over their new-found forever freedom. But Hunter soon solved all doubts by throwing them into camp with uniforms on their backs, arms in their hands, white officers to drill them, black preachers to exhort them, and a cordon of white soldiers sentinelning their camp to make sure they did not run away. Thus was raised the first negro regiment. Hunter, having proclaimed them free, felt no scruples in making them fight for freedom.

General Stevens, after obeying the order with a promptness altogether unexpected by General Hunter, and for which he was totally unprepared, remonstrated against it in a letter to General Benham, his immediate commander:—

“1. There is very little material for soldiers in the able-bodied men of color in this department. I have not yet been able to find a single man who would venture alone inside the enemy’s lines, although I have diligently sought to find such a man. Occasionally a negro has been used to accompany white men. They have great fear of the prowess of their masters, and of white men generally. They have the strongest local and domestic attachments, which make them very reluctant to leave their homes.

“2: They can be used to very great advantage in connection with and for the menial duties of the military service, and also as adjuncts of existing organizations; thus, as quartermasters’ employees, doing all kinds of labor, from mechanical to the merest drudgery work. As boatmen, also, and as laborers on the defensive works, as guides and scouts, they can render most effective service, and should be employed *as adjuncts of existing organizations*. In fixed batteries they could do the heavy work, moving the guns, and carrying the shot and shell. In engineering operations they could do the heavy labor, even some of the

hard lifting and carrying in managing the pontoon equipage. Thus I conceive a great use can be made of the blacks in our military operations in devolving upon them the menial duties, and as strictly subordinate to existing organizations.”

These were precisely the views as to raising negro troops expressed not long afterwards by the distinguished general, W.T. Sherman.

The remonstrance seems to have had some effect, for General Hunter telegraphed, and afterwards wrote, General Stevens to say to the negroes that they were sent for to receive their free papers, and would have a chance to volunteer, if they wished, and that those who did not wish to remain would be sent back to their homes. In fact, the regiment was disbanded not long afterwards.

Another cause of anxiety to General Stevens was the delay of the Senate in confirming his appointment as brigadier-general. The confirmation was held up by Senator Wilson, of Massachusetts, chairman of the Military Committee, in consequence of numerous anonymous letters to him and other senators, written from the Department of the South, charging that General Stevens was unsound on the slavery question. But when General Sherman reached Washington and indignantly refuted these slanders, described the able handling of his troops at Port Royal Ferry, and the fine condition to which he had brought his brigade; and Messrs. Pierce, French, and Suydam, the treasury agents, abolitionists themselves, bore willing witness to his patriotic spirit and the ungrudging assistance he had given them,—Wilson assented to the confirmation. Senators Fessenden, John P. Hale, Rice, Nesmith, and others strongly stood up for him, and on April 12 it was made without further delay.

NOTE.—Admiral Dupont’s fleet-captain, Charles Henry Davis, in a letter written soon after the naval victory at Port Royal, declares that the true way of attacking Charleston is “by lines of water communication from St. Helena Sound; and, if you will observe, South Edisto, North Edisto, and Stono rivers and inlets afford the means of lateral support to an army moving towards Charleston by vessels of the navy,” etc. *Life of Charles Henry Davis, Rear Admiral*, p. 174.

On the arrival of the new commanders, the admiral, waiving rank in order to expedite matters, consented to put himself in official communication with General Benham; but he soon had occasion to call General Hunter's attention to the tone and character of one of Benham's letters, and to withdraw the concession.

In a subsequent letter to Hunter the admiral remarks: "I have, however, to take exception to the attempt of General Benham to attribute his inability to meet his own arrangements to any shortcomings on my part." *Official Dispatches of Admiral Dupont*, pp. 172-183.



LIEUT. WM. T. LUSK, LIEUT. ABRAHAM COTTRELL, --- ---, MAJOR GEORGE S.
KEMBLE, CAPT. B.F. PORTER, CAPT. HAZARD STEVENS, GENERAL STEVENS,
LIEUT. BENJ. R. LYONS
GENERAL STEVENS AND STAFF

CHAPTER LII

JAMES ISLAND CAMPAIGN AGAINST CHARLESTON

General Hunter, busy in proclaiming martial law and freedom, and in raising a black army by conscription, with which he hoped to strike a blow into the vitals of the Confederacy in the future, decided for the present simply to maintain a defensive attitude.

But Benham was greedy to signalize himself. His dense egotism and self-sufficiency rendered him almost incapable of listening to any suggestions, or even information, that did not originate with himself. The movement planned by General Stevens with so much care was rejected offhand by Benham. Yet he was extremely anxious to employ the troops in some offensive operation, and gave Hunter no peace on that point.

Early in May Pemberton abandoned his works at the mouth of the Stono, dismantling them and removing the guns for the purpose of arming an inner line across James Island, which he was commencing, and which ran from Fort Johnson in the harbor to Fort Pemberton on the Stono, ten miles above its mouth, and the naval gunboats entered and took possession of the lower four miles of the river. Here Benham saw his chance. Hunter at length yielded to his importunity, and consented to a demonstration in force upon Charleston by way of James Island. Benham made the plan. One division of troops, under General Stevens, embarking on transports, were to go around by sea, enter the Stono, and debark on James Island. Another division, under General Wright, who was already on Edisto Island with four thousand troops, was to make a combined land and water movement over Edisto and John's islands, crossing the intervening bays and streams, and reach James Island simultaneously with Stevens. A prompt and successful attack upon the incomplete line of intrenchments across that island would place Charleston in our power.

The plan was entirely practicable, but marred from the start by Benham's unfortunate talent for blundering. When he communicated the details of the movement to General Stevens, that officer pointed out to him that he was not allowing time enough for Wright to make the movement required of him, and reach James Island simultaneously with the other division, and that he would necessarily be a week later in arriving unless his orders were changed. Benham took this friendly advice in dudgeon. The orders were not changed, and Wright was just one week behind the appointed time, as predicted.

As soon as he was informed of the intended movement, General Stevens earnestly urged Benham to inaugurate it by sending him to break up the railroad, as he had so long and so well planned, or, if not with the heavy force and thoroughness approved by General Sherman, at least to permit him to throw his own brigade upon it. In a personal interview he presented his views with such clearness and force that he actually obtained a reluctant consent from Benham to make the attack, but at the last moment he peremptorily countermanded the movement. Finally, to General Stevens's last earnest request by telegraph he would only consent that a demonstration might be made by the single regiment that was to be left to garrison Beaufort, the 50th Pennsylvania, stipulating, moreover, that it was to be back the same day it started on the raid. Accordingly the 50th, under Colonel Christ, supported by a company of the Highlanders and another of the Michiganders, a detachment of eighty men of the 1st Massachusetts cavalry under Major Henry L. Higginson, and a section of Rockwell's battery, advanced on May 29 to Pocotaligo, had a brisk skirmish with the enemy, driving him from his position, with a loss of two killed, six wounded, and two captured, and returned. The Union loss was two killed and nine wounded. How different this mere demonstration from the bold and crushing onslaught planned by General Stevens!

General Rufus Saxton arrived at Beaufort to take charge of affairs there on General Stevens's departure. He was one of the army officers who took part in the Northern Pacific Railroad exploration under the latter, and had been warmly recommended by him, as an able and experienced officer, for appointment as brigadier-general, a recommendation which General Saxton declares was finally the cause of his obtaining the appointment; for, taking advanced views in favor of emancipating and elevating the slaves, he was

chiefly supported by the abolitionists, and was considered a representative of that element. He brought with him a provost-marshal, who, when the troops were embarking, came on the wharf with a considerable guard, and summarily took from the hostler two horses belonging to Captain Stevens, claiming that, having been captured from the enemy, they were improperly held by that officer. They were, in fact, captured animals, but had been regularly appraised by a board of survey, and the value of them paid into the quartermaster's department. The troops on the vessel witnessed this seizure with no goodwill, for they all knew the horses, and one of the soldiers made haste to acquaint the owner with what was taking place. He, finding remonstrance useless and the captor determined to hold on to his prey, quietly stepped across the wharf to the steamboat alongside, crowded with troops, all interested spectators, and directed an officer of the 8th Michigan to take his company ashore, seize the horses, and put them on board. The order had scarcely left his lips when a hundred brawny fellows, musket in hand, leaped over the ship's rail and on the wharf, rescued the animals with no gentle hand, and drove the astonished and crestfallen provost-marshal and his myrmidons off the wharf. Of course he rushed to General Saxton, big with complaint, and the latter at once sought redress of General Stevens for the forcing of his provost-guard. But the latter in most emphatic terms rebuked the high-handed act of the over-zealous provost, and fully upheld his staff officer.

Embarking the other three regiments of his brigade and Rockwell's battery, reduced to four guns, on June 1 General Stevens proceeded to Hilton Head, where he was joined by the 28th Massachusetts and 46th New York in transports, and on the 2d steamed by sea around to, and entered, the Stono, which was held by several gunboats, to a point above Grimball's plantation, which was six miles above the mouth. The transports anchored two miles below this point, and opposite a hamlet on John's Island known as Legareville. A strong picket was thrown ashore on James Island for the night, it being too late to land the troops. On the 3d they were put on shore in small boats, which were insufficient in number, and made the landing slow and laborious. As soon as a few companies were ashore, General Stevens advanced with them, drove back the enemy, who were in considerable force, after a sharp action, captured three guns, which they were moving back to their inner line, and established his permanent picket

line two and a half miles from the river, running diagonally across the island from Big Folly Creek to the Stono near Grimball's.

The action perhaps merits a fuller account. A farm road led back from the river about two and a half miles to the bank of Big Folly Creek, where it passed along a row of negro quarters. Here, turning to the left or westward, it crossed a wide cotton-field, then traversed a strip of woods, then crossed a marsh and slough by a causeway and continued on across the island in a generally westward direction. Driving back the enemy, General Stevens occupied the negro quarters with six companies, two of the 28th Massachusetts on the right, then two of the Roundheads and two of the Highlanders on the left. Two more companies of the latter, as they came up, were posted farther to the left and front. The enemy held the woods in front, and both sides opened a brisk musketry fire across the broad intervening cotton-field. Some of their skirmishers got across the field far to the right of our position, and, under cover of the bushes which fringed the bank of the creek there, threatened the flank. To meet this danger, Captain Stevens stationed a platoon of the Roundheads a short distance to the right of the quarters, where they, too, had the cover of the bushes.

Soon afterwards a column of the enemy, apparently a regiment, and which was in fact the Charleston battalion, the crack corps of the city, emerged from the woods, and advanced by the flank in column of fours, headed by a mounted officer. In this order they charged down the road across the field at the double-quick, and, notwithstanding the fire of the companies stationed at the negro quarters, which proved singularly ineffective, actually penetrated to the buildings; the 28th companies gave way, and for a moment they had the position. But the Roundheads held their ground, while the Highlanders charged them with the bayonet and drove them in confusion to the right, whence they escaped across the field to the woods. In the rush, however, they swept off and captured Captain Cline and part of his platoon, which was posted to protect the right flank. The Highlanders wounded and captured Lieutenant Henry Walker, adjutant of the battalion, in the *mêlée*. General Stevens immediately followed up this repulse by advancing his troops upon and through the woods, and to the other side of the marsh and causeway, forcing the enemy to abandon three pieces of artillery in his hasty retreat. The guns were hauled to camp in triumph. The enemy acknowledged a loss of seventeen wounded, one mortally, and one

captured. His force consisted of the Marion Rifles, Pee Dee Rifles, Evans Guard, Sumter Guard, Beauregard Light Infantry, Charleston Riflemen, Irish Volunteers, Calhoun Guard, and Union Light Infantry, in all apparently nine companies. Yet all this array of chivalry did not save the guns they were sent to bring in.

The picket line was posted along the front side of the woods, and on the edge of the marsh. The enemy's pickets held the other side of the marsh. There were several picket skirmishes during the next few days. The troops were kept well employed in landing stores, making camps, and on picket duty, awaiting the arrival of Wright's division.

Benham was eager for General Stevens to make a dash upon the enemy's lines without waiting for the balance of his army, but hesitated to give the order. The latter, fearing most his commander's blundering precipitancy, in the following confidential note urged him to come to a speedy decision, representing that a day's preparation was absolutely essential:—

JAMES ISLAND, June 6, 1862.

DEAR GENERAL,—I understand your wish to be to make an armed reconnoissance of the enemy's position, and if the result be favorable, to follow it up by a dash, in order to seize James Island below James River and Newton Cut.

We shall probably be as well able to make it day after to-morrow (daylight) as at any other time.

Should you decide to make it day after to-morrow, it is of the first consequence to make that decision without delay. It will require all day to-morrow to prepare for it. I would suggest that not more than three companies be left at Legareville; that everything else be brought over to-morrow, including the six guns of Hamilton's battery; that arrangements be made with the gunboats to open cross-fires. The system of signals will require careful arrangement.

I desire that the dash be successful, and therefore I want to see every man thrown in. But I desire particularly to express my judgment that, in the present position of our troops, twenty-four hours of vigorous work is absolutely essential in the way of preparation.

Very truly yours,

ISAAC I. STEVENS.

BRIGADIER-GENERAL BENHAM.

How completely this judicious caution as to the necessity of due preparation was thrown away upon the opinionated Benham was proved ten days later, but for the present he gave up the idea of a dash.

In a letter to his wife, dated June 11, General Stevens gives expression to his disgust at the incompetents set over him:—

“I am not in very good spirits to-night, for the reason that I have two commanders, Hunter and Benham, who are imbecile, vacillating, and utterly unfit to command. Why it has been my fortune to be placed in positions where I was of little account, and to be subjected to such extreme mortification and annoyance, is beyond my imagining. It may not even teach me patience. I shall, however, do the best I can. If the authorities would send some man not altogether incompetent, I should be better satisfied. Why can't Mansfield be sent here, and both Hunter and Benham relieved? As for myself, I am tabooed. No proper use is intended to be made of me, and as everybody is in the humor to speak highly of my abilities, I shall be held in part responsible for the follies of others. Benham is an ass,—a dreadful man, of no earthly use except as a nuisance and obstruction.”

A few days later he writes:—

“We are now attempting an enterprise for which our force is entirely inadequate. The want of a proper commander is fearful. We shall try to prevent any disaster occurring. This is all I can say at present.”

On the 8th Wright's division reached Legareville, and was occupied the next two days in crossing the river, and taking a position at Grimball's, a mile and a half above General Stevens's camp. Colonel Robert Williams went into camp with his 1st Massachusetts cavalry just below Wright. The 7th Connecticut, which came with the overland column, joined General Stevens's division.

Wright's delay was caused by the inadequacy of the water transportation, especially boats, furnished him. It was found an exceedingly slow and laborious operation to transfer troops, guns, and horses from shore to ship, and from ship to shore, in a few small boats. There were no wharves, and the landing-places were narrow and swampy. It was only by the greatest exertions, working his command night and day, that he was able to accomplish in a week the movement which Benham expected made in a day. Yet Benham, blind to the energetic and loyal character of Wright and the strenuous exertions of his troops on this march, never forgave that officer for the delay. Utterly unaccustomed to the command and handling of troops, and swollen with new-found authority, he ever deemed his loud and peremptory "Those are my orders, sir," an equivalent to that painstaking attention to details and to means which Napoleon and Wellington and all great soldiers have found indispensable.

The army now assembled numbered about twelve thousand, and was organized in two divisions and an independent brigade, as follows:—

First Division, Brigadier-General H.G. Wright.

First Brigade, Colonel J.L. Chatfield.

6th Connecticut, Colonel J.L. Chatfield.

47th New York, Colonel P.C. Kane.

97th Pennsylvania, Colonel H.R. Guss.

Second Brigade, Colonel Thomas Welsh.

45th Pennsylvania, Colonel Thomas Welsh.

76th Pennsylvania, Colonel J.M. Power.

Battery E, 3d U.S. artillery, Captain John Hamilton.

Second Division, Brigadier-General Isaac I. Stevens.

First Brigade, Colonel William M. Fenton.

8th Michigan, Lieutenant-Colonel Frank Graves.

28th Massachusetts, Lieutenant-Colonel M. Moore.

7th Connecticut, Lieutenant-Colonel Joseph R. Hawley.

Second Brigade, Colonel Daniel Leasure.

79th Highlanders, Lieutenant-Colonel David Morrison.

100th Pennsylvania, Major David A. Lecky.
46th New York, Colonel Rudolph Rosa.
1st Connecticut Battery, Captain A.P. Rockwell.

Independent Brigade, Colonel Robert Williams.

1st Massachusetts cavalry, Lieut.-Col. H.B. Sargent.
3d R.I. heavy artillery (infantry), Major E. Metcalf.
3d New Hampshire, Colonel J.H. Jackson.
1st New York engineers, Colonel E.W. Serrell.

All this time the enemy were concentrating and working like beavers on their new line of works across the island. In advance of the left of the line, at the narrowest neck of a peninsula formed by two inlets extending from Big Folly Creek, they had previously erected a strong work, known as Battery or Fort Lamar. It was a hundred yards long in front, and completely blocked the neck from shore to shore, so that it was impossible to turn or flank it. It had a wide and deep ditch, and a heavy parapet sixteen feet in height above the general level of the grounds and twenty-four feet above the bottom of the ditch, and extended back on both flanks along the inlets. It mounted eight heavy guns, viz., an 8-inch columbiad, two rifled 24-pounders, four 18-pounders, and a 15-inch mortar, and protected the whole left of their line with a flank fire. The front was well covered by abattis, except at the left angle, where a cart road ran along the left flank a hundred yards, then passing inside and to the rear.^[17] In front of the fort the peninsula rapidly widened out. The ground was in old cotton-fields, open and level, except for the high ridges and deep furrows resulting from that crop. About five hundred yards in front of the fort a hedge and ditch extended across the peninsula, separating field from field; and five hundred yards farther another hedge-row and ditch separated the second field from the road already mentioned. Both sides of the neck were skirted with bushes along the banks of the inlets, a light fringe on the eastward or left, a thicker fringe, affording some cover, on the west side. The ground rose immediately behind the work, overlooking it, and was covered with a growth of pine timber, above which uprose a tall, skeleton signal tower. The peninsula was known as Secessionville Neck, from the landing-place of that name on its extremity.

Half a mile to the right of Battery Lamar, on the main line, was Battery Reed, mounting two 24-pounders, and commanding the ground in front of the former with a searching cross-fire.

There was also a floating battery, mounting two guns, moored in the inlet to the left rear of the fort.

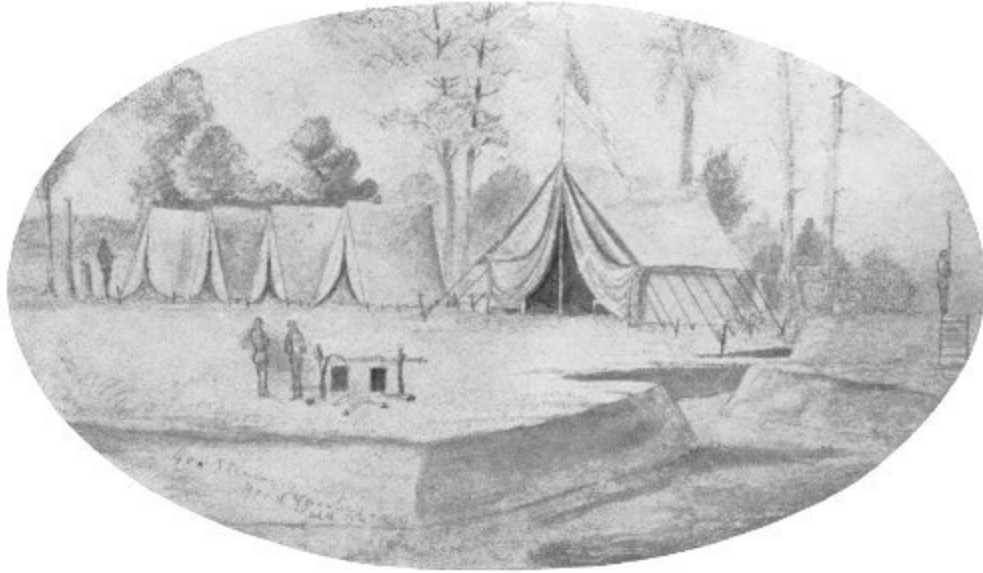
These works were continually shelling our pickets. The camps were beyond their range. In order to answer them General Stevens was allowed by Benham to erect a battery of three 24-pounder siege-guns on the point nearest the enemy's fort, and half a mile to the right of the negro quarters already mentioned. The battery was situated some two hundred yards from the extreme point, and on the bank of Big Folly Creek, and partially screened by the bushes there. It was well built, with heavy parapet and traverse, and the detachment of Roundheads who manned the guns soon felt quite secure. When it opened on the fort, it evidently caused some perturbation among the enemy. For some time a lively interchange of missiles was kept up. Our shells set fire to the floating battery, and the next night it was moved farther down the inlet. The Union battery could be approached on foot under cover of the bushes which lined the bank of the creek, but to reach it on horseback it was necessary to ride down the field in open view of the hostile work, and a group of horsemen was pretty sure to draw their fire.

A few days after the battery was completed, General Benham, accompanied by General Stevens and quite a cavalcade of their respective staffs, rode out to inspect the picket line. As they were returning by the road towards the negro quarters, Benham expressed a wish to visit the battery, and turned his horse to ride towards it. General Stevens suggested that it would be better to approach the battery on foot under cover of the bushes, as the enemy would probably fire on so large a party in the open field. Benham repelled the suggestion with a rude exclamation, and continued to ride towards the battery. General Stevens, of course, kept his place by his side without further comment, and the staffs and orderlies followed as in duty bound. As soon as the cavalcade emerged beyond the shelter of the woods, and came in view of the fort, a puff of smoke dashed from its side, and one of those shrieking shells hurtled just overhead and struck with a splash in the creek. Benham instantly pulled up, stared around bewildered a moment, and,

wheeling his horse short about, hastily rode back behind the friendly screen and shelter of the woods, followed by his staff. General Stevens, ignoring this manœuvre, kept quietly on at a moderate trot, followed by his staff, and all soon reached the welcome battery unharmed, although several more shells were fired at them.

On the 8th the 46th New York and one company of the 1st Massachusetts cavalry, under Colonel J.H. Morrow, of Hunter's staff, made a reconnoissance to the enemy's right through the woods above Grimball's, but, meeting a heavy force of skirmishers, retired without seeing the works. That same afternoon General Stevens sent Captain Stevens of his staff, accompanied by Lieutenant P.H. O'Rourke of the engineers, with a company of the 3d New Hampshire, under Captain M.T. Donohoe (afterwards General Donohoe), to reconnoitre the fort at Secessionville. The enemy's pickets were driven in, four of them captured; half the company, in skirmish order, approached the fort to within six or seven hundred yards, while the other half moved down the road to the left. Though subjected to a brisk shell-fire, and the fire of the pickets, not a man was touched. The character of the ground in front of the fort was ascertained, and the little party withdrew deliberately.

On the 10th the 13th Georgia, under cover of the woods, the pickets not being sufficiently advanced, got close to Wright's camp, and opened a sudden and furious attack upon it. They were repulsed in short order, with severe loss, by Wright's troops, aided by the fire of the gunboats.



HEADQUARTERS, JAMES ISLAND

CHAPTER LIII

BATTLE OF JAMES ISLAND

Meantime Benham was chafing at the helpless and ignominious position in which he found himself. At the head of twelve thousand fine troops, within six miles of Charleston, he was confronted by a formidable line of works, and had received positive orders from Hunter not to fight a battle. For several days he contemplated a movement towards the enemy's right, and issued some preliminary orders to that end. General Stevens thought an attempt should have been made in that direction as soon as Wright's division arrived. General Wright agreed that, if any part of the line was to be attempted, it should be the right. Both judged the left impracticable, resting as it did on the water, and covered by the advanced flanking fort at Secessionville.

General Hunter returned to Hilton Head for a short visit. In his absence, in an evil hour General Benham took it into his head that he might take the Secessionville fort. Its guns were shelling our pickets, and even the commanding general himself, when he ventured within range. They could almost reach Wright's camp. He resolved upon this attempt as precipitantly, and as regardless of the difficulties, as was his wont. On the evening of the 15th he summoned his subordinate commanders on board his headquarters steamer. There assembled Generals Stevens, Wright, and Williams. Captain Percival Drayton, commanding the naval force, was also present. To them Benham announced his decision: General Stevens to assault the fort before daylight with his division, Wright and Williams to support, the navy to coöperate. This announcement, coming at nine o'clock at night, for such an attack before daylight the next morning, without any previous notice or chance for preparation, must have taken them aback.

General Wright couched an emphatic protest in the diplomatic form of questions to General Stevens:—

“Have you impaired the strength of the enemy’s works at Secessionville by the firing of your battery?”

“Not in the least,” replied General Stevens; “I have driven the enemy from his guns by my fire, and I can do it again, but as soon as the fire ceases he returns. I have not dismounted a gun, and we shall find him in the morning as strong as ever.”

“Do you know of any instance where volunteer troops have successfully stormed works as strong as those which defend the approach to Secessionville?”

“I know of no such instance.”

“Have you any reason to believe that the result in the present case will be different in its character from what it has invariably been heretofore?”

“I have no reason to expect a different result. It is simply a bare possibility to take the work.”

“There, general,” said General Wright, turning to Benham, “you have my opinion.”

In this General Williams concurred.

General Stevens states in a letter to General Hunter, written on July 8, soon after the battle:—

“I then proceeded to state with all possible emphasis my objections to this morning attack. I urged that it should be deferred to a much later period in the day; that we should first shake the *morale* of the garrison, and endeavor to weaken its defenses by a continuous fire of the battery and of our gunboats; that in the mean time we should carefully survey the ground and prepare our troops, and make the attack when the battery and gunboats had had the desired effect. I closed by saying that under such circumstances I could do more with two thousand men than I could with three thousand men in the way he proposed. General Wright, moreover, warned General Benham that his orders were in fact orders to fight a battle. In this General Williams and myself in express

terms concurred. General Benham, however, overruled all our objections, and promptly ordered the attack to be made.

“I assured him, as did the other gentlemen, that he should rely upon my promptitude and activity in obeying his orders, but I considered myself as obeying orders to which I had expressed the strongest possible objections, and I therefore determined there should not be the least want of energy or promptitude on my part.”

With this the conference broke up, and the officers hastened ashore to their respective commands to prepare for the arduous task of the morrow.

General Stevens at once ordered his troops to be in readiness at the advanced camps, two miles from the river, at two A.M., with sixty rounds of ammunition and twenty-four hours' cooked rations. Captain Strahan's company, I, 3d Rhode Island, was detailed from Wright's division to relieve the detachment of Roundheads in the three-gun battery. Over three hundred of that regiment were out on the widely extended picket line. Ordered to assemble and join their regiment, only one hundred and thirty of the number succeeded in reaching it in time to take part in the action, and then only after it had come under fire, so scanty and inadequate was the time allowed for preparation. Two companies of the 28th Massachusetts were on fatigue duty and had to be left behind. The 7th Connecticut, moreover, had been on severe fatigue duty the three previous nights, and were much jaded.

At the hour fixed, the troops were at the appointed place. Before 3.30 A.M. the column was advanced two miles farther to the outer pickets, and was arranged in the following order:—

Lieutenant Benjamin R. Lyons, aide-de-camp, with a negro guide, led the storming party, which consisted of two companies of the 8th Michigan, commanded respectively by Captains Ralph Ely and Richard N. Doyle, followed by Captain Alfred F. Sears's company, E, Serrell's New York engineers.

Then followed Fenton's first brigade, comprising the 8th Michigan, Lieutenant-Colonel Frank Graves; the 7th Connecticut, Lieutenant-Colonel Joseph R. Hawley; and the 28th Massachusetts, Lieutenant-Colonel McClellan Moore.

Then Rockwell's battery of four guns.

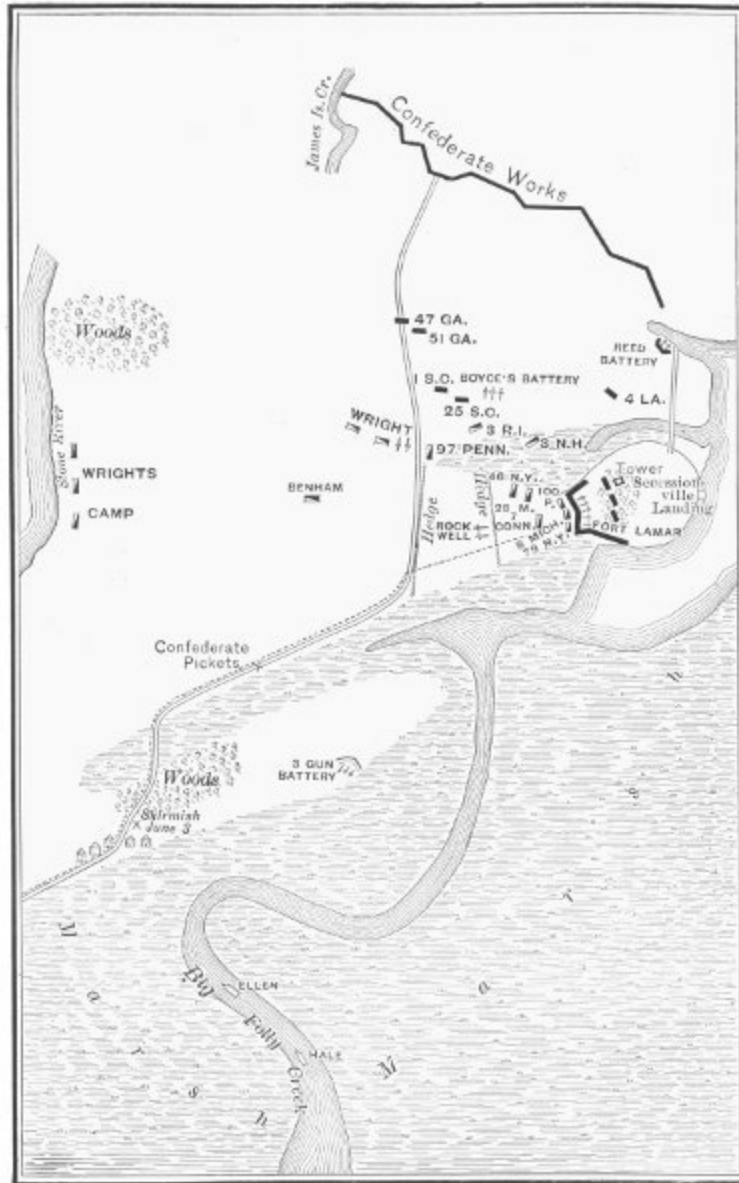
Then Colonel Leasure's second brigade, consisting of the Highlanders, Lieutenant-Colonel David Morrison; the Roundheads, Major David A. Lecky; and the 46th New York, Colonel Rudolph Rosa.

Captain L.M. Sargent, with his Company H, 1st Massachusetts cavalry, twenty-eight men, brought up the rear.

The attacking column numbered not exceeding 2900 officers and men, as shown by the following return:—

	Officers Men. Total.		
General and staff	9	6	15
First brigade:—			
8th Michigan	25	509	534
7th Connecticut	25	573	598
28th Massachusetts	20	416	436
Second brigade:—			
79th Highlanders	24	460	484
100th Pennsylvania	21	230	251
46th New York	22	52	474
Rockwell's battery, four guns	4	73	77
Sears's company, E, 1st New York engineers	2	59	61
Sargent's company, H, 1st Mass. cavalry	2	28	30
Aggregate	154	2806	2960

General Stevens gave the most explicit orders, reiterated in person to the several commanders, that the troops were to preserve strict silence, no stop to be made after passing the enemy's pickets; to form forward into line on reaching the fields in front of the fort; regiment to follow regiment and storm the work; not to fire a shot but rely exclusively on the bayonet, the muskets to be loaded but not capped. The idea impressed upon all was simply to assault the work in column of regiments, without an instant's pause after alarming the enemy's pickets, and take it with the bayonet.



BATTLE OF JAMES ISLAND, JUNE 16, 1862

Just before four A.M. the column moved forward on the road already described, and crossed the marsh by the causeway. Here a section of Rockwell's guns dropped out, and fell in again behind the second brigade. No opposition was encountered until the first house beyond our lines was reached, when the enemy's pickets fired, wounding five men of the storming party, and fled; but an officer and three men of their number were captured. The road was found blocked with felled timber, but the column without any delay advanced through the fields alongside the road until past the obstruction, and reached the open fields in front of the fort at 4.15 A.M.,

just as day was breaking. The storming party and the 8th Michigan filed into the field through an opening in the hedge and ditch which bordered the road, formed forward into line without a pause, and advanced steadily in excellent order over the uneven, deeply furrowed ground, soon surmounted the second ditch and hedge, and swept onward across the field next the work. The enemy were seen hastily forming on the parapet; their commander, Colonel Lamar, rushing to the gun half dressed, fired the great columbiad, heavily charged with grape, which tore a great gap through the advancing line, and they immediately opened with a storm of grape and canister from the guns, and a rapid and deadly fire of musketry along the whole front. Closing their ranks without break or pause, the gallant Michiganders pushed on, the storming party forty yards in advance, strewing the ground at every step with their dead and wounded. As they reached the ditch, Lieutenant Lyons dashed forward crying, "Come on, boys!" was the first man across the ditch, and fell half way up the parapet with a shattered arm. Many of the brave fellows who survived the murderous fire resolutely pressed on, gained the parapet, and poured their fire into the defenders behind it, who visibly gave back. Captain Reed, of the 1st South Carolina artillery, was killed at the gun he was serving by a Union captain, who was in turn immediately shot down. But the enemy rallied, the supports in the grove of pines in rear of the work poured in a deadly fire, and the brave stormers on the parapet, too few in number, soon melted away. The few survivors were forced to give back, and, throwing themselves on the ground, sheltered themselves as best they could behind the cotton ridges, from which they opened a fire on the fort with their muskets.

Meantime the 7th Connecticut and 28th Massachusetts, following close upon the 8th Michigan, turned into the field, deployed in like manner, and moved forward. Unfortunately they inclined a little to the left, and after crossing the second hedge the heavy grape and canister and musketry of the fort cut them up severely, and drove them still farther to the left, where they became disordered, and entangled in the bushes and broken ground bordering the marsh on that side. Lieutenant-Colonel Hawley tried to straighten out his regiment, setting up his colors in the field, and moved it to the rear and to the right, when he was ordered by Colonel Fenton to move still farther to the right, and advance again on the fort. The 28th

Massachusetts, although considerably scattered, moved forward under cover of the bushes until they encountered an inlet of the marsh and the abattis of slashed trees, when they fell back under cover.

By this time Leasure's brigade was up, and, directed by General Stevens in person, advanced straight on the fort, regiment after regiment, deploying as they advanced. The Highlanders moved forward in fine order, followed by the Roundheads, taking ground a little more to the left. Crossing the second hedge, they came under the terrible fire of canister which struck the left of the Highlanders and the centre of the Roundheads, literally cutting the latter in two. The Highlanders pushed steadily forward, supported by the right wing of the Roundheads, passing the 7th Connecticut as Hawley was endeavoring to lead it to the right as directed by Fenton, struck the work at the angle on its left (our right), and, led by the gallant Morrison, plunged across the ditch, and clambered up the steep parapet; many of the defenders ran back, and again the fort seemed won. But again the musketry from the sharpshooters on the flanks and rear cut down the brave Scotsmen; a bullet grazed Morrison's temple, inflicting a serious wound, and he and the half score survivors of the brave band that so gallantly gained the parapet were forced to leap down again. But they did not return empty handed. Morrison brought out a prisoner at the muzzle of his revolver. The capture of another was even more daring. A rebel soldier sprang upon the parapet in his eagerness, and aimed his musket at one of the assailants, scrambling up the steep and lofty bank, but the Highlander, making a tremendous leap, dashed aside the weapon, seized his antagonist in his arms, and rolled with him to the bottom of the ditch, where he was forced to surrender.

While the Highlanders were thus storming the work, the left wing of the Roundheads, with some of the Highlanders, cut off and driven to the left by the terrible hail which smote them, yet pushed determinedly on. They ran over or through the 7th Connecticut as that regiment was moving out into the field, as already narrated, throwing it into some confusion, and dashed themselves against the fort. But here the front was well protected by abattis, and afforded no opening. The Reed battery raked them terribly. The men fell by scores, the line lost its impetus, and the survivors threw themselves on the ground behind the cotton-ridges for shelter.

The 46th New York was double-quickened the last half mile of the road, conducted across the first field and through the farther hedge, and ordered forward. Its course, like that of the 7th Connecticut and 28th Massachusetts, bore too much to the left, and like them it became entangled in the bushes on that side. Here portions of the 7th Connecticut and 28th Massachusetts, retreating, broke through the 46th, carrying back fifty men of that regiment. There they stayed, suffering considerably from grape, until the advanced regiments moved back, when they also withdrew to the hedge.

While the attack was making, Rockwell planted three guns of his battery well forward and to the left in the first field, and maintained as constant a fire of shells upon the fort as the movement of our troops admitted. His fourth gun was posted on the road to guard the left rear. Captain Sears aided Rockwell's guns across the hedge and ditch and high ridges, and later cleared out the felled trees from the road in rear.

General Stevens, from his position in the first field, had a clear view of every movement. Lieutenant Lyons and other wounded officers brought discouraging reports. Seeing plainly that the assailants were all driven from the parapet, and that the attacking force was completely scattered and had in a manner disappeared, he was satisfied the attack had failed. With instant decision he ordered the troops to fall back, and reform behind the hedges. Captain Stevens was sent with the order. On reaching the front of the fort not a line, or semblance of one, could be seen, except about forty men standing in the field within a hundred yards of the work. Besides the dead and wounded, the ground was covered with blue-clad men, crouching down between the ridges, many of whom were firing on the work. A heavy hail of musketry came from it, or from the pine grove and cover behind it. The guns fired only at intervals. Captain Stevens did not see a mounted officer, nor a single color, except perhaps one with the scanty line referred to, nor a single man running away. Riding to this line, he found Lieutenant-Colonel Hawley and two officers on the right of it, endeavoring to cheer on the men. The line had stopped. The men were dropping fast, some stricken down, others voluntarily for shelter in the deep furrows; two were knocked over within arm's length as he delivered the order.

Hawley at once about-faced his line and moved back. Then a most remarkable sight was observed. The men of his regiment, lying between the

ridges, rose to their feet, and hastened to form on either flank of the line, which rapidly grew and lengthened out as it withdrew. Then another and another and another line rose out of the ground in like manner, and in a few minutes the four regiments, which had so gallantly dashed themselves against the fort, were moving back in four well-formed lines with colors flying, and men rising from all parts of the field and running to form on their respective regiments; but, alas, how reduced and scanty were they as compared with the strong, brave regiments which so proudly entered that fatal field barely a half hour before, where six hundred brave men now lay weltering in their blood!

The withdrawn regiments were halted behind the second hedge and straightened out. As soon as the troops could be seen moving back, Captain Strahan opened on the fort. Two of his guns were soon disabled, and he lost a sergeant killed, but with the remaining gun he kept up a well-directed and regular fire until the close of the battle. The gunboats Ellen and Hale, moving up Big Folly Creek, now began throwing shells at the long range of over two miles, some of which fell in the fields, greatly endangering our own men; but, guided by the signal officers, Lieutenant Henry S. Tafft on shore and Lieutenant O.H. Howard on the Ellen, the subsequent fire was more accurately directed upon the fort. The distance, however, was too great, and the shells too few, to produce much effect.

According to the plan, while General Stevens's division was assaulting the fort, Wright and Williams, moving together from Grimbald's, were to act as a support to the former, protecting his left and rear from an attack by the enemy from his main line. Williams's brigade comprised five companies of the 3d Rhode Island, the 3d New Hampshire, six companies of the 97th Pennsylvania, and a section of Battery E, 3d United States artillery.

Wright had of his own division, of Chatfield's brigade, two companies of the 6th Connecticut and eight companies of the 47th New York; and of Walsh's brigade, six companies of the 45th Pennsylvania, three companies of Serrell's New York engineers, and besides these the other two sections of Hamilton's battery, E, and two squadrons of the 1st Massachusetts cavalry. These organizations were mere skeletons, and numbered about two thousand seven hundred effective. The remaining troops were left on picket, and to guard the camps.

Wright moved soon after three A.M. to, and formed under cover of, the woods one mile in front of his camp. Hearing a few shots on his right front, he rightly judged that Stevens's column was advancing, and at once moved forward. By this time daylight was upon him. Now he was joined by General Benham, who assumed command, leaving Wright responsible for only his own skeleton division. Moving rapidly to the front, Wright soon placed his troops in position fronting the enemy's main line, and maintained substantially this position until ordered to withdraw, throwing the 47th New York to the left, and advancing a section of Hamilton's battery, which opened a sharp fire.

Before reaching this position General Benham received a message from General Stevens asking immediate support, and ordered Williams to move forward and report to him. Reaching the field just as the assaulting column was falling back and reforming behind the hedges, and ordered by General Stevens to push in on his left, and do the best in concert with him that the ground would admit of, Williams threw the 3d New Hampshire forward beyond, or on our left of the marsh and inlet which covered the flank of the fort on that side, with the view of taking it in flank, and supported it with the battalion of the 3d Rhode Island. The 97th Pennsylvania he posted on the left of General Stevens's reforming regiments. The two former advanced with great bravery and steadiness, so far that they actually poured a telling fire into the flank of the fort, and the garrison was manifestly shaken. For half an hour they maintained the contest, sustaining unflinchingly a severe fire from the fort and the 4th Louisiana battalion, which hastened to reinforce it, raked by the Reed battery on the left and smitten in the rear by Boyce's field battery. The 3d Rhode Island was thrown to the left against the latter. It encountered three companies of the 24th South Carolina, drove them back, and struck the 25th and 1st South Carolina, which supported Boyce's guns, and were protected by a patch of felled timber, and maintained an unequal contest with them until ordered to withdraw.

Meantime General Stevens, with the greatest possible rapidity, was advancing his regiments as fast as reorganized to the farther hedge, the one nearest the fort, where they found cover in the ditch. The sun had cleared away the morning clouds, and now shone bright and clear. It was a beautiful and inspiring sight to see each regiment move forward across the wide

field in well-dressed line with colors flying, unheeding the shell and grape which hurtled past or overhead. Rockwell dashed his guns up to the same line nearly, and in the open field maintained a rapid and steady fire on the fort, only five hundred yards distant. Strahan plied his single gun, and the occasional heavy shells from the gunboats burst over the work with a deeper roar. Sharpshooters, as well as the advanced men who still clung close up to the fort, kept the parapet tolerably clear, but the fort was no whit silenced. The grape fell in frequent showers. Notwithstanding the severe losses the men were not discouraged, but were as determined and confident as before. Stimulated by the volleys and cheers of Williams's troops, they were ready, nay eager, to be led to the assault the second time. General Stevens sent word to Benham that his whole division was in the advanced position, reformed and ready, and that he would attack again as soon as Williams's movement produced its effect.

Just as he was about to give the order to advance, the firing on the left slackened and ceased, and Williams's troops were seen moving back. Benham, as hasty and ill judged in abandoning the field as he was precipitate and obstinate in ordering the assault, had ordered them to retreat. On the left were heard the rebel cheers. In front the fort redoubled its fire.

Soon afterwards General Benham ordered General Stevens to withdraw his column to camp. Wright and Williams had already fallen back. The former is particular to state in his report that "the withdrawal from the field of both columns was ordered by General Benham." General Stevens withdrew his forces without loss and unopposed. Even the advanced men were all brought off. Lieutenant H.G. Belcher, of the 8th Michigan, took them the order, and, working over singly to the left, they got under cover of the bushes on that side and thus withdrew. The enemy attempted no pursuit, and by ten A.M. the entire force was back in camp.

Thus ended the battle of James Island or Secessionville, the culmination of crass obstinacy and folly. Benham, who, deaf to the orders of his commander, deaf to the warnings of Wright, deaf to Stevens's earnest entreaties to be allowed to attack later in the day and after due preparation, had so rashly and obstinately forced the fight,—this very Benham shrank from the shock of battle, and ordered the retreat when victory was within his grasp.

The enemy's forces upon James Island were commanded by General N.G. Evans, and numbered certainly not less than 9000 effective. Colonel T.G. Lamar commanded the fort and was severely wounded. He had two companies, B and I, of his own regiment, the 1st South Carolina artillery, the 1st South Carolina or Charleston and 9th South Carolina or Pee Dee battalions, four officers and one hundred picked men of the 22d South Carolina, and three officers and presumably the crew of the floating battery, which had been withdrawn from the fire of the three-gun battery a few days before. All these commands must have numbered at least 800, although Colonel Lamar reports that his force did not exceed 500 until reinforced. He was soon reinforced by the 4th Louisiana battalion, numbering 250, and later by the balance of the 22d South Carolina, so that he must have had at least 1500 men before the action closed. The losses in these commands amounted to 172, of which the original garrison suffered 144, an unusually heavy loss behind strong works, viz.: Charleston battalion, 42; 1st South Carolina artillery, 55; Pee Dee battalion, 29; detachment 22d South Carolina, 18; total, 144. The loss of the 1st South Carolina artillery, 55, would indicate that more than two companies were in the fort.

Colonel Lamar reports that he was expecting an attack, having a detachment at each gun, and the alarm was given when the pickets were driven in; yet the assaulting column advanced so rapidly that it was within seven hundred yards when he reached the battery, and much nearer when in person he fired the 8-inch columbiad heavily charged with grape, which he says broke the leading regiment, cutting it completely in two.

The other Confederate troops engaged were the 1st, 24th, and 25th South Carolina, Boyce's field battery, and Company H, 1st South Carolina artillery, which manned the Reed battery. General Evans ordered up the 47th and 51st Georgia to support his right. His force, engaged and on the field, numbered 4500 effective, besides which were plenty of other troops available on the main works.

The Confederate loss all told was 204.

The Union loss aggregated 685, of which Stevens's column suffered 529; Williams's brigade, 152; Wright's division, four.

The 8th Michigan lost 185 out of 534, or thirty per cent.; 13 out of 22 officers who went into the fight, including every officer of the storming party, were killed or wounded. The Highlanders lost 110 out of 484, notwithstanding which they withdrew in good order, and brought off 60 of their wounded, some of their dead, and their two prisoners. These losses would have been much greater had it not been for the partial shelter afforded by the cotton-ridges, and the fire of the men behind them, which kept down that of the fort. But the loss of the garrison is unparalleled behind such works, and shows the desperate nature of the fighting.

The nearest parallel to this assault afforded by the war was that on Fort Saunders at Knoxville, where the Highlanders had their revenge. They manned the exposed salient of the fort when Longstreet tried to carry it by storm, November 29, 1863. This work was not so strong either in profile or position as Fort Lamar. It was subjected to a severe shelling and fire of sharpshooters, and then three veteran brigades, fifteen regiments, rushed upon both faces of the salient angle. The Highlanders and Benjamin's Battery E, of the 2d artillery, repulsed every attack. No enemy raised his head above the parapet and lived. And in the midst of the fight, amid the noise and fury of battle, as the Highlanders plied their muskets and rolled by hand 20-pounder shells with fuses cut short and lighted into the ditch, filled with the struggling mass of men, the Highlanders grimly passed the word along the line, "Remember James Island! Remember James Island!"

The Highlanders here lost four killed and five wounded. The entire loss in the fort was inconsiderable. The enemy lost 813 men, three flags, and 600 small-arms. This would seem almost incredible, were it not attested by the official reports, both Union and Confederate.

Why the assault failed, it is not far to seek. The principal cause was the strength of the work, manned as it was by a resolute garrison, and the destructive fire of its heavy guns. Although the alarm was given by the outposts nearly a mile from the work, the column reached it upon the heels of the fleeing picket, and was actually within five hundred yards before the first gun could be fired. But this gun, an 8-inch columbiad charged with grape, shattered the centre of the leading regiment, cutting it completely in two. Then the canister from the big howitzer and other guns doubly decimated them, yet the brave fellows gained the parapet. Had the next two

regiments, the 7th Connecticut and 28th Massachusetts, following close upon the Michiganders as ordered, joined them at this instant, the work would undoubtedly have been taken. But they were green troops, never having been under fire; the 28th, indeed, was fresh from home, and under the terrible storm of grape and canister they were beaten to the left, and entangled in the bushes and broken bank there. Although Lieutenant-Colonel Hawley lost no time in disentangling his regiment and moving it out into the field and again forward, it is significant, and well shows the difficulty of handling green troops under fire, that the Highlanders rushed past the right of the 7th Connecticut, and the Roundheads broke through or ran over its centre, and both assaulted the fort and were repulsed—nearly all who reached the parapet being killed, and the remainder forced to give back—by the time the Connecticut regiment had advanced to within a hundred yards of the work, where Hawley received the order to withdraw.

Certainly the rapid advance and onset of the Michiganders, Highlanders, and Roundheads were all that men could do. Their loss was so great and the parapet so difficult that not enough men could surmount it to be able to hold it; but the chief reason for the failure was the deadly fire from the woods and cover behind the fort. The work was fairly stormed, but the stormers, too few to hold it, were destroyed by the deadly fire from its rear.

These three regiments had already smelt powder, and had been well drilled and disciplined by General Stevens. The others, new and inexperienced, could not be expected to equal them, yet they evinced no lack of bravery.

General Stevens says in his report:—

“I must confess that the coolness and mobility of all the troops engaged on the 16th surprised me, and I cannot but believe, had proper use been made of the artillery, guns from the navy, and our own batteries, fixed and field; had the position been gradually approached and carefully examined, and the attack made much later in the day, when our batteries had had their full effect, all of which, you will recollect, was strongly urged by me upon General Benham the evening of the conference,—the result might have been very different.” [\[18\]](#)

General Stevens commends the gallantry of his troops in strong terms, and the brave and efficient service of his staff, already mentioned, of Lieutenant

Orrin M. Dearborn, of the 3d New Hampshire, aide in place of Lieutenant Cottrell, who, having been promoted captain, had command of his company, and of Lieutenant Jefferson Justice, of the Roundheads, acting division quartermaster, who served upon the field as his aide. Lieutenant Lyons, who so bravely led the stormers, died of his wound in hospital at Hilton Head soon afterwards.

For his wrong-headed and disobedient conduct Benham was placed under arrest by General Hunter and sent North. His appointment as brigadier-general was revoked by the President. Later, by unwearied importunity and the pressure of influence, he managed to get himself reinstated, but never again was he trusted with the lives of brave men.



CHAPTER LIV

RETURN TO VIRGINIA

A few days after their bloody repulse from Fort Lamar the Highlanders paraded in front of General Stevens's headquarters and presented him with a beautiful sword, together with a sash, belt, and spurs, in the following feeling address. The address was inscribed upon a large sheet of parchment by one of the skillful penmen in the regiment, in characters as clear and distinct as copperplate engraving, and in the middle of the sheet was an excellent photograph of the general in uniform. The sword was the gift of the non-commissioned officers and privates exclusively, for they had refused to permit the officers to contribute a cent towards or bear any part in the testimonial, although the latter were anxious to do their share. It was common talk among the men that the officers never amounted to anything until General Stevens took them in hand; that he had saved and redeemed the regiment after they had well-nigh ruined it; and that they should not have any part in the sword, which was the tribute of the rank and file. The presentation was a great surprise to General Stevens, and was the more gratifying as showing the undiminished regard of the regiment immediately after the recent severe battle and loss:—

BRIGADIER-GENERAL ISAAC I. STEVENS.

Sir,—A unanimous feeling of gratitude and respect pervading the non-commissioned officers and privates of the Seventy Ninth Regiment (Highland Guard) New York State Militia, and wishing to give that feeling a humble and appropriate expression, we have determined to-day to present for your acceptance this sword, feeling assured that by you it will be worthily worn, and never drawn but in defense of human rights and their political guaranties. Your recent connection with us as our colonel, our friend, and our counselor has fitted us in a peculiar manner to judge of and appreciate your virtues in each of these capacities. Coming amongst us at a critical period in our history as a regiment, when our fair fame was eclipsed, and demoralization was

fast hurrying us to the vortex of anarchy, you listened to the story of our wrongs, tempered your decisions against the erring ones with the high attribute of mercy, and bade us hope. We did hope, and ere long we found ourselves recuperated and in Camp Advance. There our confidence in you was perfected, and our esteem became affection. When it was announced that your distinguished military services had brought you higher and greener laurels, we were glad and proud; but sorrow, deep and profound, pervaded our ranks when it was made known that your services were demanded in another sphere, and that we must separate. The exclamation of "Tak' us wi' ye!" which greeted you upon that day's parade was heartfelt and sincere, and your intervention in our behalf has enabled us to preserve our connection, if not as close, not the less fondly. That your valuable and beneficent life may long be spared to the service and to mankind, and that the blessing of God may rest upon you and upon your family, is the sincere prayer of the non-commissioned officers and privates of the

SEVENTY-NINTH, HIGHLAND GUARD.

GENERAL STEVENS'S RESPONSE.

FELLOW-SOLDIERS OF THE HIGHLAND GUARD,—I have no words to express my gratitude for this unexpected and unmerited mark of your confidence and affection. We came together not only at a critical period of your own history as a regiment, but at a critical period of our beloved country's history, when its armies had been stricken down, and dismay and discouragement spread over the length and breadth of the land. It was the time for the true and the strong to come to the work, and by a firm stand in our country's cause again to cause hope and faith to spring up in the hearts of men. You recollect we moved from our camp of "Hope" on the beautiful heights in the rear of Washington to the camp of the "Advance" across the Potomac. Then I spoke to you words of encouragement, and together, in the glorious light of day, we won back our colors. We had soon become acquainted. As your colonel, I ever found you brave and true. The pathos of your address, its living expressions, touch me. When I was ordered South, and rode through your ranks to say farewell, and saw the tear glisten in every manly eye, and heard the words, "Tak' us wi' ye!" from every

lip, I thought we could not part; so, on reaching Annapolis, I said to our late able and respected commander, General Sherman, "Send for the Highlanders; they want to come, and you can depend upon them." Here you have come, and here you are to-day. Have you not always done well? Who ever finds the Highlanders behind? I know not which feeling of my heart is stronger in regard to you,—my pride or my affection. Your firm step, your manly countenances, cold steel for your enemies, and the open hand and heart for your friend,—such are you, beloved comrades. In the late sad, glorious fight where were you? Laggards, or seeking the front on the double-quick to succor your friends, the 8th Michigan, led on by your gallant lieutenant-colonel there, David Morrison? You gained that front and parapet, and some of your noblest and your best there found a soldier's grave. It was indeed a sad but glorious field. Not a laggard, not a fugitive,—all the regiment in line,—all by their colors and in order of battle, but many dead and wounded men. I am profoundly affected by the circumstance that you have seized such an occasion to show your regard for me. Yes, beloved comrades, we are ready to expose and, if need be, to lay down our lives for our country. We will keep steadfastly to the work till this sad, terrible war is ended, and peace smiles again upon the land. My friends, I shall endeavor to be deserving of your magnificent testimonial of respect and affection. I accept it, not as my right, but as your free gift. I accept it most gratefully. God willing, that sword shall ever be borne by me in defense of my country's rights, and in the cause of God and humanity. The spurs, too, from my friends of the drum corps,—the boys who scour the battlefield and bring off the dead and wounded men,—I will wear in memory of your mission, and perhaps some day they may urge the fleet steed to your relief and assistance. Friends, the thistle of your native land has stung our enemies, and been an omen of hope to our friends. It has been planted here, and glorious properties has it shown in this palmetto soil. In conclusion, permit me again to express my deep gratitude for these marks of your affection and esteem.

The sword was an exceedingly handsome one. The blade was richly inlaid with gold, representing a Highlander bearing the American flag, an ancient Scottish soldier, and many Scottish and patriotic devices and mottoes. The

hilt represented the Goddess of Liberty; the guard was formed of the thistle, the emblem of Scotland, and was studded with a large topaz surrounded by thirteen diamonds. The hilt and scabbard were heavily gilded, and the latter terminated in a tiger's head. There was also a plain steel scabbard bronzed, a general's yellow sash, and a red-and-gold belt. The spurs were also richly gilded, the shank and rowel representing the thistle, and were the gift of the drummer-boys.

JAMES ISLAND, June 26, 1862.

MY DEAREST WIFE,—General Wright called down at my quarters last evening and took a look at my sword. He thought it a very splendid thing, and advises me to send it home as soon as possible. I hope those beautiful testimonials will reach you speedily and safely. I want my friends to see them. The sword is the most beautiful I ever saw. I have already sent you my reply to the address. It is thought here to be very appropriate. It was wholly unstudied, as I had not the least idea of what the address would be. Hazard has worked very hard of late. Did I write you that his conduct on the battlefield was witnessed by the rebels with great admiration? So say the rebel officers whom my officers met under a recent flag of truce. These officers say a great many shots were fired directly at him. Every one in the division knows the officer they refer to, from the description of the officer and his horse, to be Hazard. The boy did most nobly, and every one speaks in the highest terms of his conduct on the field of battle. Was not his life wonderfully preserved? My own staff is considered a very excellent one. Cottrell was not killed, but was wounded, and a prisoner in the hands of the enemy. Lyons is getting on well with his wound. Lyman Arnold is dead. I particularly interested his brigade commander, Colonel Williams, and the surgeon, in his case, and I cannot doubt that every attention was paid to him.

Daniel Lyman Arnold, who has already been mentioned as a member of the Northern Pacific Railroad exploration, with his brother, General Richard Arnold, was a cousin of Mrs. Stevens. He was a private in the 3d Rhode Island, and was mortally wounded in the battle, where he had shown great bravery. General Stevens, with his son, visited the dying man soon after the battle, and did all in his power to make him comfortable.

June 30. I wrote you three days ago that General Hunter had given orders to evacuate this place. It is a large operation. The cavalry were got on board yesterday and last night, and started this morning for Hilton Head. We expect the transports back to-morrow, when General Williams's division will be embarked. My own division will be embarked last. Raymond Rodgers came here to-day from the squadron at Hilton Head. He talked considerably about the 16th. He assured me that my conduct and management on that day is universally commended. Indeed, I have good reason to believe that here in this department, both with the army and navy, it has very much increased my military reputation. No one but Benham calls in question my perfect fidelity to my orders, and that the course I actually pursued alone gave, under his orders, the least promise of success. I moved with exceeding rapidity, without stopping to fire, and pushed in everything without reserve. The statement of the enemy shows how near the work came to falling into our hands. I know I could have seized that work with but little loss of life, and on that very day, had the entire management been mine. My own course with him after the battle was stern and determined. I *compelled* him to modify his report so as to do my division full justice. I warned him that the entire responsibility of bringing on that fight was his, that I had opposed it, and that I should take no part of the responsibility. He wilted and quailed under my eye and speech. He made a second attempt to falsify the truth with me, and I made him quail again, and this was in the presence of witnesses. There has been a real comfort and satisfaction in serving under Wright, which I have not had for a long time. He has shown very sound judgment in all his arrangements since he has been in command. Williams, who commands the second division, is a very agreeable and sensible man, and is highly esteemed throughout the command.

On Benham's arrest General Wright succeeded to the command as next in rank, and field-works to protect the camps were commenced, and considerable work done upon them, when General Hunter wisely decided to withdraw from James Island. General Stevens brought off the last of the troops on July 4. He was first ordered to Beaufort with his division, except the 7th Connecticut and Rockwell's battery, which were detached and

landed at Hilton Head; but scarcely had they reached Beaufort when—including the 50th Pennsylvania, which rejoined the command—they were brought back to Hilton Head and debarked July 5, then reëmbarked July 9, and sent back to Beaufort; then, without leaving the transports, they were dropped four miles down the Beaufort River, and landed on Smith's plantation, where the whole division was to be encamped. In the absence of wharves, all the baggage had to be put ashore in small boats. By great exertions this was accomplished, and the tents were up before dark, when orders were received to reëmbark immediately and proceed to Hilton Head, there to take ocean steamers for Virginia. After a brief rest the harassed and wornout soldiers toiled the balance of the night, reëmbarking the camp equipage, baggage, and supplies. The troops were transferred to ocean steamers at Hilton Head on July 10 and 11, and on the 12th were borne away northward, rejoiced to leave a command marked by incompetence and disaster, and to rest after the useless toil to which they had been subjected.

The point on Beaufort River where General Stevens's division landed is of especial interest as the site of the first European settlement in the United States, made by Jean Ribaut and a party of French Huguenots in 1562, just three centuries before; and the walls of a small fort, constructed by him of coquina, a very hard and durable concrete of oyster-shells, were visible on the shore of and partly in the river, which had considerably undermined them.

STEAMER VANDERBILT, July 14, 1862.

MY DEAR WIFE,—We left Hilton Head at eight o'clock, yesterday morning. I was utterly worn out, and was very glad to go to bed. I slept twenty hours the first twenty-four I was on board, and to-day I have been very well rested.

It is supposed our destination will be McClellan's army. McClellan has unquestionably met with a very serious check. Indeed, it is nothing less than a disaster. His loss in men and material of war must have been immense. The plan of campaign of the Potomac (army) has been a monstrous folly, and disaster is its legitimate fruit. The army should never have been divided, and the route should not have been by Fortress Monroe. I doubt whether any adequate plan will be hit upon to make the most of the present condition of things. I am afraid the

Confederates will by a rapid countermarch fall upon Pope with overwhelming force. I think, so far as I can gather the facts, that Pope should be largely reinforced, and that he should wage the campaign. It has also occurred to me that the wisest plan would be to withdraw McClellan from his present position, send him to the Potomac, unite him with Pope, and commence anew. But it is useless to speculate. We shall reach Fortress Monroe to-morrow, where we will receive additional orders.



CAMP OF GENERAL STEVENS'S DIVISION AT NEWPORT NEWS

The transfer to Virginia was the very movement that General Stevens recommended to the President in a letter dated July 8, in which he wrote:—

“In the district formerly commanded by Sherman are some twenty-three regiments. Eleven of these regiments are ample for the purpose I have mentioned. This will leave a full division of twelve regiments to reinforce our columns at points where the enemy is fighting with the energy of despair, and where its timely aid may bring to our arms the crowning victory of the war.

“I earnestly desire this war to be prosecuted to a signal and speedy success. This department can well afford to wait. It is not the proper base for operations. We are, moreover, much too small for an advance, and much too large for simply holding the points we now occupy. Let us simply hold these points. The crisis of the war is in Virginia. There

throw your troops. There signally defeat and destroy the enemy. You strike Charleston and Savannah by striking Richmond.

“Send us, therefore, and send twelve of our regiments to Virginia. Let us have the satisfaction of sharing there the dangers, the privations, and the sacrifices of our companions in arms. Let us feel that we are doing good service for our country, that we are really helping in the gravest contest of the war.”

After a smooth and pleasant voyage the command reached Fortress Monroe on the 16th, debarked at Newport News, and went into camp on the level plain overlooking the broad expanse of water where James River enters Hampton Roads. General Burnside had just arrived here with eight thousand troops from North Carolina, and the ninth corps was organized from the two commands, General Stevens's division forming the first and the North Carolina troops the second and third divisions under Generals Jesse L. Reno and John G. Parke respectively, General Burnside commanding the corps.

General Cullum, Halleck's chief of staff, was at Fortress Monroe when General Stevens arrived there, and had a long and confidential talk with his former brother officer and old friend in regard to the military situation. It is noteworthy that the very movements he mentioned as best in his letter to his wife were precisely the ones adopted immediately afterwards, viz., the withdrawal of McClellan and reinforcement of Pope. Halleck, whose voice was then controlling in military councils in Washington, was undoubtedly led to adopt, or strengthened in his own ideas by, the views of his former classmate and rival, whose ability and sound military judgment he fully appreciated.

NEWPORT NEWS, August 2, 1862.

MY DEAR WIFE,—I send by this mail sketches with brief letters to each of the girls. We go on board ship to-morrow. I am now satisfied there will be marked improvement in the general management of army matters. Probably the moves now being made will take the country somewhat by surprise, but they are wise and absolutely necessary. Before this reaches you our destination will be known, but I am not at liberty to speak of it. Reno sets off about sundown this evening, Parke will be off to-morrow, and myself the next day.



HEADQUARTERS, NEWPORT NEWS

CHAPTER LV

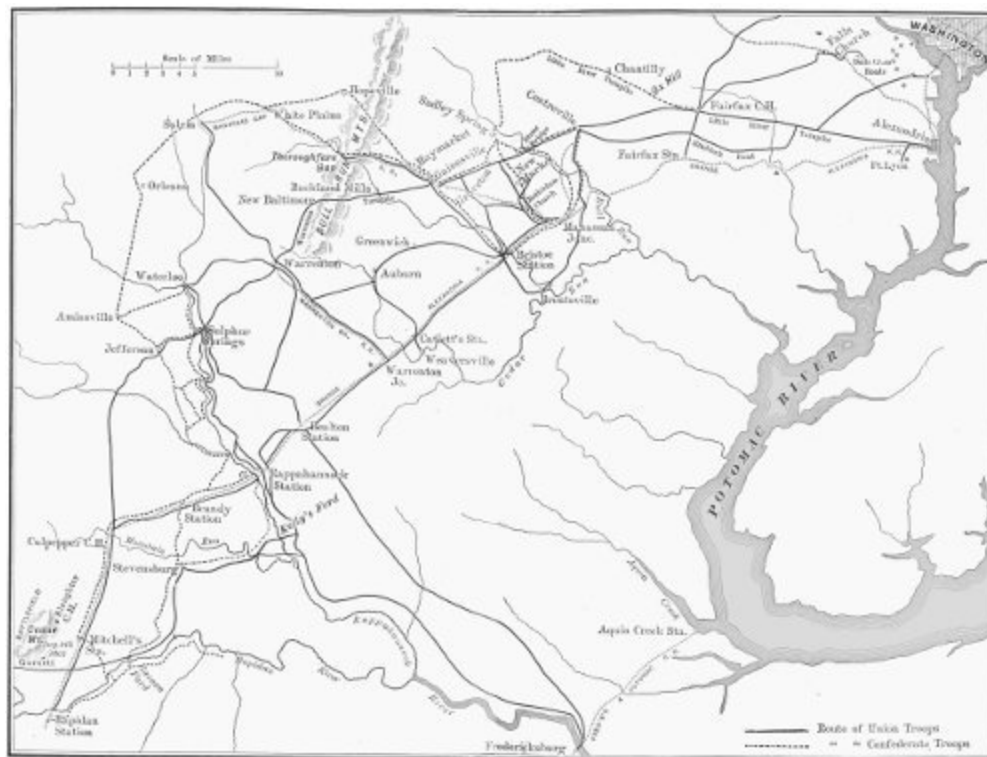
POPE's CAMPAIGN

The military authorities having decided to throw Burnside's troops up the Rappahannock to reinforce Pope, General Stevens sailed from Newport News on August 4, debarked at Acquia Creek on the 6th, and reached Fredericksburg the same day. Here two light batteries were added to the division, E, of the 2d United States artillery, under Lieutenant S.N. Benjamin, with four 20-pounder rifled Parrotts and the 8th Massachusetts battery, a new organization recently from home, enlisted for six months only. The division was divided into three brigades, the 8th Michigan and 50th Pennsylvania, under Colonel B. C. Christ, constituting the first brigade; the Roundheads and 46th New York, under Colonel Leasure, the second; and the Highlanders and 28th Massachusetts, under Colonel Addison Farnsworth, the third. Colonel Farnsworth was appointed colonel of the Highlanders by the governor of New York, and joined his regiment at Beaufort, but was absent on leave during the James Island campaign, at the close of which he returned to it. Lieutenant H.G. Heffron was appointed aide in place of Lieutenant Lyons.

Starting from Fredericksburg on the 13th, Generals Stevens's and Reno's divisions, eight thousand strong, the latter as ranking officer in command, stripped of all baggage except shelter tents, marched up the north bank of the Rappahannock, passing Bealton Station on the Alexandria and Orange Court House Railroad, crossed the river at Rappahannock Station, and joined Pope at Culpeper Court House on the 15th. General Stevens bivouacked three miles in front of that point, and on the following day was thrown forward to guard Raccoon Ford, on the Rapidan River, which he held with a strong detachment, placing his division a mile and a half back in support.

Pope's bombastic orders, and his invitation to forage on the enemy, greatly increased straggling and relaxed discipline among his troops. General Stevens ordered roll-calls at every halt, and at the end of every day's march;

reports of stragglers made daily, and prompt and severe punishment inflicted upon such delinquents and upon plunderers, and sternly stopped the evil in its inception. The 46th New York, a German regiment, where even the commands at drill were given in German, loaded some of its supply-wagons with lager beer on leaving Fredericksburg, leaving behind a good part of their rations, having some vague notion of living off the country. General Stevens at once had all the lager thrown into the road, and the wagons sent back for the abandoned rations. The indignation of Colonel Rosa and his officers rose to such a pitch over this summary loss of their beloved beverage that they tendered their resignations in a body, with a grandiloquent letter from the colonel. But General Stevens emphatically assured them that they must remain and do their duty as soldiers during the campaign, and took no further notice of their insubordinate and unsoldierly action.



VIRGINIA—POTOMAC TO RAPIDAN RIVER

[Larger image](#)

On the 9th, only a week before the arrival of the two divisions of the ninth corps, the severe fight of Cedar Mountain occurred between Banks's corps

and Jackson. The latter, although victor on the field by force of numbers, was so badly crippled that he withdrew behind the Rapidan the second day after the battle. Pope, on receiving these reinforcements, advanced to the line of that river, and General Stevens held his extreme left, a cavalry picket only watching Germanna Ford, the next below Raccoon. The army, officially known as the Army of Virginia, consisted of the corps of McDowell, Banks, and Sigel, and numbered forty thousand effective. The ninth corps troops added eight thousand more, and heavy reinforcements from the Army of the Potomac were on their way, so that, if Pope could only hold his ground a few days, both armies would be united in his advanced Position.

But Lee, safely leaving McClellan, with his great army, on the Peninsula to his inaction, swiftly gathered his army opposite Pope, and, crossing the river, advanced one wing under Jackson to strike him on the left and rear, and the other, under Longstreet, to attack him in front. Pope gained timely notice of this move by a lucky cavalry reconnoissance, and withdrew to the Rappahannock just in time to escape it. During the 17th, 18th, and 19th General Stevens kept his officers busily engaged in what he termed "looking up the country," that is, in tracing out all the roads and by-roads, and studying the topography, defensive positions, and approaches. He always attached great importance to a thorough knowledge of the ground, and seized every opportunity to gain it. Ordered, on the afternoon of the 19th, to move back his train immediately, and his troops at two in the morning, by way of Stevensburg and Barnett's Ford on the Rappahannock, General Stevens started off the train at once, and at nine in the evening drew out his division three miles on the designated road, which runs parallel to the river for a considerable distance, and halted. By this movement he placed his whole force in position to defend the ford till the last moment, and all danger of being cut off by the sudden advance of the enemy was obviated. The column resumed the march in retreat at two A.M., reached Stevensburg at daylight, where it was detained an hour by General Reno's train, that officer with his division having already fallen back, and after a march of twenty-six miles crossed the Rappahannock at Barnett's Ford, and went into bivouac at four P.M. That day the whole of Pope's army fell back and took up the line of the Rappahannock, the ninth corps on the left.

At dusk on the evening of the 21st, leaving four companies of infantry and four light guns of the 8th Massachusetts battery at the ford, and two companies at another ford a few miles higher up, General Stevens marched eight miles up the river to Kelly's Ford, arriving at midnight, and a day after General Reno.

The next day he recrossed the river with two brigades in support of a cavalry reconnoissance by General Buford. Deploying the third brigade,—the Highlanders and 28th Massachusetts,—he drove back a considerable force of the enemy for more than a mile in a sharp action, and, after accomplishing all that was expected or desired, withdrew to the left bank.

On the 2d both divisions continued moving up the river ten miles to Rappahannock Station, two regiments from each being left to guard Kelly's Ford. Here were found the troops of McDowell and Banks. Sigel was farther up the river, and his artillery was heard thundering in the distance all day. Banks moved after him late in the afternoon. Both armies were now moving up the Rappahannock, but on opposite sides. Lee, foiled in his bold onslaught by the timely retreat of his antagonist, and finding him strongly posted behind the river, was now pushing his columns up the right bank, seeking to cross it or to outflank and turn Pope's right, and Pope was carefully following his movement to head him off.

On the 23d General Stevens continued the march up the river, followed by Reno's division. Banks's troops and Sigel's train were soon overtaken, blocking up the road; the march was continually interrupted and delayed by them, and after struggling forward over the muddy and slippery roads, pelted by a heavy, drenching rainstorm, until after midnight, having marched only four miles in eighteen hours, the tired and bedraggled troops were allowed to rest, or rather halt, by the roadside until morning. During the day the troops left at the lower fords rejoined the division, having been relieved by General Reynolds's division, the first to arrive from the Army of the Potomac. On overtaking Banks's corps, General Stevens had a talk with that officer, who was quite lame from a recent fall, and looked thin and careworn. His troops had been sadly cut up at Cedar Mountain, and his regiments, with their scanty numbers, seemed reduced almost to the size of companies. All day Sigel's guns were thundering up the river as though a pitched battle were raging, but, as afterwards appeared, he was wasting

ammunition on skirmishers and single horsemen beyond the stream, while his enormous and ill-regulated wagon-train was keeping back the rest of the army.

The march was resumed on the 24th, and Sulphur Springs reached late in the afternoon. General Stevens, riding at the head of his column, was here met by General Sigel, who requested him to take one of his (General Stevens's) brigades and a battery, and destroy the bridge across the river at this point, which the enemy's sharpshooters were making very hot. Astonished at such a request, a virtual acknowledgment of his own and his troops' inefficiency, General Stevens nevertheless promptly set to work to comply with it, when the bridge was found to be in flames, having been fired by some of Sigel's men.

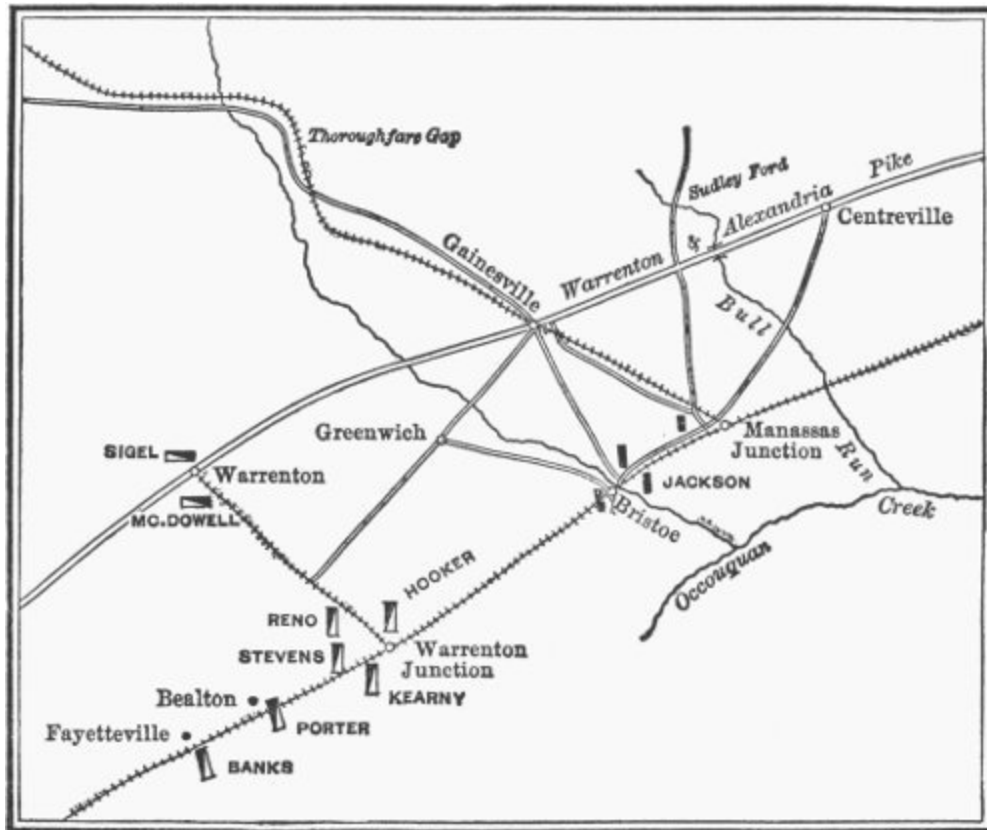
On this day's march, as the division was halting for a noon rest, and the soldiers were reclining on the ground in groups, or making their cups of coffee over little fires of fence rails, a party of rebel cavalry with a section of artillery appeared on a cross-road a mile distant and near the river, and a lively shower of shells suddenly fell over and among the resting troops. At this Lieutenant Benjamin very coolly and deliberately unlimbered and sighted one of his 20-pounders; the shell flew straight to the mark, fairly striking the annoying piece, and the enemy beat a hasty retreat at this single shot.

The following morning, the 25th, General Stevens continued marching up the river, and, on reaching Waterloo Bridge, was ordered to countermarch and proceed to Warrenton. Arrived here, passing McDowell's corps bivouacked along the road, the division rested some hours, then marched for Warrenton Junction, and halted at midnight at a place known as Eastern View, several miles from the Junction, to which it moved the next day, the 26th.

Meantime the reinforcements were arriving from the Army of the Potomac. Reynolds's division, 6000 strong, coming by way of Acquia Creek and the Rappahannock, joined on the 23d and was attached to McDowell's corps. By the same route two divisions of the fifth corps, under General Fitz John Porter, reached Bealton on the 26th and the Junction the next day. They numbered 9000 effective, and were commanded by Generals George W.

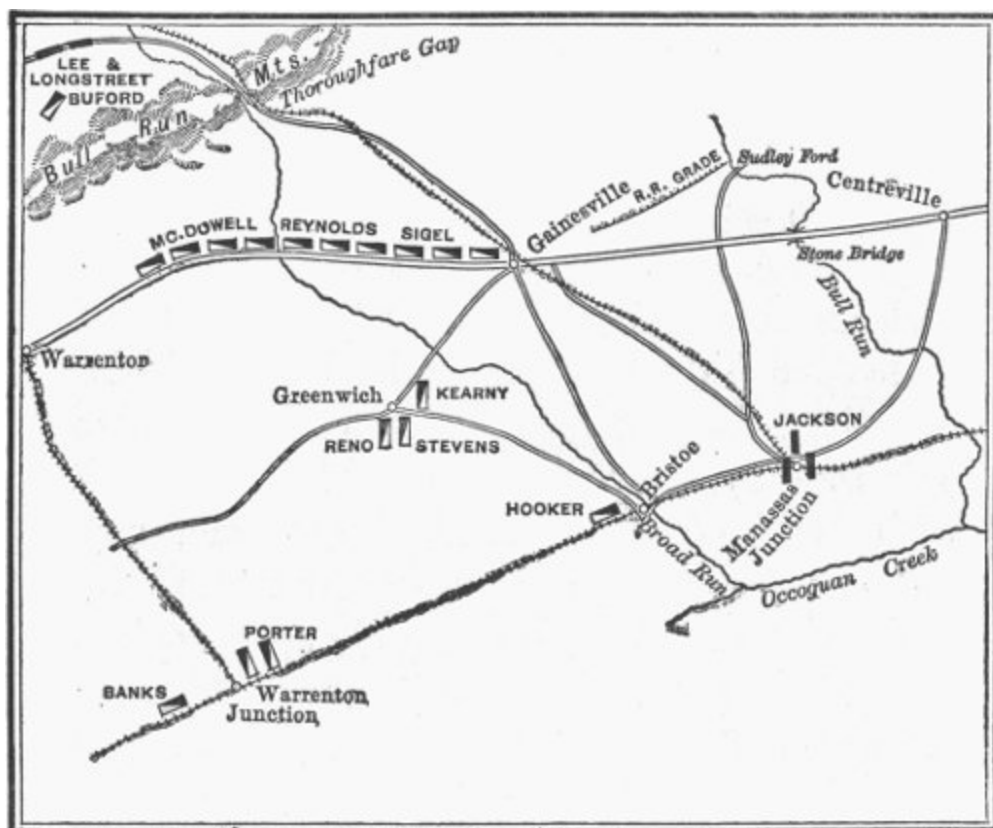
Morell and George Sykes respectively. On the 25th Generals Kearny's and Hooker's divisions of the third corps, under General Samuel P. Heintzelman, numbering 10,000 effective, were brought out on the railroad from Alexandria to the same place, Warrenton Junction. With these reinforcements, deducting losses and straggling, Pope's strength was raised to 60,000. Lee's army numbered,—Longstreet, 30,000; Jackson, 22,000; Stuart's cavalry, 3000; total, 55,000.[19]

On the 22d Lee attempted a crossing near Sulphur Springs, and threw a heavy force of Jackson's troops across the river; but the storm, and the sudden rise of the stream making the fords impassable, induced him to withdraw. Thus baffled in his design of crossing at Sulphur Springs, and finding that point and Waterloo Bridge, four miles above, held in force by the Union troops, and well knowing that Pope's strength was increasing daily by reinforcements from the Army of the Potomac, Lee now determined to push Jackson completely around the right of the Union army, turning it by a circuitous but rapid march, and throw him on the railroad in its rear, its sole line of supply, and to follow up the movement with the other wing under Longstreet. Accordingly, on the 24th Jackson moved back from the river to Jefferson, his troops being relieved by Longstreet's; on the 25th marched by Amissville and Orleans to Salem; and on the 26th continued his march through Thoroughfare Gap and Gainesville to Bristoe Station, on the ill-fated line of communications, which he struck at dark, capturing some prisoners and two trains loaded with supplies. Bristoe is only eight miles north of Warrenton Junction, about which so many Union troops were grouped; and Jackson, by his bold move, had thrown himself fairly upon the back of Pope's army. Without delay he dispatched a small force that night to Manassas Junction, five miles down the railroad, and eight guns, three hundred prisoners, and an immense quantity of stores fell into his hands. Next morning, leaving Ewell to hold back the Union forces, he moved the other divisions to Manassas, where they spent the day outfitting themselves from the captured stores.



Positions, nine P.M., August 26, 1862.

When this blow fell, Pope had his troops well in hand: McDowell and Sigel's corps grouped about Warrenton; the four divisions of Stevens, Reno, Kearny and Hooker near Warrenton Junction; while Porter at Bealton and Banks at Fayetteville were within an easy march of the Junction. Pope, having made up his mind that the enemy would fall upon his right, was loath to believe that he had gotten into his rear in heavy force, but he embarked a regiment on a train of cars and sent it down the road towards Bristoe that night to find out. This reconnoissance reported the enemy in force; but even yet Pope was not convinced, still clinging to his opinion that his right, the line from Warrenton to Gainesville, was most exposed to Lee's attack. Therefore, instead of throwing upon Bristoe, at daylight the next morning, the overwhelming force he had at hand near the Junction, he sent only Hooker's division down the railroad to brush away the supposed raiding party, moved the other three (Stevens, Reno, and Kearny) to Greenwich, and ordered McDowell and Sigel to Gainesville; the former to take command of both corps, for he was not satisfied with Sigel's dilatoriness in marching and obeying orders.



Positions of Troops, Sunset, August 27, 1862.

Hooker encountered Ewell in front of Bristoe, and, in a sharp action in the afternoon, pushed him across Broad Run, from which, after destroying the bridge, he retreated unmolested to Manassas. As the result of Hooker's fight, Pope now knew that Jackson with his whole corps was at Bristoe that very morning, and had just marched—his rear division was even then marching—down the railroad to Manassas. He supposed that Longstreet was far to the westward, beyond supporting distance to Jackson. Confident that the great flanker was at last within his power, he issued vigorous orders for the morrow's movements, designed to throw his whole army upon him at Manassas and crush him. To this end he ordered Hooker to push down the railroad towards Manassas; Porter to hasten from Warrenton Junction to support Hooker, starting at one in the morning; Kearny to Bristoe; and Stevens and Reno directly on Manassas,—the three to move at daylight; McDowell to advance his whole force from Gainesville also on Manassas, with Sigel resting his right on the Manassas Gap Railroad, and McDowell's divisions following in echelon extended on his left, so that this great force would sweep a wide scope of country,—practically the whole region

between the Manassas Gap Railroad and the Warrenton pike,—and would intercept Jackson's retreat by that thoroughfare. This plan was well plotted to overwhelm the wolf at Manassas, if the wolf would only wait there until the toils closed around him. A day, or even half a day, would suffice. But Jackson was not the man to wait anywhere long enough to give his adversary the initiative. That night and early the next morning he moved to the field of Bull Run, and took up a position admirable for defense, and from which with equal facility he could attack any force moving along the pike, or fall back westward by good roads to meet Longstreet, now rapidly approaching.

It is a high, undulating country west of Bull Run upon which on June 21, 1861, and August 28, 29, and 30, 1862, were fought the battles of Bull Run, Gainesville, and second Bull Run, or, as known to the Confederates, Bull Run, Groveton, and Manassas. Long, broad ridges stretch across the country, sloping down in successive rolls of ground to wide hollows. Open fields cover two thirds of the surface of hill and dale, alternating with tracts of woods, which clothe the remaining third. These are of oak and other deciduous trees, and are tolerably open and free from underbrush.

The Alexandria and Warrenton pike, running nearly west (west 15° south), bisects the field, and was the most important line of communication upon it. Crossing Bull Run by a stone bridge, the pike follows up the valley of a tributary, Young's Branch, gently and gradually ascending for two miles, and then passes over several ridges and high ground on to Gainesville, five miles farther. Young's Branch has worn a deep and narrow valley through the first ridge, a mile from the stone bridge, and to the traveler passing up the pike the abutting ends of the ridge present the appearance of quite steep and high hills. The first hill on the left, separated from the next by a hollow down which a dirt road descends, is the Henry Hill, the scene of the fiercest fighting of the first battle, where Bee and Bartow, the Southern generals, fell, and where Ricketts and his gallant battery were all but destroyed and were captured. The next hill is the Chinn House, termed in some of the reports the Bald Hill. Opposite these, and on the right or north side of the road, are Buck Hill and Rosefield or Dogan House. The tops of these hills are not peaked but flat, being simply the general level of the plateau or ridge.

Another road scarcely less important crosses the field at right angles to the pike, nearly on the line of this first ridge, passing between the Henry and Chinn Hills, and Buck Hill and Rosefield. This is the Manassas and Sudley road. From Manassas Junction, six miles to the south on the Alexandria and Orange Court House Railroad, it runs in a northerly direction to and over the plateau on the south part of the field, descends by the lateral hollow to Young's Branch, where it crosses the pike, and, climbing up the end of the ridge on the north, continues in the same general direction over two miles to Sudley Ford across Bull Run.

Another road from the south crosses the pike at a point two and a half miles beyond the stone bridge, known as Groveton, and marked by two houses and some outbuildings. This road, running north, descends down a hollow from the plateau on the south, crosses the pike at Groveton, passes across low or flat ground for half a mile, enters a tract of woods, and extends through them to Sudley Ford.

One of the most important features of the second battle was a section of railroad grade about two miles in length, which extended from the Run near Sudley Church nearly parallel to the Groveton road for a mile and a half, traversing thickly wooded but level ground with shallow cuts and low embankments; then, curving westward away from the road and emerging from the woods into the open, it crossed a hollow on an embankment, which at one place was ten feet high, and bore away on its course to Gainesville.

Standing at Rosefield, the eye of the observer sweeps westward or frontward over a broad expanse of open country, descending to the lower ground crossed by the Groveton road, and beyond it, over the rising slopes and summit of a bare, high ridge two miles and a half distant, a ridge much higher than the one on which he stands, and the dominating feature of the landscape. To the right, or northward, open fields extend nearly a mile, but to the right front is seen the extensive tract of woods in which is concealed the railroad grade, and which covers the broad flat between the two ridges. To the left or southward, across the narrow valley of Young's Branch, appear the steep Henry and Bald hills, really the verge of the plateau. They are bare of trees. But farther to the west, the left front, a tract of woods, from two to three hundred yards back from the pike, clothes the plateau. On

the south side the ground slopes up sharply from the Branch and extends southward in a broad, high plateau, while on the north side of the pike the ground is much lower, extending, as already described, to the Groveton road.

Bull Run bounds the field on the east and northeast, and can be readily crossed by several fords as well as by the stone bridge. Among them are Sudley Ford, over three miles above the bridge; Lock's or Red House Ford, half way between these points; Blackburn's Ford, four miles below; one a short distance above, and another alongside the bridge.

It was Thursday, August 28, 1862, that the first rays of the rising sun, falling athwart the cloudless skies and warm but balmy air of a Southern summer morning, revealed an animated scene,—thronged of gray-coated, slouch-hatted men, yet with many a blue-coated one intermingled, clustering thickly along the Sudley road near the pike, some of them resting outspread upon the grass, others boiling tin cups of coffee and roasting ears of field-corn over tiny fires of fence rails; long lines of stacked muskets with bayonets glittering in the sun; guns and wagons blocking the roads, while their teams of horses and mules were drinking from the little rivulet, or munching their feed from the wagon-boxes. Travel-stained, gaunt, and unkempt were these men, but their alert bearing, and ready joke and laugh, told of unbroken strength and confidence. They were Jackson's old division, now commanded by General William B. Taliaferro. Among them was the brigade that a twelvemonth before won on yonder hill the proud sobriquet of "Stonewall." In high glee and spirits, they recounted and gloated over the incidents of the previous day, how, marching swiftly clear around the flank of the Union army, they struck the railroad in rear and almost in midst of its extended columns, capturing guns, men, and immense stores of military supplies at Manassas Junction; how, after loading themselves with all they could carry and burning the rest, they left the Junction at midnight, and after a short march were now regaling themselves with captured Yankee rations upon the scene of the first Yankee defeat.

Soon the command, "Fall in," is passed along, and, resuming the arms and packs, the dusty column continues its march. One brigade, under Colonel Bradley T. Johnson, moves up the pike to Groveton, where it takes post with pickets well out towards Gainesville and the road leading southward;

while the remainder of the division streams along the Sudley road nearly to Sudley Church, where, turning to the left and crossing the railroad grade, it again comes to a halt in the woods beyond it. Scarcely had these troops cleared the road when another motley column came crossing Bull Run by the pike and swinging up it at a rapid gait, and they, too, followed the others down the Sudley road and into the woods across the railroad. These were General Richard S. Ewell's division of Jackson's corps, which left the Junction at daylight, crossed Bull Run by Blackburn's Ford, marched up the left or east bank across the fields, and recrossed by the stone bridge. And still another column, General A.P. Hill's light division of the same corps, came marching up from Centreville an hour later, following Ewell up the pike and along the Sudley road, and also disappeared in the woods beyond the railroad. Thus, soon after noon, Jackson had his whole corps of 20,000 effective men united, and hidden in the woods behind the railroad with his train parked at Sudley, one brigade advanced to Groveton watching the roads west and south, and General J. E.B. Stuart with his cavalry guarding Bull Run bridge and fords and the Sudley road half way to Manassas.

Now, leaving Jackson's "foot-cavalry," as his men delighted to call themselves, resting under the oaks, the narration of the movements of the Union army is continued, in order clearly to understand the bloody and fruitless battles then impending.

Pope's right wing, as it may be termed, moved on the 28th as ordered; reached Manassas about noon, only to find the smoking ruins of Jackson's destructive visit; continued towards Centreville, and bivouacked for the night,—Kearny at that point, Stevens, Reno, and Hooker near Blackburn's Ford. Porter came up to Bristoe. Truly a sluggish advance, but Pope was placing his chief reliance upon his left wing, under McDowell, which he expected to sweep up from Gainesville and head off Jackson on the west and north, while he assailed him on the south with his right.

The complete and ignominious fiasco which McDowell and Sigel contrived to make of this movement is one of the strangest and most discreditable episodes of this unhappy campaign. The previous day (27th) Sigel had not moved his whole corps to Gainesville as ordered, but only the head of his column, the main body of which was stretched back along the pike towards Warrenton. The divisions of Reynolds, King, and Ricketts, of McDowell's

corps, in the order named, extended the column in rear of Sigel still farther. Moreover, the road was incumbered by Sigel's train of two hundred wagons, which he kept with the troops, although ordered to send them to Catlett's Station, on the Alexandria and Orange Court House Railroad, where all the trains were to assemble under guard of Banks. Although ordered to move at daylight on Manassas, resting his right on the Manassas Gap Railroad, and to be supported by McDowell's corps in echelon on his left, Sigel made a late start, and at 7.30 was halting at Gainesville, his troops building fires to cook breakfast and blocking up the road, and finally, claiming that his orders were to rest his right flank on the Alexandria and Orange Court House Railroad, sheered off to the right after passing Gainesville, keeping on the right of the Manassas Gap Railroad, upon the left of which his orders explicitly directed him to advance, and in the afternoon reached the vicinity of the Junction. From this point, after a start for Centreville and countermarch, he moved down the Sudley road to the pike, which the head of his column reached at dark. But he still held on to his train.

Reynolds, although greatly impeded by Sigel's troops and wagons, forced his way past them, passed Gainesville, and moved down the pike towards Groveton, in order to gain his required position upon Sigel's left. Approaching Groveton about ten A.M., he flushed Jackson's advanced brigade,—Bradley Johnson's,—and deployed and pushed forward his leading brigade, under General George G. Meade. But Johnson drew back into the woods on the west, concealing his troops; and Reynolds supposed that the enemy was a mere scouting party, and sheered off in turn from the pike to the right in order to follow Sigel as ordered. After a laborious march across country on the left of the Manassas Gap Railroad, he came out in sight of Manassas, and thence, moving by the Sudley Road, he reached the vicinity of the pike and bivouacked near the Chinn House, still on the left of Sigel. Thus these commands spent the whole day in laboriously marching clear around the circle from a point just west of Groveton to a point on the same pike a mile east of it, marching fifteen miles to gain two!

General Buford, with his cavalry, by a bold reconnoissance developed Longstreet's column at Salem on the 27th. McDowell, therefore, wisely modified the order to move his whole force on Manassas by directing his rear division under Ricketts, starting at one A.M., to move across from New

Baltimore to Haymarket, thence to Thoroughfare Gap, and hold Longstreet in check. Ricketts was greatly delayed by the wagons and troops blocking the road ahead of him, but reached the vicinity of the Gap at three P.M. to find the enemy already in possession of it. But deploying in position, and opening with artillery, he maintained a resolute stand, holding him in check until dark, when he retreated to Gainesville.

King, next to Reynolds in the column, was so long delayed that he was five hours later in reaching the point near Groveton, where the former caught a glimpse of Bradley Johnson's brigade. He was ordered to march down the pike to Centreville. The leading brigade under Hatch had passed this point, and the next brigade under Gibbon had just reached it, when his column was subjected to artillery fire from batteries which suddenly appeared north of the road. Deploying and advancing to drive them off, Gibbon came face to face with extended lines of infantry advancing upon him in battle order, and one of the most stubborn fights of the war took place.

It was Jackson who, after lurking in his wooded lair all the afternoon, watching the heavy masses of Union troops passing down the pike, and successively sheering off near Groveton and marching away in the direction of Manassas, now pushed forward the divisions of Ewell and Taliaferro and attacked King's column. The field was a high, level, open plain, without any cover except a small patch of woods and an orchard and some farm buildings. Reports Taliaferro:—

“Here one of the most terrific conflicts that can be conceived of occurred. Our troops held the farmhouse and one edge of the orchard, while the enemy held the orchard and inclosure next the turnpike. For two hours and a half, without an instant's cessation of the most deadly discharges of musketry, roundshot, and shell, both lines stood unmoved, neither advancing and neither broken or yielding, until at last, about nine o'clock at night, the enemy slowly and sullenly fell back, and yielded the field to our victorious troops.”

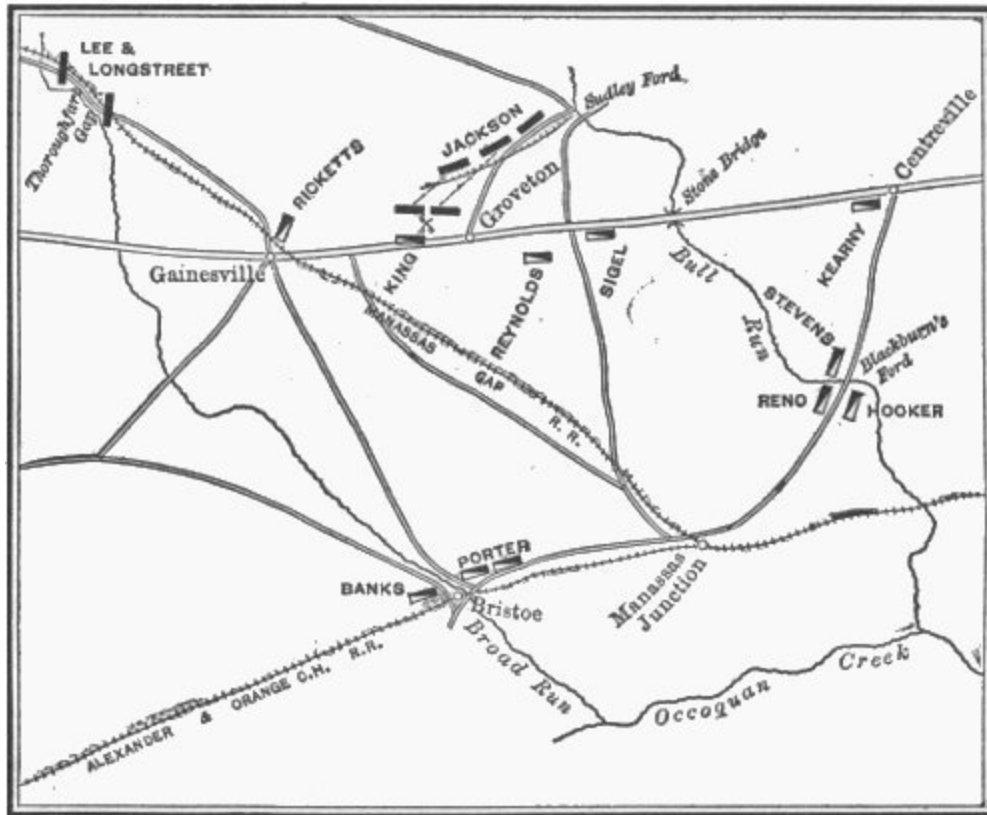
This fierce conflict was sustained by Gibbon's brigade of four regiments, two regiments of Doubleday's brigade, and Campbell's battery, alone and without help from the remainder of King's division. General Gibbon, after an hour and a half of this terrible struggle, finding himself far outnumbered

and outflanked on the left, ordered his line to fall back, which was done in good order. His pickets occupied the ground and collected the wounded. The enemy seems to have also drawn back to care for the wounded and reorganize, for Jackson's report contains this significant statement: "The next morning (29th) I found he had abandoned the ground occupied as the battlefield the evening before."

It is incontestable that Gibbon's small force—six regiments and one battery—thus gloriously sustained the attack of five brigades of infantry and three batteries of artillery under Jackson's own direction. The loss was about eight hundred on each side. Ewell and Taliaferro were both severely wounded, the former losing a leg. During the battle General Reynolds rode to the field from his bivouac, and aided Gibbon in calling for support.

General Ricketts reached Gainesville with his division just as the fight was over, having retreated from holding Longstreet in check. Thus at nine o'clock that night, Thursday, August 28, Ricketts and King held the pike from Gainesville to Groveton. Reynolds was in touch with King, being a short distance east of Groveton, Sigel next to him; while Pope's right wing was in the positions already stated, the ninth and Heintzelman's corps between Blackburn's Ford and Centreville, Porter east of, Banks at Bristoe.

Thus Pope's army was well positioned for a determined attack upon Jackson the first thing the next morning by McDowell and Sigel, with the right coming up early to support. Such an attack should have beaten Jackson, if he accepted battle, but he could readily decline an unequal struggle by drawing back to Haymarket and uniting with Longstreet's columns. And it is clear that Pope's only chance of "bagging" or beating Jackson was lost on the 28th by the dilatory, disconnected, and purposeless marches of McDowell's wing.



Conclusion of Gibbon's Fight.

Positions, nine P.M., August 28, 1862; excepting Jackson's, which is that occupied by him during the 28th, 29th, and 30th.

But whatever advantage might have been gained from Gibbon's stanch fight was speedily thrown away by King's decision to abandon the ground, and that, too, after assuring General Ricketts, as that officer states, that he would hold on. At midnight he retreated to Manassas, and General Ricketts retreated to Bristoe. Both marched away from the enemy, and by daylight their troops, exhausted and discouraged by being marched day and night and made to shun the enemy, were strung out along the dusty roads ten miles from where they were needed, while Lee's right wing was swiftly marching to join Jackson, which nothing could now prevent. Something may be said in palliation of this retreat. The enemy held the ground in front of King, and might be expected to renew the battle in the morning. The advance of Longstreet was through the Gap and in contact with Ricketts, and only five miles distant, the afternoon before. It was to be expected that the Confederate leader would lose no time in pushing on to join Jackson, and he might move up during the night, and fall upon the two Union divisions with his whole force—thirty thousand men—at daylight. "No

superior general officer was in the vicinity with the requisite knowledge and authority to order up troops," etc., says Gibbon.

But why they did not retreat down the pike, where were Reynolds and Sigel close at hand, and by which King was ordered to move, is indeed incomprehensible.

The chief responsibility for the series of blunders which rendered abortive the movements of the left wing clearly rests upon McDowell, its commander. His was the nerveless command that failed to make Sigel march when and whither ordered; his the sluggish movements that left his troops strung along the pike nearly to Warrenton, instead of concentrating them about Gainesville on the 27th; his the mistaken judgment that kept him from hastening in person that night to Gainesville, the key-point to his whole movement, and, worse yet, that led him to gallop off to consult with Pope the next day instead of remaining with his command, keeping his divisions in hand, and pushing them vigorously eastward along the railroad and the pike until he developed Jackson's position. But McDowell was constantly conferred with and depended upon by Pope, and had too much upon his mind the task of manœuvring the whole army.

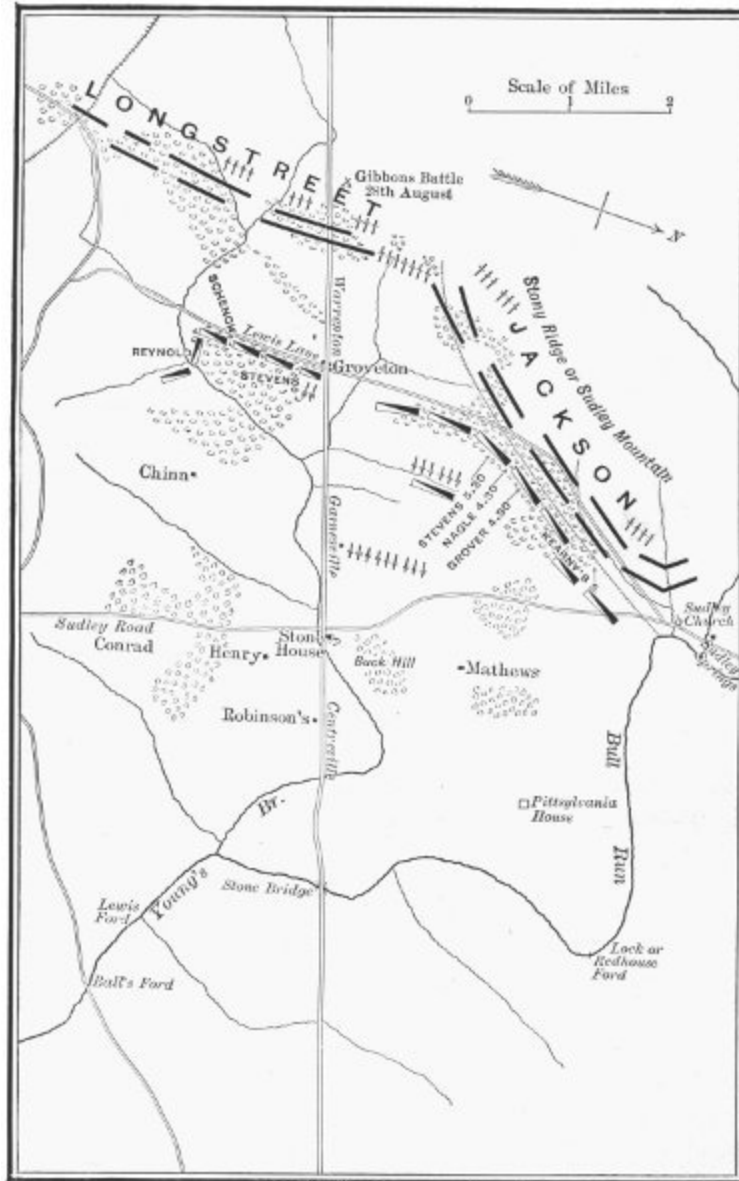
During the day (28th) Pope was in a state of great uncertainty as to Jackson's movements, but late at night, learning of Gibbon's battle, he concluded that Jackson, while retreating up the pike, had been headed off and stopped by McDowell's troops, and his hopes revived. He issued his orders accordingly,—Kearny to move at one o'clock at night, even if he carries no more than two thousand men, and to advance up the turnpike; Hooker to march at three A.M., even if he shall have to do so with only half his men; the ninth corps, also, all up the pike; Sigel and Reynolds are to attack at earliest dawn; Porter to hasten forward to Centreville.



CHAPTER LVI

THE SECOND BATTLE OF BULL RUN

Early in the morning of Friday, the 28th, Jackson moved back behind the railroad grade, extended his lines, and took up his defensive position, extending from near Sudley Church along and in rear of the railroad to the high ground north of the pike, opposite to, or just north of, the battle-ground of the previous evening, curving his right to present a somewhat convex front towards the pike. Ewell's division, now under General A.R. Lawton, held the right, Hill's the left, and Jackson's, under General William E. Starke, the centre; Hill and Starke were in the woods. A battery was placed on the high ground in front of the right, and between it and the pike, and two regiments of infantry, 13th and 35th Virginia, were thrown across the pike into the woods on the south side of it. Other batteries were planted on the high "stony ridge" in rear of the main line. Secure in this position he calmly awaits events, knowing that a few hours will bring Longstreet on his right.



SECOND BATTLE OF BULL RUN, AUGUST 29, 1862, AT NOON
Except attacks on right, 4 to 5.30 P.M., as indicated

[Larger image](#)

Sigel's troops are now pushing forward from the vicinity of Henry and Chinn hills. Schurz's division, with Milroy's independent brigade on its left, advances to the right across the pike, and, wheeling to the left, crosses the Sudley road and enters the woods which cover and screen Jackson's left and centre, with sharp fighting pushes back his skirmishers, seizes part of the railroad, and develops the enemy's position there. On the left of the pike Schenck's division advances, with its right on the pike and Reynolds's

division on its left. Schenck's batteries take position on the ridges on each side of the pike near Groveton, and keep up a long-range cannonade with the enemy's guns on the high ridge in front; while the infantry slowly works forward, unopposed except by artillery fire, to that point. Reynolds also moves forward, swinging to the right, and driving back the two Virginia regiments, until he reaches the pike half a mile or more beyond Groveton, where Gibbon's battle began, and there finds the Union dead and wounded abandoned when King fell back the previous night. His line is formed along the road, facing north, and a short advance over the high ground will throw him on Jackson's extreme right. One of Schenck's brigades, Stahel's, is on his right; the other, McLean's, is in rear, or south of Stahel, and in the woods. It is now about ten A.M. It has taken four hours for Schurz to develop the enemy's left and centre, and for Schenck and Reynolds to advance a mile and a half over an easy country and push back a handful of skirmishers; and they have not yet located Jackson's right, although they have gained a good position from which to attack it. Their movement diverged from that of Schurz, and opened an interval in the line between Milroy and Stahel. The ground between them, indeed, was the open country on the right of the pike, commanded by their batteries, and the forward movement northward of the troops of Reynolds would soon have closed the gap. But Milroy was calling on Sigel for support, and for troops to fill the gap on his left. Schurz was also asking aid, and to meet their calls Stahel was hastily moved by the right flank across the fields towards Milroy.

Reynolds was not informed of this movement, but, discovering that the troops on his right had disappeared, and supposing that the whole of Schenck's division had moved away, and observing a force of the enemy approaching his left, which was entirely in air, he immediately swung his division back, recrossed the Groveton road, and, finding McLean's brigade in the woods, took position on its left with his line refused somewhat. It was Longstreet's leading division under Hood just reaching the field that Reynolds observed, and it was probably well for him that he moved back so promptly.

Now the troops of the right wing are reaching the field. First Kearny, who moves across country north of the pike with Poe's brigade pushing back the enemy's cavalry and skirmishers along Bull Run, and comes up against Jackson's extreme left, and on the right of Schurz. Then Stevens's division

marches up the pike to the crossing of the Sudley road, where Sigel is receiving Schurz's and Milroy's cries for aid, and listening to the thunder of his guns shelling the batteries of the enemy, with the fervid imagination of a war correspondent. Sigel, with the consent of Reno, as he claims, immediately scatters this fine division, sending one brigade to Schurz, another to Milroy, and the third, with Benjamin's battery, E, of the 2d artillery, up the pike to Schenck. Reno's division, which next arrived, was dissipated in like manner, Nagle's brigade being sent to support Schurz, while the other with the artillery was placed in reserve on the ridge in rear of the Sudley road. Hooker's division on its arrival was also divided, Grover's brigade being sent to support Schurz; and afterwards Carr's brigade was put on the front line, relieving part of Schurz's force, and was in turn relieved by Hooker's remaining brigade, under General Nelson Taylor.

It was not an uncommon thing during the war, as many an officer knows from dear-bought experience, for commanders of troops in action to beseech support, usually claiming that they were out of ammunition, or their flanks were being turned, and, when the reinforcements reached them, to put the new-comers into the front line and withdraw their own troops to the rear. This was what Sigel did with the divisions of the right wing as they reached the field. Thus these fine troops, second to none in condition, discipline, and *morale*, which, led by their own generals and thrown in mass upon the enemy, would have struck a mighty blow, were frittered away over the field, simply relieving other troops, and adding but little to the extent or strength of the battle line. Schurz, ever mightier with the pen than the sword, evinced a marvelous capacity to absorb reinforcements. And Sigel, having demonstrated his talents as a strategist and a marcher the previous day, now proved his ability on the battlefield by so scattering the seventeen thousand troops of the right wing as to deprive them of their own able and tried commanders, and reduce them to the least possible weight upon the fighting line.

His division being thus scattered, General Stevens led up the pike the brigade which was to reinforce Schenck. This consisted of only a regiment and a half,—the 100th Pennsylvania and five companies of the 46th New York, the other five companies being detached to guard trains,—and Benjamin's battery of four 20-pounder rifled Parrotts. Approaching

Groveton, two batteries on the right of the road, on the low ridge overlooking the hamlet, were exchanging shell-fire at long range with the enemy's batteries on the high ridge a mile in front. Save this, no enemy was visible in that vicinity. The little column was moving without skirmishers in front, for it was said that our troops held the ground beyond Groveton, the battery first, followed by the infantry in marching column of fours. The general and staff had reached the cross-road, the battery was descending the slope in the road, which here ran in quite a cut gullied out by rains and wear, when an extended line of gray-coated skirmishers emerged over the crest of the opposite ridge, two hundred yards distant, and, catching sight of the group of horsemen and the battery, quickly began firing upon them. It was impossible to turn the guns either to right or left out of the sunken road in which they were imprisoned; but Benjamin coolly led his battery thirty yards forward to where the banks were lower, the skirmishers coming nearer and their fire sharper every minute, then turned the leading team short to the left; the drivers plied the whip, the horses leaped up the steep bank, and with a sudden pull jerked the gun out of the cut. And piece after piece followed to the same point, and was extricated in like manner, and then, remounting the ridge, whirled into battery on the left of the road and opened fire. While Benjamin was thus extricating his guns, five companies of the 100th Pennsylvania dashed forward at double-quick, deploying as skirmishers across the cross-road, drove the enemy's skirmishers back behind their ridge, and held their ground until withdrawn four hours later. The two half regiments were placed in line on the reverse slope of the ridge in rear and to the left of the guns. A short distance on the left were the woods, and in the edge rested the right of McLean's brigade.

It was the skirmishers of Hood's division that so nearly caught Benjamin's guns. They were pushed out to feel and locate the Union position promptly after Reynolds drew back. Longstreet's wing was fast arriving, and by noon four of his divisions were in position,—Hood across the pike, Kemper on his right, Jones still farther on their right, extending to the Manassas Gap Railroad, Evans's independent brigade in support of Hood, and Wilcox's division also supporting him on his left and rear. Two batteries of the Washington artillery took post on the high ridge with Jackson's guns and added their fire.

With these additional batteries the artillery firing waxed heavier, and soon twenty hostile guns were hurling a storm of missiles upon the Union artillery at Groveton. After an hour's firing Schenck's batteries on the right of the road, Dilger and Wiedrich, went to the rear, out of ammunition, and for three long hours Benjamin was left to sustain unaided this storm of shot and shell. But Benjamin could plant his heavy, long-range shells with wonderful accuracy. He concentrated his fire on one battery, and ere long a caisson was seen to blow up on the distant ridge, and it ceased firing. Again and again he would concentrate on a battery and silence it, but only to have the others redouble their fire, and when he turned on them the first would reopen. At length two of his guns were disabled, and nearly half his men were killed or wounded.

Now, at two P.M., Schenck concluded that he "was too far out," because Reynolds had refused his line on the left, and he could get no fresh artillery to continue the duel on the pike. Sigel says that he sent him an order to retire, but that Schenck anticipated it, so the discredit of the move belongs to both of them. By order of General Schenck, General Stevens drew in his skirmishers and moved back down the pike, placing Benjamin's two guns on an eminence of the Chinn Hill, and his two regiments on the right of the road in advance of the Rosefield House. Schenck and Reynolds moved back abreast to the western slope of the Chinn Hill.

Thus, in this sequence of withdrawals, it will be seen that after Schenck and Reynolds had gotten in position to strike Jackson's right, although too late to do so without danger of Longstreet's advance falling upon their flank, Schenck sent off Stahel's brigade at Milroy's calls. Reynolds then moved back, because Schenck had retired and left him unsupported, as he supposed, and also because his left was threatened by Longstreet's advance; and Schenck in turn moved back because Reynolds had withdrawn, although the latter had only refused his line, which, situated in open ground with the enemy in force in his front, was the right thing for him to do.

Our guns at Groveton could see along and flank the front of the Union line on the right as far as the railroad, and their thunder encouraged the troops on that wing, and deterred the enemy from aggressive movements which would subject them to an enfilade fire of artillery. The position was in truth a key-point, not only commanding the lower ground to the right, but also

affording good ground upon which to receive an attack, or from which to advance, and, moreover, it covered the roads southward, by which Porter's troops, as will be seen presently, were expected to join the army.

The drawing back of our guns and troops from Groveton was the signal for Jackson's lines to push forward more aggressively. Milroy was roughly handled and forced back. It was General Stevens's third brigade, under Colonel Addison Farnsworth, that was sent to support Schurz, and was posted on the front line along the railroad, next to Schimmelfennig's brigade. Part of this brigade, on Farnsworth's left, broke at the advance of the enemy, and fell back through the woods, but the Highlanders and Faugh-a-ballaghs stood firm and repulsed the attack. Soon afterwards the fugitives, having reformed, moved up in line from the rear, and began firing into the backs of the troops who had stood their ground, mistaking them for the enemy; but this was speedily stopped, and they were again placed on the line.

The experience of the first brigade was equally unsatisfactory. Placed in the first line, they were left to bear the brunt of the fighting on Milroy's front, and were finally obliged to fall back by the giving way of troops on their flanks.

General Pope arrived on the field about noon, and made his headquarters in rear of the Sudley road, near Buck Hill. Although he declares in his report that he refused Sigel's demands for reinforcements, it is clear beyond doubt that he neither put a stop to the wasteful scattering of his best troops, nor attempted to unite and bring them together as a disposable force of weight for offensive movements. All the afternoon he was expecting Porter's and McDowell's column to fall upon Jackson's right and rear, for he had worked himself up to the belief that Longstreet would not be up for another day, and nothing short of disastrous defeat could shake his dogged belief.

On receiving news of King's and Ricketts's retreat from Gainesville and Groveton, which he did about daylight, General Pope ordered Porter to march upon Gainesville with his own corps and King's division. "I am following the enemy down the Warrenton turnpike," he adds. "Be expeditious, or we will lose much." And later he dispatched a joint order to McDowell and Porter to the same effect:—

“You will please move forward with your joint commands toward Gainesville.... Heintzelman, Sigel, and Reno are moving on the Warrenton turnpike, and must now be not far from Gainesville. I desire that as soon as communication is established between this force and your own, the whole command shall halt.... One thing must be had in view, that the troops must occupy a position from which they can reach Bull Run to-night or by daylight.”

Porter had already passed Manassas on his way to Centreville when he received the first order, but immediately countermarched to the Junction and towards Gainesville as ordered, with Morell's division leading, Sykes's next, then Piatt's brigade, and King following in rear. About eleven o'clock the head of the column reached Dawkins Branch, an insignificant brook four and a half miles from Gainesville, and two and a half miles south of Groveton. Here the enemy was perceived, and skirmishers were thrown across the creek, supported by Butterfield's brigade; and Porter was forming to advance on the enemy, when General McDowell joined him, and showed a dispatch from Buford as follows:—

“Headquarters Cavalry Brigade, 9.30 A.M. Seventeen regiments, one battery, and five hundred cavalry passed through Gainesville three quarters of an hour ago on the Centreville road.”

The presence of the enemy in front, and clouds of dust rising along the roads in his rear, corroborated this dispatch. So, too, did the noise of the artillery combat at Groveton. The two generals rode together through the woods to the right as far as the Manassas Gap Railroad, but decided that it was “impracticable” to move northward a mile and a half across country to effect a junction with the right wing. McDowell then left Porter, telling him that he would take King's division around by the Sudley road and put it in between Porter and the right wing. Except for some slight changes in position of the head of his column, Porter remained inactive the rest of the day, with his rear stretching back two and a half miles along the road. What befell King's division, under McDowell's guidance, will be seen later. Unquestionably, Longstreet was up and in position in time to resist the attack of McDowell and Porter, had they made one. And a board of three officers of great reputation and experience,—Generals Schofield, Terry, and Getty,—after a thorough examination, has declared that such an attack

would have been ill advised, has applauded Porter's conduct, and pronounced the opinion that his presence there that day saved the army from disaster.

Nevertheless, the fact remains that this great column of over twenty thousand troops was kept out of the ring completely. The orders given and objects to be gained were perfectly plain and simple. They were, first, to fall upon the enemy, supposed to be Jackson, and, second, to effect a junction with the right wing. McDowell and Porter did neither.

Granting that an attack was ill judged, why was not a brigade brought up and deployed athwart the railroad, and a regiment pushed through the woods northward to locate and connect with the force on the pike, whose artillery was distinctly heard? Traversing only three quarters of a mile of intervening woods, such a column would have reached open fields, and come in sight of Reynolds's troops. But, more surprising still, why was no one sent up the roads which fork both from the road and railroad only half a mile back of the head of Porter's column, traverse the woods in a northerly direction, and lead to Groveton? A staff officer sent up this road would have come in sight of Reynolds's skirmishers in a ride of only a mile.

Unable longer to control his impatience, General Pope began about four P.M. sending peremptory orders to attack, first to one command, then to another, as he could get hold of them, accompanying the orders with assurances that the enemy was being driven by some other command, and that Porter was about to fall, or was falling, on his flank and rear, and using him up.

The first victim of this plan of beating a corps in strong position by attacking it with a brigade at a time was General Cuvier Grover's brigade, first of Hooker's division, comprising five regiments,—1st, 11th, and 16th Massachusetts, 2d New Hampshire, and 26th Pennsylvania,—which was already supporting Schurz. With muskets loaded and bayonets fixed, ordered to close on the enemy, fire one volley, and charge with the bayonet, they struck him where the railroad emerged from the woods and crossed the hollow on an embankment, broke the first line, carried the embankment, swept eighty yards beyond it and broke a second line, only to be forced back by overpowering numbers, with a loss of four hundred and eighty-six, for this gallant charge was entirely unsupported. Reports General Grover:—

“We rapidly and firmly pressed upon the embankment, and here occurred a short, sharp, and obstinate hand-to-hand conflict with bayonets and clubbed muskets. Many of the enemy were bayoneted in their tracks, others struck down with the butts of pieces, and onward pressed our line. In a few yards more it met a terrible fire from a second line, which in its turn broke. The enemy’s third line now bore down upon our thinned ranks in close order, and swept back the right centre and a portion of the left. With the gallant 16th Massachusetts on our left I tried to turn his flank, but the breaking of our right and centre and the weight of the enemy’s lines caused the necessity of falling back, first to the embankment and then to our first position, behind which we rallied to our colors.”

One is not surprised to find the following in the report of Colonel William Blaisdell, 11th Massachusetts:—

“I was greatly amazed to find that the regiment had been sent to engage a force of more than five times its numbers, strongly posted in thick woods and behind heavy embankments, and not a soldier to support it in case of disaster.”

Hooker’s third brigade, under Colonel Joseph B. Carr, earlier in the day had relieved part of Schurz’s troops, and after, as he reports, fighting two hours and expending most of his ammunition, was in turn relieved by the second brigade, under General Nelson Taylor. When Grover was driven back, Taylor’s left regiment was broken by the rush of fugitives; the enemy poured through the gap, giving an enfilade and reverse fire, and taking many prisoners, among them General Taylor’s aides, Lieutenants Tremain and Dwight.

“Finding my line,” says Taylor, “completely flanked and turned, and in danger of being entirely cut off, I gave the order to fall back, which was done in as good order as could be, situated as we were. The loss on this occasion was not as large as I had reason to apprehend, yet it was considerable.”

Scarce had these broken troops emerged from the woods and reformed in the open ground in rear, when General Reno led up his first brigade, under Colonel James Nagle, to a second attack on the same position from which

Grover had been repulsed. This consisted of only three regiments,—48th Pennsylvania, 6th New Hampshire, and 2d Maryland. This also was a gallant and determined assault. Again the enemy was forced back from the railroad, but again his rear lines rushed forward, flanked Nagle on the left, and drove him back with a loss of five hundred and thirty-one.

Kearny was holding the right with Robinson's brigade, while Poe's brigade was guarding his right flank, with his skirmishers extending to and across Bull Run, and Birney's brigade was supporting both. Now, after the crash of musketry of Reno's attack had all died away, and his troops were all out of the woods, Kearny makes his attack. Reinforcing Robinson with one of Poe's and four of Birney's regiments, and throwing forward his right, wheeling to the left until his lines are nearly athwart the railroad, he charges along it to the left, driving the enemy in great disorder. But his attacking force lacks weight; the charge comes to a stand. They are assailed by two brigades from Ewell, those of Lawton and Early, outflanked, overpowered, and are forced back to the position from which they started; many of them, however, in broken and disordered crowds, run out of the woods farther to the left, near the same place where appeared Hooker's and Reno's fugitives so recently. Eight regiments only out of Kearny's fifteen make this attack. His loss was about six hundred. Nothing but the timely counter-charge of Lawton and Early saved Hill.

The rattle of musketry is still echoing in the forest, and Kearny's fugitives are pouring out upon the open, when an officer in hot haste conveys Pope's order to General Stevens to advance into the woods and attack. The only troops left him are the regiment and a half withdrawn from Groveton, only seven hundred strong. Without an instant's delay, the troops take their muskets from the stacks, double-quick across the open ground, and form line at the edge of the woods. Kearny himself rides over to the little force just forming, and, at his request, Captain Stevens stops a moment to write an order or message for him, for he has but one arm. The scanty line enters and sweeps through the woods, encounters the enemy now holding the railroad, delivers and receives for fifteen minutes, which seem hours, a heavy musketry fire, and then, with the enemy swarming past both flanks, is forced back through the woods to the open ground, where the men at once halt and reform. Both the regimental commanders and Colonel Leasure, commanding the brigade, were severely wounded, and the loss was about

two hundred. General Stevens's horse was shot under him, and also that of his orderly. It was remarked that when his troops emerged out of the woods, almost the last one was a short man in a general's uniform, followed by a tall orderly bearing a saddle on his shoulder.

With this attack the fighting on the right came to an end for the day. The possession of the woods along the railroad was relinquished to the enemy. A strong skirmish line held the edge of, and to the right a good part of, the timber. The troops were posted in rear in good positions for the night, the scattered commands being collected. General Stevens's brigades were gotten together after some search, and the division was posted in the woods a quarter of a mile to the right and a little to the rear of the place where Leasure's brigade formed for the attack. The following incident, which illustrates the evil effects of scattering commands, is related in the history of the 79th Highlanders by Captain William T. Lusk, one of the general's aides:—

“I was directed to find Farnsworth; was sent by Sigel to Schurz, and by Schurz to Schimmelfennig. The gallant German, when at last found, exclaimed, ‘Mein Gott! de troops, dey all runned away, and I guess your men runned away, too!’ General Stevens was indignant, and used some pretty strong language, when I carried back this report, and ordered me to find the missing regiments, and not to return until I brought them with me. I started, therefore, for the old railroad embankment. Luckily, I found Farnsworth just on the edge of the woods. He said he was waiting for orders, but had none since I left him in the morning.”

But the day was not to close without one more useless slaughter of brave troops. McDowell brought King's division along the Sudley road nearly to the pike, by half past four, passing without notice, at Newmarket, the old Warrenton turnpike, which here forked from the Sudley road and led to the unoccupied gap between Porter and Reynolds, to the very position where he told Porter he would put King. Pope first directed the division over to the right, where his attacks by detachments were being so disastrously repulsed, and finally, just as it reached the pike, ordered McDowell to push it up the road in pursuit of the enemy, declaring that he was in full retreat. McDowell gave the order and the encouragement. Gibbon's brigade, which had

suffered so severely in the fight the previous night, was placed in support of batteries on the Rosefield ridge. The other three brigades, under Hatch (King being sick), fired by the lying promises of success, which were strengthened by the tremendous outbursts of musketry and roar of guns on the right wing, where they were told Jackson was being driven, hastened up the road with high hopes. Near Groveton, about dusk, they deployed,—Hatch's brigade on the right of the road, Doubleday on the left, Patrick in reserve,—and pushed on with great confidence. But Longstreet, who all the afternoon had held his hand, notwithstanding Lee's wish to attack, was at that very moment advancing Hood's division, supported by Evans's brigade and Wilcox's division, with Hunton's brigade of Kemper's division on Hood's right. The opposing forces encountered a short distance in front of Groveton, but the disparity in numbers was too great for the Union troops. The fight was furious but brief. Their left was outflanked and broken, and both brigades were driven back with heavy loss, including one gun. Patrick in some degree checked the enemy, who pursued considerably to the rear of Groveton. Night put a stop to the unequal struggle.

This ended the fighting of the 29th. The Union arms were outnumbered and repulsed in every encounter, and lost ground on both wings. Sigel's dilatory and timid advance consumed the morning hours until, with Longstreet's arrival, the chance of attacking Jackson's right was lost. Sigel, too, may be censured for his importunate and unsoldierly demands for aid which so frittered away the weight of the right wing. But Pope on his arrival could have rectified this. Pope, and Pope alone, ordered the hasty and disconnected attacks of the afternoon, wasting the blood and impairing the *morale* of his best troops. The four divisions of Stevens, Reno, Kearny, and Hooker numbered forty-three regiments, 17,000 effective, as fine troops as ever marched under the stars and stripes, and as well commanded. Had Pope, disregarding the clamors of Sigel and Schurz, arrayed these splendid troops in battle order on his right, and hurled them in one combined attack upon the enemy, pushing into the fight also Schurz and Milroy and twenty of the guns that were idling in the centre upon the ridge, Jackson would surely have been driven back upon Longstreet. The battle would then have raged on the heights beyond Groveton, the scene of Gibbon's fight; and here Longstreet, with the advantages of position and greatly superior numbers, might have retrieved the day, or at least stayed farther Union

advance, even though Schenck and Reynolds attacked his right with their utmost vigor. In such a battle Porter might possibly have turned the scale; but his troops, only partly deployed and stretching back along the road for three miles, were not in hand for prompt aggressive movement.

All that afternoon Lee was master of the situation. His army was united. Pope's was divided; over twenty thousand of his troops out of reach and beyond his control. If Lee had struck with his right wing, Schenck and Reynolds, who alone confronted it, could not long have resisted the overpowering numbers, and Pope would have been driven across Bull Run. Porter could never have prevented the disaster. He could not have thrown his troops into the fight in time, unready as they were, and especially if the ground on his right was broken, difficult, and impenetrable, as he claimed, but mistakenly. It was Longstreet's slow-paced caution that saved Pope that afternoon.

On McDowell's arrival on the field Pope learned of Porter's inaction, and immediately sent him a positive order to attack, which reached him at too late an hour to be executed. Pope thereupon sent him an order to march to the battlefield.

Early in the morning of the next day, the 30th, General Stevens went over to Pope's headquarters, which were a short distance in the rear, and there found assembled Pope, McDowell, Heintzelman, Reno, and other general officers. Pope was confident that the enemy had retreated during the night, and, greatly to General Stevens's astonishment, some of the others coincided in that opinion. He, however, strongly expressed the contrary view, whereupon Pope directed him to push a strong skirmish line into the woods in his front and try the enemy. Accordingly Captain John More, of the 79th Highlanders, one of the best and bravest officers in the division, with one hundred men of his regiment, skirmished into the woods and attacked the enemy with great spirit; but after half an hour's sharp firing Captain More was brought out shot through the body, and a third of his men were killed or wounded. No impression was made on the enemy. General Early, who commanded a brigade in Ewell's division, says in his report: "During the course of the morning the skirmishers from my brigade repulsed a column of the enemy which commenced to advance." The Highlanders were withdrawn, and the result of their effort immediately

reported to General Pope, but it had no effect upon his opinionated mind. By his positive assertions of driving the enemy and of his having retreated, he had imbued McDowell and Heintzelman largely with his own views. Thus filled with Pope's ideas, and having little personal observation of the previous day's battle, they hastily rode along the right wing, and came back and corroborated the mistaken views of the infatuated commander. One circumstance there was which lent color to them, and that was that during the night both Jackson and Longstreet drew back to their main line those troops that, in the eagerness of combat, had pushed beyond it. Yet there was scarcely a man in all the Union army, except the army and two corps commanders, who did not bitterly realize that they had been worsted the day before, and who did not feel sure that the enemy was still in front, stronger and readier than ever to renew the battle.

Ricketts's division reached the field the previous evening. In the morning two brigades were placed on the extreme right, relieving some of Kearny's troops, and the other two brigades were left in reserve near the centre. Apparently no opportunity of dividing and scattering commands was to be lost. About nine A.M. Porter arrived with his troops, except Griffin's brigade of Morell's division and Martin's battery, which by some error had retired to Centreville. The forenoon wore away without demonstration beyond considerable artillery firing. No reconnoissance in force was attempted.

At length at noon Pope issued an order, the most astonishing in its fatuity ever given on a battlefield:—

HEADQUARTERS NEAR GROVETON, August 30, 1862, 12 M.

SPECIAL ORDERS, No. —. The following forces will be immediately thrown forward and in pursuit of the enemy, and press him vigorously during the whole day. Major-General McDowell is assigned to the command of the pursuit.

Major-General Porter's corps will push forward on the Warrenton turnpike, followed by the divisions of Brigadier-Generals King and Reynolds. The division of Brigadier-General Ricketts will pursue the Haymarket road, followed by the corps of Major General Heintzelman. The necessary cavalry will be assigned to these columns by Major-General McDowell, to whom regular and frequent reports will be

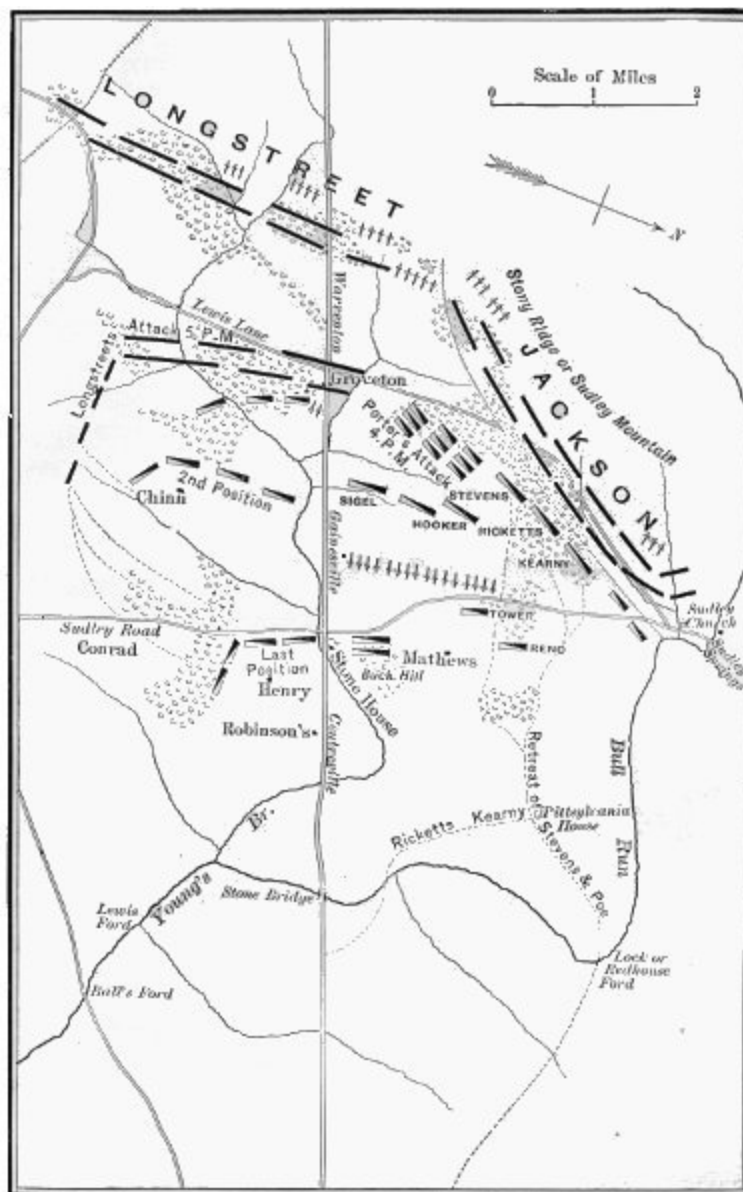
made. The general headquarters will be somewhere on the Warrenton turnpike.

By command of MAJOR-GENERAL POPE,
GEORGE D. RUGGLES,
Colonel and Chief of Staff.

The enemy he thus ordered pursued were at that moment, as they had been since noon the previous day, all up, posted in strong position, flushed with success, confident in themselves, well rested, and not inferior in numbers. And their skillful leader was only waiting the opportune moment to launch the mighty thunderbolt of war he so ably wielded. Such was the situation. But nothing had any effect upon the mind of the infatuated commander; the bloody repulses of the previous day, the loss of ground on both wings, the information thrust upon him by McDowell, Porter, Ricketts, and Reynolds that Longstreet's advance had passed Gainesville before nine o'clock the previous morning, over twenty-four hours before, and that his forces had confronted Porter and Reynolds all the afternoon before,—all, all was disregarded, and Pope, impervious alike to reason and to facts, without a reconnoissance save the spirited push of the hundred Highlanders, gave the fatal order fraught with disaster to his army, and the acme of his own fatuity and incompetence.

But the officers charged with the execution of the order never attempted to carry it out according to its terms. With the exception perhaps of McDowell, they knew too well that it was an order impossible to execute. Ricketts, already in contact with the hostile line, reported that the enemy had no intention of retreating, and was ordered to hold his position. Porter made no effort to "push up the Warrenton turnpike, followed by the divisions of King and Reynolds." The pursuit feature of the order was ignored by all, and instead of it a strong column of attack was organized against Jackson's centre. This was composed of Porter's troops and King's division, under Porter's command, and was slowly formed behind the screen of woods in advance of the right centre of the Union lines. Stevens's division, two brigades of Ricketts's division, and Kearny held the lines on the right. In rear of Porter and King, and in rear of the centre, were placed Hooker's, Reno's, and two brigades of Ricketts's division, and all of Sigel's corps except McLean's brigade, which held the left, south of the pike, in

front of the Chinn Hill. Reynolds with his small division extended the line on McLean's left. Extending from Rosefield for a long distance toward the right, on the crest of the ridge, was planted a long row of artillery,—forty guns at least,—as near together as they could be handled, while other batteries were in rear, unable to find a place in the line. A few batteries occupied positions in advance of this ridge, and exchanged incessant fire with the enemy's guns across the wide, open ground. Thus Pope bunched nearly his whole army in the centre, leaving his right weak, and his left wing a mere handful.



**SECOND BATTLE OF BULL RUN, SECOND DAY,
AUGUST 30, 1862
Positions at 4 P.M., and successive positions on left**

While Porter was slowly forming his column, his skirmishers pushed forward over the open ground nearly to Groveton. Reynolds, too, advanced his skirmishers on the left through the skirt of woods near Groveton, south of the pike, and discovered the enemy's skirmishers extending far to his left and rear, "evidently masking a column of the enemy formed for attack on my left flank, when our line should be sufficiently advanced." So important was this discovery deemed by Reynolds that he galloped instantly to Pope and reported it. How the information was received is graphically told by General Ruggles, Pope's chief of staff, in a letter to General Porter, which the author is permitted to use:—

"At two P.M. or thereabouts, Reynolds came dashing up, his horse covered with foam, threw himself out of the saddle, and said, 'General Pope, the enemy is turning our left.' General Pope replied, 'Oh, I guess not!' Reynolds rejoined, 'I have considered this information of sufficient importance to run the gauntlet of three rebel battalions to bring it to you in person. I had thought you would believe *me*.' Thereupon General Pope turned to General John Buford and said, 'General Buford, take your brigade of cavalry and go out and see if the enemy *is* turning our left flank.' Reynolds then said, 'I go back to my command.'"

How clearly this incident reveals the infatuated, dogged state of mind that possessed Pope!

It is after four P.M. when Porter gives the order to advance. The first and third brigades of Morell's division in columns, under Butterfield, are in front, Sykes's regulars are in support. King's division, under Hatch, advances on the right of Butterfield in a column seven lines deep, with intervals of fifty yards between the lines. Sweeping through the woods, they come in sight of the railroad embankment and the wooded hill beyond it. Instantly the whole side of the hill and edges of the woods swarm with men before unseen. Says General Warren in his report: "The effect was not unlike flushing a covey of quails." A terrific musketry is poured upon the advancing column, while a storm of shell and shrapnel smite its flank with

most deadly fire from the batteries on the ridge to the left front. With hearty cheers, the advancing troops desperately charge the embankment and railroad cut on the right of it, and when repulsed, charge again, and then cling to their ground and open steady musketry. All in vain. Longstreet throws two more batteries forward on the ridge, and fatally enfilades the struggling troops. "Butterfield's troops are torn to pieces," says Sykes. In half an hour all is over, the repulse is complete, and the shattered troops move sullenly back, bearing out many wounded. In that short time they have lost 700 men.

General Stevens, having formed his divisions in three lines, each a brigade, moves forward through the woods on the right of Porter's column, and, without waiting for orders, attacks simultaneously with him, at once becomes furiously engaged, and suffers heavy loss, including Colonel Farnsworth, who is severely wounded. General Stevens maintains this contest until Porter's column is repulsed, when he withdraws his command to the first ridge in rear of the woods, posting his lines just behind the crest, with skirmishers holding the edge of the woods.

Porter's attack, made nearly at the same point as Grover's, did not penetrate the enemy's position so deeply. With only 2500 men, the latter broke two lines and swept eighty yards beyond the embankment, while Porter with 12,000 men did not carry the embankment. But how different the conditions under which he attacked,—the enemy in stronger force, better prepared, and Longstreet's terrible artillery tearing to pieces the flank of the columns! And is not something due the *morale* of his troops, which was almost systematically broken by the blunders and disasters of this unhappy campaign? With what confidence could King's division be expected to charge, which, after marching all day Thursday, sustained the fierce and stubborn fight near Groveton with Jackson's two divisions, then moved away at midnight, abandoning their wounded and the field they had so bravely won; then marching all the next day, with occasional halts, until at dusk they were brought upon the field, and, deceived with false hopes of success, were dashed against overpowering masses of the enemy almost on the scene of their recent battle, and only twelve hours after it, and were broken and driven back with disaster; and the third day—Saturday—were exposed to shell fire for several hours, while slowly taking place in the attacking column, knowing full well that they were about to be hurled

against the very centre and strongest part of the enemy's position, from which every attack of the previous day had been met with bloody repulse,—“Where even privates realized,” says Colonel Charles W. Roberts, commanding Morell's first brigade, “that they were going into the jaws of death itself”? Clearly, this was not such an attack as these troops would have made if in their normal condition, and with any hopes of success. And their able commander did not drive it home with the full weight and vigor of one who, confident of success, puts in the last man and the last effort. Sykes's division was not brought up to renew the charge upon the railroad, for Porter, seeing that success was hopeless, wisely used it to cover the falling back of Butterfield and Hatch.

The enemy's reports bear abundant witness to the gallantry and severity of Porter's charge, which shook Jackson so that even he called aloud for assistance. In his report he says:—

“The Federal infantry, about four o'clock in the evening, moved from under cover in the woods and advanced in several lines, first engaging the right, but soon extending its attack to the centre and left. In a few minutes our entire line was engaged in a fierce and sanguinary struggle. As one line was repulsed, another took its place and pressed forward, as if determined, by force of numbers and fury of assault, to drive us from our positions. So impetuous and well sustained were these onsets as to induce me to send to the commanding general for reinforcements.”

Says Colonel Bradley T. Johnson, who commanded the second brigade of Ewell's division:—

“Before the railroad cut, the fight was most obstinate. I saw a Federal flag hold its position for half an hour within ten yards of the flag of one of the regiments in the cut, and go down six or eight times; and after the fight one hundred dead were lying within twenty yards from the cut, some of them within two feet of it. The men fought until their ammunition was exhausted, and then threw stones. Lieutenant Lewis Randolph killed one with a stone, and I saw him after the fight with his skull fractured.”

With Porter's repulse comes Lee's opportunity, the opening for which he has so coolly waited the better part of two days. Longstreet, anticipating the order to advance, throws forward his whole wing in one of those overwhelming attacks for which he became famous. At first there seems to be almost nothing to oppose the avalanche. Pope has just ordered Reynolds's division to the right of the pike to aid in protecting Porter's withdrawal, although more than half the army was bunched together there in the centre, and Meade's and Seymour's brigades and Ransom's battery have taken the new position. Colonel G.K. Warren, of Sykes's division, without waiting for orders, seeing Hazlett's battery, which was well advanced on the pike, uncovered by Reynolds's movement, has just hurried his little brigade of two regiments, 5th and 10th New York, over to the left of the road to support the battery, when the storm bursts upon him. Furiously assailed in front, masses of the enemy come swarming through the woods on his left and rear, and it is only by breaking to the rear that any escape capture. His loss is four hundred and thirty-one, but the few minutes he holds back the enemy saves the guns. Reynolds's remaining brigade, under Anderson, with three batteries, in the act of moving to the right as ordered, is suddenly assailed with fury and forced to turn and fight where it stands, and now bears the brunt of the onslaught. Under cover of the woods, the enemy has completely turned the flank of all the Union positions, as Reynolds had told Pope only an hour before, and now strikes them with heavy masses of infantry on both front and left. After a gallant resistance Anderson is forced back, with the loss of four guns of Kerns's battery and the caissons of Cooper's. McLean, who sees with amazement Reynolds's division move away, leaving him to hold the hill alone, at once deploys his brigade, facing westward, and receives the attack. He now changes front to the left, and in a magnificent charge drives back the flanking forces of the enemy, but has to offer his right in the movement to the deadly enfilade fire from his former front, and he, too, bravely struggling, is borne back over the Chinn Hill. Meantime the generals in the centre are making frantic efforts to hurry troops over to the left. General Zealous B. Tower, distinguished for his gallantry in the Mexican war, one of the ablest officers of the army, leads the two reserve brigades of Ricketts across the pike and up the Chinn Hill, where McLean is being overborne; but, before he can reach a good position, his men are falling by scores, he is stricken down with a severe wound,—disabled for life and his career in the field closed,—

and ere long his brigades are driven back. Colonel Koltes, of Sigel's corps, leading his brigade to the same position, is killed, and his troops, too, are forced back. General Schenck, leading reinforcements to McLean, is wounded. The enemy have driven the last defenders from the Chinn Hill and plateau, and their exultant lines go sweeping on to complete the victory. But Reynolds, with Meade's and Seymour's brigades, and Milroy with his brigade, are now formed in line upon the slope of the Henry Hill, along or near the Sudley road, and throw back the charging Confederates with deadly fire, and soon Sykes's regulars, Buchanan's and Chapman's brigades, and Weed's battery reinforce the hard-pressed and struggling line, extending it farther to the left and rear. The enemy cannot break it, but his fire fast thins its ranks, and his flanking movement and deadly enfilade still continue. At last night is at hand, and the fury of his attack abates. The defenders, spent with heavy loss and the hard struggle, now fall back; but General Reno has just led his second brigade and Graham's battery up the hill, and forms his three regiments, 21st Massachusetts, 51st Pennsylvania, and 51st New York, around its crest in a thin line facing both the Chinn Hill and the woods on the left, with the guns in the intervals between the regiments. In this position he repulses after dark two attacks of Wilcox's troops, the last efforts of Longstreet's mighty onslaught. After nine o'clock, after the fighting had ceased, he quietly retires from the hill and marches to Centreville.

In the centre Jackson's right followed up Porter's retreating troops sharply; but the fire of the numerous guns searching all the open ground there, and the firm attitude of our troops, kept them at bay. But when the Chinn Hill was lost, and the enemy's fire from there smote the troops of Sigel holding the centre near the pike, they were forced to fall back to the ridge, where they took up a new position behind the Sudley road.

As soon as Longstreet's attack was well in progress, all the rebel guns upon the high ridge were turned upon our right, for they dared not continue firing upon the left and centre for fear of injuring their own troops now swarming onward against the Union positions, and the concentric fire of forty guns now pounded with a perfect hail of shot and shell the Union troops and batteries on that wing. The men there lay hugging the ground in rear of the guns, partially sheltered by the low ridges, while the artillery fired with its utmost rapidity upon the rebel lines of battle emerging over the distant ridge

and advancing down the slope until lost to view in the woods, or beneath the smoke which now hung over the lower ground. They swept onward in splendid order, not in one or two long lines, but regiment after regiment, separately, with blood-red colors proudly borne aloft and pointed forward, like wave after wave of ocean after a storm, rolling onward with resistless majesty and power. From the great battery in our centre belched a mighty and continuous roar and volume of thunder, and dense clouds of dusky, sulphurous smoke rolled over the landscape in front; while beyond it, on the left, but apparently beneath its folds, rose the incessant clatter and crackle of musketry, with now and again the heavier, sharper noise of great volleys, telling of the dreadful struggle raging there. Surely there are no sights and sounds more terrible than those of a great battle.

When this scene of pandemonium was at its height, General Stevens quietly remarked to General Ricketts, as they stood near one of our batteries watching the fight on the left front: "If we can hold the right here, the enemy must be repulsed, for General Pope has nearly all his troops over there, and can certainly repel any attack on his left."

Soon after this General Reno was standing with General Stevens near the same point. The battery had ceased firing, for the enemy's infantry were no longer visible. Suddenly a tall young fellow, in a Union sergeant's uniform, came running up the slope from the woods two hundred yards in front, and cried out, "Don't fire on that regiment; it is the 26th New York. It has been in the woods, and is just coming out. Don't fire! Don't fire!" All looked, and there, at the edge of the woods, was a line of troops in blue uniforms just forming. General Reno turned to General Stevens, as if in doubt; but Captain Stevens, knowing that the enemy's skirmishers held the edge of the woods ever since ours were drawn in, impulsively called out to the battery, "Fire! They are rebels! Fire!" The guns instantly fired upon them, and as quickly they disappeared, melted, into the woods. The sergeant, too, had disappeared, when we turned to find him, having made good use of his long legs to rejoin his companions when his bold ruse failed.

A little later, when the great struggle on the left was still raging, a mounted officer came galloping at high speed down to the line and delivered an order from General Pope to retreat. "General Pope orders the right wing to fall back at once. The enemy has turned the left, and if it remains half an hour

longer, it will be cut off and captured.” With this, back he raced, faster, if possible, than he came. Very deliberately and quietly General Stevens gave the necessary orders, cautioning his colonels against haste or flurry. One by one the guns ceased firing, and were limbered up and taken to the rear. When the last one had gone, the infantry rose to their feet, and marched back in usual marching column. Out of the woods in front the enemy were swarming like angry bees in clouds of skirmishers, and beginning to push up the slope. By the time our troops had moved two hundred yards back from the little ridge or roll of ground they had just left, the enemy came pouring over it in considerable numbers. But General Stevens had thrown his two rear regiments in line, and they opened with a well-aimed volley, which instantly cleared the ridge of the pursuers. The regiments promptly resumed the retreat, and four hundred yards farther back filed past two more of General Stevens’s regiments, which in like manner stood in line ready to repel too hot a pursuit. At this moment General Kearny came from the right at the head of a small force, apparently a regiment, passing along the rear side of a point of woods which extended to near where General Stevens’s line stood. Just then the enemy began firing out of this cover. Instantly Kearny fronted his scanty force into line and dashed it into the woods; but quickly a sharp volley resounded in the timber, and his men came running out, and continued to the rear, pursued by the enemy’s skirmishers in equal disorder. Upon these the waiting line poured a deliberate volley, and back they went running into the woods. The troops, after administering this sharp rebuff, filed off to the rear unmolested, and moved over a prominent ridge a thousand yards back, along the crest of which was drawn up in line a part of Ricketts’s division, apparently a brigade. It was now fast growing dark. General Stevens, knowing that the pike would be crowded with retreating troops, wished to cross Bull Run somewhere above the bridge, and sent for Major Elliott, of the Highlanders, who was at the first battle of Bull Run, and might know of some practicable ford. This proved to be the case; and after some little delay the division, guided by Major Elliott, crossed at Locke’s or Red House Ford, and moved by a cross-road to the pike, where, finding the main road jammed full of troops and artillery flowing past in a dense column, General Stevens bivouacked till morning, when he moved to Centreville.

While the division was waiting on the ridge behind Ricketts's troops, they opened with a sudden volley, as startling as unexpected, in the darkness. The enemy, pursuing, were advancing up the hill when this volley stopped them, and, falling back to the foot of the ridge, they lay there all night. Ricketts's brigade immediately moved off to the left by a farm road to a ford a short distance above the bridge, where they crossed. Soon after these troops had filed away in the darkness, General Stevens sent Lieutenant Heffron, one of his aides, to the crest which they had just left, telling him to observe, try if he could see or hear the enemy, and come back and report. After sufficient time had elapsed for Heffron to have performed the duty, he sent Captain Stevens on a similar errand, for his column was not quite ready to move; owing to delay in finding out about the ford, and there was nothing between it and the enemy. He, too, rode back to the crest, gazed into the darkness, listened intently, without catching sight or sound, and started to ride down the front of the ridge to make sure of the enemy's position, when the reflection that Heffron had probably done that very thing and had not returned caused him to turn back and rejoin his command, the rear of which was just moving off. Heffron had ridden down the slope and into the enemy's line at its foot, and was captured.

At this time two brigades of Kearny's division, which, being more in rear than Ricketts's, had moved back before him, were on or in front of the ridge, only a musket-shot to the left of the enemy lying at its foot, each force ignorant of the other's presence, and remained there until ten P.M., when they retreated by the same route as Ricketts. Poe's brigade, on the extreme right, fell back, and recrossed the run by the same ford as General Stevens's division, and before it. Thus the troops of the right wing made good their retreat in perfect order and without loss, except that of some guns of Ricketts.[\[20\]](#)

General Pope in his report, after claiming that he repulsed the enemy at all points, states that he gave the order to withdraw to Centreville after eight o'clock at night. No doubt he did give such an order at that time, but he suppresses all mention of the orders he gave to retreat and fall back long before that time, when he saw his left being turned and overpowered, and, his presumptuous confidence knocked out of him, thought more of saving part of his army than of repelling the enemy. And then it was, about six P.M., that so many troops were hurried off the field in retreat to Centreville,

among them Nagle's brigade, of Reno's division, two brigades of Hooker's, King's division, and some of Sigel's troops in the centre, and the whole of the right wing; and then, too, it was that he dispatched the order to General Banks at Bristoe Station to destroy the public property and retreat to Centreville. At that time the head of Franklin's corps of the Army of the Potomac was up to the stone bridge on its march to reinforce Pope, and might have been used to maintain his battle. But that commander already had more men on the field than he was capable of using. Under the leadership of a Sheridan, a Grant, a Meade, or a Thomas, his gallant army would never have retreated from the field, and might have inflicted a deadly blow upon its antagonist. How bravely and even desperately the Union troops fought is best attested by the Confederate reports, and the nine thousand Confederate losses in killed and wounded. The Union loss, including that of the 28th, amounted to fourteen thousand. That at the end of the battle there was disorder and demoralization among some commands it were idle to deny, but it has been grossly exaggerated.

NOTE.—General Pope's reports are very erroneous and misleading; the histories of the battle, following his statements, scarce less so. He and they habitually speak of corps when only brigades were engaged, and give all his dispositions and movements an aspect of forethought and order the reverse of the fact. It is only by careful study of the reports of division, brigade, and regimental commanders, and of the dispatches on the field, that the shifting struggle can be traced out. *War Records*, vol. xii., Report and Testimony in Review of Fitz-John Porter Case.



CHAPTER LVII

THE BATTLE OF CHANTILLY

Having safely withdrawn his division from the disastrous field, crossing Bull Run by Red House Ford, General Stevens conducted it to the main turnpike, now brimful with retreating troops. It was night, too, and quite dark. Unwilling to plunge his command into the crowded throng, he halted and allowed them to sleep on their arms by the roadside, while the dense, dark tide of troops, trains, and artillery flowed past all night. After daylight he resumed the march by the pike, now clear, and halted for breakfast in the fields a mile from Centreville. The men were ravenously hungry, having long since emptied their haversacks; the supply trains were in the rear, no one knew where, so that a drink of water and a tightened belt seemed destined to be the only breakfast. But General Stevens, having observed a small herd of cattle near by belonging to some commissary, had them driven up and slaughtered; some wagons loaded with hard bread were also seized, and soon the entire command were cooking and enjoying a hearty repast of beefsteak and hard tack.

General Stevens now received orders from General Pope to act as rear-guard. Reno's division (that officer being ill and off duty), a brigade of cavalry, and two batteries were added to his command for that duty, the most important and responsible in the army at this juncture. He moved out and took position on Cub Run, two and a half miles in front of Centreville, throwing out a strong skirmish line beyond the creek, and disposing his batteries and troops to resist an attack. Contrary to expectation, the enemy did not press on after his victory, although he appeared in force, advanced his skirmish line in plain view, and opened briskly with his artillery, to which ours as briskly replied. The day was wet, drizzling, and dreary, but at last wore away with nothing more serious.

At night General Reynolds and his division relieved General Stevens. He criticised some of the latter's dispositions, which called out a sharp rejoinder. He declared that the enemy's skirmishers were too close, and

deployed a regiment to drive them back, but his men, to his intense chagrin, hung back. Then he said the enemy might attack at any moment. But General Stevens did not share his apprehensions, and remarked to him, "I think it most probable that the enemy will move around and strike us under the ribs."

After being relieved, the division moved to Centreville, and bivouacked on the heights half a mile south of the hamlet. The following morning, Monday, September 1, the officers straightened out their commands and took account of their losses; rations and ammunition were brought up and issued; and all hoped for at least one day of much needed rest. Captain Stevens, by direction of the general, counted the stacks of muskets, and found the latter to number 2012. Half of the division had fallen in battle, or on the march, since leaving Fredericksburg a fortnight before.

Lieutenant S.N. Benjamin, a very brave and intelligent young officer, whom General Stevens treated with great kindness and consideration during the campaign, relates that about noon the general came to his battery,—

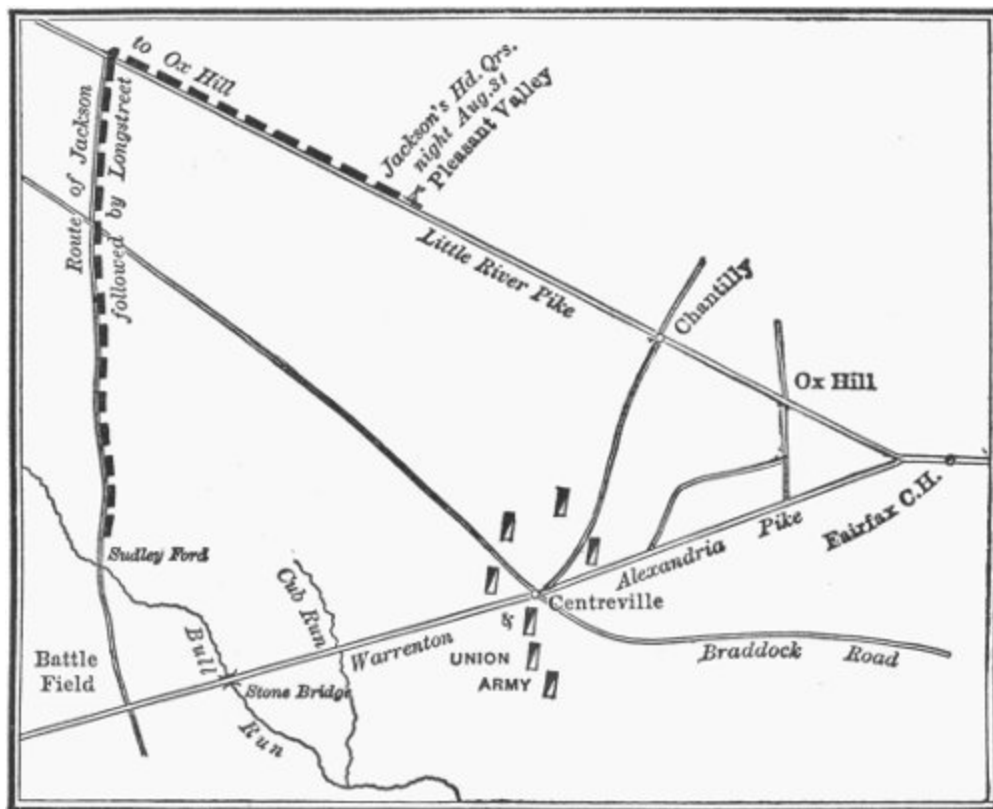
"and came where I was sitting. (My crutches had been broken, and I could not rise without help.) I soon saw that he felt very blue,—that he felt the defeat very keenly, and feared its effect on the men. I tried to assure him that his own command felt more devoted to him than ever, and if possible more faith in his skill than before. And this was God's truth,—*they did*, and he had earned it.

"Still he felt very blue. I asked him if he would write to his wife. 'Yes; but there is no way to send a letter in. I am anxious to send word.' 'Well, general, you write, and I will send it by some Christian or Sanitary man. We have just sent letters, and I will have a man watch the turnpike until some one will take it.'

"He seemed much pleased with this. I brought him the envelope, etc., and he wrote on a book, sitting on the ground. Before he had finished, the order came to move. He closed it hastily, after giving some orders, gave it to me, and went to his headquarters. The letter was given to a gentleman going to Washington with a wounded man."

It was General Stevens's last letter.

While the beaten and distracted Union commander was trying to straighten out his forces huddled about Centreville, uncertain whether to risk further conflict or to fall back to the defenses of Washington, Lee was moving his whole army in one column, to fall upon his enemy's line of retreat and rear. The very day after the battle he advanced Jackson's wing across Bull Run by Sudley Ford to the Little River turnpike, which runs straight to Fairfax Court House, and there intersects the Alexandria and Warrenton pike, eight miles behind Centreville. On this Monday morning Jackson was marching down the turnpike with Longstreet and his whole wing following closely in support, thus turning the Union army at Centreville, and moving to fall upon its only line of retreat; "to strike it under the ribs," as General Stevens so clearly foresaw. Pope had taken no steps to anticipate or guard against this fatal flank movement. He was groping in the dark, utterly at a loss what course to pursue, and consequently he did nothing until noon, when startling news forced him to decision and to action.



Jackson's Flank March to turn Centreville.

Such was the situation,—the bulk of the Union forces grouped about Centreville with their distraught commander, the victorious rebel army, in one strong column, Jackson at its head, turning their flank and striking far in their rear,—when, at one P.M., two cavalymen dashed up to General Stevens’s headquarters. They bore orders to him from General Pope to march immediately across country, guided by the two troopers, to the Little River pike, and there take position and hold in check a column of the enemy reported advancing down that road.

General Stevens soon had his division under arms, moved across the fields, and entered the Alexandria pike a short distance east of Centreville. Here Ferrero’s brigade of Reno’s division, the other brigade after its heavy loss on the 29th not being again called upon, fell in behind and followed. The scanty column moved down the road a mile and a half, then turned off to the left, and followed a farm road in a northeasterly direction between the two pikes. As General Stevens and staff were riding at the head of the column the cavalymen told how they had been out foraging that morning to the Little River pike, and had run into a heavy column of the enemy advancing down it, and had made all haste to gallop to Pope’s headquarters with the news. Thence they were at once dispatched to General Stevens with the orders already related, and directed to guide his column to the endangered road.

This startling news brought him about noon by these cavalymen was unquestionably the first intelligence that Pope received of Lee’s thrust. His own orders prove this, for he not only immediately dispatched General Stevens to seize and hold the Little River pike, but detached Hooker from his division and sent him to Germantown, a point just in front of Fairfax Court House, where the two pikes meet, to take charge of some troops there and post them to resist the threatening movement, ordered McDowell—

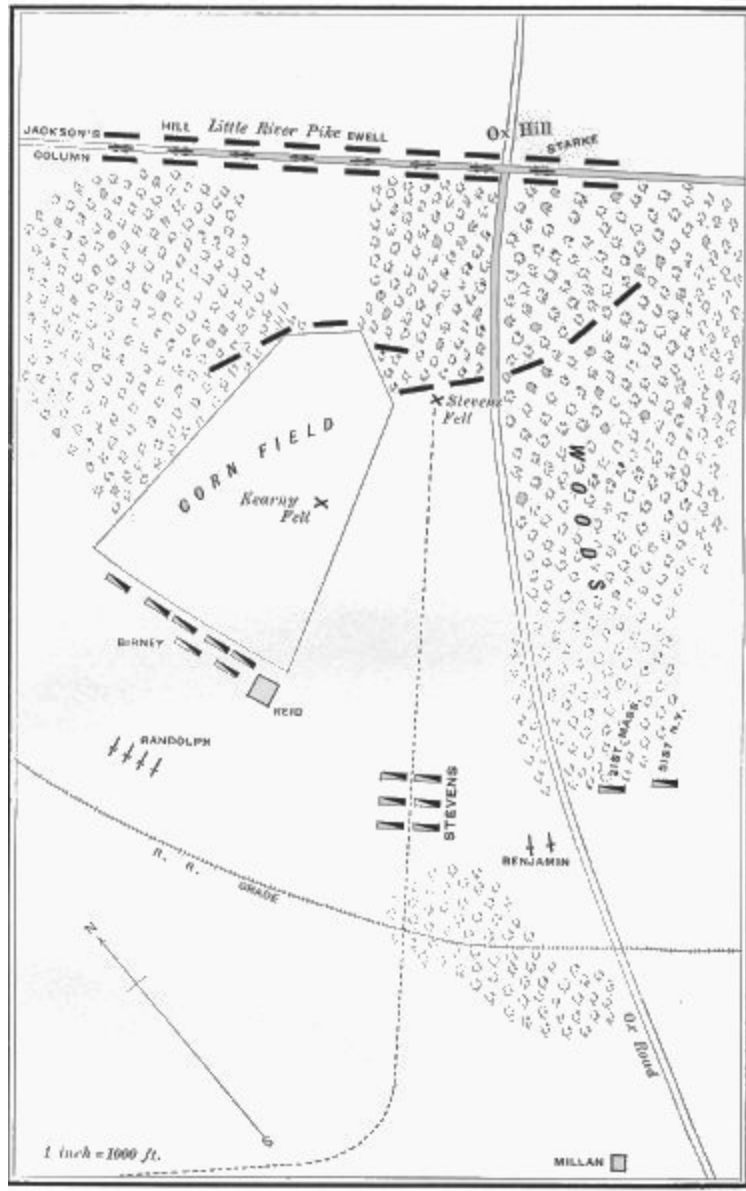
“immediately to march rapidly back to Fairfax Court House with your whole division (corps) and assume command of the two brigades there, and occupy Germantown with your whole force, so as to cover the turnpike from this place to Alexandria. Jackson is reported advancing on Fairfax with 20,000 men,”—

and soon afterwards hurried Heintzelman's two divisions down the pike toward Fairfax. And it was while thus moving that General Kearny received General Stevens's urgent summons, and opportunely hastened to the stricken field, as will soon be related.

After proceeding across country several miles in rather a winding or crooked course, the column was marching over an elevated tract of open country, which sloped down in front to a marshy hollow clothed with small growth, and partially timbered. Beyond the hollow, open fields appeared again, and beyond them dense pine woods. To the rear the high ground extended to the main turnpike, half a mile distant, down which were seen the white covers of the crowded wagons moving in retreat.

At this moment the little cavalcade at the head of the column was suddenly surprised by the sight of a rebel skirmish line deployed across the fields in front and cautiously advancing toward it, and the more because the Little River pike, as the cavalymen said, was still some distance away. The skirmishers were already across the hollow and close at hand when first seen.

At the first glance General Stevens realized what that rebel skirmish line portended. It portended an attack in force upon the turnpike, the only line of retreat. Full well he knew that the movement must be arrested, or the line of retreat would be broken, the army cut in two while widely extended along the road, and a great disaster inflicted. Instantly he threw forward two companies of the Highlanders, under Captains W.T. Lusk and Robert Ives, to drive back the enemy's advance and uncover his movement. Deploying in skirmish order, they ran forward, exchanging a sharp fire with the opposing line and driving it back, crossed the hollow, surmounted a graded railroad embankment which traversed it, and pushed on after the rebel skirmishers into the farther fields. The embankment was the grade of the same Manassas Gap Railroad over which, beyond Bull Run, Jackson made his fierce fight.



BATTLE OF CHANTILLY, SEPTEMBER 1, 1862

Captain Stevens, directing the skirmishers, had just ridden on top of the embankment, when a rebel soldier half way across the field in front, who was helping off a wounded comrade, withdrew his arm from his comrade's support, deliberately aimed at the mounted officer, and fired, and the bullet passed through his hat, inflicting a sharp rap upon his head. Twenty muskets were instantly fired at the bold rebel in return, but without effect, and coolly and deliberately he shifted his piece to his left hand, replaced his right arm around his comrade's waist, and helped him slowly off in safety.

While the Highlanders were thus pushing back the enemy, General Stevens, without halting or retarding the march of his troops an instant, was forming them as fast as they came up in a column of brigades on the hither side of the fields beyond the hollow. While thus forming, a regiment of the enemy advanced in line of battle from the woods more than half way across the fields, and the Union skirmishers fell back before it. But Benjamin's guns, having just taken position on the right of the forming column, opened upon the regiment, and it immediately fell back and disappeared in the woods. Lusk's company now rejoined its regiment, but Ives's fell back to the railroad grade, and remained there during the battle.

The column was formed in the edge of quite a large open tract, the farther side of which was closed by the woods. Woods also extended on the right side all along the open ground. Near the centre of the open tract, and to the left and front of the column, was a farmhouse, with outbuildings and orchard, and just beyond it a large field of tall, waving corn extended to the woods in front, and to woods on the left. The estate was known as Fruitvale, and belonged to the family of Reid, but was occupied at this time by a family named Heath.

A road coming from the main turnpike in rear ran in a northerly course past the right of the forming column, extended along the right edge of the open ground, traversed the farther woods, and crossed the Little River pike at right angles. This has been known since colonial days as the Ox Road, and the eminence over which it runs, just north of the crossing, is Ox Hill, from which the Confederates have named the coming engagement the battle of Ox Hill. In Union reports and histories it is known as the battle of Chantilly, from the hamlet of that name six miles westward on the Little River pike.

The column was soon formed in the following order:—

28th Mass., 79th Highlanders, Col. David Morrison.

50th Penn., 8th Michigan, Col. Benjamin C. Christ.

100th Penn., 46th New York, Lieut.-Col. David A. Lecky.

The formation was nearly completed when General Reno appeared. He had been sick and off duty the day before. The conference between him and General Stevens was brief. The latter pointed out the supposed position of the enemy, in a few strong words showed the necessity of hurling back his

threatened advance, and declared his intention of attack as soon as his column was formed. General Reno seemed undecided and hesitating. He seemed not to approve the movement, but he certainly did not disapprove it in words, nor did he give any orders, nor take command in any way, and soon turned and rode back.

General Stevens now dismounted, and directed his staff to dismount, and sent one of them to each of the leading regiments, with orders to go forward with it and make every exertion to force the charge home. He sent Captain Stevens to the Highlanders, and Lieutenant Dearborn, his aide, to the 28th Massachusetts.

The column now advanced, Benjamin's guns firing shells into the woods in front. It descended a long, gentle slope, crossed a slight hollow, and swept steadily up the easy ascent in three firm, regular lines with the fixed bayonets glistening above them. Not a sight nor sound betrayed the presence of the enemy. There was nothing to be seen but the open field, extending two hundred yards in front and closed by the wall of woods, with an old zigzag rail fence at its edge. "There is no enemy there," exclaimed Captain Lusk to Captain Stevens, as they were marching side by side; "they have fallen back; we shall find nothing there."

Even as he spoke, the enemy poured a terrific volley from behind the rail fence. Captain Stevens struck the ground with great force and suddenness, shot in the arm and hip, and as he struggled to his feet saw the even battle line of the Highlanders pressing firmly and steadily on. A few minutes later General Stevens came up on foot, stopped a moment to ask his son if he was badly hurt, and to order a soldier to help him off the field, and, unheeding his remonstrances, moved on after the first line.

The enemy was smiting the column with a terrible and deadly musketry. The men were falling fast. General Stevens now ordered Captain Lusk to hasten to the 50th Pennsylvania, which was hesitating at entering the cornfield, and to push them forward, for, as the column advanced, the left struck and extended into this cornfield.

The troops, under the withering hail of bullets, were now wavering and almost at a standstill. Five color-bearers of the Highlanders had fallen in succession, and the colors again fell to the ground. At this crisis General

Stevens pushed to the front, seized the falling colors from the hands of the wounded bearer, unheeding his cry, "For God's sake, don't take the colors, general; they'll shoot you if you do!" and calling aloud upon his old regiment, "Highlanders, my Highlanders, follow your general!" rushed forward with the uplifted flag. The regiment responded nobly. They rushed forward, reached the edge of the woods, hurled themselves with fury upon the fence and the rebel line behind it, and the enemy broke and fled in disorder. The 28th Massachusetts joined gallantly in the charge, and the other brigades as gallantly supported the first. At this moment a sudden and severe thunderstorm, with a furious gale, burst over the field and the rain fell in torrents, while the flash of lightning and peals of thunder seemed to rebuke man's bloody, fratricidal strife.

General Stevens fell dead in the moment of victory. A bullet entered at the temple and pierced his brain. He still firmly grasped the flagstaff, and the colors lay fallen upon his head and shoulders. His noble, brave, and ardent spirit, freed at last from the petty jealousies of earth, had flown to its Creator.



CHAPTER LVIII

THE BATTLE OF CHANTILLY

The enemy's troops thus struck and hurled back were Ewell's division of Jackson's corps. Hays's and Trimble's brigades were behind the fence, and were supported by Early's and Lawton's brigades in the woods in their rear. This was the centre division in Jackson's column. The leading one, under Starke, had already crossed the Ox Road, and the rear division, under A.P. Hill, was closed up on Ewell's.

Jackson, judging from the fury of the attack and the numbers of his men running in disorder out of the woods that he was assailed by a heavy force, and fearing for his artillery, which had taken position on Ox Hill, on the north side of the pike, when Ewell's division advanced into the woods on the south side, at once moved his batteries half a mile back up the pike to a long ridge, and planted them in position to rally his troops upon in case of need, while at the same time he hurried Hill's infantry division forward to maintain the battle. That officer advanced the brigades of Branch and Brockenbrough (Field's), and successively threw into the fight those of Gregg, Pender, Thomas, and Archer, all of which, except the last, became heavily engaged and suffered severely. General Stevens's division withstood the attack of these fresh troops stoutly. It had driven back everything in its immediate front, but the contest now raged over the cornfield on the left. It was impossible for its scanty numbers long to resist the pressure of Hill's brigades, successively rushing into the conflict.

But aid was at hand.

At the moment of ordering the fatal charge, General Stevens sent Lieutenant H.G. Belcher, of the 8th Michigan, back to the main turnpike with instructions to ask support, and to go from commander to commander until he secured it. Belcher applied to several generals, who declined to go without orders, until finally he met General Kearny. Scarcely had he made known his mission to him, and its urgency was startlingly emphasized by

the rapid and fierce musketry of the battle, when Kearny exclaimed, "By God, I will support Stevens anywhere!" and at once broke the head of his column off the pike, and struck across the fields to the sound of the battle.

It was Birney's brigade that Kearny so promptly brought to the rescue. They arrived just in time. The 4th Maine, Colonel Elijah Walker, formed line in rear of the cornfield, considerably to the left of the farmhouse, and opened on the enemy swarming in the farther edge of the field. The remaining regiments as they came up, the 101st New York, 3d Maine, 4th New York, and 1st New York, extended the line to the right as far as the house, or the right border of the cornfield, and, as General Birney reports, "held the enemy and sustained unflinchingly the most murderous fire from a superior force." From this position they made a gallant advance well into the cornfield, driving back the enemy to the woods, and then withdrew to their former ground. Captain George E. Randolph planted his battery of four guns immediately in rear of the line, and fired over it into the farther side of the cornfield and into the woods. The 18th New York and 57th Pennsylvania were put in later, and helped sustain the contest.

General Stevens's troops maintained their unequal battle until after Birney's line opened. Jackson reports, "So severe was the fire in front and flank of Branch's brigade as to produce in it some disorder and falling back," and other Confederate officers mention the severe flank fire, showing conclusively that both Stevens's and Birney's smote this brigade, one in flank, the other in front, under which double fire it was broken and driven back. "This engagement is regarded by this brigade as one of our severest," says its commander in his report. After holding their ground for an hour in the unequal contest, and expending all their ammunition, General Stevens's troops fell back to the Reid house from the position they had so gallantly won. The enemy did not advance into the open ground on the right of the cornfield, and Birney's fight was continued over it until night ended the contest.

Ferrero's brigade, of only three regiments, reached the field immediately after Stevens's division, and was ordered by General Reno to cover his right. The 51st New York, the leading regiment, moved forward into the woods some distance on the right of Stevens's column until it encountered the line of Starke's division, became somewhat engaged, and retired with a

loss of thirteen. The next regiment, the 21st Massachusetts, was not to escape so easily. Thrown forward on the left of the 51st New York, and disconnected from it, it advanced for a long distance in the woods, somewhat disordered by fallen trees, struck the enemy's line, and unexpectedly received a deadly volley, and nearly one hundred brave fellows, dead and wounded, lay prostrate at the blow. The gallant regiment returned the fire as well as it could, but in the drenching rain many guns became unserviceable, and it fell back from the woods, the enemy not pursuing. The third regiment, the 51st Pennsylvania, entered the woods on the right of the 51st New York, but were not engaged.

Meantime Starke withdrew his whole division from the woods back to the Little River pike, and moved to the rear. Whether his line, struck by an unaccountable panic, fell into disorder, or whether Jackson drew back the troops for the support of Hill, all of whose brigades were then going into the fight, is uncertain, but probably the latter. Early moved to the left and covered the front vacated by Starke, but with a contracted line, while Trimble's and Lawton's brigades were content to hold their ground in the woods considerably to the rear of the fence from which Hays and Trimble had been so roughly driven.

Longstreet deployed Toombs's and Anderson's brigades of his leading division (Jones's), and advanced them into the woods in support of Jackson's troops, but they were not called upon, as night soon closed the contest.

"As I rode up and met General Jackson," says Longstreet in his "Manassas to Appomattox," "I remarked upon the number of his men going to the rear.

"General, your men don't appear to work well to-day?"

"No," he replied, 'but I hope it will prove a victory in the morning.'"

As the stricken 21st Massachusetts emerged from the woods, near where General Stevens formed his column, it was met by General Kearny, who was searching for troops to cover the right flank of Birney's line.

"In fierce haste," says General C.F. Walcott, the historian of the regiment, in a paper on this battle before the Massachusetts Military

Historical Society, “he ordered the regiment to move on the run to take post on Birney’s right, the position of whose line was indicated only by the flashes of their muskets. Luckily two of our companies, which had been detached in the woods to cover our flanks, had escaped the ambushade into which the others had fallen, and now joined us with serviceable guns, and the regiment, about two hundred strong, moved across the open ground towards the cornfield and the front of Birney’s right, deploying a thin skirmish line to cover our right and front as we advanced.

“As our skirmishers came up to the rail fence of the cornfield they were fired on by Thomas’s skirmishers, whose brigade, with two of Pender’s regiments, was in the cornfield, and coming from the woods well on Birney’s right. Crossing the line of the fence we soon halted in the corn, under a dropping fire from the enemy. General Kearny was following us up closely, and as we came to a halt fiercely tried to force us forward, saying that we were firing on our own men, and that there were no rebels near us. We had the proof in two prisoners—an officer and private of a Georgia regiment—brought in by our skirmishers, besides the warning cries of ‘Surrender,’ coming both from our right and front; but, unfortunately, Kearny’s judgment seemed unable to appreciate the existence of the peril which his military instinct had caused him to guard against. Lieutenant Walcott, of the brigade staff, took our prisoners to him, saying, ‘General, if you don’t believe there are rebels in the corn, here are two prisoners from the 49th Georgia, just taken in our front.’ Crying out fiercely, ‘--- --- you and your prisoners!’ the general, entirely alone, apparently in ungovernable rage at our disregard of his peremptory orders to advance, forced his horse through the deep, sticky mud of the cornfield past the left of the regiment, passing within a few feet of where I was standing. I watched him moving in the murky twilight through the corn, and, when less than twenty yards away, saw his horse suddenly rear and turn, and half a dozen muskets flash around him: so died the intrepid soldier, General Philip Kearny!

“Diverted by our movement from their design upon Birney’s brigade, the enemy surged up against our front and right flank, took what fire we could give them at a few paces distance (which they returned with

interest), and in the dark, ignorant of our weakness, allowed us to withdraw from their front without pursuit, and in a few minutes also drew back themselves from the cornfield to the woods behind it. Except a few scattering shots on Birney's front, which soon ceased, the battle of Chantilly was now over."

Supposing from the non-return of General Kearny that he had fallen or been captured, General Birney assumed command of his division, and after the battle was over relieved his hard-fought troops with General Poe's brigade. Robinson's brigade was posted during the battle on the high ground near the main turnpike, and was not engaged. The Union troops held the ground upon which they fought until half past two in the morning, brought off their wounded, and then retreated to Fairfax Court House after the last of the troops from Centreville had passed.

Only sixteen Union regiments, viz., six of Stevens's division, three of Ferrero's brigade, and seven of Birney's brigade, with six guns, Benjamin's two 20-pounder rifles, and Randolph's four 12-pounders, fought this battle against Jackson's whole corps of seventy regiments, of which at least forty-eight were in the fight. The Union force numbered 5500 effective, the Confederate at least twice as many.

In this brief and fierce battle the losses on each side were from 800 to 1000. The following statement is made up from Confederate official reports and, on the Union side, from regimental histories, for there are no official reports of Union losses, except four in Poe's brigade, and from estimates based on all available data, but undoubtedly falls short of the actual losses.

How exactly General Stevens grasped the military situation when he caught sight of the rebel skirmish line, and instantly decided to stay Jackson's impending advance by an attack that would throw even him on the defensive, is clearly shown by the Confederate leader's objective, and the dispositions he had made of his troops to accomplish it.

Jackson had moved down the pike from Chantilly slowly and carefully, to give time for Longstreet to close up in support. His troops were well in hand, the infantry of one division, and probably of all three, marching in two columns, one on each side of the road, and the artillery on the road between them. Already he had thrown this solid column, prepared for battle

rather than for the march, athwart the Ox Road, which led straight across to the coveted line of retreat. Already his skirmishers, supported by a regiment, had pushed southward half a mile, and were advancing across country to the other pike, and in another half mile—in ten minutes more—would come in plain sight of the wagons moving back upon it. His whole corps was in position,—Ewell's division (under Lawton) in the centre, Starke on the left, Hill on the right. It lay wholly in Jackson's will and power, advancing but little over a mile, to hurl this mighty mass, seventy regiments strong, upon Pope's only road and his retreating troops and trains. Who that knows Jackson's career can doubt his will and power to seize the golden opportunity?

At the very instant of launching the thunderbolt, Jackson learns that the enemy is advancing upon him, his skirmishers are driven in, his centre division is hurled headlong from its position, the fugitives pour out of the woods, he hurries his artillery to the rear, is forced to throw the whole of his right division into the fight, brigade after brigade, and to withdraw his left division for his last reserve. The possibility of striking his enemy is gone. He can only say, "I hope it will prove a victory to-morrow."

And the troops that General Stevens led to this desperate and victorious charge were the same who, but ten weeks since, suffered the slaughter on James Island, and had just lost half of their number in the bloody encounters on the plains of Bull Run. Can more be said for the gallantry and devotion of the soldiers, or the hold upon them of their heroic leader?

Had General Stevens remained on the defensive and given time—and time counted by minutes—for Jackson to advance, disaster were inevitable. How long could his scanty force of nine regiments, outflanked and overborne, have resisted the avalanche? True, Kearny was on the pike, and perhaps others would have joined in the defense, but where was the army or corps commander to put them in, and order and control battle against Jackson's onslaught, backed by Longstreet? Pope was at Centreville; Sumner, with his second corps, north of it; Sigel's, McDowell's, Franklin's troops scattered from Fairfax to Alexandria and Washington; Banks retreating down Braddock road,—all scattered and out of reach. The closest study of the situation strengthens the conviction that General Stevens that day saved the army and the country from an appalling disaster.

General McDowell, hurrying to Fairfax Court House as directed by General Pope, met Patrick's brigade near that point and posted it behind Difficult Run, just in front of Germantown,^[21] where it was supported by Ricketts's division. General Stuart, who with his cavalry preceded Jackson's column down the pike, after passing the Ox Road some two miles found his advance arrested by these troops, and, after some skirmishing, moved off northward toward Flint Hill in a fruitless effort to flank the Union line. Patrick's brigade lost twenty wounded. Neither force took any part in the battle of Chantilly.

UNION LOSSES.

Stevens's division:	Staff	2
First brigade:	{ 100th Pennsylvania	36
Colonel Daniel Leasure	{ 46th New York	50*
Second brigade:	{ 79th Highlanders	40
Colonel David Morrison	{ 28th Massachusetts	99
Third brigade:	{ 8th Michigan (7 killed)	50*
Colonel B.C. Christ	{ 50th Pennsylvania (7 killed)	<u>50*</u>
Reno's division:		
Ferrero's brigade	21st Massachusetts	130
	51st New York	13
	51st Pennsylvania (none)	<u>143</u>
Kearny's division:	Staff	1
Birney's brigade	3d Maine	50
	4th Maine	64
	40th New York	163
	1st New York	40*
	38th New York	25*
	101st New York	40*
	57th Pennsylvania	25*
Poe's brigade:	Pickets	<u>4</u>
Total: 16 regiments		<u>412</u>

* Estimated. No report in war records or histories.

CONFEDERATE LOSSES.

Jackson's corps:

Stark's division	20 regiments	71*
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Ewell's division:

Lawton's brigade	6 regiments	12
Early's brigade	7 regiments	32
Trimble's brigade	5 regiments	21
Hays's brigade	5 regiments	135
	43	200

Hill's division:

Branch's brigade	5 regiments	108
Pender's brigade	4 regiments	58
Gregg's brigade	5 regiments	104
Archer's brigade	5 regiments (not engaged)	
Field's (or Brockenbrough's)	4 regiments (no report)	75*
Thomas's brigade	4 regiments (loss not reported)	75*
	27	420

Longstreet's Corps:

Jones's		1
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Total: 70 regiments—48 in action	692
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* Estimated. General Hill reports his loss as 306. It is impossible to reconcile these small losses with the Confederate reports of the severity of the fighting.

NOTE.—The Confederate reports of the battle of Chantilly, or Ox Hill, show with tolerable clearness their troops engaged, and the positions and parts taken by them. Early's report definitely locates Hays's and

Trimble's brigades "in line of battle on the right of Jackson's division, and occupying positions in the edge of a field beyond a piece of woods through which the Ox Road here runs." This is unmistakably the very position from which General Stevens's charge drove the enemy. The loss in Hays's brigade (135) was greater than that of any other. Early acknowledges that Hays's brigade "fell back in confusion, passing through these regiments (second line), followed by the enemy;" that the commander of Trimble's brigade was killed, and one or two regiments of it were thrown into some confusion. There are no reports from any officer of Jackson's (Starke's) division, except the bare mention by one brigade commander that they met the enemy at Ox Hill, September 1, and repulsed him; none from Hays's, Trimble's, or Lawton's brigades of Ewell's division; and none from Field's (Brockenbrough's) brigade of Hill's division. General Longstreet, in his book *Manassas to Appomattox*, pp. 193–195, says of this battle: "Two of Hill's brigades were thrown out to find the enemy, and were soon met by his advance in search of Jackson, which made a furious attack, driving back the Confederate brigades in some disorder. Stevens, appreciating the crisis as momentous, thought it necessary to follow the opportunity by aggressive battle in order to hold Jackson away from the Warrenton turnpike. Kearny, always ready to second any courageous move, joined in the daring battle. At the critical moment the rain and thunder storm burst with great violence upon the combatants, the high wind beating the storm in the faces of the Confederates. So firm was the unexpected battle that part of Jackson's line yielded to the onslaught. At one moment his artillery seemed in danger.... As I rode up and met General Jackson, I remarked upon the number of his men going to the rear:—

“General, your men don't appear to work well to-day.’

“No,’ he replied, ‘but I hope it will prove a victory in the morning.’

“As both Federal division commanders fell, the accounts fail to do justice to their fight. Stevens, in his short career, gave evidence of courage, judgment, skill, and genius not far below his illustrious antagonist.”

Immediately after the close of the Civil War, in June, 1865, the author visited the battlefield of Chantilly. The ground and its incidents agreed precisely with his recollections. The remains of the fence at the edge of the woods from which General Stevens hurled the enemy were plainly visible, many of the rails as well as the trees showing marks of bullets. From a point near the corner of the cornfield, extending nearly perpendicularly into the woods for fifty yards, and facing to the left, were the vestiges of a hastily thrown up breastwork, or cover, of earth, rails, logs, and branches, which the Union troops had scraped together after driving back the enemy in order to meet the attack of Hill's troops on their left.

In May, 1883, the author, accompanied by the late General Charles F. Walcott, again visited the field, and by the hospitality of Lieutenant John N. Ballard, the present owner of the estate, himself a Confederate soldier, spent the night at the Reid house. Mr. Ballard exhibited a plan of the estate, made in 1858, accompanying a former deed, which comprised almost exactly the battlefield, and kindly permitted a tracing of it to be made. The distance between the fence where General Stevens fell and the Little River pike was found by pacing to be about four hundred yards. By this data a fairly accurate map of the battlefield was obtained. Mr. Charles Stewart, a very intelligent gentleman, whose house is on the Little River pike half a mile west of the field, who was at home at the time of the battle and an eye-witness of the movements of the Confederate troops, and who went over the field the third day after the engagement, pointed out to the visitors the localities of interest in connection with the fight near his house, and graphically narrated how Jackson hurried his artillery to the rear at the opening of the battle, and threw it into position half a mile back on a bare, commanding ridge near the Stewart house. This account was fully corroborated by Mr. Ballard. A full and interesting account of this visit, and also an account of the battle, by General Walcott, is given in volume ii., Military Historical Society of Massachusetts.

The author has been aided in preparing his account of the battle by written statements from Colonel David Morrison, Captain William T. Lusk, and Captain Robert Armour, of the 79th Highlanders; Lieutenant Samuel N. Benjamin and Captain George E. Randolph, who

commanded the two batteries engaged; Colonel Elijah Walker, of the 4th Maine, and Colonel Moses B. Lakeman, of the 3d Maine; and by personal interviews with these officers and many others, including Lieutenant H.G. Belcher, who participated in the engagement.

War Records, series 1, vol. xii., “History of 79th Highlanders,” by William Todd; *The One Hundredth Regiment Pennsylvania Volunteers, Roundheads*; James C. Stevenson, *Michigan in the War, Maine in the War*; Bates’s *History of Pennsylvania Volunteers*.

The only reports of the battle of Chantilly by Union officers who took part in it are those of General Birney and Captain Randolph, and they are very brief. There are actually no reports from any officers of General Stevens’s or General Reno’s division, owing to the death of the commanders—Reno fell at South Mountain a few days later—and the rapid changes in, and movements of, the troops in the Maryland campaign, which immediately followed.



CHAPTER LIX

FINAL SCENE

After the successful charge Colonel Morrison sent an officer to report that General Stevens had fallen, and that the enemy had been driven back. General Reno, to whom the report was made, returned orders to bury General Stevens on the field, and to fall back. The Highlanders reverently and tenderly bore away the body of their beloved commander and placed it in an ambulance, from which one of their number, although wounded, willingly alighted to give room. The remains were taken to Washington to the house of his dear friend, John L. Hayes, and thence to Newport, R.I.

General Reno's apparently unfeeling order excited great indignation among the Highlanders.

At the very moment of his heroic death General Stevens was being considered by the President and his advisers as commander of the armies in Virginia. Mr. Hayes was assured of the fact by a member of the cabinet, and it was currently stated in the press. Certain it is that ignoble personal rivalries and jealousies could not have kept him down much longer.

He was appointed and confirmed a major-general, to rank from July 4, 1862.

He was only forty-four years, five months, and seven days of age when he fell.

The stern old Puritan Abolitionist, his aged father, died August 22, only ten days previous. He frequently declared that he should never see Isaac again, that he knew his spirit too well, that he would surely be killed in battle, and it was thought that brooding over this idea hastened his own death.

General Stevens was buried in the Island Cemetery in Newport. The obsequies were attended by Governor Sprague, of Rhode Island, and Governor Andrew, of Massachusetts, Professor Bache and officers of the

Coast Survey, the mayor and council of Newport and other dignitaries, and a large military escort. The city of Newport erected beside his grave a massive granite obelisk, bearing the following simple and appropriate inscription, composed by his brother-in-law, the Rev. Charles T. Brooks:

IN MEMORY OF
MAJOR-GENERAL ISAAC INGALLS STEVENS,
BORN IN ANDOVER, MASS.,
MARCH 25, 1818,
WHO GAVE TO THE SERVICE OF HIS COUNTRY
A QUICK AND COMPREHENSIVE MIND,
A WARM AND GENEROUS HEART,
A FIRM WILL AND A STRONG ARM,
AND WHO FELL WHILE RALLYING HIS COMMAND
WITH THE FLAG OF THE REPUBLIC IN HIS DYING GRASP,
AT THE BATTLE OF CHANTILLY, VA.,
SEPTEMBER 1, 1862.

THIS MONUMENT
IS ERECTED AS A TOKEN OF
ADMIRING GRATITUDE
BY THE
CITY OF NEWPORT.

When the Highlanders were mustered out of service, the flag under whose folds General Stevens fell was sent to his widow, with the following letter from the brave Colonel Morrison:—

NEW YORK, September 22, 1864.

Mrs. ISAAC I. STEVENS.

Dear Madam,—I have the honor to transmit to you the colors of the 79th Highlanders, the same that were in the hand of your late lamented husband when he received his wound. Since I knew that you wished to have them in your possession I have watched them with a jealous eye through many stormy fields. Although but a rag, many a brave man would have sacrificed his life rather than anything dishonorable should happen them. From Chantilly to Blue Springs, wherever they were unfurled, victory has perched upon them, and when, torn and tattered, we exchanged them for a new set, I have carried them about with me, and I assure you it gives me great pleasure in sending them to you, so that you may preserve them as an heirloom in your family. Serving immediately under General Stevens, no one had a better opportunity of knowing him than myself. Well may you feel proud of him! His nobleness of heart, his firm devotion to his country, his untiring energy, his unflinching bravery, have endeared him to all those who have served under him. His memory is engraven on the hearts of every one of his Highlanders, and the few of us that are left often speak of the many acts of kindness bestowed on us by “Our General.”

I am, madam, your obedient servant,

D. MORRISON,
Late Colonel 79th Highlanders.

The legislature of Rhode Island passed resolutions upon the death of General Stevens, and offered to provide a fit resting-place for his ashes. The city of Newport, the officers of the Coast Survey, and many other public bodies paid fitting tribute by resolutions. “When the intelligence of his death reached Washington Territory, the grief of all classes was sincere and profound. Nothing could any one recall that was base or dishonorable, but much that was lofty and manly in the dead hero. The legislature passed resolutions in his honor, and ordered crape to be worn.”^[22] For many years the successive governors and legislatures regularly paid tribute to his memory.

He fell—that glowing eye
In sudden night was quenched;
But still the flag he lifted high,
And onward bore to victory,
In his dead hand was clenched.

He sank—but o'er his head
The drooping ensign fell,
As if its folds it fondly spread
Above the forehead, pale and dead,
Of him who loved it well.

He sleeps—unlock that clasp!
The hero's work is done!
Another hand that staff shall grasp,
And, if need be, till life's last gasp,
Like him shall bear it on.

He rests—the true and brave!
And where his relics lie,
In holier beauty long shall wave,
Fit canopy for freeman's grave,
God's starry flag on high.

He lives—his deeds inspire
New strength for duty's strife:
Now myriads burn with nobler fire
Onward to press—to mount up higher
And win the eternal life.[\[23\]](#)



GENERAL STEVENS's DESCENDANTS.

1. HAZARD, born in Newport, R.I., June 9, 1842.
2. JULIA VIRGINIA, born in Newport, June 27, 1844, died in Bucksport, Me., December 7, 1845.
3. SUSAN, born in Bucksport, November 20, 1846; married Richard Isaac Eskridge, United States Army, in Portland, Oregon, October 27, 1870.
4. GERTRUDE MAUDE, born in Bucksport, April 29, 1850.
5. KATE, born in Washington, D.C., November 17, 1852; married Edward Wingard Bingham, in Boston, Mass., February 18, 1886.

GRANDCHILDREN, CHILDREN OF RICHARD ISAAC ESKRIDGE AND SUSAN STEVENS ESKRIDGE.

1. MAUD, born at Fort Vancouver, Washington Territory, August 21, 1871; married Edward Pennington Pearson, United States Army, at Fort Reno, Oklahoma Territory, April 16, 1898.
2. RICHARD STEVENS, born at Yuma Depot, Arizona Territory, October 24, 1872.
3. HAZARD STEVENS, born at Yuma Depot, February 24, 1874; died at Fort D.A. Russell, Wyoming Territory, October 12, 1874.
4. VIRGINIA, born at Fort D.A. Russell, March 2, 1875.
5. OLIVER STEVENS, born in Boston, Mass., October 12, 1876.
6. MARY PEYTON, born at Fort Leavenworth, Kansas, March 28, 1878; married Charles McKinley Saltzman, United States Army, in Boston, May 9, 1899.



THE MONUMENT

APPENDIX

Following are the marginal notes on the

MAP

of the Indian Nations and Tribes of the Territory of Washington, and of the Territory of Nebraska west of the mouth of the Yellowstone. Sent to the Hon. George W. Manypenny, Commissioner of Indian Affairs, with letter of this date.

ISAAC I. STEVENS,
Governor and Supt. Indian Affairs.

OLYMPIA, WASHINGTON TERRITORY, April 30, 1857.

Tabular Statement of the Indians East of the Cascade Mountains, etc.

NAME AND DATE OF TREATIES	NAMES OF TRIBES	POPULATION.	RESERVATIONS.	TEMPORARY ENCAMPMENTS.
Treaty with the Yakima Nation concluded at Walla Walla, June, 1855.	Pisquouse.	600	Simcoe and the adjoining country and forks of the We-nat-scha-pan, or Pisquouse River.	About 150 of these tribes are encamped in the vicinity of Simcoe River. Opposite the Dalles, Oregon. White Salmon River.
	Yakimas.	700		
	Pshawm wappam.	500		
	Bands on Columbia.	100		
	Klikitats.	500		
Walla Walla treaty,	Palouses.	600	On the Snake and Clearwater Rivers.	
		3900		
	Nez Perces.	3300		

concluded June, 1855.			
Treaty with the Flathead Nation, concluded June, 1855.	Flatheads.	500	Flathead River.
	Upper Pend Oreilles.	700	
	Kootenays.	500	
		1700	
Tribes with whom no treaties have been made.	Cœur d'Alenes.	450	
	Lower Pend Oreilles.	450	
	Colvilles.	500	
	Okinakanes.	600	
	Spokanes.	1100	
		3100	

Total number of Indians east of the Cascade Mountains 12,000

Treaties have been made with 8,900

Number with whom treaties have not been made 3,100

Largest number held on temporary reservations 3,000

Written on upper central margin in Governor Stevens's handwriting:—

Total number of Indians west of the Cascade Mountains 9,712

Total number of Indians east of the Cascade Mountains 12,000

Total number of Indians, Territory of Washington 21,712

Treaties have been made with 17,497

Treaties remain to be made with 4,215

Tabular Statement of the Indians West of the Cascade Mountains, showing Tribes, Population, Parties to the several Treaties, Reservations provided for in the Treaties, and Temporary Encampments.

NAME AND DATE OF TREATIES	NAMES OF TRIBES	POPULATION.	RESERVATIONS.	TEMPORARY ENCAMPMENTS.
Treaty of Medicine Creek, December 26, 1854	Quaks-na- mish, Nisqually, Puy-all-up.	} 1200	Klah-che-min Island, Near mouth of Nisqually River. Near mouth of Puy-all-up River.	Klah-che-min Island. } Fox Island.
Treaty of Point Elliott,, January 22, 1855.	Duwamish,, Suquamish, and allied tribes..	} 942	Noo-soh-te- um,near Port Madison, and at Muckleshoot.	Dunginess Point. Fort Kitsap.
	Sno-qual- moo, Sno-ho- mish, and allied tribes..	} 1700	Te-wilt-sch-da, north side Sno- ho-mish River.	Skagit Head, on Whitby Island.
	Skagits and and allied tribes.	} 1300	S.E. end Perry (or Fidalgo) Island.	
	Lummi, Nook-Sahk, Sa-mish.	} 1050	Chah-choo-sa Island, at mouth of Lummi River.	Penn's Cove, on Whitby Island.
Treaty of Point-No- Point, January 25, 1855.	Clallams, Skokomish, Chem-a- kum.	4992 926 290 100	} Head of Hood's Canal.	Penn's Cove, on Whitby Island.
		1316		
Treaty of Neah Bay, January 31, 1855.	Ma-kahs.	596	Cape Flattery.	

Treaty of Olympia.	Quinaiult, Kwilleyute.	} 493	Reservation to be selected by the President. Quinaiult River and land set apart.
Tribes with whom treaties have not been made.	Lower Chehalis.	217	S.S. Ford's on the Chehalis River.
	Upper Chehalis.	216	
	Cowlitz and Tia-tin-a-pan.	240	Near Cowlitz Landing.
	Lower Chinooks.	112	Removed to White Salmon.
	Upper Chinooks.	330	Vancouver and Cascades.
		1115	

Total number of Indians west of Cascade Mountains 9712

Number with whom treaties have been made 8597

Number with whom treaties have yet to be made 1115

Largest number held on temporary reservations 5686

All have been assisted during the war. The parties to the treaties of Neah Bay and Olympia, the Lower Chehalis and Lower Chinooks, have required but little assistance at the hands of the Department.

NOTES OF THE INDIANS OF THE TERRITORY OF NEBRASKA BETWEEN THE ROCKY MOUNTAINS AND MOUTH OF THE YELLOWSTONE.

The Blackfoot Nation are in four tribes, viz., Piegans, Bloods, Blackfeet, Gros Ventres, and number 11,500 souls.

The map shows the hunting-grounds, secured exclusively to the Blackfeet in the treaty, at the mouth of the Judith, concluded October 17, 1855; the hunting-ground common to the Blackfeet and Western

Indians, the Blackfeet and Assiniboinés; the western and southern boundaries of the Assiniboine country; and the western boundary of the Crow country.

The Western Indians, Flatheads, Pend Oreilles, and a portion of the Kootenays, generally make two hunts a year east of the Rocky Mountains, and they depend for their lodges, parfleches, apachinos, and much of their meat upon these hunts. They get some of their supplies by trade with the Blackfeet. The Indians of the western tribes, as the Spokanes and Cœur d'Alenes, "go to buffalo," but not in as large numbers or with as much regularity as the preceding.

The Nez Percés generally have a large camp—over one hundred lodges—either on the common hunting-grounds or in the Crow country. Their hunters always pass one winter, and sometimes two winters, in succession, east of the mountains before they return to their own country.

CENSUS OF THE BLACKFOOT NATION.

Tribes.	Number of Lodges.	Population.
Piegans.	340	3,150
Bloods.	290	2,690
Blackfeet.	290	2,690
Gros Ventres.	<u>360</u>	<u>2,970</u>
	1280	11,500

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Footnotes

[1] A census of all the tribes in the Territory, returned with Governor Stevens's report and map of April 30, 1857, is given in the [Appendix](#).

[2] Numbers and names of all these tribes as given in tabular statement or census, in Governor Stevens's map and report of April 30, 1857, to the Commissioner of Indian Affairs, now on file in Indian Bureau. See [Appendix](#).

[3] Pisquouse or Wenatchee, 600; Yakimas, 700; Ps-hawn-appan, 500; Columbia River bands, 1000; Palouses, 600; Klikitats, 500.

[4] Letter to author; Report of J. Ross Browne, H. Doc., p. 38, 1st session, 35th Congress; Swan's Three Years, Washington Territory, pp. 324–425; Speech of Governor Stevens, 1st session, 35th Congress, Congressional Globe, vol. 37, pp. 490–494.

[5] Speech of Governor Stevens, 1st session, 35th Congress, Congressional Globe, vol. 37, p. 490.

[6] Report of the Commissioner of Indian Affairs, 1899, pp. 147, 148, 297, 298, 304, 612, 618, 626, 628.

[7] Now known as the Missoula Valley and River.

[8] Report of the Commissioner of Indian Affairs, 1899, pp. 192–194, 620.

[9] Now occupied by the thriving town, Missoula.

[10] Bancroft, vol. xxvi. p. 143.

[11] In this cartoon two settlers in roughest costumes, slouch hats, woolen shirts, huge muddy boots with trousers tucked into them, and long, unkempt hair and beard, are represented standing in front of a log-hut in the woods, while in the distance appears a building, having over the door the sign "Quartermaster's Office," from which a man is being kicked into the street.

"First Pike. That's pretty rough, Bill, yanking a man out of office like that, without giving him any show or trial.

"Second Pike. Well, the governor's generally about right, and he's dead right this time, you bet."

[12] Major Granville O. Haller, in an article on the San Juan affair, states that immediately on receipt of news of the action of the British he was sent with his company by Colonel Casey from Steilacoom to San Juan, ostensibly as a guard against northern Indians, but with instructions to confer with Pickett, and if he needed aid, to land and assume command. On reaching the scene of action he was closely questioned by the British officers as to the latest news from the east,—the American

mail had just brought news of the battle of Solferino,—for their mails were delayed, and they were somewhat restrained by the reflection that their government might have already relinquished the archipelago, and advices of it not yet arrived. Major Haller remained on his vessel a few days, probably not wishing to precipitate a conflict by forcing a landing, but did land soon afterwards.

[13] Alexander H. Stephens, *The War Between the States*, vol. ii. p. 276.

[14] The accounts for this vast sum were all found correct, and were all passed by the accounting officers of the treasury, except some of the expenditures on the exploration, and it is instructive to note these items as an example of how great injustice the rigid rules, or notions of accounting officials, oftentimes inflict upon the most scrupulous and careful officers. Governor Stevens was charged with a balance of \$8856.14, the largest item in which (\$2626) consisted of the payment to ten regular officers on the exploration of one dollar per diem each, while engaged in topographical duty, according to an established regulation. Other items were for payments for subsistence and transportation; for compensation paid civil employees; for interest on the protested drafts, which were necessary to continue the survey, and for which Congress made appropriation; for articles and animals necessarily lost or worn out in so widespread and extended a service; and even for recompense paid certain of the party who had to abandon their clothing and effects in the mountains in a snowstorm. No compensation was ever allowed Governor Stevens for his services in conducting the exploration and preparing his final report. Although the disallowed items were referred to Captain A.A. Humphreys (General Humphreys) for examination, and he reported in favor of Governor Stevens, and recommended the allowance of nearly every item, no action was taken before the latter fell at the battle of Chantilly, the following year. Since then application has been made to Congress, resulting in one bill passing the House and another the Senate at different times, but neither passed both branches. And General Stevens, after serving his country so faithfully, and accomplishing so much in her behalf, is accounted a *debtor* to the government.

[15] Governor Alexander S. Abernethy writes the following anecdote of Governor Stevens. Meeting him just before starting East, the governor said that he had told the Southern gentlemen, with whom he had been associated in the Democratic Executive Committee and in the convention, that, if a war should result from the action they had taken, he would be found supporting the government against them. “And,” said he, “I am going to Washington at once, and shall offer the President my sword and my services as long as this war shall last.”

[16] The author was General Stevens’s chief of staff, and was confidentially informed and employed by him in all the details of this plan of campaign against Charleston, and of the scouts by Captain Elliott and others. Since the war he has gone over the whole matter with General Thomas W. Sherman, who expressed the utmost confidence in the proposed movement, and his lasting regret that he was deprived of the opportunity of carrying it out.

[17] The Confederate major, Pressley, who went over the ground just after the assault to be related in the next chapter, thus describes Fort Lamar, in *Southern Historical Society Papers*, vol. xvi.: “The work across the neck of the Secessionville peninsula was about fifty yards in length, and was a very well-constructed line of intrenchments. The ramparts were about fifteen feet from the level of the ground.

There was a ditch in front about ten to fifteen feet in width. The exterior slope was so nearly perpendicular that it was impossible to get up in front without scaling-ladders. The enemy were not provided with these.”

[18] See *Rebellion Records*, vol. xiv.; *History of the 79th Highlanders*, by William Todd; Major Pressley, in *Southern Historical Society Papers*, vol. xvi., Major John Johnson’s *Defense of Charleston Harbor*.

[19] John C. Ropes, *Army under Pope*, pp. 193–199, gives Pope 71,000; Lee, 54,268. General Longstreet, *Manassas to Appomattox*, gives Pope 54,500; Lee, 53,000. Colonel William Allen, *Army of Northern Virginia*, puts “Lee’s strength at 47,000 to 55,000; say over 50,000.”

[20] The reports of Jackson and his subordinates indulge in much exaggeration as to driving the Union forces in their front, but Longstreet, with more truth, states in his book, p. 189, that “Jackson failed to pull up even on the left.”

[21] Statement of Colonel Charles McClure, of Patrick’s staff.

[22] H.H. Bancroft’s *History of Washington*.

[23] Anonymous, from *Boston Commonwealth*.

Transcriber's Note

Some compound words (e.g., 'wagon-master') appeared both with and without a hyphen. They are given as printed. Where a word is hyphenated on a line break, the hyphen is retained if the preponderance of other appearances indicate it was intended. Index entries tend to not hyphenate words that are unhyphenated in the text. All variants were retained.

Footnotes are repositioned at the end of the text. They have been re-numbered consecutively and linked for convenient reference.

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The word 'coöperate' is consistently printed with the diaeresis on the second syllable's opening 'o'. On p. 181, the word fell on a line break, and was hyphenated without the diaeresis. The 'ö' has been restored for consistency.

The total for the second table on p. 381 appears incorrectly as 16,988. The figures, as printed, add to 17,009.

On p. 401, the word 'preemptorily', apparently an error for 'peremptorily' appears in a quoted passage, and is merely noted here.

Neither of the versions of 'Quinault' in the table on p. 504 agrees with the modern spelling. To be consistent, the second instance was changed to agree with the first, 'Quinaült'.

Index

There were several errors discovered in the index, which refers to both volumes. On occasion, the volume numbers 'i' or 'ii' are missing, and on occasion incorrect. These errata are included in the table below.

While these errors are corrected, no systematic attempt was made to check all entries.

The entry for 'Daufuskie Island' was misprinted as 'Danfuskie', and attributed to the wrong page (p. 282 rather than p. 382). It should have followed the entry for 'Danpher', just below it.

Minor punctuation lapses were silently corrected.

The following minor issues, most likely printer's errors, are noted, and were corrected.

p. 85 Governor Stevens[;/:]	Corrected.
p. 94 vicin[i]ty	Added.
p. 95 luxur[i]ant	Added.
p. 181 co[-o]/ö]perate	Corrected.
p. 268 meeting[s]	Added.
p. 318 well known in Congress.["]	Removed.

p. 349 stren[u]ously	Removed.
p. 368 Serr[i/e]ll's	Corrected.
p. 371 discipl[in]ing	Added.
p. 381 Brigad[i]er-General Ripley	Added.
p. 401 preemptorily	sic.
p. 432 Junct[i]on	Added.
p. 450 b[r]ack	Removed.
p. 504 Quin[ia/ai]ult	Transposed.
p. 507 Anderson, George T., Colonel, i[i]. 490.	
p. 510 river, [i.] 412;	Added.
p. 512 Da[n/u]fuskie	Corrected.
p. 513 Flattery, Cape, [i.] 473, 474, 477.	Added.
p. 514 Gosnell, Wesley, ii. 169, 187, 255, 2[2/5]7	Corrected.
p. 516 James River, Va., [ii.] 423.	Added.
p. 525 Seventy-Ninth Highlanders, New York volunteers, [i]i. 320,	Added.
action at Port Royal Ferry, 3[6/5]8–366	Corrected.
p. 526 Stevens, Eliza, cousin, [i.] 91.	Added.
Stevens, George Watson, [i.] 265, 266, 269, 295;	Added.
p. 528 Townsend, E.D., General, his advice, i. 26, 28.	Added.
p. 529 Virginia, 13th regiment, ii. 3[2/3]1;	Corrected.
1st cavalry, [3]32;	Added.
Washington, Camp, south of Spokane River, [i.] 399, 400.	Added.
Wellman, Captain, bark Prompt, [i.] 99, 108.	Added.
p. 530 Xochimilco, village, [i.] 168, 171.	Added.

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ISAAC INGALLS STEVENS, VOLUME 2 (OF 2) ***

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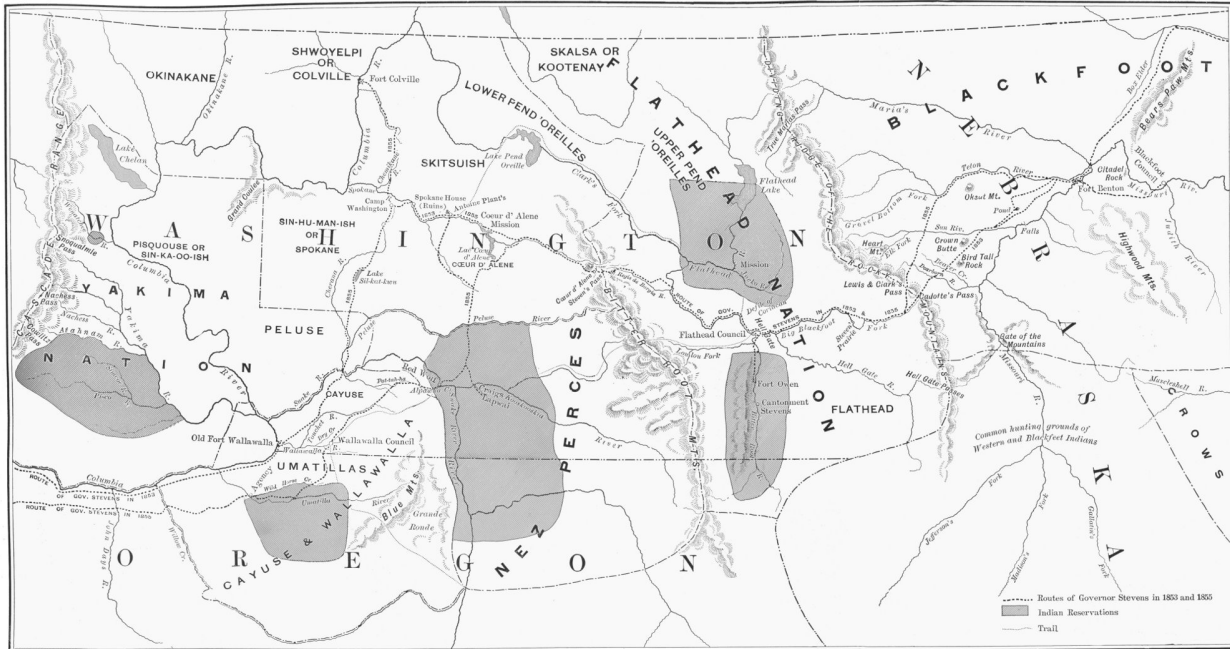
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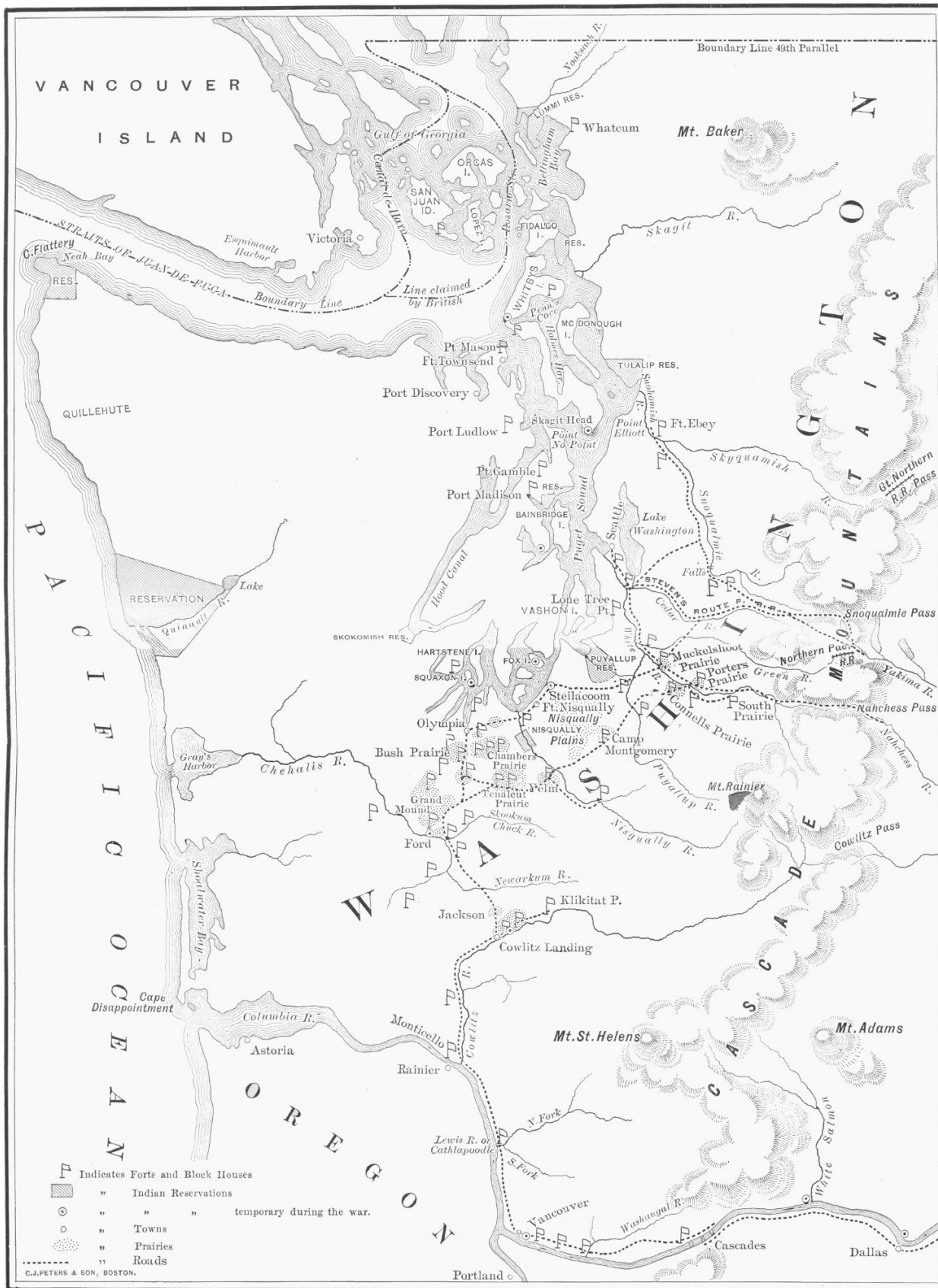
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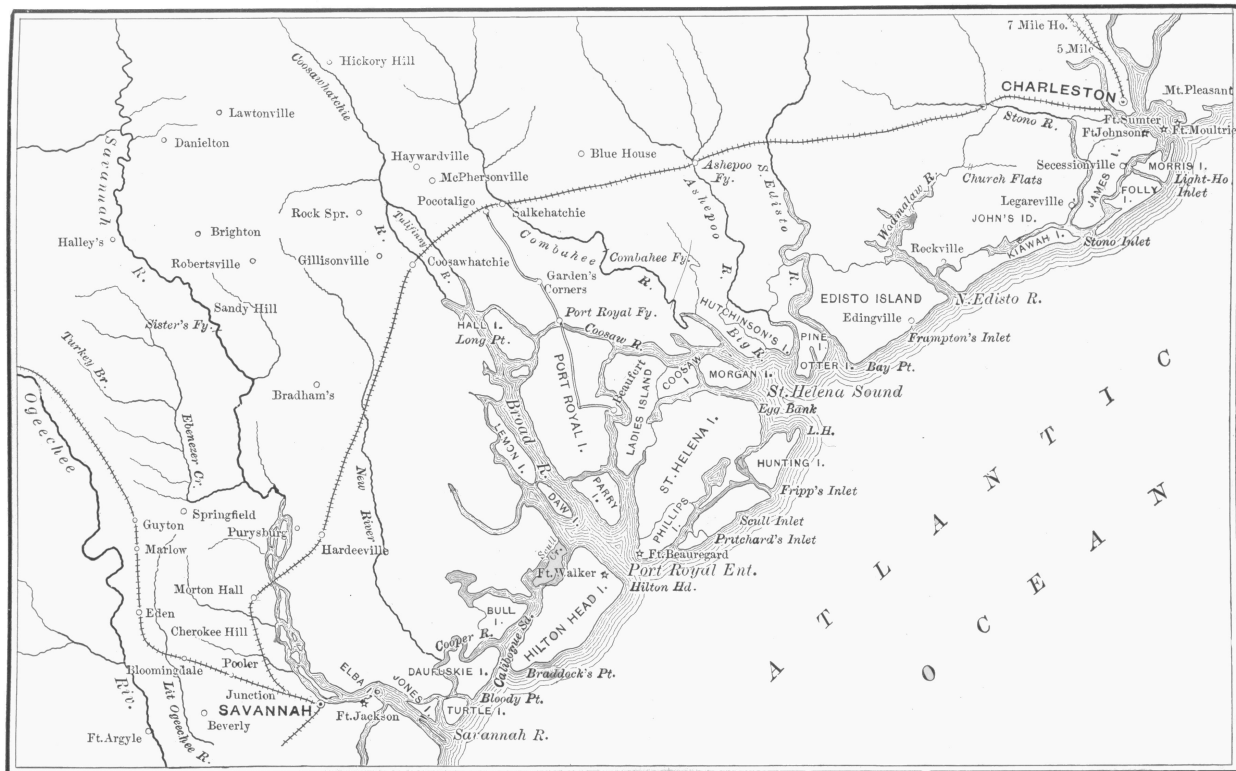
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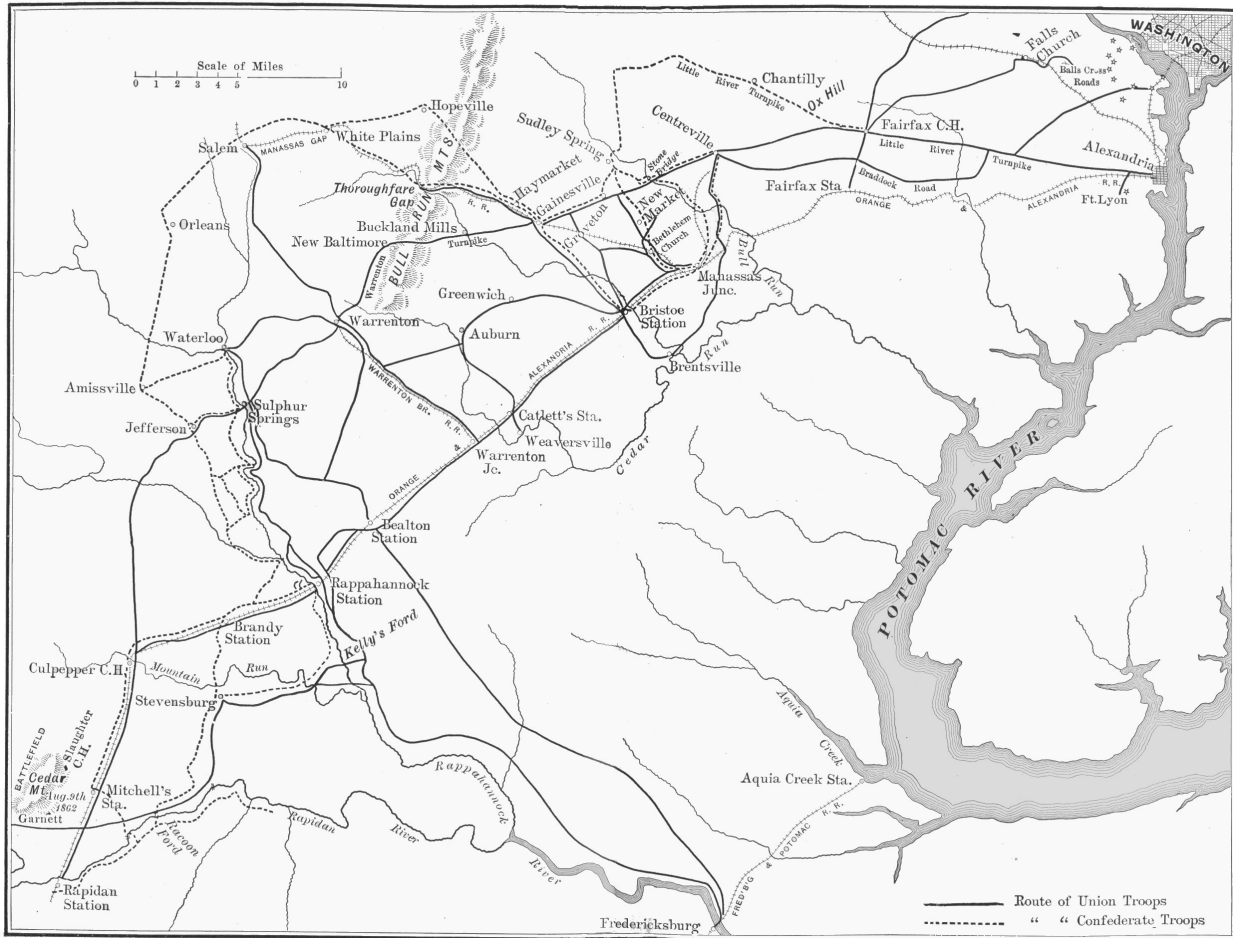
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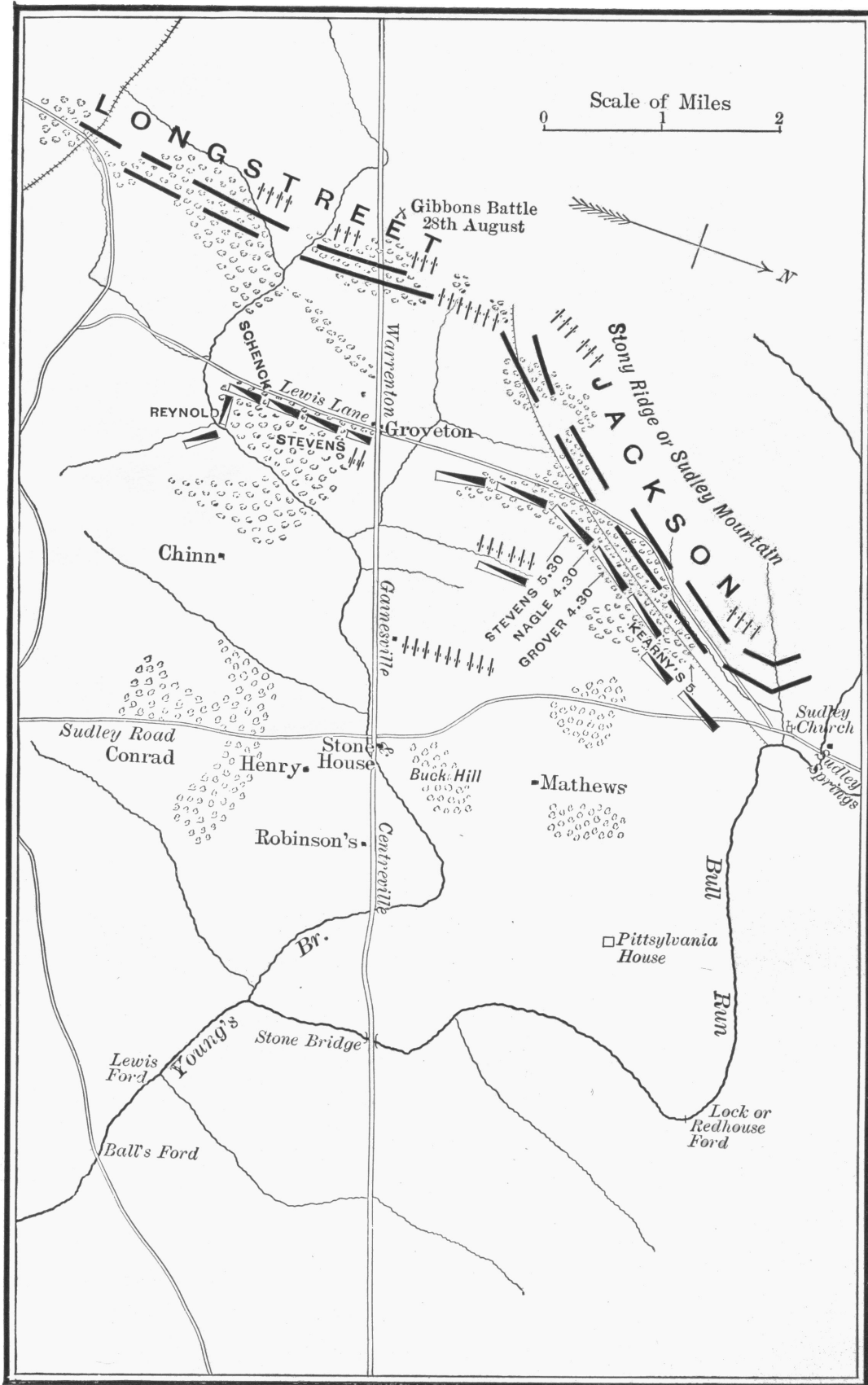
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